



SUPREME COURT REPORTS

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Fortnightly

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Gulfisha Fatima
v.
State (Govt. of NCT of Delhi)

(Criminal Appeal No. 11 of 2026)

05 January 2026

[Aravind Kumar* and N.V. Anjaria, JJ.]

Issue for Consideration

Matter pertains to grant of bail to accused-appellants in relation to arrests made pursuant to Delhi Riots, 2020, considering the prolonged incarceration, and the constitutional plea u/Art.21 of the Constitution.

Headnotes[†]

Constitution of India – Art.21 – Unlawful Activities (Prevention) Act, 1967 – s.43D(5) – Delhi Riots, 2020 – Bail sought by accused-appellants considering the prolonged incarceration, and constitutional plea u/Art.21 – Prosecution case that the appellants conspired to orchestrate and execute the 2020 Delhi Riots as a form of protest against enactment of the Citizenship Amendment Act, 2019 and proposed NRC – Conspiracy culminated in the widespread communal violence which claimed 54 lives including senior police officer and Intelligence Bureau official, as well as grievous injuries to several police personnel and civilians and, extensive damage to over 1,500 public and private properties, along with substantial intangible harm to public order, social harmony and the nation at large – Appellants arrested in 2020 – Chargesheets filed disclosing the alleged roles attributed to each of the appellants and contours of the larger conspiracy purportedly orchestrated by them – Pendency of trial – Prosecution case *prima facie* attributed central role to *Umar Khalid* and *Sharjeel Imam* and alleged to be ideological drivers of the alleged conspiracy, their alleged acts situated at the planning and preparatory stage, extending over a prolonged period, alleged to have operated remotely away from the sites of violence, with no direct attribution of participation in acts of arson, assault, or destruction of property, thus, involved in facilitating

* Author

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execution – In contradistinction, remaining accused-Gulfisha Fatima, Meeran Haider, Shifa-ur-Rehman, Mohd. Saleem Khan, Shadab Ahmad, Athar Khan, and others described as local-level facilitators, their alleged involvement site-specific and operational, even in the narrative concerning escalation into violence, role attributed to the remaining accused largely proximate and reactive, arising from developments at specific protest sites, thus involved in conceptualisation and supervision – Bail applications by the appellants – Rejected by the courts below – Challenge to, on the ground of prolonged incarceration, and constitutional plea u/Art.21:

Held: Constitution does not conceive liberty in isolation – Security of the community, the integrity of the trial process, and the preservation of public order are equally legitimate constitutional concerns – When bail is sought in prosecutions governed by a special statute-s.43D(5), the Court is required to undertake a difficult and sensitive balancing exercise, conscious that neither liberty nor security admits of absolutism – Where the prosecution places *prima facie* material suggesting organised and deliberate activity affecting public order and security of the Nation, the Court cannot turn a Nelson's eye to such material merely because incarceration is prolonged or liberty is invoked in the abstract – Equally, where continued detention is not shown to be necessary to serve a legitimate purpose recognised by law, the Court must not hesitate to restore liberty, subject to stringent conditions that safeguard the larger public interest – Constitutional role of the Court, thus, is neither to mechanically enforce the statutory embargo nor to neutralise it by invocation of liberty as straight-jacket formula, but to apply it with disciplined scrutiny – Where the prosecution material, taken at face value, discloses reasonable grounds for believing the accusation to be *prima facie* true, the statutory restraint must ordinarily operate – Where it does not, liberty must prevail – Assessment of each appellant on the basis of the role attributed, the nature of material relied upon, and the stage of the proceedings, strictly within the limited compass of adjudication for grant of bail – Prosecution material, taken at face value, discloses a *prima facie* attribution of a central and formative role by the appellants-Umar Khalid and Sharjeel Imam in the alleged conspiracy – Material suggests involvement at the level of planning, mobilisation, and strategic direction, extending beyond episodic or localised acts – Statutory threshold u/s.43D(5)

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attracted *qua* these appellants – While the period of incarceration undergone by these appellants is substantial and, the Court not persuaded that, the continued detention has crossed the threshold of constitutional impermissibility so as to override the statutory embargo – Complexity of the prosecution, the nature of evidence relied upon, and the stage of the proceedings do not justify their enlargement on bail – On the completion of the examination of the protected witnesses or upon the expiry of a period of one year from the date of this order, whichever is earlier, the appellants at liberty to renew their prayer for grant of bail – This would give effect to the statutory discipline embodied in s.43D(5) of UAPA while ensuring that constitutional guarantee u/Art.21 operates as a continuing check against continued incarceration without there being any substantial progress of the trial – However, bail granted in respect of Gulfisha Fatima, Meeran Haider, Shifa-ur-Rehman, Mohd. Saleem Khan and Shadab Ahmed having regard to the role attributed, acted as a local-level facilitator, the nature of the material relied upon, and the present stage of the proceedings, continued incarceration is not shown to be indispensable to the conduct of a fair trial, provided strict safeguards are imposed – Grant of bail in their favour does not reflect any dilution of the seriousness of the allegations, nor does it amount to a finding on guilt – It represents a calibrated exercise of constitutional discretion, structured to preserve both liberty of the individual and security of the nation – Appellants granted bail to be released subject to the conditions, imposed not as matters of form, but as substantive safeguards in the interest of national security, public order, and the integrity of the trial process – Penal Code, 1860 – ss.120B, 109, 114, 124A, 147, 148, 149, 153A, 186, 201, 212, 295, 302, 307, 341, 353, 395, 420, 427, 435, 436, 452, 454, 468, 471, 34 – Arms Act – ss.25, 27 – Prevention of Damage to Public Property Act, 1984 – ss.3, 4. [Paras 169-171, 173, 243, 244, 272, 273, 275, 280, 313-316, 319, 321, 352, 353, 359, 382, 383, 388, 390, 416, 418, 419, 424, 426-434]

Constitution of India – Art.21 – Unlawful Activities (Prevention) Act, 1967 – s.43D(5) – Prosecution under the UAPA – Invocation of delay and prolonged incarceration as grounds for bail – Principled approach by which a constitutional court to examine such plea – Delay simpliciter, if eclipses a statutory regime enacted by Parliament to address offences of a special category:

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Held: In prosecutions alleging offences which implicate the sovereignty, integrity, or security of the State, delay does not operate as a trump card that automatically displaces statutory restraint – Rather, delay serves as a trigger for heightened judicial scrutiny – Outcome of such scrutiny must be determined by a proportional and contextual balancing of legally relevant considerations, including the gravity and statutory character of the offence alleged, the role attributed to the accused within the alleged design or conspiracy, the strength of the *prima facie* case as it emerges at the limited threshold contemplated under the special statute, and the extent to which continued incarceration, viewed cumulatively has become demonstrably disproportionate so as to offend the guarantee of personal liberty u/Art.21 – Thus, when the composite evaluation yields a clear conclusion that continued detention has crossed the bounds of constitutional permissibility that the Court may justifiably intervene notwithstanding statutory restrictions – To read *Najeeb's case* as mandating bail solely on account of prolonged incarceration, irrespective of the statutory context or the nature of the allegations, would be to attribute to the decision a consequence it neither intended nor supports – Such a construction would also lead to an interpretive absurdity, whereby a special statute enacted by Parliament to address offences implicating the sovereignty, integrity, and security of the State would stand effectively neutralised by the mere passage of time, even at a pre-trial stage – Such an outcome cannot be countenanced in constitutional adjudication. [Paras 56, 57, 61]

Unlawful Activities (Prevention) Act, 1967 – Statutory Scheme – Explanation:

Held: Unlawful Activities (Prevention) Act, 1967, is a special statute enacted to address forms of criminal conduct which, by their very nature, transcend ordinary breaches of penal law and implicate the sovereignty, integrity, and security of the State – Parliament, in framing the Act and in subsequently strengthening its provisions, has proceeded on the legislative understanding that such offences are rarely confined to isolated acts, but are more often the culmination of organised, sustained, and conspiratorial activity unfolding over time – Statutory scheme of the Act reflects this understanding – Chapters IV and VI do not confine criminal liability to the final execution of a terrorist act alone – They extend culpability to preparatory conduct, facilitation, abetment, and

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conspiracy, recognising that the threat sought to be addressed by the statute often materialises long before any overt act of violence is committed – Law thus proceeds on a process-based conception of criminality rather than an event-based one. [Paras 65, 66]

Unlawful Activities (Prevention) Act, 1967 – s.43D(5) – Scope and content – Scope of judicial inquiry at the bail stage – Expression “*prima facie* true” – Meaning of :

Held: s.43D(5) constitutes a conscious departure from the general principles governing the grant of bail under the Code of Criminal Procedure – Provision embodies a deliberate legislative departure from ordinary bail jurisprudence, premised upon the distinctive nature of offences under Chapters IV and VI of the Act – Expression “*prima facie* true” mandates a threshold judicial inquiry which is neither perfunctory nor adjudicatory, requiring the Court to examine whether the prosecution material, taken at face value, discloses the essential statutory ingredients of the alleged offence – Inquiry is necessarily accused specific, directed to the role and attribution *qua* the individual, and does not admit of collective or undifferentiated treatment merely because allegations arise from a common transaction or conspiracy – Bail stage u/s.43D(5) is not a forum for evaluating defences, weighing evidence, or conducting a minitrial; judicial restraint at this stage is not an abdication of duty but a fulfilment of the statutory mandate – These propositions, read together, define the contours of judicial power and responsibility under the provision – s.43D(5) thus, demands judicial restraint, not judicial abstention, at the pre-trial stage – Cumulative effect of the statutory scheme is that s.43D(5) operates as a gatekeeping provision – It requires the Court to undertake a focused, accused-specific, and legally disciplined inquiry, confined to determining whether the prosecution material, taken at its highest, satisfies the statutory threshold of *prima facie* truth. [Paras 67-80]

Unlawful Activities (Prevention) Act, 1967 – s.43D(5) – Application of – Structured inquiry to be held by courts:

Held: Correct application of s.43D(5), requires the Court to undertake a structured inquiry as regards whether the prosecution material, accepted as it stands, discloses a *prima facie* case satisfying the statutory ingredients of the offence alleged; whether the role attributed to the accused reflects a real and meaningful

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nexus to the unlawful activity or terrorist activity proscribed under the Act, as distinguished from mere association or peripheral presence; and whether the statutory threshold is crossed *qua* the individual accused, without embarking upon an assessment reserved after full-fledged trial – Where the requirements are met, statutory restraint on the grant of bail must operate with full force; where they are not, the embargo stands lifted – This approach preserves the legislative purpose of the Act, and ensures that the exceptional nature of the bail regime u/s.43D(5) is neither diluted by overreach nor distorted by mechanical application. [Paras 81, 82]

Unlawful Activities (Prevention) Act, 1967 – s.15 – Scope of “Terrorist Act” under and the statutory context:

Held: s.15 defines what constitutes a “terrorist act” for the purposes of the statute – Definition is structured around two essential elements, first, the act must be done with intent to threaten, or be likely to threaten, the unity, integrity, security, including economic security, or sovereignty of India, or with intent to strike terror in the people or any section thereof, and second, the act must be of such a nature as to cause, or be likely to cause, the consequences enumerated in the provision – Means by which such acts may be committed are not confined to the use of bombs, explosives, firearms, or other conventional weapons alone – Parliament has consciously employed the expression “by any other means of whatever nature”, which expression cannot be rendered otiose – Statutory emphasis is thus not solely on the instrumentality employed, but on the design, intent, and effect of the act – To construe s.15 as limited only to conventional modes of violence would be to unduly narrow the provision, contrary to its plain language – Consequences contemplated u/s. 15 further illuminate the legislative understanding of terrorism – Apart from death or destruction of property, the provision expressly encompasses acts which disrupt supplies or services essential to the life of the community, as well as acts which threaten the economic security of the nation – This reflects Parliament’s recognition that threats to sovereignty and security may arise through conduct that destabilises civic life or societal functioning, even in the absence of immediate physical violence. [Paras 86-88]

Constitution of India – Art.21 – 2020 Delhi riots case – Right to life and personal liberty *vis-a-vis* security of the society:

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Held: Constitution guarantees personal liberty, but it does not conceive liberty as an isolated or absolute entitlement, detached from the security of the society in which it operates – Sovereignty, integrity, and security of the nation, as well as the preservation of public order, are not abstract concerns rather they are constitutional values which Parliament is entitled to protect through law – Where a special statutory framework has been enacted to address offences perceived to strike at these foundations, courts are duty-bound to give effect to that framework, subject always to constitutional discipline – In the application of such law, the Court does not proceed on identity, ideology, belief, or association – It proceeds on role, material, and the statutory threshold governing the exercise of jurisdiction – Criminal law does not mandate identical outcomes merely because allegations arise from the same transaction – Those alleged to have conceived, directed, or steered unlawful activity or terrorist activity stand on a different legal footing from those whose alleged involvement is confined to facilitation or participation at a different level – To disregard such distinctions would itself result in arbitrariness – Decision of 2020 Delhi riots case reflects this constitutional method – It neither endorses the prosecution case nor prejudices the guilt of any accused – It applies the law as it stands, recognising that individual liberty must be protected, but that it must also withstand the legitimate demands of national security and collective safety – This balance is not a matter of preference rather it is a matter of constitutional duty. [Paras 436-438]

Case Law Cited

Union of India v. K.A. Najeeb [2021] 1 SCR 443 : (2021) 3 SCC 713; *Union of India v. Saleem Khan*, 2025 SCC OnLine SC 1754; *Gurwinder Singh v. State of Punjab* [2024] 2 SCR 134 : 2024 SCC Online SC 109; *CBI v. Dayamoy Mahato*, 2025 INSC 1418; *National Investigation Agency v. Zahoor Ahmad Shah Watali* [2019] 5 SCR 1060 : (2019) 5 SCC 1; *Vernon v. State of Maharashtra* [2023] 10 SCR 867: (2023) 8 SCC 1; *Shoma Kanti Sen v. State of Maharashtra* [2024] 4 SCR 270 : (2024) 6 SCC 591; *Athar Parwez v. Union of India*, 2024 INSC 995 : [2024] 12 SCR 1093; *Jalaluddin Khan v. Union of India* [2024] 8 SCR 633 : 2024 SCC OnLine SC 1945; *Thwaha Fasal v. Union of India* [2021] 8 SCR 797 : (2022) 14 SCC 766; *Dilawar Balu Kurane v. State of Maharashtra* [2002] 1 SCR 7: (2002) 2 SCC 135 – referred to.

Tasleem Ahmed v. State (NCT of Delhi), 2023 SCC OnLine Del 3472 – referred to.

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List of Acts

Constitution of India; Penal Code, 1860; Unlawful Activities (Prevention) Act, 1967; Arms Act 1959; Prevention of Damage to Public Property Act, 1984; Code of Criminal Procedure, 1973; Citizenship Amendment Act, 2019.

List of Keywords

Art. 21 Constitutional Plea; Prolonged Incarceration; Scope of Terrorist Act; Delhi Riots 2020; Chakka Jam Strategy; Larger Conspiracy Narrative; Differentiated Role Attribution; Ideological Drivers vs Local Facilitators; Pre-planned Criminal Conspiracy; Mobilisation and Radicalisation; Protected Witness Statements; Choking Essential Services; CCTV Dislocation and Neutralisation; Doctrine of Parity in UAPA; Financial and Logistical Facilitation; Procedural Stagnation; Communal Skirmish Intent; Non-Violent Disavowal vs Private Preparation; Shaheen Bagh Protest Mode; Triple Test for Bail; Bail; Enactment of the Citizenship Amendment Act, 2019; Proposed NRC; Conspiracy; Widespread communal violence; Harm to public order, social harmony and the nation at large; Pendency of trial; Right to life and personal liberty; Security of the society; Structured inquiry to be held by courts; Judicial inquiry at bail stage; Expression “prima facie true”; Delay simpliciter, if eclipses statutory regime enacted by Parliament to address offences of a special category.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 11 of 2026

From the Judgment and Order dated 02.09.2025 of the High Court of Delhi at New Delhi in CRLA No. 211 of 2022

With

Criminal Appeal No(s). 16, 12, 17, 13, 14, and 15 of 2026

Appearances for Parties

Advs. for the Appellant(s):

Siddharth Luthra, Kartik Murukutla, Salman Khurshid, Kapil Sibal, C. U. Singh, Trideep Pais, Siddharth Aggarwal, Dr. Abhishek Manu Singhvi, Siddhartha Dave, Sr. Advs., Farrukh Rasheed, Shivam Sharma, Ms. Deeksha Dwivedi, Rahul Dev, Ms. Shifa, Gautam

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Khazanchi, Vaibhav Dubey, Bilal Mansoor, Ms. Aishwarya Singh, Ms. Pooja Deepak, Ms. Anshala Verma, Mansoor Ali, Shivansh Sharma, Ms. Rubina Jawed, Ms. Saima Jawed, Bilal Anwar Khan, Ms. Anshu Kapoor, Ms. Sidra Khan, Ms. Mariya Mansuri, Varun Bhati, Ankit Singh, Shashank Singh, Ms. Sanya Kumar, Sahil Ghai, N. Sai Vinod, Ms. Aparajita Jamwal, Nikhil Pahwa, Ms. Saloni Ambastha, Ms. Sakshi Jain, Abhik Chimni, Ms. Bidya Mohanty, Ms. Katyayani Suhrud, Abhishek Kalaiyarsan, Aekansh Agarwal, Ms. Kanu Garg, Shri Singh, Faraz Maqbool, Kumar Vaibhaw, Ms. Sana Juneja, Ms. A. Sahitya Veena, Ms. Deepshikha, Ms. Arunima Nair, Vismita Diwan, Ms. Arshiya Ghosh, Sidhant Saraswat, Ms. Somaya Gupta, Ms. Devina Sehgal, Ms. Chinmayi Chatterjee, Ms. Swati Khanna, Sarim Naved, Harsh Bora, Ms. Maulshree Pathak, Shahid Nadeem, Amit Bhandari, Muhammad Ali Khan, Omar Hoda, Ms. Eesha Bakshi, Ms. Namrah Nasir, Uday Bhatia, Siddharth Srivastava, Surya Kiran, Ms. Fauzia Shakil, Talib Mustafa, Ahmad Ibrahim, Ms. Tasmiya Taleha, Ms. Alekhyia Shastry, Ms. Raksha Agrawal, Ms. Ayesha Zaidi, Abhishek Singh, Kartik Venu, Jeet Chakrabarti, Sourav Verma.

Advs. for the Respondent(s):

Suryaprakash V. Raju, ASG, Mukesh Kumar Maroria.

Judgment / Order of the Supreme Court

Judgment

Aravind Kumar, J.

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1. INTRODUCTION

1. Heard. Leave Granted.
2. These appeals arise out of a common judgment and order passed by the High Court of Delhi in Criminal Appeal No. 184 of 2022 and connected matters, by which the High Court affirmed the rejection of bail applications filed by the appellants. The appellants stand arraigned as accused in FIR No. 59 of 2020 registered by the Crime Branch, Delhi, arising out of the incidents that occurred in several parts of the National Capital Territory of Delhi (hereinafter referred to as “Delhi Riots”) in February 2020.

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3. At the inception, the appellants were booked under Sections 147, 148, 149 and 120B of the Indian Penal Code. Upon completion of investigation, a charge-sheet came to be filed alleging offences under Sections 120B read with Sections 109, 114, 124A, 147, 148, 149, 153A, 186, 201, 212, 295, 302, 307, 341, 353, 395, 420, 427, 435, 436, 452, 454, 468, 471 and 34 of the Indian Penal Code, as also under Sections 13, 16, 17 and 18 of the Unlawful Activities (Prevention) Act, 1967, Sections 25 and 27 of the Arms Act, and Sections 3 and 4 of the Prevention of Damage to Public Property Act, 1984.
4. The appellants before this Court are Sharjeel Imam [SLP (Crl.) No. 14030 of 2025], Umar Khalid [SLP (Crl.) No. 14165 of 2025], Shifa Ur Rehman [SLP (Crl.) No. 14859 of 2025], Mohd. Saleem Khan [SLP (Crl.) No. 15335 of 2025], Meeran Haider [SLP (Crl.) No. 14132 of 2025], Shadab Ahmed [SLP (Crl.) No. 17055 of 2025], and Gulfisha Fatima [SLP (Crl.) No. 13988 of 2025].
5. The prosecution case, as placed before the Court, proceeds on the footing that the incidents of violence were not isolated or spontaneous, but were the outcome of a larger conspiracy in which several accused persons are alleged to have participated at different stages and in different capacities. While the FIR and the impugned judgment are common, the role attributed to each appellant, the nature of the allegations, and the material relied upon by the prosecution are not uniform.
6. Before this Court, certain submissions have been advanced which are common to all the appeals, particularly on the question of prolonged incarceration and the plea founded on Article 21 of the Constitution. At the same time, each appeal also raises issues which are specific to the appellant concerned and which turn on the role attributed, the prosecution material relied upon, and the findings recorded by the courts below.
7. The judgment, therefore, first notices the broad factual background of the case and the prosecution narrative as emerging from FIR No. 59 of 2020 and the charge-sheets filed pursuant thereto. It then considers the plea of prolonged incarceration and the statutory framework governing the grant of bail under Section 43D (5) of the Unlawful Activities (Prevention) Act, 1967. The scope of a “terrorist act” under Section 15 of the Act is also examined, to the extent it bears upon the submissions advanced.

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8. Thereafter, the appeals are taken up one by one. In each case, the submissions advanced on behalf of the appellant and the response of the prosecution are noticed, followed by the findings of the Trial Court and the High Court. The role attributed to the appellant is then considered in the light of the statutory requirements and the principles governing the grant of bail under the UAPA.
9. It is in this manner that the present batch of appeals falls for consideration.

1.1. BRIEF BACKGROUND OF THE CASE

10. FIR No. 59 of 2020 is one of the FIR's registered for the cause of the riots that took place in Delhi NCR in the month of February 2020. The prosecution story reveals how the riots were allegedly orchestrated and executed by the Appellants herein.
11. The prosecution case is founded on allegations of a pre-planned criminal conspiracy involving several accused persons, including the present appellants. It is alleged that the conspiracy was hatched with the object of orchestrating riots in the National Capital Territory of Delhi as a form of protest against the enactment of the Citizenship Amendment Act, 2019 and the proposed National Register of Citizens.
12. According to the prosecution, the conspiracy culminated in the deliberate incitement of widespread communal violence on and around 22nd, 23rd, and 24th February 2020. The acts allegedly committed during this period were not spontaneous but were the outcome of coordinated efforts to inflame tensions, mobilise crowds, and execute violent actions across various parts of Delhi.
13. The riots are stated to have resulted in grave consequences, including the loss of 54 lives, among them a senior police officer and an Intelligence Bureau official, as well as grievous injuries to several police personnel and civilians. In addition, extensive damage was caused to over 1,500 public and private properties, alongside substantial intangible harm to public order, social harmony, and the nation at large.
14. Before proceeding to the further analysis of the matter, it would be apposite to advert to the contents of First Information Report No. 59 of 2020 (hereinafter referred to as "the FIR"), as well as the

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contents of the charge-sheet and the supplementary charge-sheets filed by the Investigating Officer before the competent Court, which are discussed in the succeeding section.

1.2. CASE OF PROSECUTION AS PROPOUNDED UNDER FIR No. 59 of 2020

15. First Information Report No. 59 of 2020 constitutes the genesis of the present case and sets out the allegations of conspiracy attributed to the appellants herein, which are stated to have culminated in the riots that occurred on 23rd, 24th, and 25th February 2020. Before proceeding further with the analysis, it is necessary to reproduce the contents of the said FIR.
16. FIR 59 of 2020 was registered by the PS, Crime Branch New Delhi on 06.03.2020. Sub-Inspector Shri. Arvind Kumar, posted with the Crime Branch, Delhi claims to have received information from an informant regarding the communal riots that occurred in Delhi on 23rd, 24th and 25th February 2020. According to the information so received, the riots were allegedly the outcome of a pre-planned conspiracy orchestrated by the Jawaharlal Nehru University (JNU 'for short') student Umar Khalid along with his associates, who were stated to be affiliated with different organisations.
17. It is alleged that, as part of the said conspiracy, Umar Khalid delivered provocative speeches calling upon people to come out on the streets and block roads during the visit of the then President of the United States of America, Mr. Donald Trump, on 24th and 25th February 2020. The alleged objective of such actions was to internationalise a narrative that minorities in India were being ill-treated and tortured. It is further alleged that women and children were deliberately mobilised to come out on the streets in various localities of Delhi to escalate tensions and precipitate communal violence.
18. The FIR further reveals that, in several areas including Maujpur, Kardampuri, Jafrabad, Chand Bagh, Gokulpuri, Shiv Vihar and adjoining localities, weapons and incendiary materials such as firearms, petrol bombs, acid bottles, stones, slingshots and other dangerous substances were allegedly stockpiled in homes in advance. It is alleged that the task of mobilising people from different places to participate in the riots was assigned to one Danish, resident of Bhajanpura, Delhi. Specific reference is made to 23rd February

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2020, when women and children allegedly blocked the road under the Jafrabad Metro Station to create public disruption, and to the pre-planned evacuation of children from minority schools in the concerned areas.

19. On the basis of the aforesaid information, a daily diary entry bearing DD No. 03 was made. Thereafter, an FIR was registered under Sections 147, 148, 149 and 120B of the Indian Penal Code. Pursuant to the directions of the senior officer, a copy of the FIR was forwarded to the Police Station, Special Cell, Lodhi Colony, for investigation.
20. Subsequent to the registration of the FIR, the appellants herein were apprehended on different dates in connection with FIR No. 59 of 2020. The dates on which the appellants were apprehended in relation to the present FIR are set out hereunder:

SL. No.	SLP. (Crl.) No.	Name Of Appellant	Date of Arrest
1.	13988/2025	Gulfisha Fatima	11.04.2020
2.	14030/2025	Sharjeel Imam	28.01.2020
3.	14132/2025	Meeran Haider	01.04.2020
4.	14165/2025	Umar Khalid	01.10.2020
5.	14859/2025	Shifa Ur Rehman	26.04.2020
6.	15335/2025	Mohd Saleem Khan	25.06.2020
7.	17055/2025	Shadab Ahmed	20.05.2020

1.3. CHARGESHEET:

21. Upon registration of the FIR, the Crime Branch undertook investigation and filed the main charge-sheet on 16.09.2020 against fifteen accused persons, which included some of the appellants herein, namely Gulfisha Fatima, Meeran Haider, Shifa Ur Rehman, Mohd. Saleem Khan, and Shadab Ahmed. The main charge-sheet alleged that the said accused persons were part of a larger conspiracy which culminated in the riots that took place on 23rd, 24th, and 25th February 2020 in Delhi. It was alleged therein that the accused had committed offences punishable under Sections 120B read with Sections 109, 114, 124A, 147, 148, 149, 153A, 186, 201, 212, 295, 302, 307, 341, 353, 395, 420, 427, 435, 436, 452, 454, 468, 471, and 34 of the Indian Penal Code, as well as under Sections 13, 16,

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17, and 18 of the Unlawful Activities (Prevention) Act, 1967 (for short, “UAPA”), Sections 25 and 27 of the Arms Act, and Sections 3 and 4 of the Prevention of Damage to Public Property Act, 1984 (for short, “PDPP Act”). Upon filing of the main charge-sheet, the learned Trial Court¹ took cognizance of the offences against the accused named therein. Thereafter, the State filed its first supplementary charge-sheet on 22.11.2020, arraying three additional accused persons, including the remaining two appellants herein, namely Umar Khalid and Sharjeel Imam, and the Court, vide order dated 22.11.2020, took cognizance of the offences against them as well. The State subsequently filed three further supplementary charge-sheets on 23.02.2021, 02.03.2022, and 07.06.2023.

22. The charge-sheets filed by the State disclose the alleged role attributed to each of the accused/appellants and the contours of the larger conspiracy purportedly orchestrated by them, commencing from the period immediately after the Citizenship Amendment Bill, 2019 (for short, “CAB”) was passed by the Central Cabinet on 04.12.2019, and culminating in the riots that occurred in various parts of Delhi and the National Capital Region on 23rd, 24th, and 25th February 2020.
23. Before proceeding further, it is necessary to notice the principal submission urged on behalf of all the appellants at the threshold. The submission rests on the length of custody undergone and the plea that continued incarceration, in the absence of early conclusion of trial, offends the guarantee of personal liberty under Article 21 of the Constitution. It is this submission which the Court proposes to examine first.

2. CONSIDERATION OF PROLONGED INCARCERATION AND THE CONSTITUTIONAL PLEA UNDER ARTICLE 21.

24. During the course of arguments advanced before this Court, a fervent plea was addressed on behalf of the appellants resting on constitutional grounds. It was primarily urged that prolonged incarceration, coupled with the absence of any realistic prospect of early conclusion of trial, rendered continued detention constitutionally impermissible and mandate of Article 21 of the Constitution is at peril.

¹ Additional Sessions Judge -03, (Shahdara), Karkardooma Court, Delhi

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At the outset, it was repeatedly stated that the appellants did not seek an examination of the merits of the prosecution case, and that the consideration ought to remain confined to the issue of delay alone.

25. It was submitted that the appellants had been in custody for a substantial length of time; that the progress of trial had been slow; and that the complexity of the prosecution rendered the likelihood of its early conclusion uncertain. Reliance was placed on decisions of this Court recognising that personal liberty cannot be sacrificed at the altar of procedural stagnation, and that prolonged pre-trial incarceration may, in appropriate cases, justify constitutional intervention notwithstanding statutory restrictions on bail. These submissions, though pressed individually, were broadly common in substance.
26. As the hearing progressed, however, it became evident that the plea of delay could not be examined in abstraction. In the course of submissions and rejoinder, reference was necessarily made to the nature of the allegations, the statutory framework invoked, and the role attributed to individual appellants. This was not a departure from the original submission, but a reflection of the legal reality that the constitutional question of delay does not arise in a vacuum. To allay the concern expressed that the appeals would be decided without adequate delineation of governing principles, this Court considers it appropriate to set out the framework within which the issues are addressed.
27. Accordingly, before turning to the case of each appellant, it becomes necessary to first address certain questions of general application. These include the manner in which pleas founded on delay are to be assessed in prosecutions under special statutes, the contours of the statutory restraint embodied in the Unlawful Activities (Prevention) Act, 1967, and the principles governing the formation of prima facie satisfaction under Section 43D(5) of the Act. This exercise is intended to provide the legal setting within which individual roles and allegations are thereafter examined.
28. At the threshold, it is necessary to clarify the legal contours within which the plea of delay operates in prosecutions under the UAPA. Delay engages Article 21 at two distinct constitutional planes. First, delay may be of such magnitude and character that continued detention becomes per se unconstitutional, irrespective of the

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strength of the prosecution case. Second, delay may be pressed as a circumstance to contend that the statutory satisfaction under Section 43D(5) stands diluted or displaced. The present case, on an examination of the record, does not meet either threshold. The inquiry that follows is therefore confined to whether the delay alleged is of such a nature as to constitutionally eclipse the statutory embargo, and not whether delay exists in the abstract.

29. We may at the outset clarify the limited compass of the present discussion. This Court is not engaged in any abstract comparison between the Constitution and a statute, nor in declaring that delay must invariably prevail over statutory restrictions, or that delay can never warrant constitutional relief. The question is more precise: in prosecutions under the UAPA, when delay and prolonged incarceration are invoked as grounds for bail, what is the principled approach by which a constitutional court is to examine such a plea.
30. Article 21 occupies a central place in the constitutional scheme. The right to life and personal liberty, and the insistence that any deprivation must conform to procedure established by law, are foundational guarantees. The right to a speedy trial has been recognised as an important facet of this guarantee. It follows that pre-trial incarceration cannot, by the mere passage of time, be permitted to assume the character of punishment.
31. At the same time, Article 21 has never been understood as operating in isolation from law. The constitutional promise is not that liberty will be unregulated, but that deprivations of liberty will not be arbitrary, unconscionable, or unfair. The expression “procedure established by law” reflects that balance. The UAPA, as a special statute enacted to address offences alleged to affect the security of the State and the stability of civic life, represents a legislative judgment as to the conditions under which bail may be granted at the pre-trial stage. Section 43D(5) of UAPA embodies the exercise of that judgment.
32. In ***Union of India v. K.A. Najeer***², this Court recognised a constitutional safeguard that cannot be ignored: statutory restrictions cannot be applied so as to render the guarantee of personal liberty illusory. It was held that where the trial is not likely to commence

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or conclude within a reasonable period, constitutional courts retain the jurisdiction to grant bail notwithstanding statutory restraints. The decision thus operates as a protection against unconscionable detention and there can be no second opinion on the said principle.

33. The same decision, however, does not indicate as laying down a mechanical rule under which the mere passage of time becomes determinative in every case arising under a special statute. The jurisprudence of this Court does not support a construction whereby delay simpliciter eclipses a statutory regime enacted by Parliament to address offences of a special category.
34. The constitutional inquiry into delay is not an inquiry into guilt. It is an inquiry into whether continued detention remains constitutionally permissible in the circumstances of the case. That inquiry is necessarily contextual. Context includes the nature of the allegation, the statutory field, the stage of the proceedings, the realistic trajectory of the trial, the causes contributing to delay, and the risks attendant upon release. Delay cannot be detached from these considerations and treated as a solitary determinant.
35. The proper constitutional question, therefore, is not whether Article 21 is superior to Section 43D (5). The proper question is how Article 21 is to be applied where Parliament has expressly conditioned the grant of bail in relation to offences alleged to implicate national security. The law does not contemplate an either-or approach. Nor does it contemplate an unstructured blending of statutory and constitutional considerations. What is required is disciplined judicial scrutiny that gives due regard to both.
36. The appellants have urged that their continued incarceration over a prolonged period, coupled with the pace at which the trial has progressed, warrants their enlargement on bail notwithstanding the statutory embargo contained in Section 43D (5) of the Unlawful Activities (Prevention) Act, 1967. Prolonged custody undoubtedly implicates the constitutional guarantee of personal liberty under Article 21 of the Constitution, and such a plea cannot be rejected on the basis of duration alone without a careful and fact-sensitive examination. At the same time, the Court is required to examine whether the narrative of delay, as projected, is borne out by the record, and whether such delay is of a nature that constitutionally displaces the statutory mandate.

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37. The present prosecution arises out of FIR No. 59 of 2020 and involves multiple accused persons, voluminous documentary and electronic evidence, and allegations of a structured and continuing conspiracy. The record reflects that compliance under Section 207 of the Code of Criminal Procedure was completed only on 05.08.2023, after which the Trial Court directed that arguments on charge would commence on a day-to-day basis from 11.09.2023 onwards. The nature of the prosecution, the number of accused, and the breadth of material necessarily render the proceedings complex and time-consuming. The mere passage of time, therefore, cannot be viewed in isolation.
38. What assumes significance is that the procedural history and order sheets do not support the assertion that the delay is attributable to prosecutorial inaction or judicial inaction. The common counter affidavit and the Trial Court's orders record that, at various stages, the prosecution expressed readiness to proceed, including readiness to commence arguments on charge, while objections, requests for deferment, and issues relating to sequencing of arguments were raised on behalf of the accused. At the stage of compliance under Section 207 CrPC itself, the Trial Court noted that despite repeated directions, certain accused declined to receive copies of the charge-sheet in the manner directed, insisted on alternate modes of supply, or filed successive applications, necessitating further procedural orders and contributing to delay at the pre-charge stage. These aspects emerge from the record and are not matters of conjecture.
39. The plea of delay has also undergone judicial scrutiny in respect of a co-accused arising out of the very same FIR. In **Tasleem Ahmed v. State (NCT of Delhi)**³, the High Court of Delhi undertook a detailed examination of the Trial Court order-sheets and, after tabulating the procedural history, recorded categorical findings that the alleged inordinate delay could not be attributed either to the prosecution or to the Trial Court. The High Court noted repeated adjournments sought on behalf of the accused, reluctance to commence arguments on charge despite directions for day-to-day hearing and recorded the Trial Court's expression of distress at the inability to move forward notwithstanding consensus schedules arrived at amongst the defence. The High Court expressly rejected the contention that bail under Section 43D (5) of the UAPA could be granted solely on the ground

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of delay in such circumstances, holding that the statutory embargo cannot be permitted to be circumvented by delay attributable, at least in part, to the manner in which the defence conducted the proceedings.

40. This Court is conscious that the appellants in the present appeal may not stand on identical factual footing in all respects with the co-accused whose appeal was considered by the High Court. Nevertheless, the findings recorded therein are relevant insofar as they arise from the same trial, the same order-sheets, and the same procedural milieu. They negate the overarching portrayal that the appellants have remained in custody solely on account of prosecutorial inertia or a dormant trial.
41. At the same time, the Court does not proceed on the assumption that the entire delay can be laid at the door of the accused, nor does it characterise the proceedings as free from institutional or systemic constraints. This is not a casual prosecution, nor one involving a narrow factual canvas. The law has taken its course, albeit at a pace dictated by the complexity of the case, the number of accused, and the nature of issues raised. The constitutional concern arising from prolonged custody is therefore acknowledged, but it does not, on the present record, translate into a finding that continued detention has become punitive or unconscionable solely by reason of delay.
42. The approach of addressing delay-related concerns through calibrated judicial supervision, rather than automatic enlargement on bail, stands reinforced by the decision of this Court in ***Union of India v. Saleem Khan***.⁴ In that case, despite the accused having remained in custody for over five years and the trial not having commenced, this Court declined to interfere with the rejection of bail qua one accused, while upholding bail granted to another, thereby reiterating that delay-based pleas must necessarily be adjudicated on an accused-specific footing. Significantly, even while acknowledging the constitutional imperative of a speedy trial, the Court did not eclipse the statutory rigour under Section 43D(5) of the UAPA but instead directed expeditious conclusion of the trial and cautioned against any conduct on the part of the accused that may further protract the proceedings. The decision thus affirms that prolonged custody, though

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a matter of concern, does not operate as an automatic ground for grant of bail where the statutory threshold continues to be attracted.

43. Viewed cumulatively, the record does not support the absolute proposition that the appellants have remained “innocently incarcerated” without any contribution to delay, nor does it disclose a situation where the delay is so wholly unjustified as to override the statutory embargo contained in Section 43D(5). The appropriate constitutional response, at this stage, lies in ensuring vigilant oversight of the trial and its expeditious progression, rather than in eclipsing the statutory mandate governing bail in offences of the present nature. The plea of delay in the facts of the particular case, therefore, does not warrant enlargement on bail, though it justifies continued judicial emphasis on the timely conduct of the proceedings.
44. It is in this sense that the plea of delay must first be examined to see whether it arises in a manner that warrants constitutional scrutiny of continued custody. Broadly stated, the Court must consider whether the custody undergone is substantial, whether the proceedings have made meaningful progress, and whether there exists a realistic prospect of conclusion of trial within a reasonable period. The Court must also take note of the causes contributing to delay, including whether delay is attributable to the inherent complexity of the prosecution or to the conduct of parties, including the accused.
45. A finding that these circumstances exist does not, by itself, compel bail. It merely calls for the next level of constitutional consideration. At that stage, the Court is required to examine whether, notwithstanding delay, continued detention remains constitutionally justified having regard to the statutory context and the facts of the case. This examination is not a free-ranging balancing exercise; it is structured by legally relevant considerations.
46. One such consideration is the gravity of the alleged offence in its statutory setting. Under the UAPA, Parliament has legislatively characterised certain conduct as implicating the security of the State and the peace of society. That legislative characterisation does not conclude the judicial inquiry, but it is not constitutionally irrelevant. It forms part of the context in which the Article 21 claim is assessed.
47. A closely allied consideration is the role attributed to the accused. Prosecutions under the UAPA may allege varying degrees of

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participation, ranging from peripheral acts to strategic, organisational, or ideological centrality. The constitutional significance of prolonged incarceration cannot be assessed uniformly for all accused regardless of role. Where the attribution suggests a central or organising role in the alleged design, the need for circumspection before constitutional intervention displaces a statutory embargo is correspondingly greater. Conversely, where the role is peripheral or episodic, prolonged incarceration may more readily assume a punitive character.

48. Another consideration is the prima facie strength of the accusation at the limited threshold contemplated by Section 43D(5). At this stage, the Court does not weigh evidence, test defences, or conduct a mini trial. Yet, the constitutional inquiry cannot proceed as if all allegations are identically situated. Whether the prosecution material, taken at its highest, discloses a prima facie nexus between the accused and the statutory ingredients is a circumstance that informs the assessment of continued detention.
49. Consideration must also be given to the integrity of the trial process and the risks associated with release. Depending on the nature of the case, these may include the possibility of influencing witnesses, tampering with evidence, or undermining the fairness of the proceedings. In prosecutions alleging organised activity, the assessment of such risks may differ from that in ordinary criminal cases. This is not to presume guilt, but to recognise that bail decisions are necessarily forward-looking in terms of ensuring an effective trial.
50. The Court must also bear in mind that it is not confined to a binary choice between continued custody and unconditional release. Where delay becomes a matter of constitutional concern, appropriate directions for expeditious trial, prioritisation of witnesses, or periodic review of progress may be issued. Such measures are constitutionally significant responses that address the vice of delay while respecting the statutory framework. The liberty to renew a prayer for bail upon continued stagnation may also be preserved.
51. There is a further constitutional aspect that warrants articulation. Article 21 protects individual liberty. It also, within the same guarantee of life, reflects the State's obligation to protect the life and security of the community. In prosecutions alleging threats to public order and national security, the Court cannot be unmindful that both dimensions

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are engaged. The constitutional order is not served by an approach that treats liberty as the sole value and societal security as peripheral. Both must be accommodated through reasoned adjudication.

52. The consequence of the above is that ***Najeeb(supra)*** must be understood as a principled safeguard against unconscionable detention. Prolonged incarceration is a matter of serious constitutional concern and carries great weight. It is not, however, the sole determinant. The Court must consider, in totality, whether continued detention has become constitutionally unjustifiable, having regard to the role attributed, the statutory context, the limited prima facie material, the trajectory of the trial, the causes of delay, and the availability of intermediate remedies.
53. This approach does not dilute Article 21. It gives Article 21 structured content in a field where the Constitution itself recognises competing interests. Nor does it render Section 43D(5) absolute. It recognises that statutory restraint must yield in an appropriate case where detention becomes punitive by reason of unreasonable and unjustified delay. What it excludes is a mechanical override based on time alone, divorced from legal context.
54. Having set out the above governing approach, this Court, in the later part of this judgment would apply these principles in a calibrated manner viz. to the claim of each of the appellants. The Court will examine, in relation to each appellant, the role attributed and whether the statutory threshold under Section 43D(5) is attracted on the prosecution material taken at its highest. Thereafter, where the plea of delay and prolonged incarceration is pressed, the Court will consider whether the circumstances warrant constitutional intervention in terms of the principles noticed above, or whether appropriate directions for expeditious trial would adequately address the concern expressed under Article 21.
55. It is in this disciplined manner, and in faithful regard to both statutory design and constitutional principle, that the present appeals are proposed to be adjudicated.
56. It therefore becomes necessary to state, with clarity, the governing approach. In prosecutions alleging offences which implicate the sovereignty, integrity, or security of the State, delay does not operate as a trump card that automatically displaces statutory restraint.

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Rather, delay serves as a trigger for heightened judicial scrutiny. The outcome of such scrutiny must be determined by a proportional and contextual balancing of legally relevant considerations, including (i) the gravity and statutory character of the offence alleged, (ii) the role attributed to the accused within the alleged design or conspiracy, (iii) the strength of the prima facie case as it emerges at the limited threshold contemplated under the special statute, and (iv) the extent to which continued incarceration, viewed cumulatively in the facts of the case, has become demonstrably disproportionate so as to offend the guarantee of personal liberty under Article 21.

57. Thus, when the composite evaluation yields a clear conclusion that continued detention has crossed the bounds of constitutional permissibility that the Court may justifiably intervene notwithstanding statutory restrictions.
58. In ***Gurwinder Singh v. State of Punjab***⁵, this Court expressly cautioned against the mechanical invocation of prolonged incarceration as a ground for bail in cases involving serious offences under special enactments. The judgment reiterates that the gravity of the offence, the legislative context, and the prima facie material on record cannot be eclipsed merely because the trial has taken time.
59. This Court in ***CBI v. Dayamoy Mahato***⁶ reiterated that while Article 21 remains paramount, it does not operate in a vacuum divorced from competing constitutional interests. The Court emphasized that claims to liberty must be examined in the totality of circumstances, particularly where allegations implicate organised criminality or matters of public interest. Delay, though undoubtedly significant, was held not to assume the character of an absolute or solitary determinant. The emphasis, once again, was on structured judicial reasoning rather than on formulaic outcomes.
60. Read together, these decisions do not dilute the constitutional guarantee of personal liberty; they explain the manner in which it is to be applied. They do not support an approach of automatic displacement of statutory restraint, but instead emphasise a contextual and measured exercise of judicial scrutiny.

5 (2024) 6 SCC 1

6 2025 INSC 1418

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61. To read ***Najeeb (supra)*** as mandating bail solely on account of prolonged incarceration, irrespective of the statutory context or the nature of the allegations, would be to attribute to the decision a consequence it neither intended nor supports. Such a construction would also lead to an interpretive absurdity, whereby a special statute enacted by Parliament to address offences implicating the sovereignty, integrity, and security of the State would stand effectively neutralised by the mere passage of time, even at a pre-trial stage. Such an outcome cannot be countenanced in constitutional adjudication. Accordingly, the finding in ***Najeeb(supra)*** is properly situated as a constitutional safeguard to be invoked in appropriate cases, and not as a mathematical formula of universal application.
62. Before parting with the discussion on delay, it is clarified that the observations herein are confined to the present stage of the proceedings. The constitutional concern arising from prolonged custody has been duly considered on the basis of the record as it presently stands. In the event of continued and unexplained stagnation of the trial, it shall remain open to the appellants to avail such remedies as are permissible in law. The Trial Court is expected to accord due priority to the matter and ensure that the proceedings are carried forward with reasonable expedition.
63. The discussion thus far has been confined to the constitutional plea founded on delay and prolonged incarceration. That inquiry, though necessary, does not conclude the consideration of the present appeals. The question that now arises is the manner in which the prayer for bail is to be examined where the prosecution is governed by a special statutory regime.

3. STATUTORY FRAMEWORK OF SECTION 43D(5) AND THE SCOPE OF JUDICIAL INQUIRY AT THE BAIL STAGE

64. The issues arising before this Court at the stage of consideration of bail engage multiple facets of law, including the nature of the statutory framework, the limits of judicial scrutiny at the pre-trial stage, and the manner in which allegations under a special enactment are required to be assessed. In order to address these aspects in a structured and principled manner, it becomes necessary to examine the scheme of the Unlawful Activities (Prevention) Act, 1967, and in particular the scope and content of Section 43D(5), which regulates the exercise of judicial discretion in such matters. An understanding of this framework

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provides the necessary foundation for evaluating the material placed on record and the role attributed to each accused in accordance with law.

65. The Unlawful Activities (Prevention) Act, 1967, is a special statute enacted to address forms of criminal conduct which, by their very nature, transcend ordinary breaches of penal law and implicate the sovereignty, integrity, and security of the State. Parliament, in framing the Act and in subsequently strengthening its provisions, has proceeded on the legislative understanding that such offences are rarely confined to isolated acts, but are more often the culmination of organised, sustained, and conspiratorial activity unfolding over time.
66. The statutory scheme of the Act reflects this understanding. Chapters IV and VI do not confine criminal liability to the final execution of a terrorist act alone. They extend culpability to preparatory conduct, facilitation, abetment, and conspiracy, recognising that the threat sought to be addressed by the statute often materialises long before any overt act of violence is committed. The law thus proceeds on a process-based conception of criminality rather than an event-based one.
67. It is within this legislative backdrop that Section 43D(5) assumes significance. The provision constitutes a conscious departure from the general principles governing the grant of bail under the Code of Criminal Procedure. Parliament has imposed a calibrated restriction on the power of courts to grant bail in respect of offences under Chapters IV and VI, reflecting its assessment that the ordinary presumption in favour of pre-trial liberty requires modification where allegations pertain to activities threatening the foundations of the State.
68. At the same time, Section 43D(5) does not exclude judicial scrutiny. Nor does it mandate denial of bail by default. The restriction operates only upon the Court being satisfied that there are reasonable grounds for believing that the accusation against the accused is *prima facie* true. The provision thus preserves the judicial function, while carefully defining its contours at the pre-trial stage.
69. This Court has, on several occasions, examined the scope and application of Section 43D(5) in diverse factual settings. Decisions such as ***National Investigation Agency v. Zahoor Ahmad Shah Watali***⁷, ***Vernon v. State of Maharashtra***⁸, ***Shoma Kanti Sen v. State***

7 (2019) 5 SCC 1

8 (2023) 8 SCC 1

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of Maharashtra⁹, Athar Parwez v. Union of India¹⁰, and Jalaluddin Khan v. Union of India¹¹ disclose a consistent judicial approach to the provision, notwithstanding variations in factual context. The present analysis seeks not to restate those authorities individually, but to distil the governing principles that emerge from them and to apply those principles in a structured and coherent manner.

70. The expression “prima facie true”, which lies at the heart of Section 43D(5), does not invite a detailed examination of evidence, nor does it require the Court to assess the probability of conviction. Equally, it does not reduce the judicial role to a mechanical acceptance of the prosecution’s assertions. The statutory standard contemplates a threshold inquiry of limited but real content.
71. At this stage, the Court is required to examine whether the material relied upon by the prosecution, taken at face value and without rebuttal, discloses the essential ingredients of the offences alleged against the accused. The inquiry is one of statutory plausibility, not evidentiary sufficiency. The Court tests the allegations against the legal ingredients of the offence, not against possible defences or competing factual narratives.
72. The discipline imposed by Section 43D(5) necessarily circumscribes the nature of judicial scrutiny permissible at the bail stage. The Court is not called upon to weigh the probative value of evidence, to assess its admissibility, or to determine whether the prosecution version will ultimately withstand trial. Any exercise approximating a mini-trial at this stage would transgress the statutory boundary deliberately drawn by Parliament.
73. Such premature adjudication is not merely procedurally inappropriate; it carries institutional consequences. It risks prejudging issues reserved for trial, distorting the adversarial process, and undermining the legislative intent underlying the special bail regime. Section 43D(5) therefore demands judicial restraint, not judicial abstention, at the pre-trial stage.
74. A salient feature of Section 43D(5) is its express reference to “such person”. The statutory text mandates an inquiry that is accused-

9 (2021) 16 SCC 720

10 2024 SCC OnLine SC 124

11 2024 SCC OnLine SC 742

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specific rather than case-centric. The provision does not permit a collective or undifferentiated approach to bail merely because multiple accused are arraigned in the same prosecution or alleged conspiracy.

75. The Court is thus required to examine the role attributed to the individual accused, as emerging from the prosecution material, and to determine whether such attribution bears a *prima facie* nexus to the offences under Chapters IV or VI. This inquiry does not involve ranking degrees of culpability or pronouncing upon guilt. It serves the limited purpose of determining whether the statutory threshold is crossed *qua* the accused before the Court.
76. In cases alleging conspiratorial conduct, it becomes necessary to distinguish between the existence of a conspiracy and the position occupied by an accused within the alleged framework. While conspiracy may supply the overarching context, Section 43D(5) requires attention to the nature, extent, and character of participation attributed to the individual.
77. At the threshold stage, the inquiry is directed towards whether the prosecution material suggests conspiratorial centrality or merely conspiratorial association. Conduct which, on the prosecution's own showing, reflects conceptualisation, direction, orchestration, or mobilisation of unlawful activity or terrorist activity, stands on a different footing from conduct alleged to be episodic, peripheral, or substitutable. This distinction does not determine guilt; it informs the statutory assessment of whether continued restraint on liberty is justified at the pre-trial stage.
78. The cumulative effect of the statutory scheme and the jurisprudence of this Court is that Section 43D(5) operates as a gatekeeping provision. It requires the Court to undertake a focused, accused-specific, and legally disciplined inquiry, confined to determining whether the prosecution material, taken at its highest, satisfies the statutory threshold of *prima facie* truth.
79. Any departure from this calibrated approach, whether by converting the bail stage into a forum for adjudicating defences or by treating the invocation of the statute as determinative of the outcome, would unsettle the careful balance struck by Parliament. The provision demands neither mechanical denial nor casual grant of bail, but a principled application of the statutory standard within its clearly defined limits.

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80. From the foregoing discussion, certain propositions governing the application of Section 43D(5) emerge with clarity. **First**, the provision embodies a deliberate legislative departure from ordinary bail jurisprudence, premised upon the distinctive nature of offences under Chapters IV and VI of the Act. **Second**, the expression “prima facie true” mandates a threshold judicial inquiry which is neither perfunctory nor adjudicatory, requiring the Court to examine whether the prosecution material, taken at face value, discloses the essential statutory ingredients of the alleged offence. **Third**, the inquiry is necessarily accused-specific, directed to the role and attribution qua the individual, and does not admit of collective or undifferentiated treatment merely because allegations arise from a common transaction or conspiracy. **Fourth**, the bail stage under Section 43D(5) is not a forum for evaluating defences, weighing evidence, or conducting a mini-trial; judicial restraint at this stage is not an abdication of duty but a fulfilment of the statutory mandate. These propositions, read together, define the contours of judicial power and responsibility under the provision.
81. The correct application of Section 43D(5), therefore, requires the Court to undertake a structured inquiry confined to the following:
- i. whether the prosecution material, accepted as it stands, discloses a prima facie case satisfying the statutory ingredients of the offence alleged;
 - ii. whether the role attributed to the accused reflects a real and meaningful nexus to the unlawful activity or terrorist activity proscribed under the Act, as distinguished from mere association or peripheral presence; and
 - iii. whether the statutory threshold is crossed qua the individual accused, without embarking upon an assessment reserved after full-fledged trial.
82. Where these requirements are met, the statutory restraint on the grant of bail must operate with full force; where they are not, the embargo stands lifted. This approach preserves the legislative purpose of the Act, and ensures that the exceptional nature of the bail regime under Section 43D(5) is neither diluted by overreach nor distorted by mechanical application.

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83. The discussion thus far has been directed to the manner in which the statutory threshold under Section 43D(5) is to be applied at the stage of bail. That inquiry sets out how the Court is to examine the prayer for bail under a special enactment. The inquiry must now turn to what the accusation is that is sought to be tested against that threshold. This necessarily requires an examination of the statutory meaning and scope of a “terrorist act” under the Act.

4. SCOPE OF “TERRORIST ACT” UNDER SECTION 15 AND THE STATUTORY CONTEXT

84. During the course of arguments, a fervent and sustained debate emerged not merely on the threshold under Section 43D(5), but on a more foundational premise, namely, what the statute itself comprehends as a “terrorist act” and, correspondingly, the legal character of the allegations sought to be brought within Chapters IV and VI of the Act. On behalf of the appellants, it was urged that the prosecution narrative, even if taken at its highest, discloses at best a situation of public disorder, and that the invocation of the UAPA proceeds on an overstretched understanding of terrorism. The prosecution, on the other hand, contended that the statutory definition is not confined to conventional forms of violence, and that Parliament has consciously employed a broader formulation to capture conduct which threatens the unity, integrity, security, including economic security, or sovereignty of India, and which disrupts civic life in the manner contemplated by the Act. The submissions, in substance, invited the Court either to proceed on assumed notions of what constitutes terrorism, or to anchor its analysis firmly in the legislative definition enacted by Parliament.
85. In this backdrop, and before proceeding to an accused-specific evaluation of the material on record, it becomes necessary to clarify the statutory meaning and setting of Section 15. The *prima facie* satisfaction contemplated by Section 43D(5) is not a matter of impression or gravity alone; it is a satisfaction referable to defined statutory ingredients. Unless the legal contours of the offence alleged are first identified, the subsequent assessment of individual role risks proceeding without a clear statutory reference point, and may result in either an unduly restrictive or an unduly expansive application of the threshold. It is for this reason that the Court considers it appropriate to briefly notice the scope of Section 15, and its inter-relationship with

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allied provisions, so that the analysis which follows proceeds on a clear legal foundation and is thereafter applied, with the necessary care and precision, to each appellant individually.

86. Section 15 of the Act defines what constitutes a “terrorist act” for the purposes of the statute. The definition is structured around two essential elements. First, the act must be done with intent to threaten, or be likely to threaten, the unity, integrity, security, including economic security, or sovereignty of India, or with intent to strike terror in the people or any section thereof. Second, the act must be of such a nature as to cause, or be likely to cause, the consequences enumerated in the provision.
87. The means by which such acts may be committed are not confined to the use of bombs, explosives, firearms, or other conventional weapons alone. Parliament has consciously employed the expression “**by any other means of whatever nature**”, which expression cannot be rendered otiose. The statutory emphasis is thus not solely on the instrumentality employed, but on the design, intent, and effect of the act. To construe Section 15 as limited only to conventional modes of violence would be to unduly narrow the provision, contrary to its plain language.
88. The consequences contemplated under Section 15 further illuminate the legislative understanding of terrorism. Apart from death or destruction of property, the provision expressly encompasses acts which disrupt supplies or services essential to the life of the community, as well as acts which threaten the economic security of the nation. This reflects Parliament’s recognition that threats to sovereignty and security may arise through conduct that destabilises civic life or societal functioning, even in the absence of immediate physical violence.
89. The Act further recognises that such acts may be the result of collective and coordinated effort. Section 18 makes punishable conspiracy, attempt, abetment, advice, incitement, and knowing facilitation of a terrorist act, as also acts preparatory to its commission. The statutory scheme thus contemplates that terrorist activity may involve multiple actors performing different roles towards a common unlawful objective.
90. Read together, Sections 15 and 18 disclose a legislative design wherein Section 15 defines the nature of acts which Parliament has characterised as terrorist acts, while Section 18 ensures that criminal

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liability is not confined only to the final execution, but extends to those who contribute to the commission of such acts through planning, coordination, mobilisation, or other forms of concerted action. Whether particular conduct ultimately attracts Section 15 directly, or Section 18 read with Section 15, depends upon the role attributed and the statutory ingredients alleged to be satisfied.

91. At the stage of consideration under Section 43D(5), the Court is not required to finally classify the conduct or determine the precise provision under which liability would ultimately arise. The inquiry is confined to whether, on the prosecution material taken at face value, there are reasonable grounds for believing that the accused's conduct bears a *prima facie* nexus to a terrorist act as defined under the Act, whether as a direct participant or as a conspirator or facilitator.
92. In light of the foregoing discussion, the plea of delay stands addressed at a general level. The consideration that follows is therefore confined to the individual role attributed to each appellant and the *prima facie* satisfaction recorded against them under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967, without reopening the issue of delay except to the extent it bears upon individual attribution.
93. The Court has thus traversed the submissions on prolonged incarceration and the constitutional framework within which such pleas are to be examined in prosecutions under a special statute. The contours of the statutory restraint contained in Section 43D(5) have been delineated, and the scope and meaning of a "terrorist act" under Section 15 of the Act, read with the allied provisions, have also been clarified.
94. The arguments before us made it evident that while certain submissions were urged on common grounds, the ultimate determination cannot rest on general propositions alone. The application of the law must necessarily turn on the role attributed to each accused, the nature of the material relied upon, and the manner in which the courts below have appreciated the same.
95. It therefore becomes necessary to examine each appeal independently, bearing in mind the statutory framework already discussed, and to assess whether the threshold contemplated under Section 43D(5) is attracted in the case of each appellant and, if so, whether the facts of the individual appeal warrant any departure on constitutional grounds. It is this exercise that the Court would now propose to undertake.

Supreme Court Reports**5. INDIVIDUALISED ROLE AND DIFFERENTIATION IN TREATMENT OF THE PRIME CONSPIRATORS WITH OTHERS.**

96. Before we proceed to individually analyse each of the role attributed to each of the accused, we would like to reiterate the obvious but very important distinction while considering the bail applications in general and under special statutes like UAPA.
97. The record discloses that all the appellants do not stand on an equal footing as regards culpability. The allegations against the principal accused indicate a central and directive role in conceptualising, planning, and coordinating the alleged terrorist act, whereas the material against certain co-accused reflects conduct of a subsidiary or facilitative nature. The hierarchy of participation, emerging from the prosecution's case itself, requires the Court to assess each application individually, rather than proceed on the premise of equivalence. Such differentiation is intrinsic to criminal adjudication and operates irrespective of the uniformity of charges framed.
98. In the case of the alleged masterminds i.e., Sharjeel Imam and Umar Khalid, the prosecution material comprises direct, corroborative, and contemporaneous evidence, including recoveries, digital communication trails, and statements indicative of managerial responsibility. In contrast, the involvement of others is sought to be established mainly through associative or peripheral conduct. The Court cannot ignore that where evidentiary strength varies materially between accused persons, the need for continued detention likewise varies. Detention that remains necessary to secure ongoing prosecutorial objectives for the principal offenders may not retain the same necessity for those of limited attribution.
99. The alleged masterminds are stated to have exercised command authority and to possess the ability to mobilise or influence individuals within and outside their immediate circle. Such allegations, when supported by preliminary material, compel heightened caution regarding the possibility of interference with witnesses or reactivation of dormant networks. As against this, co-accused with no independent capacity to mobilise resources or exert organisational leverage do not present the same systemic risk. The logic of detention cannot be applied homogeneously where the risk profiles of the accused are markedly dissimilar.

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100. The gravity of the alleged act is unquestionably serious however, public interest and national security concerns may be engaged to a materially different degree depending on the role of each accused. The continued detention of those alleged to be the architects of the conspiracy may be required to safeguard broader security interests and deter future acts, whereas the rationale for continued incarceration of minor participants is comparatively attenuated once the investigative purpose is exhausted. The Court is therefore justified in calibrating its approach, ensuring that the pursuit of security does not eclipse the principle of proportionality.
101. It is well recognised that Article 21 rights, though not absolute, require the State and the Court to justify continued custody with reference to the specific individual before it. Treating all accused identically irrespective of their roles would risk transforming pre-trial detention into a punitive mechanism divorced from individual circumstances. The constitutional mandate demands a differentiated inquiry: where prolonged custody disproportionately burdens those whose roles are limited, the balance between individual liberty and collective security may call for conditional release, while the same balance may tilt differently for those alleged to have orchestrated the offence.
102. The statutory restrictions under special enactments do not preclude the Court from recognising distinctions between accused persons based on the quality of material, the nature of involvement, and the necessity of further detention.
103. At this stage, the Court must be careful not to confuse two distinct legal exercises. One is the determination of criminal liability, which belongs to trial. The other is the regulation of personal liberty pending trial, which is the limited concern of bail. The law of conspiracy explains how several persons, acting at different levels and at different points of time, may be bound together by a common design. That doctrine answers the question of liability. It does not answer, by itself, the separate question of how long and on what basis the liberty of each individual may be restrained before guilt is proved. Bail adjudication therefore necessarily proceeds on a different plane. It requires the Court to look at what is attributed to each accused, how that attribution fits within the statutory ingredients, and whether continued detention, at that stage, serves a legitimate purpose

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recognised by law. This exercise does not dismantle the prosecution case of conspiracy, nor does it rank culpability. It merely ensures that pre-trial detention does not become indiscriminate or automatic, and that statutory restraint operates with reason, proportion, and fidelity to individual attribution. Seen thus, differentiation is not an exception to conspiracy law, but a constitutional discipline imposed upon the exercise of bail jurisdiction.

104. A cumulative and comparative reading of the FIR and the successive charge-sheets discloses a discernible differentiation in the nature, scope, and hierarchy of roles attributed to the accused persons. The prosecution narrative itself delineates Umar Khalid and Sharjeel Imam as occupying a position distinct from the remaining accused, both in terms of conceptual involvement and command over the alleged conspiracy.
105. At the outset, Umar Khalid and Sharjeel Imam are *prima facie* attributed a central role and alleged to be ideological drivers of the alleged conspiracy. The material relied upon against them is predominantly in the nature of speeches, meetings, digital communications, and alleged strategic deliberations, commencing immediately after the passage of the CAB/CAA. The charge-sheets attribute to them the role of formulating the protest strategy, including the alleged transition from sit-in demonstrations to chakka jams, selection of locations, and articulation of the broader political objective sought to be advanced. Their alleged acts are thus situated at the planning and preparatory stage, extending over a prolonged period.
106. In contradistinction, the remaining accused namely Gulfisha Fatima, Meeran Haider, Shifa-ur-Rehman, Mohd. Saleem Khan, Shadab Ahmad, Athar Khan, and others are consistently described as local-level facilitators. Their alleged involvement is site-specific and operational, confined to particular localities such as Seelampur, Jafrabad, Chand Bagh, Jamia, and Shaheen Bagh. The allegations against them relate primarily to on-ground mobilisation, logistical coordination, funding at the local level, stockpiling of materials, and execution of directions allegedly received from above, rather than formulation of the overarching strategy.
107. The charge-sheets further reveal a vertical chain of command, wherein conspiratorial - level decisions and strategic directions are

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alleged to have emanated from the top, while implementation was carried out through intermediaries such as DPSG members, JCC coordinators, and protest site organisers. This internal structuring of the prosecution case itself negates any suggestion of homogeneous or indivisible culpability among all accused. The distinction between those alleged to have exercised centralised command and control and those alleged to have acted as field-level operatives is repeatedly emphasised through the attribution of roles, reliance on different categories of evidence, and the geographical confinement of acts.

108. Even in the narrative concerning escalation into violence, the role attributed to the remaining accused is largely proximate and reactive, arising from developments at specific protest sites. Umar Khalid and Sharjeel Imam, on the other hand, are alleged to have operated remotely away from the sites of violence, with no direct attribution of participation in acts of arson, assault, or destruction of property. The prosecution case thus proceeds on the footing that the former category of accused were involved in facilitating execution, whereas the latter were involved in conceptualisation and supervision.
109. This differentiation assumes critical legal significance. Once the prosecution itself projects varying degrees of proximity, control, and participation, the law mandates an individualised assessment of culpability, particularly in the context of stringent penal provisions. The alleged role of an accused at the level of ideological articulation or protest coordination cannot, without a demonstrable and proximate nexus to acts of violence, be equated with the role of those alleged to have engaged in facilitation of riots or violent acts.
110. Accordingly, the material placed on record, when examined in its entirety, establishes that Umar Khalid and Sharjeel Imam stand on a qualitatively different footing from the remaining accused, both in the prosecution narrative and in the evidentiary basis relied upon. This structural distinction cannot be ignored and must inform any judicial determination relating to culpability, parity, or the applicability of penal provisions requiring a heightened threshold of intent and participation. Having thus delineated the structural and evidentiary differentiation emerging from the prosecution case itself, it becomes necessary for the Court to examine the bail pleas in an accused-specific manner. The exercise that follows is not one of adjudicating

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culpability, which lies exclusively within the domain of trial, but of assessing whether the statutory threshold governing pre-trial liberty is attracted qua each appellant. It is in this limited but essential context that the Court now proceeds to consider the submissions advanced on behalf of each accused individually, bearing in mind the role attributed, the nature of material relied upon, and the stage of the proceedings.

6. SHARJEEL IMAM – APPELLANT IN SLP (Crl.) NO. 14030 of 2025

6.1. SUBMISSIONS ON BEHALF OF APPELLANT:

111. Learned Senior Counsel for the appellant Sri Siddhartha Dave submits that the appellant is a final year Ph.D. scholar of Jawaharlal Nehru University, with an established academic background including B.Tech and M.Tech degrees, Masters in Modern History and Philosophy, and having cleared the National Eligibility Test. It is urged that the appellant had no criminal antecedents whatsoever prior to 2020, and that his involvement in the present set of cases stems solely from speeches and protest-related activities undertaken during the anti-CAA movement.
112. It is submitted that the present proceedings arise out of FIR No. 59 of 2020, pertaining to an alleged conspiracy relating to the incidents in North-East Delhi in February 2020. The FIR was initially registered under IPC provisions alone, and only subsequently were offences under Chapters III, IV and VI of the UAPA, along with serious IPC offences, added. It is pointed out that at the inception of the FIR, only one individual was named, and the appellant was not among them.
113. Learned Senior Counsel emphasized that, as a matter of record, the appellant was not in Delhi after the second week of January 2020, and had already been taken into custody on 28 January 2020 in another case. Despite this admitted position, the appellant was arrayed as an accused in the present FIR through a supplementary charge sheet and was arrested on 25 August 2020, nearly six months after registration of the FIR.
114. It is submitted that the prosecution case against the appellant in the present FIR is founded entirely on material recovered in FIR

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No. 22 of 2020, namely four speeches delivered at different places, the formation of a WhatsApp group titled “Muslim Students of JNU”, alleged involvement in the Shaheen Bagh protest, and pamphlets opposing the Citizenship Amendment Act. These very acts, it is urged, already form the subject matter of a separate prosecution, in which the appellant has been granted bail, and in respect of which judicial findings exist that the speeches do not contain any call for violence.

115. Learned Senior counsel submitted that even on the prosecution’s own showing, there is no allegation against the appellant of having participated in any meeting where violence was planned, of having discussed use of arms, of any recovery of weapons or incriminating material from him, or of his presence at any site of violence in North-East Delhi. It is further submitted that there is no allegation of any communication or connectivity between the appellant and the other accused persons, including participation in WhatsApp groups such as DPSG, Pinjra Tod or JCC.
116. The learned Senior Counsel for the appellant submitted that the record demonstrates that the appellant repeatedly spoke against violence as a means of protest, that he was already in custody well before the incidents of February 2020, and that even the prosecution witnesses do not place him at Shaheen Bagh or any protest site after the first week of January. It is further pointed out that the WhatsApp group “Muslim Students of JNU” is stated to have become inoperative after mid-January 2020, and that the appellant is not an accused in any FIR relating to the actual incidents of rioting or violence.
117. Learned Senior Counsel submits that, in these circumstances, the statutory threshold under Section 43D(5) of the UAPA is not met. It is urged that protest-related speech, pamphleteering, and mobilisation for non-violent demonstrations, even if assumed to be politically charged, do not by themselves disclose offences under Chapters IV or VI of the UAPA, absent any proximate intent, preparation, or nexus to violence as contemplated under Section 15 of the Act.
118. It is further submitted that the scale of the prosecution itself demonstrates the oppressive nature of continued incarceration. The prosecution has filed multiple charge sheets, the case involves twenty accused persons, proposes to examine more than nine

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hundred witnesses, and relies upon voluminous documentary material. The matter remains at the stage of arguments on charge, and there is no proximate progression to trial in the conventional sense.

119. Learned Senior Counsel then places reliance on the principle of parity. It is pointed out that several co-accused in the same FIR, including Natasha Narwal, Devangana Kalita, Asif Iqbal Tanha, Safoora Zargar, Faizan Khan and Ishrat Jahan, have already been granted bail, some on merits. It is submitted that challenges to these bail orders have been dismissed by this Court, and it has been clarified that co-accused are entitled to rely on parity.
120. It is urged that the appellant stands on a better footing than those already on bail. Unlike them, the appellant is not alleged to have been present in Delhi during the relevant period, not alleged to be present near the sites of violence, not shown to be connected with any of the co-accused through calls or messages, and not alleged to have participated in any meeting where violence was discussed. Even the solitary meeting attributed to him is stated, on the prosecution's own material, to have been confined to mobilisation for chakka jam and not violence.
121. Learned Senior counsel therefore submits that continued incarceration of the appellant, despite the absence of allegations of violence-related conspiracy, lack of proximity to the incidents in question, and parity with co-accused already on bail, cannot be sustained either on the statutory framework of the UAPA or on constitutional principles. It is urged that the impugned judgment proceeds on an impermissible conflation of dissent and protest with terrorist activity, warranting interference.

6.2. SUBMISSIONS ON BEHALF OF THE RESPONDENT:

122. Learned ASG Sri S.V. Raju appearing for the Respondent submitted that the appellant is not sought to be prosecuted merely for participation in protests or expression of dissent, but for his distinct and foundational role in the genesis, planning and execution of a larger criminal conspiracy which ultimately culminated in widespread violence in Delhi. It is urged that the prosecution material, as analysed in detail by the High Court, clearly establishes that the conspiracy did not originate in February 2020 as a spontaneous

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reaction, but was set in motion in a calibrated and phased manner from early December 2019 onwards, with the appellant being one of its principal architects from the inception itself.

123. It is submitted that the appellant's role is traceable to the first phase of the conspiracy, which involved deliberate mobilisation, radicalisation and preparation of ground conditions through organised chakka jams, blockage of arterial roads, and disruption of essential services. The High Court has noted that this phase was not spontaneous, but involved prior planning, coordination and dissemination of instructions, and that the appellant played a central role in conceptualising and operationalising this strategy through meetings, digital platforms and public speeches.
124. Learned ASG Sri S.V. Raju submitted that the prosecution relies upon contemporaneous electronic evidence, including WhatsApp chats recovered from the appellant's device, which demonstrate that the appellant created and administered the WhatsApp group "Muslim Students of JNU". This group, as recorded by the High Court, functioned as a coordinating mechanism for mobilisation, identification of protest sites, dissemination of protest strategy and synchronisation of chakka jams across locations. The appellant's leadership role in this group is corroborated by witness statements and digital footprints forming part of the charge-sheet material.
125. It was further submitted that the appellant was involved in the drafting, printing and circulation of pamphlets in early December 2019, which deliberately invoked communally sensitive themes such as Babri Masjid, Kashmir and alleged existential threats to the Muslim community. The High Court has relied upon statements of the printer and other witnesses who have attributed authorship and coordination of these pamphlets to the appellant. It is urged that these pamphlets were not neutral political literature but were designed to mobilise crowds through emotive and incendiary narratives, thereby laying the foundation for mass unrest.
126. Learned ASG Sri S.V. Raju submitted that the appellant's speeches form a crucial link in the chain of conspiracy. In particular, the High Court has noted that in his speech at Jamia Millia Islamia on 13 December 2019, delivered shortly before violence erupted in the area, the appellant articulated a strategy of choking Delhi through organised chakka jams, including blocking roads and disrupting

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essential supplies such as water and milk. It is urged that the speech reflects conscious awareness that such disruption would inevitably escalate into violence, and that the appellant framed such escalation as an acceptable and necessary consequence of the agitation.

127. It was submitted that the appellant's repeated assertion of opposing violence cannot be examined in isolation. The High Court has correctly observed that conspiracy is to be inferred from cumulative conduct, and that a conspirator may outwardly disavow violence while simultaneously engaging in acts designed to create conditions where violence becomes unavoidable. The appellant's conduct in planning road blockades, paralysing public movement and provoking confrontation with law enforcement must therefore be viewed cumulatively and not in a compartmentalised manner.
128. Learned ASG Sri S.V. Raju further submitted that the appellant attended and participated in conspiratorial meetings at Jangpura and within the JNU ecosystem, where the strategy of chakka jam and escalation of protests was discussed. The High Court has relied upon witness statements, photographic material and call-detail and location evidence to record the appellant's presence and participation in these meetings. It is urged that following these meetings, further coordination groups were created, evidencing a clear progression from planning to execution.
129. It was submitted that the appellant's role was not geographically confined to Delhi. Acting as a mobiliser and ideologue, the appellant travelled to Aligarh and other locations to replicate and export the protest model, aligning regional protests with the broader Delhi-centric strategy. The High Court notes that this was done in coordination with other conspirators, demonstrating that the conspiracy was pan-regional in conception and execution, and not localised or spontaneous.
130. Learned ASG Sri S.V. Raju submitted that the appellant played a decisive role in the creation and sustenance of the Shaheen Bagh protest site, which evolved into a prolonged 24x7 blockade of a major arterial road. The High Court records that the appellant issued instructions, addressed gatherings, and consciously distinguished between symbolic protest and disruptive blockade, opting for the

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latter. It is urged that the sustained nature of the blockade evidences intentional paralysis of civic life, squarely attracting the mischief contemplated under Chapter IV of the UAPA.

131. It was submitted that the argument of the appellant's absence from Delhi during February 2020 does not exculpate him at the bail stage. The High Court has correctly noted that the appellant's role was foundational and preparatory, and that liability for conspiracy does not require physical presence at the scene of violence once the plan has been set in motion. The riots, it is urged, were the logical culmination of the earlier phases of mobilisation and disruption in which the appellant played a central role.
132. Learned ASG Sri S.V. Raju submitted that the statutory threshold under Section 43D(5) of the UAPA is clearly satisfied. When the prosecution material is taken at face value, as mandated at the bail stage, it discloses acts intended to threaten the unity, integrity and security of the nation by paralysing the National Capital through orchestrated disruption and violence. The High Court's finding that the appellant's role is grave and foundational cannot be characterised as speculative or perverse at this stage.
133. It was further submitted that the plea of parity is misconceived. The High Court has distinguished the appellant's role from that of other accused who have been granted bail, noting that the appellant stands apart as a planner, mobiliser and ideological driver whose actions pre-date and shape the later stages of the conspiracy. Parity cannot be invoked mechanically to neutralise a qualitatively distinct and graver role.
134. Learned ASG Sri S.V. Raju finally submitted that the prosecution material, taken cumulatively, satisfies the "prima facie true" test under Section 43D(5) of the UAPA, and that this is not a fit case for grant of bail. The State accordingly prays that the appeal be dismissed.

6.3. Findings of the Trial Court:

135. The Trial Court vide order dated 11.04.2022, passed in IA. No. 81/2021 in SC 163/2020 dismissed the bail application filed by the Appellant. The Court held that the material on record disclosed prima facie involvement of the appellant in a deep-rooted and well-orchestrated criminal conspiracy relating to the North-East Delhi riots of February 2020. On a cumulative reading of the charge-sheet,

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witness statements under Sections 161 and 164 Cr.P.C., WhatsApp chats of coordinated groups, and other documentary and electronic evidence, the Court found that the protests were not spontaneous but were deliberately planned, escalated into chakka-jam, and thereafter converted into targeted violence, including attacks on police and destruction of public and private property. At the stage of bail, the Court emphasized that it was sufficient if the prosecution material, taken at face value, disclosed the appellant's complicity in the conspiracy, without a detailed appreciation of evidence.

136. A decisive ground for rejection of bail was the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967. Applying the principles laid down in **NIA v. Zahoor Ahmad Shah Watali** (*supra*), the Trial Court held that once there exist reasonable grounds for believing that the accusations are prima facie true, bail must be refused. The Court recorded that the prosecution material satisfied this threshold, showing the appellant's role in initiating, shaping, and sustaining the conspiracy, and therefore the bar under Section 43D(5) squarely applied. This embargo, read with the seriousness of the offences alleged, disentitled the appellant to the discretionary relief of bail.
137. The Trial Court also rejected the defence submissions that the appellant's acts were protected speech or mere calls for peaceful protest. It held that speech, meetings, and mobilization efforts cannot be examined in isolation, and must be assessed in the context of the entire chain of events and the object of the conspiracy. The prosecution case, at this stage, showed that calls for chakka-jam were not benign but were strategically designed to create confrontation, paralyse civic life, provoke law-and-order breakdown, and culminate in communal violence, thereby attracting offences under UAPA and the IPC. Issues relating to intent, interpretation of speeches, admissibility of evidence, and alleged exaggeration were held to be matters for trial, not bail.
138. Lastly, the Trial Court noted that the gravity of the offences, the manner of execution of the conspiracy, the scale of violence, and the societal impact weighed heavily against the grant of bail. It reiterated that at the bail stage, the Trial Court is not required to test the prosecution case for proof beyond reasonable doubt, but only to see whether a prima facie case exists. Finding that the accusations

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against the appellant were supported by substantial material and that the statutory restrictions under UAPA were attracted, the Court concluded that the appellant was not entitled to bail, and accordingly dismissed the bail application.

6.4. Findings of the High Court:

139. The High Court in the impugned order held that the material on record prima facie showed Sharjeel Imam as one of the principal ideologues and early architects of the conspiracy, who allegedly set the process of mobilisation in motion immediately after the CAB/CAA developments. It was noted that he was attributed the role of creating and administering WhatsApp groups, printing and circulating large numbers of pamphlets with communal overtones, and delivering speeches across multiple locations calling for disruptive chakka-jams and paralysing essential services. The High Court found that these acts, when read together with subsequent events, demonstrated planning, preparation, and incitement, and that conspiracy liability does not depend on physical presence at riot sites once foundational planning and instigation are prima facie established.
140. Invoking Section 43D(5) of the UAPA, the High Court held that the accusations against Sharjeel Imam crossed the threshold of prima facie truth, thereby statutorily barring bail. The argument that his conduct amounted at best to an offence under Section 13 UAPA, or that his speeches were protected expression, was rejected at the bail stage. The High Court further held that his judicial custody prior to the actual riots did not dilute his alleged role, since the prosecution case was that the conspiracy had already been conceptualised and operationalised by then. Pleas of parity, delay in trial, and evidentiary weaknesses were found insufficient to override the statutory embargo, resulting in dismissal of his bail appeal.

6.5. DISCUSSION ON ROLE AND FINDINGS:

141. On 04.12.2019, immediately after the Cabinet Committee accorded approval to the Citizenship Amendment Bill, 2019 (for short, "CAB"), a WhatsApp group by the name Muslim Students of JNU (MSJ) was created. The charge-sheet discloses that the formation of the said group was the "brainchild" of accused Sharjeel Imam. It

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is further alleged that, in his chats with Arshad Warsi, a student of Jamia Millia Islamia University (JMI), Sharjeel Imam indicated that he was in contact with a radical communal group known as Students of Jamia (SOJ). According to the charge-sheet, the said group was engaged in distributing pamphlets in various mosques in Delhi against the verdict of this Court in the Babri Masjid matter, which pamphlets were allegedly aimed at mobilising students of Jamia Millia Islamia University to participate in a protest proposed to be held on 06.12.2019 at 4:30 p.m. at the Polytechnic Lawn, JMI, against the introduction of the CAB.

142. The charge-sheet further reveals that on 06.12.2019, pamphlets were distributed in the areas of Jama Masjid and Nizamuddin by Sharjeel Imam along with members of SOJ, which, according to the prosecution, allegedly contained content capable of creating fear and insecurity among the Muslim community. The pamphlets also carried a call to join a protest organised by United Against Hate (UAH) on 07.12.2019 at Jantar Mantar. Chats exchanged between Sharjeel Imam and Arshad Warsi allegedly indicate Sharjeel Imam's intention to participate in the Jantar Mantar protest and his plan to mobilise students from Aligarh Muslim University (AMU) and Delhi University (DU) with the assistance of MSJ. The chats of the "Core Members of MSJ" further reveal that on 08.12.2019, Sharjeel Imam was invited to a meeting organised by Yogendra Yadav at the basement of premises bearing No. 6/6, Jangpura Extension, Delhi. The said meeting was allegedly convened with the objective of conspiring to incite a "Chakka Jam", and Umar Khalid is stated to have attended the said meeting. The charge-sheet further states that on 10.12.2019, upon the CAB being passed by the Lok Sabha and becoming law, members of MSJ burnt a copy of the Citizenship Amendment Act (CAA) within the JNU campus. Another WhatsApp group titled "CAB TEAM" was formed on 08.12.2019, and chats exchanged therein allegedly disclose a conspiracy to organise protests on 10.12.2019 at Jantar Mantar against the CAA. The said protest allegedly drew significant attention and was attended by several students, including Umar Khalid. On 10.12.2019, Nadeem Khan (one of the top conspirators and a close associate of Umar Khalid, who is also a mentor of Sharjeel Imam) directed Sharjeel Imam to visit Aligarh Muslim University to mobilize the students for the protest.

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143. On 10.12.2019, Nadeem Khan, stated to be a close associate of Umar Khalid and a mentor to Sharjeel Imam, allegedly directed Sharjeel Imam to visit Aligarh Muslim University for mobilising students for the protests. On 11.12.2019, Sharjeel Imam allegedly reached Aligarh. As per the charge-sheet, on 12.12.2019, in furtherance of the alleged common conspiracy, Asif Iqbal Tanha, an accused in the case and a prominent member of the Student Islamic Organisation of India (SIO), issued a call for a protest march to Parliament from JMI against the CAA, scheduled for 13.12.2019. Pursuant thereto, a new WhatsApp group titled Muslim Students of JNU_1 was created at the behest of Sharjeel Imam. It is alleged that on 13.12.2019, members of MSJ were directed by Sharjeel Imam to reach Jamia Millia Islamia University, following which protests took place at the said campus. Call Detail Record (CDR) analysis is stated to reveal Sharjeel Imam's presence at Jamia Millia Islamia University on the said date.
144. On 13.12.2019, Sharjeel Imam is alleged to have distributed pamphlets and delivered a provocative speech. The charge-sheet reproduces certain portions of the speech, which, according to the prosecution, instigated the gathering, and reads as follows:

“हमारी ख्वाहिश और हमारी आरजू यह है की दिल्ली में
चक्का जाम हो ““यह तो आज हुआ है, यह चिंगारी थी इसमें
4000 लोग-3000 लोग थे। अगर organised way में हो,
और लोग आएंगे”

“(देश की राजधानी है) जो लोग गुमराह कर रहे हैं, अरे ये दिल्ली है भाई। ये
flyover गिर जरा, पूरी दुनिया को खबर होगी। समझ रहे हैं ना ?”

“यह चिंगारी कहा जाएगी ?आग कै से लगेगी ?”

“लेकिन goal क्या है ?हमें चक्का जाम करना चाहते हैं।

हिल्ली के मोहल्लो में दूध बंद करना चाहते हैं, पानी बंद करना चाहते हैं।

खुलकर बोहलए यार (बिलकुल)।”

145. The charge-sheet further alleges that riots occurred on 13.12.2019 at Jamia Gate No. 7, during which civilians and approximately 20 police personnel sustained injuries, public and private property was damaged, and essential services were disrupted. FIR No. 296/2019 was registered in respect of the said incident. In relation

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to the speech delivered at Jamia Millia Islamia University, FIR No. 22/2020 was also registered against Sharjeel Imam at Police Station Crime Branch.

146. It is further alleged that on 15.12.2019, Sharjeel Imam convened a meeting of the MSJ Core Committee at Teflas, a dhaba located within the JNU campus, where further plans of action were discussed. The charge-sheet alleges that Sharjeel Imam sought to involve organisations such as the Popular Front of India (PFI), Jamaat-e-Islami Hind (JIH), SIO, and other groups in furtherance of the conspiracy. On the same date, violent protests allegedly took place in Jamia Nagar and New Friends Colony, resulting in injuries to 45 police personnel and 95 civilians. Two police booths were allegedly burnt, three police motorcycles and one QRT Gypsy were damaged, and three DTC buses along with eight private buses were also damaged. CDR analysis is stated to show the presence of Sharjeel Imam at the site of the protests. FIR No. 242/2019 was registered at Police Station New Friends Colony and FIR No. 298/2019 at Police Station Jamia in relation thereto. The charge-sheet further alleges that Sharjeel Imam, along with members of SOJ, facilitated the establishment of a 24x7 protest site at Shaheen Bagh, allegedly at his behest, despite opposition from local residents. This is stated to mark the conclusion of the first phase of the alleged conspiracy.
147. The second phase of the alleged conspiracy is stated to have commenced on 02.01.2020, when Sharjeel Imam allegedly posted content on his Facebook page advocating a “Chakka Jam”. On 09.01.2020, he is alleged to have conspired with Afreen Fatima to organise a meeting at Teflas, JNU, on 10.01.2020, aimed at mobilising crowds from JNU, Jamia, Old Delhi, and Seelampur to establish protest sites similar to Shaheen Bagh. The stated objectives of these protest sites were allegedly to enforce chakka jams and engineer riots. On 13.01.2020, Nadeem Khan is alleged to have sent Saiful Islam and Asif Iqbal Tanha to meet Sharjeel Imam at Jamia Millia Islamia University. CDR analysis is stated to confirm Sharjeel Imam’s presence at JMI at the relevant time. It is further alleged that Sharjeel Imam facilitated Nadeem Khan in raising and securing the Khureji protest site.
148. On 16.01.2020, Sharjeel Imam is alleged to have delivered another provocative speech, portions of which have been extracted in the

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charge-sheet, wherein he purportedly referred to blocking access to the North-East and advocated organised action through chakka jams.

“ये मैं पहले भी शायद अर्ज कर चुका हूँ के 5 लाख लोग हमारे पास हो organised तो हम हिंदुस्तान और नॉर्थ ईस्ट को permanently cut कर सकते हैं,”

“असम को काटना हमारी जिम्मेदारी है असम और इंडिया काट कर अलग हो जायें, तभी ये हमारी बात सुनेंगे”

अगर हमें असम की मदद करनी है, तो हमें असम का रास्ता बंद करना होगा, फ़ौज के हलए, समझ रहे हैं ? फ़ौज के लिए और जीतने भी जो भी यहा से सप्लाई जा रहा है

बंद करो और वो बंद कर सकते है क्योंकि chicken neck मुसलमानो का है, वो जो इलाका है वो मुस्लिम अकसररयत है”

149. The charge-sheet further alleges that Sharjeel Imam delivered similar speeches at Asonal and Chakand on 22.01.2020 and 23.01.2020, respectively, wherein he is stated to have provoked sections of the Muslim population by inciting them to participate in disruptive chakka jams.
150. According to the prosecution, these speeches, taken cumulatively, led to the establishment of the Shaheen Bagh protest site, which is alleged to be the first successful model of a “Chakka Jam”. Thereafter, several such protest sites were allegedly created in parts of North-East Delhi. In furtherance of the alleged conspiracy, riots are stated to have occurred in North-East Delhi in the last week of February 2020. The charge-sheet thus attributes responsibility to Sharjeel Imam, Umar Khalid, and their associates for the protests and consequential riots that occurred on 23rd, 24th, and 25th February 2020, resulting in loss of life and damage to public property.
151. The Court is conscious that the present appeal is argued at length on the theme that the appellant is sought to be prosecuted for speeches and protest mobilisation, and that continued incarceration, in the teeth of delay and the scale of the trial, would be oppressive. At the same time, the Court cannot lose sight of the limits of the bail stage enquiry under a special statute. The task is neither to decide guilt nor to pronounce upon the correctness of competing interpretations

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of evidence. The enquiry is confined to determining whether, on the prosecution material as it stands and taken at face value, there exist reasonable grounds for believing that the accusations against the appellant are *prima facie* true, thereby attracting the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967.

152. The appellant has urged, broadly, that he was not in Delhi after the second week of January 2020, that he was already in custody from 28.01.2020 in another case, that he was not present at the sites of the February 2020 riots, that no weapons were recovered from him, that he did not participate in meetings where violence was planned, and that the prosecution against him is substantially founded on speeches, pamphlets and a WhatsApp group which, according to him, are already the subject matter of a separate FIR wherein bail has been granted with observations that the speeches do not contain a call for violence. These submissions are supplemented by a plea of parity with several co-accused who have been enlarged on bail.
153. The State, on the other hand, has consistently urged that the appellant is not being prosecuted for dissent or protest as such, but for a distinct and foundational role in what is alleged as a calibrated conspiracy, which commenced in the first week of December 2019 and progressed through identifiable phases. The prosecution theory, at least at this stage, does not treat the riots of February 2020 as a sudden eruption. It treats them as the culmination of earlier phases of mobilisation, blockade and disruption, in which the appellant is alleged to have acted as an organiser and ideational driver.
154. In considering these rival positions, the Court must keep in view two controlling principles already delineated earlier in the judgment. First, the prosecution material must be read cumulatively, in its total setting, and not in isolated fragments. Second, the Court does not, at this stage, reject prosecution material by adopting defence explanations or by testing reliability, admissibility or credibility as though conducting a trial. Those aspects remain within the province of final adjudication.
155. The role attributed to the appellant in the charge-sheet narrative is not episodic. The prosecution seeks to place him at the inception of a mobilisation strategy and traces a continuing course of conduct from early December 2019 through January 2020. The charge-sheet

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refers, inter alia, to the creation of the WhatsApp group “Muslim Students of JNU” and its “core members”, to mobilisation through pamphlets distributed in specific localities, to participation in meetings, to the delivery of speeches at multiple places, and to efforts aimed at establishing or sustaining blockade style protest sites.

156. The High Court’s individual role note also proceeds on the basis that the appellant engineered the first phase of events from 13.12.2019 to 20.12.2019, and relies upon contemporaneous electronic records in WhatsApp groups and chats as part of the material pointing towards planning and mobilisation. The same note refers to chats dated 07.12.2019 suggesting planning for mass mobilisation and links that planning to the commencement of the first phase of events on 13.12.2019.
157. At this stage, the Court is not called upon to finally pronounce on the evidentiary worth of each digital artefact. Yet, where the prosecution places reliance on contemporaneous electronic communications to attribute a coordination and mobilisation role, the Court cannot treat such material as irrelevant merely because the defence disputes its ultimate probative value.
158. The appellant has attempted to frame the allegation as one resting solely on speech. The record, at least as placed by the prosecution, does not permit such reduction. The prosecution case is of a chain comprising: (i) creation and administration of mobilisation platforms; (ii) dissemination of written material intended to galvanise participation; (iii) meetings and coordination; and (iv) public exhortations articulating a strategy of disruption. At the bail stage, the Court is concerned with whether this chain, taken at face value, is coherent and whether it reflects a real nexus to the offences alleged.
159. A significant part of the material relied upon relates to 13.12.2019 at Jamia Millia Islamia. The High Court records that the presence of the appellant in Jamia Millia Islamia is reflected by CDR location of his mobile number. It further records that the appellant organised a “chakka jam” and that this chakka jam was differentiated from a “dharna”, as reflected in the statement of a protected witness.
160. The statement of the protected witness under Section 164 Cr.P.C., as reproduced in the High Court note, attributes to Umar Khalid the act of explaining the difference between “chakka jam” and

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“dharna”, and issuing directions to the appellant to start “chakka jam” at Shaheen Bagh on a 24x7 basis, with an expressed intent to commence similar activity in other areas at the “right time”. This material, if accepted at face value as the bail stage requires, supports the prosecution’s contention that the conduct alleged is not ordinary protest, but a planned and differentiated method of blockade and disruption.

161. The same note records, with reference to the main charge-sheet pages, that the appellant’s speech of 13.12.2019 targeted Delhi as the capital, used the illustration of a flyover collapse drawing worldwide attention, and exhorted Jamia and JNU students to execute disruptive chakka jam to such an extent that essential services like milk and water would be paralysed or choked.
162. The defence has urged that the speech contains no direct incitement to violence and is protected. That contention cannot be adjudicated in the manner the defence invites at this stage. The statutory enquiry is not whether the Court, after a full trial, would accept the prosecution’s interpretation. The enquiry is whether the prosecution’s reading is *prima facie* plausible on the face of the material and whether, read cumulatively with the other links, it contributes to a coherent narrative of planned disruption.
163. The Court is also mindful of the appellant’s reliance on the assertion that he opposed violence. Such an assertion does not, at the bail stage, neutralise an allegation of conspiracy and preparatory orchestration. A conspirator may outwardly couch the conduct in the language of non-violence while engaging in acts intended to create conditions of confrontation and escalation. The prosecution case is that sustained blockade, choking of essential supplies, and deliberate paralysis of civic life are not benign political acts but steps in a planned trajectory, which then culminated in violence.
164. The appellant’s absence from Delhi after the second week of January 2020 and his custody from 28.01.2020 are not ignored. However, these facts do not conclude the matter in a prosecution founded on conspiracy and preparatory roles. The prosecution case, as analysed by the courts below, is that the appellant’s role is foundational, operating at the stage of mobilisation, organisation and strategy, and that physical presence at the scene of the final violence is not a condition precedent for attributing conspiracy liability.

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165. At the present stage, therefore, the absence argument cannot be treated as exculpatory. It is a matter to be tested at trial in the light of complete evidence. The bail stage enquiry cannot be converted into a determination that once the appellant is not physically present during the February riots, his earlier attributed role becomes legally irrelevant.
166. The appellant has urged that the case against him is built entirely on speech, pamphlets and protest related activity. The Court does not accept that characterisation as complete. The prosecution material, as presently placed, alleges a combination of organisational acts, coordination through digital groups, meetings and differentiated strategy of chakka jam and blockade.
167. Further, even within the speech related material, the prosecution emphasis is not on ideological disagreement with the State or on political criticism. The emphasis is on a proposed method of paralysing civic life and choking essential supplies, articulated as a deliberate strategy and linked to a wider mobilisation narrative. Whether this ultimately crosses the final line from protected expression to criminal conduct, and whether the prosecution's interpretation withstands trial scrutiny, are matters for final adjudication. They cannot be conclusively decided at the bail stage without trespassing into forbidden terrain.
168. It is necessary to record expressly that issues such as: (i) admissibility of electronic material; (ii) compliance with procedural requirements; (iii) reliability of witness statements; (iv) interpretative nuances of speeches; and (v) whether any part of the prosecution case is overstated, are all matters to be addressed at trial. At the stage of Section 43D(5), the Court proceeds on the material as it stands.
169. When the structured inquiry delineated earlier in the judgment is applied to the appellant, the following features assume significance. First, the prosecution material, taken at face value, does not depict the appellant as an accidental or peripheral participant. It depicts him as a coordinator and mobiliser at the inception and in the first phase. Second, there is specific material placing him at Jamia on 13.12.2019 through CDR location. Third, there is a protected witness statement relied upon by the prosecution, attributing directions to the appellant to commence a differentiated chakka jam at Shaheen

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Bagh on a 24x7 basis, with a plan to expand to other areas at the right time. Forth, the prosecution relies on the appellant's speech exhorting disruptive chakka jam and choking of essential services.

170. Taken cumulatively, these elements reflect a role attribution which is not of mere association, presence, or protest participation. The allegation is of deliberate mobilisation, planned blockade strategy, and intentional disruption of civic life. On the prosecution's case, such conduct is relied upon as having a direct nexus to the unlawful activity alleged under the Act, whether as preparatory acts, facilitation, or conspiracy.
171. Once the prosecution material, taken as it stands, crosses that threshold, the statutory embargo under Section 43D(5) operates with full force. The Court cannot then enlarge the appellant on bail by proceeding as though the statutory restraint were a matter of discretionary balancing. The statutory design, as already noted earlier in the judgment, requires the Court to refuse bail where there exist reasonable grounds for believing that the accusation is *prima facie* true.
172. The plea of parity, though pressed with emphasis, cannot override the statutory conclusion. Parity is not applied by numerical comparison. It is applied by similarity of role, similarity of attribution, and similarity of the material relied upon. The courts below have treated the appellant's role as qualitatively distinct, and the material noticed above indicates why the prosecution alleges a foundational role at the early stage. In such circumstances, parity cannot be invoked mechanically to dilute the statutory embargo.
173. The plea of delay has already been addressed at a general level in the earlier portion of the judgment. In the appellant's case, the Court remains mindful of the scale of the trial. Yet, once the *prima facie* threshold is crossed, the appropriate judicial response is to ensure prioritisation and expedition, not to grant bail in disregard of the statutory mandate. The remedy for stagnation lies in calibrated judicial supervision and directions for expeditious progress, not enlargement on bail where the embargo is attracted.
174. The Court accordingly finds that the prosecution material, read cumulatively and taken at face value, discloses reasonable grounds for believing that the accusations against the appellant are *prima*

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facie true. The material relied upon is not confined to abstract ideology. It comprises digital coordination, attribution of planning and mobilisation, presence supported by location records, a protected witness statement describing differentiated chakka jam strategy, and speech material exhorting disruption and choking of essential services.

175. In view of this prima facie satisfaction, the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967 stands attracted. The Court is therefore left with no lawful option but to decline the prayer for bail.
176. For the reasons aforesaid, the appeal preferred by Sharjeel Imam arising out of SLP (Crl.) No. 14030 of 2025 is dismissed. The prayer for bail is rejected.
177. It is clarified that the observations herein are confined to the present stage of consideration under Section 43D(5) of the Act and shall not be construed as an expression on the merits at trial. The Trial Court shall accord due priority to the matter and ensure that the proceedings are carried forward with reasonable expedition.

7. UMAR KHALID – APPELLANT IN SLP (Crl.) 14165 of 2025:**7.1. SUBMISSION ON BEHALF OF APPELLANT:**

178. Learned Senior Counsel Sri Kapil Sibal, appearing on behalf of the appellant, Umar Khalid, submitted that the prosecution record does not attribute any overt act of violence to the appellant in relation to the incidents that occurred in North-East Delhi between 22.02.2020 and 25.02.2020. It was pointed out that, as borne out from the charge-sheet itself, the appellant was not present in North-East Delhi during the period when violence ensued and, on certain crucial dates, was not even in Delhi. No witness statement places the appellant at the site of any rioting, arson, assault, or destruction of public or private property during the relevant period, nor is any FIR relied upon to attribute such acts to him.
179. It was further submitted that no recoveries whatsoever have been effected from the appellant or at his instance. The record does not disclose recovery of any weapons, arms, ammunition, explosives, inflammable substances, funds, or other incriminating articles. No physical, forensic, or electronic evidence connects the appellant

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with any violent act. Despite registration of a large number of FIRs in connection with the riots, the prosecution has not relied upon any recovery or witness statement from those FIRs to link the appellant with actual violence. Apart from the present FIR, the appellant was arraigned in only one other FIR arising from the same period, in which he was granted bail and subsequently discharged.

180. Learned Senior Counsel submitted that the prosecution alleges criminal conspiracy primarily on the basis of the appellant's alleged participation in meetings and protests and his alleged association with certain WhatsApp groups. It was pointed out that the appellant neither created nor administered the WhatsApp groups relied upon by the prosecution and was not a member of some of the principal groups alleged to have been used for coordination. The record indicates that the appellant did not send any message calling for violence, arson, or unlawful acts. The messages attributed to him are confined to sharing location pins of protest sites on dates when no violence occurred and to communications relating to a call received from a police official. No material on record demonstrates that any decision to commit violence was taken, conveyed, or implemented at the instance of the appellant through such groups.
181. It was further submitted that the prosecution relies upon the alleged presence of the appellant at various meetings and protests held between December 2019 and February 2020. For several such meetings, no supporting witness is cited; for others, the statements relied upon are hearsay in nature or contradicted by the appellant's call detail records. Photographs relied upon by the prosecution show the presence of several persons who have not been arraigned as accused. The record does not disclose any material to show that these meetings involved planning, preparation, or execution of violence or that the appellant exercised any command, control, or direction over participants.
182. Learned Senior Counsel submitted that the only overt act specifically attributed to the appellant is a public speech delivered by him at Amravati on 17.02.2020. The transcript of the speech, as placed on record, contains repeated references to non-violence, civil disobedience, non-cooperation, constitutional methods of protest, and Gandhian principles. The speech does not exhort violence, destruction of property, or unlawful action. The prosecution record

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does not disclose any material establishing a proximate or causal nexus between the said speech and the incidents of violence that occurred in Delhi several days later.

183. It was lastly submitted that, on facts, the prosecution seeks to invoke Sections 15, 16 and 18 of the UAPA by treating the appellant's speech, meeting participation, and protest activity as constituting a "terrorist act", without alleging use of bombs, explosives, firearms, hazardous substances, or any other lethal means enumerated in Section 15. The record reflects that the prosecution relies solely on the residual expression "by any other means of whatever nature" to bring the appellant's acts within the definition of a terrorist act. No factual material is placed on record to show that the appellant caused, attempted to cause, or intended to cause death, injuries, destruction of property, or disruption of essential services by any violent or hazardous means. Apart from speech, association, and alleged presence, no factual act is attributed to the appellant to demonstrate commission of offences under Chapter IV of the UAPA.

7.2. SUBMISSIONS ON BEHALF OF RESPONDENT:

184. Learned ASG Sri S.V. Raju appearing for the respondent submitted that the prosecution case, read as a whole, discloses the active and central role of the appellant, Umar Khalid, in a larger criminal conspiracy which culminated in widespread violence, disruption of essential services, and communal riots in North-East Delhi. It was contended that the case against the appellant does not rest on isolated incidents or stray speeches, but on a continuous and coordinated course of conduct beginning from December 2019, involving meetings, organisational planning, mobilisation, and execution of a strategy of "chakka jam" distinct from peaceful protest, with the deliberate object of escalating tensions and paralysing the city.
185. It was submitted that the appellant was not a peripheral participant but an ideologue and organiser who conceptualised and propagated the strategy of "chakka jam", differentiating it from a conventional dharna. Reliance was placed on statements of protected witnesses recorded under Section 164 Cr.P.C., electronic records, photographs, and call detail records, which prima facie show that the appellant directed and guided co-accused persons including Sharjeel

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Imam, Asif Iqbal Tanha and Saiful Islam. The State submitted that meetings held at Jangpura, Jamia, Shaheen Bagh, Indian Social Institute, Gandhi Peace Foundation and Seelampur demonstrate sustained involvement of the appellant in planning and coordination, including the creation of protest committees, WhatsApp groups, and mobilisation teams operating across multiple locations in Delhi.

186. Learned ASG Sri S.V. Raju further submitted that the appellant's role extended beyond ideological advocacy to operational coordination. The prosecution relies upon evidence indicating that protest sites were deliberately expanded, made permanent on a 24x7 basis, and strategically located at arterial roads and sensitive areas. It was contended that WhatsApp groups such as DPSG, JCC, and Jamia Awareness Campaign Team were used to disseminate instructions, coordinate sites, and ensure uniform execution of decisions taken at higher levels. The appellant, it was submitted, was a member of, and exercised influence over, these groups, with witnesses stating that decisions were taken at his instance and subsequently ratified by ground-level organisers.
187. The State submitted that the appellant's presence at Jamia on 13.12.2019 and 15.12.2019 coincided with incidents of violence resulting in injuries to police personnel and civilians and damage to public and private property. Call detail records were relied upon to establish his presence in the area at relevant times. It was contended that witness statements attribute to the appellant directions to initiate chakka jam at Jamia Gate No. 7 and Shaheen Bagh, and to expand such activity to other Muslim-dominated areas. The prosecution further relies upon meetings at Shaheen Bagh and Seelampur where, according to protected witnesses, instructions were issued to mobilise women, stockpile materials such as stones, bottles, acids and chilli powder, and prepare for escalation at an opportune moment.
188. Learned ASG Sri S.V. Raju submitted that the appellant's speech delivered at Amravati on 17.02.2020 forms part of this larger factual matrix. The State contended that the speech cannot be viewed in isolation, but must be read in conjunction with prior meetings, subsequent coordination, and the timing of events. It was urged that the speech, delivered without requisite permission, called for nationwide disruption, invocation of civil disobedience, and

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collective defiance, which, when coupled with the contemporaneous conspiracy and subsequent violence, prima facie establishes intentional incitement and preparation. The State submitted that the speech reinforced the operational strategy already put in motion.

189. It was further submitted that the offences invoked under Sections 15, 16 and 18 of the Unlawful Activities (Prevention) Act are attracted not merely by use of weapons or explosives, but also by acts intended to threaten the unity, integrity, security and economic stability of the nation, including by disruption of essential services and creation of widespread fear. The prosecution contended that the deliberate blocking of roads, mobilisation at sensitive sites, coordination across districts, and incitement to escalate protests into violent confrontation constitute, at the prima facie stage, acts falling within the expansive definition of a terrorist act under Section 15, particularly when read with the expression “by any other means of whatever nature”.
190. Learned ASG Sri S.V. Raju lastly submitted that the appellant’s role cannot be assessed in isolation from the collective conduct of the conspiracy. It was urged that absence of direct recovery or individual acts of violence is not determinative at this stage, as conspiracy by its very nature operates through division of roles. The State contended that the prosecution material, when taken cumulatively and at face value, discloses reasonable grounds for believing that the accusations against the appellant are prima facie true, and that the statutory bar under Section 43D(5) stands attracted.

7.3. FINDINGS OF THE TRIAL COURT:

191. The Trial Court vide order dated 28.05.2024, rejected the second bail application (***IA No. Bail Application Registration No. 441/2024 in SC No. 163/2020***) filed by the appellant primarily on the ground that no genuine change in circumstances had been shown since the rejection of the first bail application vide order dated: 24.03.2022, ***I.A. No. 92/2021 in SC No. 163/2020***. Although the appellant asserted change in circumstances, the Court noted that none were specifically pleaded or substantiated. Withdrawal of the SLP before the Supreme Court on the ground of “change in circumstances” did not, by itself, create a fresh cause for reconsideration of bail, especially when earlier findings had attained finality.

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192. The plea of delay in trial and prolonged incarceration was also rejected. The Court found that there was no delay attributable to the prosecution rather, proceedings were held up due to objections and applications moved by the accused persons themselves. Relying on recent Supreme Court precedent, the Court held that in cases under the UAPA, delay alone cannot justify grant of bail considering the gravity of the offences and the restrictive statutory framework.
193. The Court further held that reliance on ***Vernon v. State of Maharashtra*** did not advance the appellant's case. It observed that the judgment did not dilute the embargo under Section 43D(5) UAPA and that the Delhi High Court, while dismissing the earlier appeal, had already carried out the required "surface analysis" of the probative value of evidence and concluded that the accusations against the appellant were prima facie true. Subsequent Supreme Court judgments had reaffirmed the law laid down in ***Watali*** and ***Gurvinder Singh***.
194. Finally, the Court held that it was bound by the concurrent findings of the Trial Court and the Delhi High Court rejecting bail, which had attained finality after withdrawal of proceedings before the Supreme Court. The plea of parity with co-accused was rejected, as the appellant's role had already been independently examined and distinguished. In view of the statutory bar under Section 43D(5) UAPA and the prima facie findings on record, the Court found no merit in the application and dismissed it.

7.4. FINDINGS OF THE HIGH COURT:

195. The Court held that the prosecution material, taken cumulatively, disclosed prima facie involvement of Umar Khalid as a key conspirator and mobiliser in the larger conspiracy that culminated in the February 2020 Delhi riots. It was noted that he allegedly played a central role in conceptualising and directing mass mobilisation against the CAA/NRC through coordinated meetings, formation and control of multiple WhatsApp groups (including JCC and DPSG), and delivery of speeches at various locations. The Court found that the prosecution narrative attributed to him a leadership role in escalating protests into disruptive chakka-jaams and, thereafter, into violence, including alleged directions to intensify agitation during strategically sensitive periods. At the bail stage, the Court emphasised that conspiracy must be assessed holistically and not by isolating individual acts or speeches.

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196. Applying the statutory embargo under Section 43D(5) of the UAPA, the Court held that there were reasonable grounds for believing that the accusations against Umar Khalid were prima facie true, thereby barring the grant of bail. The pleas of protected speech, absence from riot sites, lack of recoveries, parity with co-accused, change in circumstances, and prolonged incarceration were rejected. The Court clarified that the bail orders granted to other co-accused were expressly directed by the Supreme Court not to operate as precedents and that Umar Khalid's alleged role was qualitatively graver. Issues relating to credibility of witnesses, admissibility of evidence, and interpretation of speeches were held to be matters for trial, leading to dismissal of the bail appeal.

7.5. DISCUSSION ON ROLE AND FINDINGS:

197. Umar Khalid is described in the FIR as the principal conspirator behind the larger conspiracy which, according to the prosecution, culminated in the riots during the last week of February 2020. The charge-sheet alleges that Umar Khalid progressed from being a propagator of the slogan "Bharat Tere Tukde Honge, Insha Allah Insha Allah" to playing a central role in the formulation and execution of the present criminal conspiracy, which is alleged to constitute a terrorist act. The first overt act attributed to Umar Khalid, as per the charge-sheet, is stated to have occurred on 05.12.2019, when, acting on his directions, Sharjeel Imam created the WhatsApp group Muslim Students of JNU (MSJ). It is further alleged that Umar Khalid participated in the protest held on 07.12.2019 at Jantar Mantar, where he, along with Yogendra Yadav and Sharjeel Imam, purportedly agreed to utilise social media as a platform for large-scale indoctrination and mobilisation of youth for the purpose of enforcing a "Chakka Jam" as a mode of protest against the Citizenship Amendment Act.
198. On 08.12.2019, Umar Khalid is alleged to have attended a meeting held at premises bearing No. 6/6, Jangpura Extension, Delhi. The said meeting, which was led by Yogendra Yadav, is stated in the charge-sheet to have resulted in a decision to further the alleged conspiracy of enforcing "Chakka Jams" with the objective of engineering riots. The charge-sheet is stated to contain a photograph of the meeting attended by Umar Khalid on 08.12.2019 at the aforesaid premises. After the conclusion of the meeting, a

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WhatsApp group titled “CAB Team” was allegedly created for the purpose of organising anti-CAA protests and for mass mobilisation of the Muslim community. In furtherance of the discussions held in the said group, a protest is stated to have taken place on 10.12.2019 at Jantar Mantar, Delhi, which was also attended by Umar Khalid.

199. On 13.12.2019, in furtherance of the alleged conspiracy, Sharjeel Imam is stated to have been introduced by Umar Khalid to students of Jamia Millia Islamia University. It is further alleged that Umar Khalid stated that he had explained to Sharjeel Imam the distinction between a dharna and a chakka jam, and that, at the relevant point of time, they were planning to enforce chakka jams across Delhi with the stated objective of overthrowing the Government, which, according to the prosecution, was described by them as a “Hindu Government” acting against the Muslim community. Umar Khalid is further alleged to have directed Sharjeel Imam, Saif-ul-Islam, and Asif Iqbal Tanha to initiate a chakka jam at Gate No. 7 of Jamia Millia Islamia University and to have instructed Sharjeel Imam to commence a chakka jam at Shaheen Bagh.
200. On 15.12.2019, Umar Khalid is alleged to have visited Jamia Millia Islamia University in furtherance of the common conspiracy. At Jamia, he is stated to have instigated a gathering of local students, which allegedly culminated in rioting. Thereafter, Sharjeel Imam, acting on the directions of Umar Khalid, is alleged to have moved to Shaheen Bagh and blocked Road No. 13 at Shaheen Bagh. On 16.12.2019, Umar Khalid is further alleged to have directed Asif Iqbal Tanha and Saif-ul-Islam to constitute a student body for organising anti-CAA/ NRC protests at Jamia in a planned and organised manner. On 17.12.2019, in furtherance of the alleged conspiracy and on the directions of Umar Khalid, students of Jamia Millia Islamia University, including other appellants herein, namely Shifa-ur-Rehman and Meeran Haider, are stated to have gathered at Gate No. 7 of the University. On further directions of Umar Khalid and Nadeem Khan, the Jamia Coordination Committee (JCC) is alleged to have been formed by Asif Iqbal Tanha and Saiful Islam. The charge-sheet describes the JCC as the brainchild of Umar Khalid and Nadeem Khan, allegedly created to mobilise a larger number of students for the protests. On 19.12.2019, a protest march organised by “Hum Bharat Ke Log” (Swaraj Abhiyan and United Against Hate) from the Red Fort to Shaheed Park, ITO, and a separate protest march

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organised by Left parties at Mandi House, allegedly took place. Despite denial of permission and imposition of prohibitory orders under Section 144 CrPC in the area, Umar Khalid, Yogendra Yadav, and others are stated to have participated in the protest march and were detained along with 293 other persons.

201. On 20.12.2019, Saif-ul-Islam and Asif Iqbal Tanha are alleged to have constituted another committee, namely the Jamia Awareness Campaign Team (JACT), on the directions of Umar Khalid, with the stated objective of maximising mobilisation of the Muslim population in Muslim-dominated areas of Delhi for establishing 24x7 protest sites aimed at enforcing "Chakka Jams". As per the statements of protected witnesses, Umar Khalid, along with Nadeem Khan, is alleged to have directed one Amanullah to visit Muslim-dominated localities and mobilise residents for the protests, while also encouraging greater participation of women and children, with the purported intent that the presence of women and children would deter the police from dismantling the protest sites. It is further alleged that on 26.12.2019, a meeting was held at the Indian Social Institute, Lodhi Colony, which was attended by Umar Khalid and others, in continuation of the alleged conspiracy. Subsequently, on 28.12.2019, another WhatsApp group titled Delhi Protest Support Group (DPSG) was created for the purpose of disseminating decisions taken by its members among organisers of various protest sites for execution of the alleged conspiracy. Umar Khalid is stated to have been a member of the said group.
202. On 02.01.2020, a meeting was convened by the administrator of the DPSG, namely Rahul Roy, at the Gandhi Peace Foundation, which was attended by Umar Khalid. As per the charge-sheet, it was reiterated in the said meeting that more protest sites, similar to Shaheen Bagh, be established, with women and children placed at the forefront so as to avoid police action. On 08.01.2020, Khalid Saifi, associated with DPSG and United Against Hate (UAH), is alleged to have organised a meeting at the office of the Popular Front of India (PFI) at Shaheen Bagh, which was attended by Umar Khalid and Tahir Hussain. The charge-sheet relies upon chats dated 20.01.2020 and 21.01.2020 exchanged in the DPSG group, which are stated to have led to the creation of three 24x7 sitting protest sites, with Umar Khalid and Nadeem Khan allegedly exercising control over the said sites. On 23.01.2020 and 24.01.2020, in

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furtherance of the alleged conspiracy, Umar Khalid is stated to have visited the Seelampur protest site and addressed the gathering assembled there. Thereafter, he is alleged to have held a clandestine meeting with Natasha Narwal, Devangana Kalita, Tasleem, and others, during which, according to the prosecution, Umar Khalid instigated local women of Seelampur to stockpile knives, bottles, acid, stones, chilli powder, and other dangerous articles with the intent to engineer riots. Statements of protected witnesses have been relied upon in the charge-sheet in respect of the meeting allegedly held on 23.01.2020.

203. The charge-sheet further alleges that Umar Khalid attended a meeting organised by the Welfare Party of India (WPI) at Jantar Mantar, Delhi, on 10.02.2019. In the said meeting, Umar Khalid is alleged to have instructed residents of Jahangirpuri to instigate illegal Bangladeshi residents of the area to participate in the activities forming part of the alleged conspiracy.
204. On 17.02.2020, Umar Khalid is alleged, as per the charge-sheet, to have delivered a provocative speech at Amaravati, Maharashtra. It is stated that although he was not among the persons permitted to address the gathering, he nevertheless made a speech. In the said speech, he is alleged to have exhorted people to take to the streets and to demonstrate, during the visit of the then President of the United States of America, Donald Trump, what was portrayed as the ill-treatment of minorities by the Government of India.
205. The charge-sheet further alleges that on 22.02.2020 and 23.02.2020, acting upon the speeches of Umar Khalid and in accordance with the directions issued by him and other alleged executors of the conspiracy, protesters under the guise of women-led 24x7 sit-in protests near Madina Masjid, Seelampur, moved and occupied the 66 Foot Road near Jafrabad Metro Station, thereby completely blocking traffic, constituting a “Chakka Jam”. Thereafter, in pursuance of and in furtherance of the common conspiracy, on 23.02.2020, protesters from other protest sites in North-East Delhi and other parts of the city are alleged to have moved from their respective sites to pre-decided points on major roads and blocked, or attempted to block, traffic entirely, thereby enforcing coordinated chakka jams. The charge-sheet states that these blockade points were strategically selected so as to effect a simultaneous and coordinated

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traffic paralysis across large parts of the city. According to the prosecution, the intent behind these blockades “was not to create traffic chaos but to ensure communal skirmish, as is evident from the movement from predominantly minority clusters, where 24x7 sit-in dharnas were being held, to areas of mixed population for causing the chakka jam.”

206. On 23.02.2020, it is alleged in the charge-sheet that protesters from various sites moved in a coordinated manner to pre-designated locations to block traffic across the city. In furtherance of the common conspiracy, and subsequent to the enforcement of the chakka jams, the conspirators are alleged to have launched attacks on police personnel and non-Muslims, and to have caused extensive damage to government and private property through arson, vandalism, and other violent acts, thereby engineering large-scale riots. The charge-sheet alleges that firearms, petrol bombs, acid, sharp-edged weapons, iron rods, sticks, stones hurled through pre-fabricated large-sized slingshots, and other means were employed to attack and kill police personnel, government employees, and members of the public. It is further alleged that a petrol pump was set ablaze in an attempt to cause a large-scale explosion, which could have resulted in mass casualties and created widespread terror. Access to essential services, including hospitals, medical stores, the Delhi Metro Rail Corporation (DMRC), other public transport systems, schools, colleges, and universities, is stated to have been severely disrupted, leading to the postponement of board examinations and deprivation of essential supplies to the general public.
207. The charge-sheet further states that on 24.02.2020, disillusioned by the scale and magnitude of the violence unleashed by the key conspirators, certain members of the DPSG WhatsApp group threatened to expose all those responsible for the riots. According to the prosecution, several telephonic conversations took place between Umar Khalid and Nadeem Khan during this period. Among these, reliance is placed on a call between Jahanvi Mittal and Tabrez, wherein Jahanvi Mittal is alleged to have warned Tabrez who had allegedly arranged the presence of approximately 300 women protesters to maintain silence regarding the transportation of women from Jahangirpuri to Seelampur–Jafrabad and their alleged participation in the riots on the previous day. The cumulative effect of these communications, as per the charge-sheet, is stated to indicate

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that the conspirators, having panicked due to the conduct of certain members of their group, decided to adopt what is described as an “ultimate guerrilla strategy” of attributing the violence and resultant carnage to law enforcement agencies.

208. The charge-sheet ultimately attributes the orchestration of the protests and the resultant riots to Umar Khalid, describing him as the principal architect of the events that unfolded.
209. The appellant presses, in substance, three propositions: first, that no overt act of violence is attributed to him and no recoveries have been effected; second, that his alleged presence in meetings, association with groups, and a speech at Amravati cannot be transmuted into offences under Chapters IV and VI of the UAPA; and third, that the prosecution case is an impermissible conflation of protest with terrorism. These submissions are framed with care. Yet they must be tested against the only inquiry open to this Court at this stage: whether the prosecution material, taken as it stands and read cumulatively, furnishes reasonable grounds for believing that the accusations against the appellant are *prima facie* true, thereby attracting the statutory restraint under Section 43D(5).
210. Two foundational clarifications are necessary. One, the Court is not assessing whether the prosecution will ultimately succeed; it is assessing whether the prosecution case, as presented, crosses the statutory threshold at the bail stage. Two, conspiracy cases, particularly those alleged to unfold in phases, do not disclose themselves through a single piece of evidence; they are built through a chain of circumstances, organisational decisions, communications, and role allocation. The law does not demand that every conspirator execute the terminal act; it demands a *prima facie* nexus between the accused and the unlawful design, inferred from cumulative conduct.
211. The prosecution narrative, as pleaded, is not episodic. It is architectural. It asserts a phased progression: mobilisation and indoctrination; institutionalisation through committees and digital platforms; expansion of protest sites into permanent blockades; preparation for escalation; and culmination in coordinated chakka jams and widespread violence. The role attributed to Umar Khalid is not of a late entrant nor of a peripheral sympathiser. It is that of an organiser and coordinator who, according to the prosecution, supplied the “method”, the “timing”, and the “linkage” between dispersed sites and actors.

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212. The factual record placed by the prosecution repeatedly returns to a distinction that is central to the case: the differentiation between a conventional dharna and a chakka jam. This is not treated as semantics. It is treated as strategy. A dharna may be expressive; a chakka jam, as alleged, is disruptive by design. The prosecution case is that the sustained choking of arterial roads, replication of blockade sites, and the movement of crowds from minority clusters into mixed-population areas were not accidental expressions of dissent, but calibrated acts meant to generate confrontation, overwhelm law enforcement, and create conditions for violence.
213. It is in this backdrop that the material regarding 13.12.2019 at Jamia is relied upon. The prosecution relies upon a protected witness statement that the appellant explained the distinction between dharna and chakka jam, projected certain co-accused as his “team”, and issued directions for initiation of chakka jam at Gate No. 7 of Jamia and at Shaheen Bagh, with an express reference to expansion “at the right time”. At this stage, the Court does not test whether the witness is truthful; it tests whether, if the statement is taken at face value, it links the appellant to the alleged design in a meaningful manner. It does. It is not a statement of mere association; it is a statement of direction and role allocation.
214. The appellant urges that he was not present at riot sites in the critical period. That submission, even if assumed correct, does not answer the prosecution case, because the prosecution does not pitch him as an executor of the terminal violence; it pitches him as a person involved in shaping the method and seeding the strategy earlier. In a phased conspiracy, physical absence at the final scene is not the end of the inquiry; it may, at best, shift the inquiry upstream, to see whether the accused is linked to the preparatory and coordinating stages.
215. The appellant emphasises lack of recoveries, absence of weapons, and absence of forensic linkage. In ordinary IPC bail jurisprudence, these factors often have weight. Under a special statute alleging a wider conspiracy with distributed roles, these factors cannot be made decisive. A conspiracy organiser may leave no recoveries because the organisers do not carry the instruments that the executors use. If recoveries were treated as a universal requirement, conspiracy cases would be structurally immunised at the bail stage for those who organise rather than execute. The statute does not contemplate such a result.

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216. The law does not require the prosecution to demonstrate, at the bail stage, that the accused personally caused death or destruction, or personally stocked explosives, before Section 43D(5) can apply. It requires the Court to see whether the material discloses a prima facie case of involvement in the unlawful activity alleged. Here, the prosecution material is pressed to show that the appellant's role is traced through meetings, committees, instructions, coordination mechanisms, and alleged preparation for escalation. If that chain is prima facie visible, the absence of recoveries does not break it.
217. The appellant's submissions treat meetings as innocuous, and committees as routine protest organisation. The prosecution case treats them as the infrastructure of the conspiracy. The Court must therefore ask: does the material suggest continuity of role across time, rather than episodic presence? The charge-sheet material, as summarised in the accused-wise narrative already set out, places the appellant at repeated decision points: the Jangpura meeting of 08.12.2019; the Jamia phase of mid-December; the formation and functioning of JCC/JACT as mobilisation structures; the creation and operation of DPSG as a dissemination mechanism; the meetings at ISI, Gandhi Peace Foundation and Shaheen Bagh; and the January Seelampur phase alleged to involve preparation for escalation.
218. At this stage, the Court does not decide whether each meeting was conspiratorial. But where multiple meetings across weeks and months are alleged, and where witness material and electronic records are pressed to place the same accused at several of these junctures, the Court is entitled to view continuity itself as a relevant circumstance. Continuity is the difference between a participant and an organiser in the prosecution narrative.
219. The appellant says he did not create certain WhatsApp groups. That may be ultimately matter of trial. At the bail stage, it is not determinative. The prosecution does not allege that guilt arises from creating a group; it alleges that groups functioned as coordination platforms through which decisions taken at higher level were transmitted to multiple sites for execution. Membership, participation, and the alleged influence exercised through or around such platforms is what the prosecution presses.
220. The record, as placed, indicates that the appellant is shown as a member of DPSG and that protected witness material speaks to

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the coordinating character of such groups. Whether the appellant sent incriminating messages is not the only relevant factor. In a coordination structure, some speak, others steer. A conspirator's role may be inferred from where he is placed in the architecture, not only from what he typed in a chat window.

221. The appellant places heavy reliance on the Amravati speech, urging that it repeatedly invokes non-violence and constitutional protest. The prosecution urges that the speech forms part of a larger matrix of mobilisation and was delivered in temporal proximity to the culminating phase. At this stage, the Court must resist from committing two errors. The first is to criminalise speech merely because it is politically charged. The second is to immunise a continuing course of conduct merely because it contains language of non-violence.
222. In conspiracy jurisprudence, outward disavowal and inward design may co-exist; public caution does not necessarily negate private preparation. That is why the law insists on cumulative assessment. The speech, in isolation, cannot decide the case. Equally, the speech cannot be extracted from the timeline and used as a complete answer to allegations of meetings, directions, and preparatory acts alleged over months. The Court therefore treats the speech as one circumstance in a chain, to be evaluated with other material, not as a standalone verdict of innocence or guilt.
223. The prosecution case places emphasis on “timing” and “trigger”. It alleges that sustained blockades were designed to mature into a coordinated paralysis across the city, and that the Jafrabad blockade and movement to strategic points occurred on 22–23 February in a synchronised manner. It further alleges that the escalation into violence was not incidental but contemplated. The appellant's absence from the riot scene therefore does not end the inquiry; the inquiry shifts to whether the prosecution material *prima facie* links him to the strategy that was executed when the “right time” arrived.
224. At this stage, the charge-sheet narrative and the protected witness statements relied upon are pressed to show that the appellant was engaged at earlier phases in shaping the method and expanding the sites, and that preparatory discussions in January included alleged directions for stockpiling and readiness for escalation. The

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Court cannot pronounce on their truth. It can, however, record that such material, if accepted as the prosecution places it, links the appellant to the alleged design and the timing of its culmination.

225. The appellant urges that continued incarceration is oppressive. This Court has already addressed delay as a constitutional concern and has indicated that the remedy for stagnation lies in judicial supervision and expedition, not automatic enlargement on bail. In the case of the present appellant, the record also discloses that his earlier bail rejection has been subjected to judicial scrutiny and has not been displaced by any subsequent event affecting the prosecution's core attribution. When a statute imposes a high threshold and the case is conspiracy-centric, repeated bail reconsideration on the same material is not the norm. A meaningful change in circumstances must be shown. Save delay, which has been addressed separately, none is shown.
226. Delay can warrant a more searching constitutional scrutiny. But it does not authorise the Court to dilute the statutory threshold by undertaking credibility findings. The balance must be maintained: constitutional concern is real, but statutory restraint is equally real. Where the *prima facie* threshold continues to be crossed, delay is met through expeditious trial directions and continued judicial monitoring, not by negating Section 43D(5).
227. It is necessary, at this juncture, to clarify the juridical distinction between ordinary public disorder, which may arise even in the course of legitimate protest, and the prosecution's pleaded case of systemic disruption. Not every disruption of traffic, not every blockade, and not every law-and-order incident engages the statutory framework of the UAPA. The statute is attracted only where the conduct alleged, taken cumulatively, is capable of being understood as threatening the unity, integrity, security, or sovereignty of the nation, or as creating a climate of fear and paralysis transcending ordinary disorder.
228. The prosecution case, as placed before this Court, does not proceed on the footing that the protests merely inconvenienced commuters or strained policing resources. It proceeds on the footing that a deliberate method of agitation was conceived and executed, namely sustained and replicated "chakka jams" at strategically selected

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arterial locations, with the object of choking movement across the National Capital, disrupting essential services, and overwhelming the administrative capacity of the State.

229. The factual narrative placed on record repeatedly emphasises that the blockade points were not randomly selected. The prosecution alleges that they were deliberately located so as to (i) cut off major transit routes, (ii) bring protest activity from minority-dominated clusters into areas of mixed population, and (iii) ensure that disruption was not localised but city-wide. The pleaded movement of protesters from established sit-in sites to pre-designated choke points across North-East Delhi on 22nd and 23rd February 2020 is pressed as evidence of this systemic design.
230. At the bail stage, the Court does not pronounce on whether this design is ultimately proved. It asks whether the prosecution material, taken at face value, supports the allegation that the disruption was not episodic, but coordinated, sustained, and scalable. When viewed through that lens, the allegations of meetings, directions, replication of protest sites, and synchronised movement across locations assume a significance distinct from ordinary protest activity.
231. The Court is therefore unable, at this stage, to accept the characterisation of the events as mere public disorder incidental to protest. The prosecution case, as pleaded, is that the blockade strategy itself was the instrument of coercion, designed to paralyse civic life and generate confrontation. That distinction is material at the stage of applying Section 43D(5).
232. A further dimension of the prosecution case concerns communal harmony, which lies at the heart of public order in a plural society. The prosecution does not merely allege that violence occurred in areas of mixed population. It alleges that the movement of protest activity into such areas was itself deliberate, with the intent to trigger confrontation and skirmish.
233. The factual narrative already set out records the prosecution's assertion that protesters moved from predominantly minority clusters, where 24x7 sit-in protests were being held, into mixed-population areas at pre-selected times and locations. This movement is alleged to have been accompanied by stockpiling of potentially

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harmful materials, as per protected witness statements, and by preparations to escalate confrontation when police intervention or counter-mobilisation occurred.

234. At the bail stage, the Court cannot test whether the protected witness statements regarding stockpiling or inducement of local residents will ultimately withstand scrutiny. What the Court can do is to examine whether, if those statements are accepted as they stand, they support an allegation that the agitation was not confined to symbolic protest, but contemplated engineered confrontation along communal fault lines.
235. The prosecution case, taken cumulatively, pleads precisely this: that the blockade strategy was designed not merely to inconvenience, but to provoke, to polarise, and to create a breakdown of communal peace. Where such an allegation is supported, at least *prima facie*, by statements, chronology, and alleged coordination, the Court cannot trivialise it as an inevitable by-product of protest.
236. It is this pleaded design to fracture communal harmony, rather than the expression of dissent *per se*, which distinguishes the prosecution case from a narrative of innocent protest. Whether that design is ultimately proved is a matter for trial. Its *prima facie* articulation is sufficient to inform the bail-stage inquiry.
237. The prosecution further places the events within a broader security context. It alleges that the sustained and coordinated disruption of major arterial routes, combined with the timing of escalation, was intended to create a perception of instability in the National Capital, impair the functioning of essential services, and project an image of administrative paralysis.
238. The factual narrative records allegations of disruption to transport networks, obstruction of access to hospitals and medical facilities, interruption of public transport services including the metro, and interference with the normal functioning of civic institutions. The prosecution also alleges that the timing of escalation was calibrated to coincide with a period of heightened international attention, thereby magnifying the impact of the disruption.
239. At the bail stage, the Court does not determine whether these allegations ultimately satisfy the ingredients of a “terrorist act” under Section 15. What the Court examines is whether the prosecution

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has pleaded a case that goes beyond localised violence or protest-related disorder, and whether the alleged acts are capable, at least prima facie, of engaging the statutory conception of threats to security and public order at a national level.

240. When sustained blockades are alleged to be executed across multiple locations, when essential civic life is alleged to be paralysed, and when violence is alleged to erupt in a coordinated manner following such blockades, the Court cannot, at this stage, rule out the applicability of the statutory framework merely because the acts are couched in the language of protest.
241. The appellant has urged that his conduct must be viewed through the prism of political dissent and constitutional protest. This Court reiterates that dissent and protest occupy a protected space in a constitutional democracy. That protection, however, does not extend to a pleaded design which, if accepted as true, involves systemic disruption, engineered confrontation, and preparatory steps towards violence.
242. The prosecution does not rely on a single speech, a single meeting, or a single blockade. It relies on a course of conduct, spread over weeks, involving repeated meetings, formation of coordinating bodies, issuance of directions, and alleged preparations for escalation. The Court cannot, at the bail stage, segregate this course of conduct into isolated benign fragments and assess each in abstraction.
243. To do so would amount to substituting a compartmentalised analysis for the cumulative approach mandated by law in conspiracy cases, particularly under a special statute. The correct inquiry is whether the material, taken as a whole, discloses a prima facie case that the accused was part of an agreement or design to engage in unlawful activity of the nature alleged. On the prosecution material placed before us, that inquiry must be answered in the affirmative.
244. Having regard to the prosecution material as placed, including the chronology of meetings, the alleged articulation and propagation of the chakka jam strategy, the operation of coordinating committees and groups, the protected witness statements alleging preparatory and escalation-related discussions, the pleaded movement of protest activity into mixed-population zones, and the alleged systemic

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disruption of civic life in the National Capital, this Court is satisfied that reasonable grounds exist for believing that the accusations against Umar Khalid are *prima facie* true.

245. The defence submissions, though weighty and articulated with care, would require this Court to adjudicate upon credibility, resolve factual disputes, and choose between competing inferences. That exercise lies beyond the permissible limits of a bail inquiry under Section 43D(5).
246. The statutory embargo is therefore attracted. The appeal filed by Umar Khalid in SLP (Crl.) No. 14165 of 2025 is dismissed. The prayer for bail is rejected.
247. It is clarified that the observations herein are confined to the consideration of bail and shall not influence the Trial Court in the adjudication of the matter on merits. The Trial Court shall endeavour to proceed with the trial expeditiously.

8. SHIFA UR REHMAN – APPELLANT IN SLP (Crl.) 14859 of 2025

8.1. SUBMISSIONS ON BEHALF OF THE APPELLANT:

248. Learned Senior Counsel Sri Salman Khurshid for the appellant submitted that the impugned judgment dated 02.09.2025, whereby the High Court declined to enlarge the appellant on bail, suffers from a fundamental infirmity inasmuch as it overlooks the undisputed fact that the appellant has been in continuous custody since 26.04.2020. It was urged that the appellant has already undergone more than five years and six months of pre-trial incarceration, while the trial has not progressed beyond the stage of framing of charges. Learned senior counsel submitted that the prosecution case rests on an extraordinarily voluminous record, consisting of a main charge-sheet and two supplementary charge-sheets running into more than twenty thousand pages, with several hundred witnesses cited, rendering the likelihood of an early conclusion of trial wholly illusory. It was contended that the prolonged incarceration of the appellant, in such circumstances, assumes a punitive character and offends the guarantee of personal liberty under Article 21 of the Constitution.
249. Learned Senior Counsel further submitted that the appellant is a person of clean antecedents and has never misused the liberty

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granted to him. Attention was invited to the fact that the appellant was granted interim bail on two occasions by the Special Court, on 25.11.2023 and 11.11.2024, and on both occasions he surrendered within time and strictly complied with all conditions imposed. It was emphasized that there is not even an allegation that the appellant attempted to abscond, tamper with evidence, or influence witnesses. Learned senior counsel submitted that the appellant did not contribute to the delay in the proceedings, having concluded his arguments on charge in a single sitting and having not sought unrelayed documents, and therefore, continued detention cannot be justified on grounds traditionally recognised in bail jurisprudence.

250. It was then submitted that even on a prima facie appreciation of the prosecution material, the essential ingredients of the offences under Sections 2(o) and 15 of the Unlawful Activities (Prevention) Act are not made out qua the appellant. Learned senior counsel submitted that the appellant is not a member of the DPSG WhatsApp group, which forms the fulcrum of the alleged conspiracy. His inclusion in one JCC group was, at best, incidental and subject to a clear restriction that alumni members would neither chair meetings nor speak. It was contended that there is no material to indicate that the appellant incited violence, facilitated riots, or indulged in any act intended to threaten the unity, integrity, or sovereignty of the nation, and that participation in protests against a parliamentary enactment, by itself, cannot be elevated to the level of terrorist activity.
251. Learned Senior Counsel further submitted that the prosecution seeks to sustain continued incarceration of the appellant on the basis of statements recorded under Section 161 CrPC and certain call detail records, which, at this stage, do not constitute substantive evidence. It was urged that even the statements of protected witnesses, read in their entirety, do not attribute any specific overt act of violence, financing, or conspiratorial role to the appellant. With regard to the allegation of a meeting dated 22.02.2020 at the AAJMI office, learned senior counsel submitted that the material does not establish either the presence or the participation of the appellant, as the statements refer generally to “office bearers” without singling him out.
252. It was lastly submitted that the principle of parity has been completely overlooked by the High Court. Learned senior counsel pointed out that co-accused, against whom allegations of equal or greater

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gravity were levelled, have been enlarged on bail, and that the role attributed to the appellant is neither distinguishable nor more serious so as to warrant continued detention. It was urged that denial of bail to the appellant alone, despite prolonged incarceration and parity with similarly placed co-accused, results in manifest inequality and is contrary to the settled principles governing bail under Article 21.

253. In conclusion, learned Senior Counsel submitted that statutory rigours cannot be permitted to eclipse constitutional guarantees, particularly where incarceration has become unduly long and the conclusion of trial is not foreseeable in the near future. It was urged that the appellant is the sole breadwinner of his family, comprising his elderly mother, wife, and two young children, and that continued detention would cause irreparable hardship without advancing the ends of justice. Learned Senior Counsel therefore prayed that this Court may be pleased to interfere with the impugned order and enlarge the appellant on bail on such terms and conditions as may be deemed appropriate.

8.2. SUBMISSIONS ON BEHALF OF THE RESPONDENT:

254. Learned ASG Sri S.V. Raju for the State submitted that the present case does not concern a mere protest or dissent, but a carefully planned and executed criminal conspiracy which culminated in large-scale violence, arson, and loss of life during the North-East Delhi riots of February 2020. It was urged that the appellant, Shifa-ur-Rehman, was not a peripheral or incidental participant, but played a significant and decisive role in furtherance of the conspiracy. The State submitted that the impugned order correctly appreciates the gravity of the offences, the nature of the allegations, and the material collected during investigation, and therefore does not warrant interference.
255. Learned ASG Sri S.V. Raju further submitted that the appellant, being the President of the Alumni Association of Jamia Millia Islamia and a member of the Jamia Coordination Committee, functioned as a key financier and logistic facilitator of the protest sites which were subsequently escalated into violent “Chakka Jaam” and riot situations. Statements of several protected witnesses recorded under Section 164 CrPC consistently disclose that the appellant collected funds in cash, distributed money to organisers and participants, arranged daily wages, and ensured uninterrupted functioning of

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multiple protest sites across Delhi. These acts were not isolated but formed part of a concerted design to sustain and escalate unrest.

256. It was then submitted that the appellant was in continuous coordination with the principal conspirators, including Umar Khalid and other co-accused, during the relevant period. Call detail records and WhatsApp communications placed on record demonstrate sustained contact between the appellant and other conspirators at crucial stages. Learned counsel submitted that secret meetings were held at the AAJMI office, including the meeting dated 22.02.2020, where decisions were taken to intensify protests and trigger violence in North-East Delhi. The appellant's presence and role in these meetings is supported by sworn statements of protected witnesses and corroborative electronic material.
257. Learned ASG Sri S.V. Raju for the State further submitted that the plea of prolonged incarceration cannot be considered divorced from the seriousness of the offences and the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act. At the stage of bail, the Court is only required to assess whether the accusations are prima facie true and not to conduct a detailed evaluation of evidence. The material on record, including witness statements, documentary evidence, recoveries, seizure of fake bills, and evidence of cash transactions routed through the appellant, clearly satisfies the threshold of prima facie involvement. The delay in trial, it was urged, is attributable to the magnitude and complexity of the case involving multiple accused, voluminous records, and hundreds of witnesses.
258. It was also submitted that the plea of parity is misconceived and unsustainable. Bail jurisprudence mandates an assessment of individual role, and parity cannot be claimed mechanically. The appellant's role as the financial backbone of the conspiracy, ensuring funds and logistics for sustained protest and eventual violence, places him in a distinct and graver category. The State submitted that the appellant cannot equate himself with other accused who may have been granted bail on different factual considerations and on materially different roles.
259. Lastly, learned ASG Sri S.V. Raju submitted that the offences alleged strike at the very foundations of public order and societal peace. The riots were not spontaneous but the outcome of a calibrated plan

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executed under the guise of protest, resulting in loss of innocent lives, injuries to police personnel, and widespread destruction of property. Grant of bail in such circumstances would undermine the statutory object of the special enactment and erode public confidence in the administration of justice. The State, therefore, prayed that the appeal be dismissed and the impugned order refusing bail be upheld.

8.3. FINDINGS OF THE TRIAL COURT:

260. The Trial Court vide order dated 07.04.2022, passed in IA. No. 73/2021 in SC 163/2020 dismissed the bail application filed by the Appellant. The Court found that the material placed on record, including the charge-sheet, statements of witnesses recorded under Sections 161 and 164 Cr.P.C., electronic evidence, and WhatsApp chats of coordinated groups, disclosed prima facie involvement of the accused in a deep-rooted and well-orchestrated criminal conspiracy relating to the North-East Delhi riots of February 2020. On a cumulative reading of the prosecution material, the Court held that the protests were not spontaneous but were deliberately planned, escalated into chakka-jam, and thereafter converted into organised violence, including attacks on police personnel and destruction of public and private property.
261. The Trial Court emphasised that at the stage of bail it was not required to undertake a meticulous examination of evidence or conduct a mini-trial. Applying the settled principles governing bail in cases under the Unlawful Activities (Prevention) Act, the Court held that the prosecution material must be taken at face value and assessed in its totality. On such assessment, the Court was satisfied that there existed reasonable grounds for believing that the accusations against the accused were prima facie true, thereby attracting the statutory restrictions on grant of bail.
262. The Trial Court rejected the submissions of the accused based on parity, absence of direct overt acts, and alleged exercise of the right to protest. It held that in a case of conspiracy, individual roles are not to be viewed in isolation and that it is sufficient if the material indicates conscious participation in the common design. The Court further held that claims of peaceful protest and lack of direct violence did not neutralise the prima facie case of involvement in a larger conspiratorial framework leading to riots.

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263. A decisive ground for rejection of bail was the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967, read with the restrictions under Section 437 Cr.P.C. In light of the gravity of the offences, the nature and scale of the alleged conspiracy, and the prima facie satisfaction regarding the accusations, the Trial Court held that it was legally barred from granting bail and accordingly dismissed the bail application.

8.4. FINDINGS OF THE HIGH COURT

264. The High Court in the impugned order held that the prosecution material, taken cumulatively, disclosed prima facie involvement of Shifa-ur-Rehman as a key financier and organiser in the execution of the larger criminal conspiracy culminating in the North-East Delhi riots. Being the President of AAJMI, he was alleged to have misused his position to facilitate and sustain multiple protest sites across Delhi by raising and disbursing funds, including cash transactions, and by allowing AAJMI premises to be used for JCC meetings, planning, and logistical coordination. Witness statements, recoveries of documents, and bank and cash-trail material were held to prima facie indicate that funds were mobilised not merely for peaceful protest but for sustaining chakka-jaams and their escalation. At the bail stage, the Court found that his role as a financial enabler and organiser was integral to the operationalisation of the conspiracy.
265. Applying the statutory embargo under Section 43D(5) of the UAPA, the Court held that there were reasonable grounds to believe that the accusations against Shifa-ur-Rehman were prima facie true, thereby barring bail. The pleas that AAJMI was a lawful organisation, that the funds were used only for legitimate protest expenses, that there was no direct incitement, and that parity existed with co-accused released on bail were rejected. The Court clarified that the role attributed to Shifa-ur-Rehman as a fundraiser and coordinator was qualitatively distinct and more serious, and that questions regarding source, quantum, and use of funds are matters for trial. Consequently, the bail appeal was dismissed.

8.5. DISCUSSION ON ROLE AND FINDINGS:

266. According to the charge-sheet, Shifa-ur-Rehman, stated to be the President of the Alumni Association of Jamia Millia Islamia (AAJMI),

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is alleged to have played an active role in the funding and execution of the riots in Delhi. The charge-sheet alleges that Shifa-ur-Rehman was entrusted with significant responsibilities in furtherance of the alleged conspiracy hatched by Umar Khalid and Sharjeel Imam. It is further alleged that he collected funds and distributed the amounts so collected for the purpose of engaging women, children, and girls to assemble at protest sites, with the intent that the presence of such groups would deter the police from taking stringent action at the protest locations.

267. The charge-sheet further alleges that Shifa-ur-Rehman was closely associated with Umar Khalid, described as the principal conspirator, and that he remained in constant contact with him. It is alleged that Shifa-ur-Rehman also attended secret conspiratorial meetings. The charge-sheet records several instances of fund-raising activities conducted at the office of AAJMI in connection with the protests.
268. It is further alleged that Shifa-ur-Rehman, along with other co-accused, was instrumental in the establishment of 24x7 protest sites. According to the charge-sheet, he regularly visited these protest sites and instigated participants to organise chakka jams under the guise of peaceful protests. Call Detail Records (CDRs) are relied upon to assert his frequent presence at the protest sites.
269. Statements of protected witnesses “Alpha”, “Bond”, “James”, and “Hector” are relied upon to allege that, in his capacity as President of AAJMI, Shifa-ur-Rehman was responsible for raising substantial funds to finance the protests. The charge-sheet further alleges that, in order to avoid detection and to leave no financial trail, Shifa-ur-Rehman fabricated false bills of expenditure in the name of AAJMI. Copies of the purportedly fabricated bills have been produced along with the charge-sheet. It is alleged that Shifa-ur-Rehman collected a minimum amount of Rs. 7–8 lakhs, the majority of which was received in cash.
270. The charge-sheet further alleges that Shifa-ur-Rehman was among the principal individuals responsible for sourcing and sustaining the protests. Apart from his alleged role in funding, it is stated that he participated in a conspiratorial meeting held on 22.02.2020, wherein it was purportedly agreed that the protests should be escalated to the next stage by enforcing chakka jams and engineering violent riots.

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271. According to the prosecution, the primary role attributed to Shifa-ur-Rehman was to provide financial and logistical support to all protest sites. The charge-sheet asserts that the funding and logistical assistance allegedly provided by him played an instrumental role in the riots that occurred in Delhi between 23.02.2020 and 26.02.2020, under the ostensible cover of protests against the CAA/NRC.
272. Upon a prima facie consideration of the material presently relied upon by the prosecution, the role attributed to Shifa-ur-Rehman does not disclose participation at the level of conceptualisation or strategic command of the alleged conspiracy. The allegations principally pertain to logistical facilitation, fund-raising, and coordination at identified protest sites, premised upon directions purportedly originating from persons situating themselves above him in the asserted hierarchy. In the absence of demonstrable material suggesting that he exercised autonomous decision-making authority over the alleged broader design, his continued incarceration as a pre-trial measure does not presently appear warranted.
273. The prosecution asserts that Shifa-ur-Rehman was associated with fund-raising activities and implementation of protest-site requirements however, the evidentiary material does not indicate that he retained control over the deployment of such funds, nor that he exercised selective discretion over strategic decisions concerning escalation. The record discloses that the appellant's actions were derivative in nature, aligned to instructions transmitted by others, and largely confined to sustaining logistics rather than shaping the trajectory of the protests. Such attribution, while relevant to trial, does not justify indefinite pre-trial detention when weighed against the limited and executory nature of his alleged role.
274. The State's apprehension that the appellant may re-establish operational linkages or interfere with witnesses must be evaluated in light of present circumstances. There is no material to demonstrate that the appellant retains any functional capacity to mobilise resources or coordinate activities independent of the structures that, according to the prosecution itself, acted under higher-level guidance and have since ceased to exist in the form alleged. The risks articulated by the State can be effectively neutralised through conditions restricting public engagement pertaining to the case, prohibiting contact with witnesses, and mandating regular court attendance.

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275. While the seriousness of the events culminating in violence during the relevant period cannot be discounted, this Court is mindful that gravity alone cannot eclipse the constitutional requirement of individualized examination of the necessity of pre-trial detention. The appellant's role, as narrated, is not linked to instigation of violence, procurement of weapons, or direct involvement in acts of physical aggression. In the absence of a proximate and continuing nexus between the appellant and the capacity to compromise the integrity of the proceedings, further incarceration would assume a punitive character incompatible with settled constitutional jurisprudence under Article 21.
276. The Court is also conscious that pre-trial detention serves limited and clearly defined purposes securing the presence of the accused, preventing obstruction of justice, and safeguarding public interest where demonstrable risk persists. In the present case, none of these objectives appear incapable of being achieved through calibrated restrictions short of incarceration. The absence of material suggesting an enduring organisational infrastructure capable of being reactivated through the appellant's efforts weighs significantly against the necessity of continued custody.
277. It is further noted that the prosecution's submissions rely substantially on the appellant's positional proximity to individuals alleged to have played a strategic role. Mere associative proximity, without corresponding evidence demonstrating capacity to exert influence or direction, does not satisfy the threshold required to curtail liberty at the post-investigative stage. The appellant's purported involvement in facilitative tasks, while forming part of the evidentiary matrix to be assessed at trial, cannot be a standalone basis for extending pre-trial detention where imposition of protective conditions offers an adequate safeguard.
278. Where the prosecution narrative itself draws a distinction between strategic architects and operational facilitators, judicial scrutiny at the bail stage must remain attentive to proportionality in attribution. The material presently relied upon depicts the appellant as a conduit within a hierarchically structured mobilisation, rather than as a node of independent initiative. Elevating such a role to one warranting prolonged custodial deprivation would risk diluting the constitutionally embedded principle that pre-trial restraint must correlate to demonstrated necessity rather than inferred association.

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279. Finally, while the evidentiary record merits thorough adjudication at trial, the Constitution mandates that liberty be curtailed only where compelling grounds grounded in present necessity exist. The prosecutorial hypothesis of a broader conspiracy, though serious, cannot become a charter for undifferentiated incarceration of all alleged participants irrespective of their individual function or continuing capacity. In the circumstances disclosed, and given the availability of stringent safeguards to address the apprehensions raised, the balance of constitutional considerations favours the appellant's release on terms ensuring non-interference with the proceedings and adherence to all conditions imposed by the Court.
280. Having regard to the differentiated standing that the prosecution narrative itself assigns to the appellant, particularly when contrasted with the alleged principal conspirators Umar Khalid and Sharjeel Imam, and in view of the absence of any present investigative requirement necessitating custodial detention, this Court finds that pre-trial liberty can be secured without prejudicing the administration of justice. Accordingly, subject to conditions designed to ensure his availability for trial, prevent any contact with prosecution witnesses, and restrain public commentary bearing upon the merits, the appellant is held entitled to be enlarged on bail. It is clarified that the observations herein are confined to the determination of bail and shall not be construed as expressing a view on the merits of the prosecution's case.

9. SALEEM KHAN – APPELLANT IN SLP (CRL.) NO. 15335/2025**9.1. SUBMISSIONS ON BEHALF OF THE APPELLANT:**

281. Learned Counsel Sri Gautam Khazanchi appearing for the appellant submitted that the appellant, Mohd. Saleem Khan, aged about 54 years, is a permanent resident of Chand Bagh, Delhi, carrying on business, with deep roots in society, and has been in continuous judicial custody for over five years in FIR No. 59 of 2020 registered by the Crime Branch, Delhi, arising out of the North-East Delhi riots of February 2020 . It was submitted that the appellant has no criminal antecedents except three FIRs arising out of the same incident, and in two of those FIRs, namely FIR No. 60 of 2020 and FIR No. 136 of 2020, the appellant has already been granted regular bail by competent courts, on substantially the same material relied upon by the prosecution.

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282. He further submitted that the gravamen of the allegation against the appellant in the present FIR is one of conspiracy under the UAPA, without any allegation of commission of a terrorist act, use of arms or weapons, funding of violence, delivery of inflammatory or hate speeches, or direct participation in acts of arson or rioting. Learned Senior Counsel submitted that the prosecution case itself records that the appellant is not a member of any of the WhatsApp groups such as JCC, DPSG, MSJ or SOJ, which form the backbone of the alleged conspiracy narrative, and that the appellant has not sent a single message, directly or indirectly, in any of those groups . It was urged that there is no documentary evidence whatsoever in the form of messages, emails or call records to show any communication between the appellant and the so-called principal conspirators.
283. Learned Counsel submitted that the allegation of the appellant having attended so-called “secret meetings” is founded entirely on belatedly recorded statements of witnesses, recorded months, and in some instances nearly a year, after the arrest of the appellant. It was submitted that even these allegations are contradicted by the prosecution’s own material, including CCTV footage, which does not show the presence of the appellant at the alleged meetings on crucial dates. These aspects, it was urged, are matters for trial and cannot be treated as conclusive at the stage of bail, particularly to justify prolonged incarceration.
284. He further submitted that the only overt allegation sought to be pressed against the appellant is that he allegedly turned away or dislocated a CCTV camera with the aid of a wiper. Learned Senior Counsel submitted that this very allegation formed part of FIR No. 60 of 2020, in which the appellant was granted regular bail by the High Court after a detailed consideration, holding that such footage by itself was insufficient to prolong incarceration and that the extent of conspiracy, if any, could only be determined at trial . It was submitted that the prosecution cannot be permitted to rely upon the same material repeatedly to justify continued detention of the appellant in multiple proceedings.
285. Learned Counsel further submitted that the appellant’s conduct throughout has been exemplary. The appellant has been granted interim bail on six occasions by the Trial Court and the High Court for various humanitarian and family reasons, including medical

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needs of his children and family obligations. On each occasion, the appellant surrendered punctually, without seeking extension, and there is not a single allegation of misuse of liberty, tampering with evidence, influencing witnesses, or attempting to evade the process of law. It was submitted that the appellant, therefore, fully satisfies the triple test governing grant of bail .

286. On the aspect of delay, learned Counsel submitted, briefly, that despite filing of the main charge-sheet and four supplementary charge-sheets, charges have not yet been framed, the prosecution proposes to examine more than 850 witnesses, and the trial is at the stage of arguments on charge, rendering early conclusion wholly illusory.
287. He lastly submitted that the principle of parity has been completely overlooked. Co-accused Devangana Kalita, Natasha Narwal and Asif Iqbal Tanha, against whom far graver and more direct allegations of conspiracy, mobilisation and instigation were levelled, have been granted bail by the High Court, which orders have been affirmed by this Hon'ble Court. The appellant, whose alleged role is demonstrably peripheral and significantly weaker, continues to remain incarcerated, resulting in manifest arbitrariness and unequal treatment.
288. Learned Counsel, therefore, prayed that this Court may be pleased to enlarge the appellant on bail on such terms and conditions as may be deemed fit, in the interest of justice, liberty and parity.

9.2. SUBMISSIONS ON BEHALF OF THE RESPONDENT:

289. Learned ASG Sri S.V. Raju appearing on behalf of the respondent submitted that the present case is not one of mere presence at a protest or passive association, but of deep and active participation in a well-orchestrated criminal conspiracy which culminated in large-scale violence, arson, destruction of public and private property, and loss of multiple innocent lives during the North-East Delhi riots of February 2020. It was submitted that the appellant, Mohd. Saleem Khan (Accused No. 14), played a pivotal local role in executing the conspiracy at Chand Bagh and adjoining areas, acting in coordination with members of the DPSG and other key conspirators.
290. It was submitted that the material on record, clearly establishes that the appellant was not a peripheral actor but an integral ground-level executor of the conspiracy. Protected witnesses VENUS and

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GOLD have categorically deposed that the appellant was one of the initiators and organisers of the Chand Bagh protest site from mid-January 2020 onwards, along with other accused persons, and that he actively participated in mobilising crowds, delivering inflammatory speeches, and sustaining the protest infrastructure, including arrangements for food, shelter and logistics.

291. Learned ASG further submitted that on the intervening night of 16–17 February 2020, at around 2:00 AM, a secret conspiratorial meeting was held at the Chand Bagh protest site, which was attended by the appellant along with other key accused including Athar, Shadab, Saleem Malik @ Munna, Gulfisha Fatima, Devangana Kalita and others. In this meeting, the roadmap for escalating peaceful sit-ins into disruptive chakka-jam at strategically chosen arterial roads was finalised, with the express objective of provoking confrontation with police and engineering riots. This meeting is corroborated by multiple protected witnesses including BRAVO, JOHNY and KILO, whose statements consistently name the appellant as a participant in the deliberations.
292. It was submitted that in furtherance of the conspiracy, another meeting was held in the intervening night of 20–21 February 2020 at Ayaz’s office in Chand Bagh, which the appellant attended along with DPSG members. Protected witness PLUTO has deposed that during this meeting, explicit exhortations were made to “set Delhi on fire”, that weapons, petrol and finances were ready, and that violence on a large scale was inevitable unless roads were blocked and clashes ensued. The appellant’s presence and participation in this meeting are specifically spoken to by PLUTO in his statement under Section 164 CrPC.
293. Learned ASG Sri S.V. Raju submitted that the conspiracy moved from planning to execution on 22 February 2020, when, pursuant to these meetings, chakka-jam was first enforced at Jafrabad Metro Station by mobilising crowds from Chand Bagh and Seelampur. This was followed by meetings convened and attended by the appellant on the night of 22 February 2020 at Ayaz’s basement, where organisers of various protest sites were informed that chakka-jam had been successfully executed at Jafrabad and were directed to replicate the same in their respective areas. CCTV footage and witness testimonies establish the appellant’s role in convening and attending these meetings.

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294. It was further submitted that on 23 February 2020, the appellant, along with Athar, Shadab and Saleem Malik @ Munna, physically shifted the Chand Bagh protest from a side location to the main Wazirabad–Ghaziabad road, thereby enforcing chakka-jam at a critical arterial road and deliberately moving protests from Muslim-majority lanes to mixed-population areas to maximise confrontation. Protected witnesses BRAVO and HECTOR have deposed that this coordinated action directly led to escalation of violence, stone-pelting, arson and attacks on police personnel and civilians.
295. Learned ASG Sri S.V. Raju emphasised that when the conspirators realised that the scale of violence was being curtailed due to CCTV surveillance, another conspiratorial meeting was held on the night of 23 February 2020, wherein it was decided that CCTV cameras must be destroyed or disabled. Witness RADIUM has categorically stated that Athar informed the group that the task of breaking CCTV cameras had been assigned to the appellant and Saleem Malik @ Munna. In pursuance thereof, CCTV footage demonstrates that on 24 February 2020, multiple CCTV cameras in the area were systematically dislocated or covered, including one instance where the appellant himself is seen dislocating a CCTV camera.
296. It was submitted that once CCTV surveillance was neutralised, large-scale violence erupted on 24 February 2020, resulting in brutal attacks on police personnel, including the killing of Head Constable Ratan Lal, grievous injuries to senior police officers, and the murder of Intelligence Bureau officer Ankit Sharma, besides widespread arson and destruction. The State submitted that the appellant is not only charged in the present conspiracy case but is also an accused in connected cases relating to murder and rioting, reflecting the gravity and continuity of his role.
297. On the issue of parity, learned ASG Sri S.V. Raju submitted that parity cannot be claimed in abstract, divorced from individual role. The appellant's role, as borne out from multiple independent protected witnesses, electronic evidence, CCTV footage and chain-of-command analysis, is materially distinct and far more direct than those accused who have been granted bail. The appellant functioned as a key local executor translating strategic conspiracy into physical action on the ground.

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298. On delay, learned ASG submitted briefly that the complexity of the case, the multiplicity of accused, the scale of violence, and the volume of evidence, including hundreds of witnesses and electronic records, necessarily require time, and such delay cannot be used to dilute the statutory embargo under Section 43D(5) of the UAPA where a strong prima facie case exists.
299. Learned ASG therefore submitted that, on a cumulative assessment of the material, there are reasonable grounds for believing that the accusations against the appellant are prima facie true, that his release would pose a serious threat to public order and the integrity of the trial, and that the present case does not warrant exercise of discretion in favour of bail. The State accordingly prayed for dismissal of the appeal.

9.3. FINDINGS OF THE TRIAL COURT:

300. The Trial Court vide order dated 22.03.2022, passed in IA. No. 96/2021 in SC 163/2020 dismissed the bail application filed by the Appellant. The Trial Court found that the prosecution material disclosed prima facie involvement of the appellant in a large-scale, deep-rooted criminal conspiracy connected with the North-East Delhi riots of February 2020. On a holistic reading of the charge-sheet, supplementary charge-sheets, CCTV analysis, witness statements (including protected witnesses), and WhatsApp group communications (DPSG/JCC), the Court held that the riots were not spontaneous but were systematically planned to escalate protests into chakka-jam and thereafter into organised violence, including attacks on police, destruction of CCTV cameras, arson, and use of deadly weapons. At the stage of bail, the Court emphasised that the individual role of the accused cannot be viewed in isolation and must be assessed in the context of the entire chain of conspiracy.
301. A decisive reason for rejection of bail was the statutory bar under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967, read with the additional restriction under Section 437 Cr.P.C. The Court applied the principles laid down in ***NIA v. Zahoor Ahmad Shah Watali*** (supra) and ***Thwaha Fasal v. Union of India*** (supra), holding that if, on a perusal of the charge-sheet and case diary, there exist reasonable grounds for believing that the accusations are prima facie true, the accused cannot be released on bail. The

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Court recorded that the prosecution material, taken at face value, crossed this statutory threshold, thereby attracting the embargo on bail.

302. The Trial Court rejected the defence contentions relating to delay in arrest, clean antecedents, alleged absence of independent public witnesses, and claims that the accused was merely a spectator or a peaceful protester. It held that criminal conspiracy is rarely proved by direct evidence and is ordinarily established through circumstantial evidence, conduct of the accused, and the cumulative effect of surrounding circumstances. Alleged contradictions in witness statements, admissibility of evidence, and the defence plea that the accused was not part of WhatsApp groups or meetings were held to be matters for trial, not for determination at the bail stage.
303. Finally, the Trial Court underscored the gravity and societal impact of the offences, noting the loss of life, large-scale damage to public and private property, and serious threat to public order. It reiterated that at the bail stage, the Court is not required to conduct a mini-trial or weigh evidence meticulously, but only to assess broad probabilities. Taking a cumulative view of the prosecution material and the statutory restrictions under UAPA and Cr.P.C., the Court concluded that the appellant had failed to dislodge the prima facie case against him, and consequently held that he was not entitled to bail, leading to dismissal of the bail application.

9.4. FINDINGS OF THE HIGH COURT:

304. The High Court in the impugned order found that the prosecution material prima facie established Mohd. Saleem Khan's role as a local executor of the conspiracy, particularly in relation to events at Chand Bagh during 23–24 February 2020. He was alleged to have participated in secret meetings where plans were discussed to escalate protests into violence and, significantly, to have acted upon instructions to disable government-installed CCTV cameras. The Court noted that CCTV footage and witness statements prima facie showed Saleem Khan physically dislocating CCTV cameras, which was considered a crucial preparatory act enabling rioters to operate with impunity. His role was thus viewed as facilitating the transition from protest to large-scale violence, including the attacks that resulted in deaths and grievous injuries to police personnel.

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305. Invoking Section 43D(5) of the UAPA, the Court held that the accusations against Saleem Khan met the threshold of prima facie truth, creating a statutory bar to bail. The arguments that he was not a member of major WhatsApp groups, that he had already been granted bail in other FIRs (including one relating to CCTV damage), or that the evidence was insufficient, were rejected. The Court clarified that the present proceedings concerned a larger conspiracy FIR under the UAPA, and that acts such as disabling CCTV cameras assumed grave significance in that context. Issues relating to overlap of FIRs, alleged double jeopardy, and evidentiary weaknesses were held to be matters for trial, leading to dismissal of his bail appeal.

9.5. DISCUSSION ON ROLE AND FINDINGS:

306. Mohd. Saleem Khan is alleged by the prosecution to be one of the principal local actors who actively participated in the conspiracy and the violent protests that took place during the last week of February 2020.
307. According to the charge-sheet, Mohd. Saleem Khan was part of the group that established a 24x7 protest site at Chand Bagh. The members associated with the said protest site are alleged to have played a significant role in instigating and engineering the riots that occurred during the last week of February 2020. The statements of protected witnesses “VENUS” and “GOLD” are relied upon to disclose and corroborate the role attributed to Mohd. Saleem Khan in the orchestration of the riots.
308. It is further alleged that on 17.02.2020, Mohd. Saleem Khan attended a meeting held during the night hours at the Chand Bagh protest site, which was attended by members of the Delhi Protest Support Group (DPSG). As per the charge-sheet, approximately twenty persons attended the said meeting, including Saleem Khan. During the meeting, a roadmap for the execution of the final phase of the alleged conspiracy namely, the escalation of chakka jams into disruptive chakka jams and the organisation of violence and riots was purportedly outlined by co-accused Athar Khan.
309. According to the prosecution, there was a clear and cogent understanding among the key participants who attended the said meeting that the protest sites, then located on side lanes in Muslim-

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dominated areas, were required to be shifted and converted into chakka jams at carefully selected locations on arterial and busy roads situated in proximity to areas of mixed population. The stated objective of such relocation was to engineer riots and to paralyse the normal movement of traffic and the flow of public life. It is further alleged that the enforcement of chakka jams, which would inevitably necessitate police intervention, was intended to be followed by confrontation with, and attacks upon, police personnel and members of the public, as well as damage to and destruction of public property through the use of firearms, deadly weapons, arson, and other means during the engineered riots. In support of these allegations, reliance is placed on the statement of protected witness "BRAVO".

310. The prosecution further alleges that Mohd. Saleem Khan attended another meeting held during the intervening night of 20/21.02.2020 at the office of one Ayaz in Chand Bagh, Delhi. According to the prosecution, the plan allegedly conspired by the participants of the meetings held on 17.02.2020 and between 20.02.2020 and 22.02.2020 was executed by protesters from Chand Bagh, including Mohd. Saleem Khan, when they moved from the protest site to the Jafrabad Metro Station on the evening of 22.02.2020. Statements of protected witnesses are relied upon to assert the presence of Saleem Khan at the protest held at Jafrabad Metro Station. It is further alleged that Saleem Khan invited persons to attend a conspiratorial meeting held at Chand Bagh on 22.02.2020, which allegedly culminated in the protest of 23.02.2020 on the main road near the Mazar and the enforcement of a chakka jam on the Wazirabad–Ghaziabad Road.
311. It is further alleged that on the night of 23.02.2020, after riots had erupted in North-East Delhi but were perceived to have fallen short of the intended scale of violence, a conspiratorial meeting was convened at the residence of one Mukhtyar in Chand Bagh by DPSG members Athar and Shadab Ahmad. The meeting is stated to have been attended by absconding accused Suleman Siddiqui and Ayub. During the said meeting, Athar is alleged to have conveyed that Nadeem Khan was dissatisfied with the limited escalation of violence due to the presence of CCTV cameras and had instructed that the cameras be covered and destroyed. It is

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alleged that Athar thereafter assigned Saleem Khan and Salim Malik alias Munna the task of damaging the CCTV cameras, while Shadab Ahmad stated that similar acts would be carried out through his own team.

312. The charge-sheet further relies upon reverse mapping of accused persons arrested for grave offences committed during the North-East Delhi riots, which is stated to trace their actions back to a clandestine conspiratorial meeting held at Chand Bagh on the intervening night of 16/17.02.2020, thereby revealing a clear chain of command. Several accused persons involved in offences of murder, rioting, arson, and attempts to murder, including those linked to the killings of Head Constable Ratan Lal, Rahul Solanki, and Ankit Sharma, are stated to have either attended the said meeting or remained in regular contact with its participants, particularly DPSG members Athar Khan, Shadab Ahmad, Gulfisha Fatima, and Khalid Saifi. The mapping is relied upon to demonstrate coordinated roles, including the destruction of CCTV cameras, assignment of specific targets, financing of weapons and ammunition, and operational execution, culminating in the framing of charges against key conspirators in multiple FIRs pertaining to mass violence and attacks on police personnel.
313. At the present stage of consideration, the allegations against Mohd. Saleem Khan primarily situate him as a local operative associated with meetings at the Chand Bagh protest site, allegedly tasked with site-level mobilisation in furtherance of directions issued by others. The record does not prima facie disclose autonomous authority over the larger conspiracy, nor any material to suggest that he occupied a position from which strategic escalation or coordination across protest sites could be directed. In view of the differentiated role attributed to him, this Court finds that his continued pre-trial detention requires a more narrowly tailored justification than what is presently demonstrated.
314. While the prosecution places reliance on his alleged attendance at meetings preceding the escalation of protests into chakka jams, the material does not disclose that Saleem exercised control over either the initiation of such meetings or formulation of their outcomes. The attribution is largely derivative, reflecting execution of tasks discussed by others and limited to coordination within the Chand Bagh–Jafrabad cluster. The evidentiary foundation relied

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upon, even if taken at its highest, does not presently establish that Saleem possessed independent command capacity or strategic discretion warranting ongoing incarceration solely on the basis of his associative presence at key locations.

315. The assertion that Saleem participated in the destruction of CCTV cameras and in facilitating the movement of protestors to designated sites raises matters for trial, however, pre-trial detention cannot be perpetuated merely because violent acts are alleged in proximity to his presence, unless a direct and continuing ability to influence or repeat such conduct is shown. There is no material before this Court indicating that he presently retains access to organisational resources, communication networks, or mobilising power that could enable interference with the administration of justice. The legitimate concerns of the State can be sufficiently guarded by supervision and tailored restrictions.
316. It is settled that the seriousness of the alleged acts, while relevant, does not displace the constitutional requirement that pre-trial detention serve a demonstrable and continuing necessity. In the absence of any plea or evidence that Saleem's custodial presence is required for further investigation, and given that the prosecution narrative itself delineates him as an executor rather than an originator or planner of the alleged conspiracy, this Court is unable to conclude that the threshold of necessity under Article 21 remains satisfied. The balance between individual liberty and collective security therefore tilts in favour of conditional release.
317. The Court is cognisant that the architecture of the prosecution case relies on a theory of layered participation, wherein actions undertaken at individual protest sites are said to feed into a broader conspiratorial framework. Even assuming this structure to be correct for the limited purpose of bail, the role attributed to Saleem does not presently transcend the operational. His alleged activities do not indicate that he functioned as a conduit between the principal architects and secondary actors beyond his immediate geographical sphere. In the absence of such interlinking conduct, imputing to him a continuing capacity to destabilise public order would be speculative rather than evidentiary.
318. Furthermore, the prosecution has not demonstrated that witnesses associated with the Chand Bagh protest remain vulnerable to

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intimidation or inducement at the hands of Saleem. In these circumstances, the apprehension of evidence tampering must be founded on concrete risks rather than on the mere gravity of the offences alleged.

319. The Court also notes that prolonged incarceration without demonstrable necessity risks conflating punitive detention with preventive detention, contrary to the settled constitutional position that the former cannot be imposed before conviction save to secure legitimate trial-related objectives. A restrictive reading of personal liberty is impermissible where targeted conditions could be imposed. The imposition of such calibrated measures achieves the dual purpose of safeguarding societal interests and upholding constitutional fidelity.
320. Lastly, the overarching narrative advanced by the prosecution emphasises the systemic nature of the alleged conspiracy. However, systemic allegations require systemic evidence an associative presence or execution of logistical tasks, without more, does not justify a presumption of continuing threat in the post-investigative stage. Judicial scrutiny at the bail stage must remain sensitive to the distinction between contextual participation and autonomous agency. In the present facts, this distinction militates against further curtailment of Saleem's liberty, and reinforces the principle that deprivation of liberty cannot be sustained without distinct and ongoing justification anchored in necessity rather than inference.
321. Having considered the differentiated attribution of roles among the accused, this Court notes that the prosecution places Umar Khalid and Sharjeel Imam at the apex of the alleged conspiracy, whereas Saleem is projected as a site-level participant whose presence and conduct derive meaning primarily from directives purportedly issued by others. This structural distinction, coupled with the absence of ongoing investigative necessity and the availability of strict conditions to minimise any risk to the proceedings, persuades the Court that continued incarceration of Saleem would not be proportionate. Accordingly, he is held entitled to be released on bail subject to conditions enumerated below. Nothing herein shall be construed as an opinion on guilt or innocence.

Gulfisha Fatima v. State (Govt. of NCT of Delhi)**10. MEERAN HAIDER – APPELLANT IN SLP (Crl.) 14132 of 2025****10.1. SUBMISSIONS ON BEHALF OF APPELLANT:**

322. Learned Senior counsel Sri Siddharth Aggarwal for the Appellant submits that the Appellant has been in continuous judicial custody since 01.04.2020 and has, as on date, undergone incarceration of over five years and five months as an under-trial prisoner in the present case. It is urged that investigation qua the Appellant stands concluded, as admitted by the prosecution before the Trial Court in August 2024, and that he is not required for any further custodial interrogation. It is contended that despite filing of multiple charge-sheets over a period of more than four years, the trial has not commenced and there is no realistic likelihood of its conclusion in the near future, particularly in view of the initially cited 960 witnesses and over 1200 relied-upon documents, even if the prosecution now claims that the witness list would be pruned.
323. It is further urged that the Appellant has been arrested exclusively in the present FIR and is not in custody in any other case. Learned counsel submits that the Appellant is a well-educated individual, aged about 34 years, having completed B-Tech, MBA and M-Phil, and has continued his academic pursuits even while in custody. It is contended that the Appellant satisfies the triple test for grant of bail, inasmuch as he is not a flight risk, has deep roots in society, has cooperated with the investigation throughout, and there is no allegation of tampering with evidence or influencing witnesses. Reliance is placed on the fact that when interim bail was granted for a short duration in August 2024, the Appellant strictly complied with all conditions.
324. On the aspect of parity, learned Senior Counsel submitted that several co-accused who were allegedly part of the core conspiracy, including those who were members of the principal WhatsApp groups relied upon by the prosecution, present in alleged secret meetings, or physically present at riot-affected areas, have been granted bail. It is argued that the Appellant stands on a better footing, as he is not alleged to have participated in any of the two secret meetings relied upon by the prosecution, was not present at any riot site, and there is no CCTV footage, recovery of weapons, or physical

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evidence connecting him to acts of violence. It is contended that parity is pressed strictly on factual comparison and not on any alleged dilution of statutory standards under the UAPA.

325. Learned Senior Counsel further submitted that even according to the prosecution's own case, as reflected in the charge-sheet, the Appellant has been categorised as having a comparatively lesser role, being placed in the third category out of four classes of accused. It is urged that this categorisation itself contradicts the finding in the impugned judgment that the Appellant played a "significant role" in the alleged conspiracy. It is argued that the High Court failed to reconcile this internal inconsistency in the prosecution's own material.
326. On merits, it was submitted that the principal allegation against the Appellant relates to financing. Learned Senior Counsel contended that even as per the prosecution, the alleged contribution attributed to the Appellant is between Rs.2.33 lakhs and Rs.2.86 lakhs, out of an alleged total expenditure of approximately Rs.1.60 crores, constituting less than two percent of the total. It was urged that notwithstanding this, the Appellant has been described as a "key fundraiser", which is wholly disproportionate and unsupported by evidence. It is further submitted that the Appellant has furnished a detailed explanation for the small sums reflected in the diary/register seized from him, stating that the amounts pertained to his proposed election campaign, personal expenses following the death of his mother and his father's medical treatment, and for providing food and water at protest sites. It is contended that no finding has been returned on this explanation.
327. Learned Senior Counsel submitted that the Appellant is not alleged to have been a member of the principal WhatsApp groups such as DPSG or MSJ, which are claimed by the prosecution to be central to the alleged conspiracy. It is urged that no incriminating message authored by the Appellant has been placed on record, read out, or relied upon. It is further submitted that mere membership of WhatsApp groups, absent any unlawful object or inciting content, cannot attract liability under the UAPA.
328. It was also submitted that none of the speeches attributed to the Appellant are provocative or inciteful. Learned Senior Counsel contended that the transcripts placed on record show that the

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speeches emphasise constitutional values, secularism, democracy and peaceful protest. It is urged that the specific allegation that the Appellant delivered a provocative speech on 22.02.2020 at Nizamuddin is demonstrably false, as no transcript of such speech has been placed on record by the investigating agency.

329. Learned Senior Counsel further submits that the Appellant was not present at any of the riot-affected sites, was not part of the alleged meetings at Chandbagh or Seelampur, and that there is no CCTV footage, still photograph, or recovery linking him to acts of violence. It is urged that statements recorded under Sections 161 and 164 CrPC do not disclose any overt act attributable to the Appellant that would constitute offences under the UAPA.
330. It was contended that the prolonged incarceration of the Appellant violates his right to life and personal liberty under Article 21 of the Constitution, particularly when he has already undergone more than half of the maximum sentence prescribed for several of the alleged offences. Learned Senior Counsel submitted that continued detention in the face of an indeterminate trial timeline amounts to punitive incarceration without adjudication of guilt.
331. On the embargo under Section 43D(5) of the UAPA, it was urged that the prosecution material, even if taken at face value, does not disclose a prima facie case of the Appellant's involvement in terrorist acts or conspiracy, and therefore the statutory bar is not attracted. It was submitted that the High Court has mechanically applied the embargo without undertaking the requisite prima facie evaluation of the material specific to the Appellant.
332. In conclusion, learned Senior Counsel submitted that the cumulative effect of prolonged custody, completion of investigation, absence of direct evidence, comparative parity with co-accused on bail, and lack of any likelihood of early trial, warrants grant of bail to the Appellant, and that denial thereof would result in grave and irreparable prejudice.

10.2. SUBMISSIONS ON BEHALF OF THE RESPONDENT:

333. Learned ASG Sri S.V. Raju for the State submits that the present case does not arise from an isolated incident or a spontaneous law-and-order situation, but from a deep-rooted, premeditated

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and carefully orchestrated criminal conspiracy which culminated in large-scale violence in North-East Delhi in February 2020. The investigation in FIR No. 59 of 2020 has revealed that the conspiracy was executed in a phased manner beginning from December 2019, with the deliberate objective of converting protests into permanent sit-in sites, escalating them into disruptive chakka-jam, and thereafter triggering targeted violence. It is submitted that the acts forming part of this conspiracy were intended to create widespread fear, disrupt normal civic life and destabilise public order, thereby attracting the stringent provisions of the Unlawful Activities (Prevention) Act, 1967.

334. It was urged that the Appellant, Meeran Haider, Accused No. 3, was not a marginal or passive participant but an active conspirator from the inception. His involvement surfaces even during the first phase of riots in December 2019, prior to the February 2020 violence, and thus demonstrates continuity and depth of participation. The State submits that the material on record clearly establishes that the Appellant was embedded within the organisational framework executing the conspiracy. He was a member of United Against Hate, a component of the Delhi Protest Support Group, and also a core member of the Jamia Coordination Committee, which functioned as the operational arm of the conspiracy. Statements of protected witnesses recorded under Section 164 CrPC name the Appellant as a regular participant in daily meetings and secret meetings concerning protest sites, mobilisation and logistics, thereby prima facie establishing his knowing and voluntary involvement.
335. Learned ASG Sri S.V. Raju submitted that the role of the Appellant was operational, supervisory and managerial in nature. He functioned as an organiser and administrator of multiple permanent protest sites, entrusted with their maintenance, coordination and continuity in furtherance of the common design. Electronic material recovered during investigation, including chats from the Appellant's own device, shows him identifying protest locations, assigning responsibilities and coordinating personnel across sites. It is further submitted that the Appellant actively participated in mobilisation and escalation, exhorting protestors to engage in chakka-jam and to confront police personnel, thereby facilitating the transition from protest to violence. These acts, it is urged, were integral to the execution of the conspiracy and cannot be characterised as protected dissent or lawful protest.

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336. On the issue of financing and strategy, learned counsel submits that the Appellant actively collected, handled and channelled funds meant for sustaining protest sites and riot-related activities. Multiple witnesses examined under Sections 161 and 164 CrPC have stated that they handed over money to the Appellant during the relevant period, and cash recoveries were effected from concealed locations within his residence. The State submits that the explanation now sought to be offered regarding the source and purpose of these funds raises disputed questions of fact which cannot be adjudicated at the stage of bail. It is further urged that the Appellant was privy to core strategic decisions of the conspirators, including internal role allocation and narrative management, and that he remained in real-time communication with key conspirators and foot-soldiers during the critical period of 22–24 February 2020, monitoring execution and participating in coordinated attempts to shift blame and public perception once violence had erupted.
337. Learned ASG Sri S.V. Raju finally submitted that the absence of the Appellant from the physical site of rioting or the lack of recovery of weapons is immaterial in a conspiracy of this nature, where roles are distributed and liability attaches equally to planners, organisers, financiers and supervisors. The plea of parity is misconceived, as the Appellant is not similarly situated to co-accused who have been granted bail, his role being distinct in nature and gravity. It was urged that prolonged incarceration by itself cannot override the statutory embargo under Section 43D(5) of the UAPA once the accusations are prima facie true. At the stage of bail, the Court is not required to conduct a detailed evaluation of defence explanations. Learned ASG Sri S.V. Raju submitted that the material on record clearly discloses the Appellant's active and central involvement in the conspiracy, attracting the statutory bar to bail, and that any grant of bail at this stage would defeat the object of the special statute and undermine the administration of justice.

10.3. FINDINGS OF THE TRIAL COURT:

338. The Trial Court vide order dated 04.12.2024 in IA. No. 208/2024 in S.C. 163 of 2020, rejected the second bail application filed by the Appellant on the ground that, the order dated 05.04.2022 in IA No. 94/2021, dismissing the applicant's first bail application was passed after a detailed consideration of the facts and merits, wherein

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the Court, upon perusal of the charge sheet and accompanying documents, found the allegations against the applicant to be prima facie true. The Court also rejected the contention that prolonged trial by itself warranted bail, held that the statutory embargo under Section 43(D) of the UAPA as well as Section 437 Cr.P.C. was applicable, and consequently found the applicant not entitled to bail. Since the said dismissal occurred after filing of the charge sheet and the stage of the case remains unchanged, the Court holds that entertaining the present bail application on the same grounds, notwithstanding submissions regarding changed circumstances and reliance on judgments, would amount to an impermissible review of the earlier order dated 05.04.2022. having noted the order of the trial court rejecting 2nd bail application, it becomes imperative for us to set out the reasons for dismissal of the 1st bail application of the appellant which is given in the subsequent paragraphs.

339. The Trial Court held that the material placed on record disclosed prima facie involvement of the appellant in a large-scale, deep-rooted and well-orchestrated criminal conspiracy culminating in the North-East Delhi riots of February 2020. On a holistic reading of the charge-sheet, its annexures, case diary, witness statements under Sections 161 and 164 Cr.P.C., WhatsApp chats (including DPSG/JCC), speeches, and other documentary and electronic material, the Court found that the protests against CAA/NRC were not organic but were strategically planned to escalate into chakka-jam and thereafter into widespread violence, targeting police, public order, and property. At the bail stage, the Court emphasized that it was not required to conduct a detailed trial-like evaluation, and that the prosecution material, taken at face value, sufficiently connected the appellant to the conspiracy.
340. A decisive ground for rejection was the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967, read with Section 437 Cr.P.C. Relying extensively on **NIA v. Zahoor Ahmad Shah Watalli** (supra) and **Thwaha Fasal v. Union of India**¹², the Court reiterated that if, upon perusal of the charge-sheet and case diary, there are reasonable grounds for believing that the accusations are prima facie true, bail must be refused. Applying

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this standard, the Court concluded that the prosecution material crossed the statutory threshold and therefore the bar under Section 43D(5) squarely operated against the appellant.

341. The Trial Court rejected the defence contention that the appellant's acts were protected by Articles 19(1)(a) and 19(1)(b) of the Constitution as peaceful protest or dissent. It held that while the right to protest is sacrosanct, the charge-sheet portrays a conspiracy under the guise of protest, aimed at paralysing civic life, blocking arterial roads, provoking confrontation, and ultimately triggering communal violence. The Court further held that issues relating to interpretation of speeches, credibility of witnesses, admissibility of documents, alleged absence from riot sites, and claimed lack of direct overt acts are matters for trial, and cannot dilute the prima facie satisfaction required at the bail stage in a UAPA case.
342. Lastly, the Trial Court noted the gravity and societal impact of the offences, the scale of violence, loss of life, and damage to public and private property, and reiterated that conspiracy is seldom proved by direct evidence and must be assessed cumulatively. Taking a holistic view of the material, the Trial Court held that the appellant's role could not be examined in isolation and that the prosecution had established reasonable grounds to believe that the accusations were prima facie true. In view of the statutory restrictions under UAPA and the additional bar under Section 437 Cr.P.C., the Court concluded that the appellant was not entitled to bail, and accordingly dismissed the bail application.

10.4. FINDINGS OF THE HIGH COURT:

343. The High Court in the impugned order found that the prosecution material prima facie established Meeran Haider's role as an active executor and fundraiser within the conspiracy, closely working with other conspirators and alleged masterminds. He was alleged to be a core JCC member, part of multiple WhatsApp groups receiving directions from DPSG, and to have played a key role in mobilising protestors, managing protest sites, and raising and disbursing funds. The Court noted recoveries of cash, registers recording monetary transactions, bank-account analysis, call-detail records, and witness statements suggesting that funds were received and utilised for sustaining protests and for escalating chakka-jaams into violence.

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He was also alleged to have exhorted protestors to collect weapons and intensify confrontations with police, which, at the bail stage, was sufficient to connect him to the execution of the conspiracy.

344. Invoking Section 43D(5) of the UAPA, the High Court held that the accusations against Meeran Haider met the threshold of prima facie truth, creating a statutory bar to bail. The arguments based on completion of investigation, alleged change in circumstances, long incarceration, parity with co-accused granted bail, and claimed benign use of funds were rejected. The Court emphasised that funding and mobilisation form a critical preparatory stage of a conspiracy, and that the role attributed to Meeran Haider was distinct from those released on bail. Holding that evidentiary assessment and credibility issues must be tested at trial, the Court concluded that no case for bail was made out and dismissed the appeal.

10.5. DISCUSSION ON ROLE AND FINDINGS:

345. As per the charge-sheet, Meeran Haider, stated to be a member of United Against Hate (UAH), along with students of Jamia Millia Islamia University, is alleged to have played a significant role in the implementation of the protests that ultimately culminated in violence. The charge-sheet alleges that Meeran Haider was one of the core members of the Jamia Coordination Committee (JCC) and that he participated in clandestine meetings convened in relation to the establishment and management of protest sites. According to the charge-sheet and the statement of protected witness “Bond”, Meeran Haider, Shifa-ur-Rehman, Arib Hassan, Asif Iqbal Tanha, Saiful Islam, and Safoora Zargar were the principal members of the JCC.
346. The charge-sheet further alleges that Meeran Haider acted as an organiser of several protest sites. Chats exchanged between Meeran Haider and Tasleem, dated 20.01.2020, are relied upon to show that Meeran Haider was responsible for managing eight protest sites as part of the alleged conspiracy. It is further alleged that he instigated participants at these sites to enforce chakka jams and thereafter to escalate the same into violent riots by attacking members of the general public and police personnel.
347. Statements of witnesses Akib Aman and “Platinum” are relied upon to allege that Meeran Haider collected funds for organising

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the protests that took place during the first two months of 2020. According to protected witness “Robert”, Meeran Haider collected funds and contributed the same to the corpus of AAJMI through its General Secretary, Areeb, for the purpose of facilitating riots.

348. The charge-sheet further records the recovery of an amount of ₹1,45,000 allegedly belonging to Meeran Haider, which is stated to have been kept by his sister, Shahjeen Khatoon, at his behest. Witness Shahjeen Khatoon is stated to have testified that the said amount was recovered upon the arrest of Meeran Haider. It is further alleged that Meeran Haider acted directly under the directions of Sharjeel Imam.
349. It is further alleged that on 22.02.2020 at approximately 22:17 hours, Tasleem Ahmed sent a message from Jafrabad to Meeran Haider reporting the commencement of a chakka jam. According to the charge-sheet, this communication indicates that Meeran Haider was responsible for coordinating certain protest sites.
350. On the night intervening 22.02.2020 and 23.02.2020, during the occurrence of the riots, Meeran Haider is alleged to have ensured the participation of Jamia students in the protests by circulating messages on WhatsApp groups. It is further alleged that after each chakka jam was executed, Meeran Haider would receive reports confirming the success of the particular blockade.
351. On 24.02.2020, following alleged threats by certain members of the DPSG to expose those responsible for the violence, the charge-sheet states that Umar Khalid called Meeran Haider to inform him about the next course of action.
352. A prima facie appraisal of the prosecution material indicates that the role ascribed to Meeran Haider is fundamentally that of an organiser and coordinator of designated protest sites within the Jamia network, acting largely upon instructions communicated through alleged higher-level actors. The record does not presently disclose that he possessed autonomous decision-making authority over the alleged overarching design, nor that he exercised strategic control over the escalation of protests. His alleged participation does not, on its face value, justify the continued curtailment of his liberty at the pre-trial stage.

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353. The allegation that Meeran Haider coordinated protest sites and facilitated participation of students, including the organisation of resources, is materially distinct from assertions of conceptual leadership or command. Insofar as the evidentiary substratum does not presently establish that he exercised meaningful discretion over the initiation of violence or the transition of protests into chakka jams, this Court is unable to hold that prolonged incarceration is necessary solely to reflect the gravity of the charge.
354. The apprehensions expressed by the State regarding the possibility of Meeran Haider re-mobilising student populations or exerting influence over former protest networks cannot be accepted in the abstract. No material has been placed to show that such organisational structures continue to operate or that the appellant retains access to resources or networks capable of compromising the integrity of the proceedings. The risks invoked by the prosecution can be effectively mitigated through stringent conditions prohibiting contact with prosecution witnesses, restricting participation in public assemblies touching the subject matter, and securing regular attendance before the trial court.
355. It is a settled principle that the seriousness of the allegations, though relevant, does not obviate the constitutional requirement that deprivation of liberty must be necessary for legitimate investigative or trial-related objectives. The prosecution does not assert that custodial interrogation of Meeran Haider is required at this stage, nor that his continued detention is indispensable for securing further evidence. Absent such necessity, the Court must ensure that preventive detention does not incrementally assume a punitive character, particularly where the role attributed to the appellant is situational and derivative rather than originating or directive.
356. The Court further recognises that the evidentiary framework relied upon does not, at this stage, attribute to the appellant any independent role in securing financial resources or channelling funds towards the alleged conspiracy beyond logistical facilitation incidental to protest management. The distinction between episodic facilitation and sustained financial stewardship bears directly on the question of continuing necessity, for it is only the latter that might *prima facie* justify custodial restraint on the ground of potential

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resource-based reactivation. In the absence of such linkage, the appellant's liberty cannot be curtailed merely on apprehensions rooted in past associations.

357. Moreover, the records placed before the Court indicate that critical electronic communications, organisational documents, and statements of witnesses forming the backbone of the prosecution narrative have already been secured. No plea has been advanced asserting that further custodial presence of the appellant is necessary to extract residual evidence or confront him with newly discovered material. Where the investigatory stage has effectively matured and the appellant's participation appears circumscribed by directive structures no longer demonstrably operational, the constitutional presumption of liberty must regain primacy.
358. The Court also takes note that the prosecutorial depiction of a multi-layered mobilisation architecture requires careful calibration when translated into determinations of pre-trial necessity. If layered participation is accepted as the structural premise, proportionality requires that liberty restrictions correspond to the specific layer of agency attributed to the appellant. To conflate operational responsibility with command responsibility at the bail stage would risk imposing a regime of undifferentiated incarceration antithetical to the principle that liberty may only be withheld where contemporaneous and individualised grounds compel such curtailment.
359. In these circumstances, the Court finds that the objectives of securing the integrity of the trial, preventing witness influence, and guarding against re-mobilisation can be achieved through targeted restrictions rather than continued custody. Conditions such as periodic reporting, prohibition on participation in assemblies relating to the subject matter, and restraints on electronic communication with identified individuals are proportionate safeguards that align constitutional fidelity with legitimate State interests. Accordingly, subject to the imposition of such conditions, the balance of considerations favours enlargement on bail, without this Court expressing any view on the ultimate culpability of the appellant.
360. In light of the differentiated hierarchy of roles disclosed by the prosecution narrative wherein Umar Khalid and Sharjeel Imam are alleged to occupy a central, directive position, and Meeran Haider

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is alleged to have acted within an executory framework shaped by their directions this Court is persuaded that continued incarceration of the appellant is not proportionate to the limited attribution presently established. Accordingly, subject to conditions ensuring his presence during trial, non-interference with witnesses, and a restraint on public commentary touching the merits of the case, the appellant is held entitled to be enlarged on bail. It is clarified that the observations herein are limited to the determination of bail and shall not prejudice the trial in any manner.

11. SHADAB AHMED - APPELLANT IN SLP(CRL.) NO. 17055/2025**11.1. SUBMISSIONS ON BEHALF OF APPELLANT:**

361. Learned Senior Counsel Sri Siddharth Luthra for the appellant submitted that the appellant has been in continuous custody since 20.05.2020 in FIR No. 59 of 2020, Police Station Crime Branch, arising out of the alleged larger conspiracy relating to the North-East Delhi riots. It was urged that the appellant has undergone incarceration for more than five years and six months, while the case has not progressed beyond the stage of arguments on charge. The prosecution has cited about 835 witnesses and placed over 1,000 documents on record, apart from filing four supplementary charge-sheets, and the delay in commencement of trial is wholly unrelated to the conduct of the appellant.
362. Learned Senior Counsel submitted that the appellant's implication in the present FIR is founded primarily on FIR No. 60 of 2020, Police Station Dayalpur, relating to the death of Head Constable Rattan Lal, and FIR No. 136 of 2020, Police Station Dayalpur, relating to the burning of a Maruti showroom. It was pointed out that the appellant has already been granted bail in both these cases, the High Court having granted bail in FIR No. 60 of 2020 on 03.09.2021 and the Trial Court having granted bail in FIR No. 136 of 2020 on 21.12.2020, and therefore the continued incarceration of the appellant in the present case, which substantially rests on the same factual foundation, is wholly unjustified.
363. It was further submitted that even as per the prosecution case, the alleged mobilisation and violence at Chand Bagh occurred between noon and about 1:00 PM on 24.02.2020. The appellant's Call Detail

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Records, which form part of the charge-sheet, conclusively establish that the appellant was present at his residence in Jagatpuri till 12:19 PM and reached the vicinity of the alleged place of occurrence only at 1:13 PM, after the incident had concluded. In the absence of any CCTV footage, video recording or independent electronic material showing the appellant's presence or participation, the belated witness statements alleging instigation or violence are generic and omnibus and stand contradicted by the electronic evidence.

364. Learned Senior Counsel submitted that the prosecution has repeatedly shifted its stand to fill lacunae, initially alleging physical presence and instigation on 24.02.2020 and subsequently introducing a theory of an alleged meeting on 23.02.2020, sought to be supported by statements recorded more than a year after the incident. Reliance was placed on the decision of this Court in ***Dilawar Balu Kurane v. State of Maharashtra, (2002) 2 SCC 135***, to submit that such delayed and shifting versions erode the credibility of the prosecution case. It was lastly urged that the appellant is entitled to bail on the ground of parity, as similarly situated co-accused, namely Asif Iqbal Tanha, Natasha Narwal and Devangana Kalita, have already been granted bail, and that continued detention of the appellant would be wholly disproportionate and unjustified.

11.2. SUBMISSIONS ON BEHALF OF THE RESPONDENT:

365. Learned ASG Sri S.V. Raju for the State submitted that the appellant is a key conspirator and local executor of the larger criminal conspiracy which culminated in the organised and targeted violence in North East Delhi in February 2020. The material on record establishes that the appellant was an active member of the DPSG network and worked in concert with other core conspirators to escalate protests into disruptive chakka-jam and thereafter into violent riots, particularly at Chand Bagh, pursuant to conspiratorial directions issued through meetings and coordinated communications.
366. It was submitted that the prosecution has placed cogent and consistent material showing the appellant's participation in a series of conspiratorial meetings, including meetings at the Indian Social Institute, Lodhi Road, and secret night meetings held on 16/17 February, 20/21 February and 23 February 2020 at Chand Bagh. These meetings were convened to finalise the roadmap for

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converting sit-in protests into disruptive chakka-jam on arterial roads and thereafter engineering violence. Protected witnesses, including Jupiter, Silver, Gold, Bravo and Johny, have deposed that the appellant attended these meetings, issued directions to protest organisers, delivered inflammatory speeches and coordinated execution at the Chand Bagh protest site.

367. Learned ASG Sri S.V. Raju submitted that the reliance placed on Call Detail Records is wholly misconceived and ignores the settled law governing criminal conspiracy. Physical presence at the precise moment of violence is not determinative where the material establishes planning, coordination and assignment of roles. The evidence on record shows that in the conspiratorial meeting held on the night of 23.02.2020, the appellant undertook to get CCTV cameras covered or destroyed through his team. This is corroborated by protected witness Radium and supported by CCTV footage and forensic analysis showing systematic dislocation and covering of government cameras between 12:05 PM and 12:45 PM on 24.02.2020, immediately preceding the coordinated attack on the police at about 1:00 PM.
368. It was lastly submitted that the gravity of the offences, including murder of Head Constable Ratan Lal, brutal attacks on police officers, large-scale arson and destruction of public property, coupled with the appellant's central and operational role in the conspiracy, disentitle him to the discretionary relief of bail. The plea of parity is untenable, as the appellant's role is distinct and supported by a continuous chain of prima facie evidence. The State therefore prayed that the application for bail be rejected.

11.3. FINDINGS OF THE TRIAL COURT:

369. The Trial Court vide order dated 13.10.2022, passed in IA. No. 101/2022 in SC 163/2020 rejected the bail application filed by the Appellant. The Trial Court held that the charge-sheet and accompanying material disclosed prima facie involvement of the appellant in a large-scale, deep-rooted and meticulously planned criminal conspiracy which culminated in the North-East Delhi riots of February 2020. On a holistic assessment of the prosecution case, including witness statements, protected witness testimonies, WhatsApp chats of DPSG/JCC, and

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CCTV analysis, the Court found that the protests were not organic or spontaneous but were strategically designed to escalate into chakka-jam and thereafter into organised communal violence. The appellant's role was not to be viewed in isolation, and his participation in key meetings and coordination with other conspirators formed part of the larger conspiracy.

370. A decisive reason for rejection of bail was the statutory embargo under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967, read with the additional restriction under Section 437 Cr.P.C. Relying extensively on **NIA v. Zahoor Ahmad Shah Watali (supra)** and **Thwaha Fasal v. Union of India (supra)**, the Court reiterated that at the bail stage, it is sufficient if there are reasonable grounds for believing that the accusation is prima facie true, and that the degree of satisfaction required is lighter than at the stage of trial or discharge. Applying this standard, the Court concluded that the prosecution material, taken at face value, clearly crossed the statutory threshold, thereby barring the grant of bail.
371. The Court rejected the defence submissions that the appellant was merely a volunteer at a peaceful protest site, that DPSG was not a banned organisation, or that there was no direct evidence such as CCTV footage showing him committing violent acts. It held that criminal conspiracy is rarely proved by direct evidence and is ordinarily established through circumstantial evidence, conduct, and the cumulative effect of surrounding circumstances. Alleged inconsistencies in witness statements, delay in recording statements, admissibility of electronic evidence, and claims of false implication were held to be matters for trial, and could not be examined in depth at the bail stage.
372. Finally, the Court underscored the gravity, scale, and societal impact of the offences, noting the loss of lives, including that of a police officer, grievous injuries to several public servants, and extensive damage to public and private property. It reiterated that conspiracy cases require a holistic view of the entire chain of events, and that the appellant had failed to dislodge the prima facie case established by the prosecution. In view of the statutory restrictions under UAPA and Cr.P.C., and the serious nature of the allegations, the Court held that the appellant was not entitled to bail and accordingly dismissed the bail application.

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11.4. FINDINGS OF THE HIGH COURT:

373. The High Court in the impugned order held that the prosecution material, when assessed cumulatively, disclosed prima facie involvement of Shadab Ahmed as an active participant in the execution phase of the larger criminal conspiracy culminating in the North-East Delhi riots. He was alleged to be a member of the DPSG WhatsApp group, a regular attendee of key conspiratorial meetings (including those held at Chand Bagh in February 2020), and one of the organisers managing the Chand Bagh–Mustafabad protest site. The Court noted that witness statements and electronic evidence prima facie indicated his role in mobilising protestors, coordinating chakka-jaams, and concurring with plans to escalate protests into violence, including discussions relating to arson, attacks on police, and destruction of public property. His role, though not that of a mastermind, was held to be integral to the operationalisation of the conspiracy.
374. Applying the statutory embargo under Section 43D(5) of the UAPA, the Court held that there were reasonable grounds for believing that the accusations against Shadab Ahmed were prima facie true, thereby barring the grant of bail. The Court rejected pleas based on lack of direct overt acts, alleged contradictions in protected witness statements, parity with co-accused enlarged on bail, and the fact that he had been granted bail in other FIRs arising out of the riots. It was clarified that the present case related to a larger conspiracy under the UAPA, distinct from other FIRs, and that evidentiary inconsistencies and credibility issues are matters for trial. Consequently, the bail appeal was dismissed.

11.5. DISCUSSION ON ROLE AND FINDINGS:

375. It was alleged that accused Shadab Ahmad and Athar Khan, both stated to be members of the Delhi Protest Support Group (DPSG) and participants in the DPSG WhatsApp group, functioned as local operatives executing the larger conspiracy allegedly orchestrated by the principal conspirators to engineer riots under the guise of protests. According to the prosecution, the plan involved a calibrated escalation of peaceful sit-ins into chakka jams, which were thereafter intensified into disruptive blockades accompanied by violence. It is further alleged that both Shadab Ahmad and Athar Khan regularly

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attended DPSG meetings held at the Indian Social Institute, along with members of the Jamia Coordination Committee (JCC) and leaders of various protest sites across Delhi. At these meetings, the progress of the alleged conspiracy was reviewed and operational directions were issued, including through the DPSG WhatsApp group. Documentary material relied upon by the prosecution is stated to indicate that twelve such meetings were held between December 2019 and February 2020.

376. Shadab Ahmad and Athar Khan are further alleged to have played an active role in executing the protest plan at Chand Bagh as devised by DPSG members. Statements of protected witnesses “Silver”, “Gold”, “Venus”, and “Saturn” are relied upon to support the prosecution case regarding the execution of the plan and the specific role attributed to Shadab Ahmad therein.
377. It is further alleged that Shadab Ahmad was present at a meeting held at the Chand Bagh protest site at approximately 02:00 a.m. on 17.02.2020. According to the prosecution, this meeting played an instrumental role in shaping the protests that occurred between 22.02.2020 and 24.02.2020. Call Detail Record (CDR) analysis is relied upon to place Shadab Ahmad at the said meeting. Statements of protected witnesses “Bravo”, “Johnny”, “Lambda”, and “Kilo” are also relied upon to describe the planning undertaken at, and the participation of Shadab Ahmad in, the meeting held on 17.02.2020.
378. The charge-sheet further alleges that Shadab Ahmad also participated in another meeting held during the intervening night of 20.02.2020 and 21.02.2020. As noted hereinabove, the said meeting is alleged to have played a significant role in the protests and incidents of violence that took place on 22.02.2020 and 23.02.2020.
379. According to the prosecution, the aforesaid meetings of 17.02.2020 and 20/21.02.2020 were crucial in the execution of the protests that culminated in violence on 22.02.2020 and 23.02.2020. Pursuant to these meetings, protesters are alleged to have carried out violent acts at the Jafraabad Metro Station. Statements of protected witnesses “Echo” and “Sodium” are relied upon to corroborate the occurrence of, and deliberations at, the conspiratorial meeting held on 20.02.2020 and 21.02.2020.
380. It is further alleged that on the night of 22.02.2020, DPSG members Shadab Ahmad and Athar Khan convened a meeting at the basement

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of one Ayaz in Chand Bagh, which was attended by organisers of various protest sites in North-East Delhi as well as persons who were later arrested in connection with riot-related cases. At the said meeting, it is alleged that they informed the attendees that the Jafrabad chakka jam had been successfully executed in furtherance of the conspiracy and directed them to replicate the same in their respective areas to trigger riots. Thereafter, on 23.02.2020, Shadab Ahmad, Athar Khan, and others are alleged to have shifted the Chand Bagh protest to the main Wazirabad–Ghaziabad Road, resulting in a disruptive chakka jam, attacks on police personnel and civilians, and extensive damage to public and private property. As the violence allegedly did not escalate to the desired level, another conspiratorial meeting is stated to have been held that night at the residence of one Mukhtyar, where it was decided to destroy CCTV cameras to facilitate further violence. Specific tasks for disabling the cameras were allegedly assigned to identified members, with CCTV footage relied upon to corroborate the presence and coordination of the accused.

381. The charge-sheet further relies upon reverse mapping of persons arrested for grave offences committed during the North-East Delhi riots, which is stated to trace a clear chain of command to a clandestine meeting held at Chand Bagh at around 02:00 a.m. on 17.02.2020. According to the prosecution, several key perpetrators of murders, rioting, arson, and other serious offences were either present at the said meeting or remained in regular contact with its participants, particularly DPSG members Shadab Ahmad, Athar Khan, Gulfisha Fatima, and Khalid Saifi. The mapping is relied upon to allege coordinated roles in the commission of murders, acts of rioting and arson, destruction of CCTV cameras, assignment of specific targets, and financing of weapons and ammunition, culminating in the framing of charges against core conspirators in FIR No. 60/2020 relating to mass violence and the killing of Head Constable Ratan Lal. It is further alleged that, after the alleged role of DPSG in the riots came to light, members were instructed to delete WhatsApp chats, following which Shadab Ahmad and Athar Khan were removed from the DPSG group after executing their purported roles in organising the riots in North-East Delhi.
382. Upon a prima facie assessment of the material relied upon by the prosecution, the role attributed to Shadab Ahmad appears

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to be that of a site-level executor associated with Chand Bagh and related protest clusters, whose presence at certain meetings is alleged to have facilitated operational coordination following directions emanating from others. The evidence presently placed on record does not disclose that he occupied an authoritative position in conceptualising the alleged conspiracy or that he exercised independent control over its strategic formulation. His alleged association with chakka jam planning, while relevant to trial, does not by itself sustain the continued deprivation of liberty at the pre-trial stage in the absence of material showing autonomous command or unilateral decision-making authority.

383. The prosecution narrative stresses Shadab's attendance at late-night meetings and his participation in conveying instructions to organisers of protest sites. However, even taken at its highest, this depiction situates him as a conduit for information and coordination rather than as an architect of escalation. The allegations neither establish that he devised the strategy to engineer violence nor that he exercised discretion over the location, timing, or modality of the alleged unlawful acts. The attributed conduct is derivative and execution-centred, and the evidentiary record does not presently disclose that he shaped or altered the trajectory of the protests in a manner warranting further custodial curtailment.
384. The State expresses apprehension that Shadab's enlargement on bail may enable reactivation of dormant networks or interference with witnesses. However, there is no cogent material to suggest that he presently retains the organisational capacity or influence necessary to mobilise individuals or resources independent of the structures that, by the prosecution's own account, operated under a hierarchical command led by others. The risks articulated can be effectively addressed by imposing conditions restraining his interaction with co-accused and witnesses, restricting participation in assemblies concerning the subject matter, and ensuring regular attendance before the trial court.
385. The Court remains mindful that the alleged acts culminated in serious violence yet, the gravity of the incident cannot be the sole criterion to perpetuate detention when the individual's attributed role is operational rather than directive. The prosecution has not demonstrated that Shadab's custodial presence is required for

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ongoing investigation or that further evidence is contingent upon his continued incarceration. In the absence of such necessity, indefinite pre-trial detention would assume a punitive character inconsistent with constitutional guarantees of personal liberty under Article 21, particularly where the alleged conduct is neither shown to be ongoing nor presently repeatable in a manner jeopardising the proceedings.

386. The Court further notes that the documentary and electronic evidence forming the backbone of the prosecution case has already been secured and subjected to forensic processes, and no submission has been advanced suggesting that Shadab's custodial presence is indispensable for recovery of additional material. The absence of any pending investigative step requiring his confrontation or custodial interrogation weighs significantly against continued deprivation of liberty, for pre-trial detention cannot be justified merely to await the vicissitudes of trial when the evidentiary record is substantially crystallised.
387. Moreover, while the prosecution advances the thesis of layered participation culminating in coordinated disruptions across multiple sites, it is incumbent upon the Court to maintain proportionality between the attributed layer of involvement and the nature of liberty restriction imposed. Insofar as Shadab is alleged to have functioned at an executory tier without demonstrated autonomy over escalation or violence, extending pre-trial detention would risk conflating operational participation with strategic authorship, contrary to the requirement that liberty be curtailed only upon individualised and contemporaneous necessity.
388. The Court is also persuaded that calibrated conditions can adequately address the State's concerns regarding potential interference with the administration of justice. In the absence of material demonstrating that measures would be insufficient, continued incarceration cannot be sustained.
389. In these circumstances and bearing in mind that the constitutional presumption favours liberty unless its curtailment is demonstrably necessary for legitimate and current purposes of investigation or trial, the Court finds no compelling grounds to justify the further confinement of Shadab Ahmad. The differentiated hierarchy of roles articulated by the prosecution underscores that his alleged

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conduct, while forming part of the evidentiary matrix for trial, does not presently establish a continuing threat warranting custodial restraint. Subject to strict compliance with conditions imposed by the Court, enlargement on bail remains the proportionate course.

390. Having regard to the differentiated nature of involvement disclosed by the prosecution itself where Umar Khalid and Sharjeel Imam are alleged to have conceptualised and directed the overarching plan, whereas Shadab Ahmad is alleged to have acted as a local-level facilitator of decisions taken elsewhere. This Court finds that the threshold of necessity for continued detention is not fulfilled in his case. Conditional release can sufficiently secure the interests of justice. Accordingly, subject to stringent conditions as imposed below, the appellant is held entitled to be enlarged on bail. These observations are confined to the adjudication of bail and shall not be construed as expressing a view on the merits.

12. GULFISHA FATIMA – SLP (Crl.) No. 13988/2025**12.1. SUBMISSIONS ON BEHALF OF THE APPELLANT:**

391. Learned Senior Counsel Sri Abhishek Manu Singhvi for the Appellant submitted that the impugned judgment of the High Court declining bail suffers from a fundamental error in approach, inasmuch as it proceeds on broad generalisations about the nature of the alleged conspiracy while completely losing sight of the specific role attributed to the present Appellant. It was urged that the Appellant has remained in custody since April 2020, now for more than five and a half years, without charges even being framed, and that the denial of bail in such circumstances amounts to a punitive pre-trial incarceration wholly alien to settled constitutional principles.
392. He further submitted that on a plain reading of the charge sheets and the material relied upon by the prosecution, no overt act of violence is attributed to the Appellant at any protest site. The allegations, at the highest, pertain to participation in and organisation of protests in the Seelampur–Jafrabad area, which, as borne out from the record itself, remained peaceful, with no recoveries, no injuries, no MLCs and no contemporaneous evidence of rioting or use of weapons. It was emphasised that the Appellant was not a member of the alleged conspiratorial WhatsApp groups such as DPSG, which the prosecution itself projects as the backbone of the conspiracy narrative.

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393. Learned Senior Counsel submitted that the High Court has gravely erred in rejecting the Appellant's claim of parity. Co-accused Devangana Kalita and Natasha Narwal, who are alleged to have played a more proximate role in the supposed conspiracy and were admittedly members of DPSG, have been on bail since June 2021, which bail was affirmed by this Hon'ble Court. The role attributed to the Appellant is not only similar but demonstrably lesser, and yet she continues to remain incarcerated. The finding that parity is unavailable is thus unsupported by the record and internally inconsistent with the prosecution's own case.
394. He further submitted that the statutory embargo under Section 43D(5) of the UAPA cannot be read in isolation or as a charter for indefinite detention. This Hon'ble Court has repeatedly held that where there is no likelihood of the trial concluding within a reasonable time, constitutional courts are duty-bound to intervene to protect personal liberty. In the present case, with nearly a thousand witnesses cited, voluminous documentary material, and arguments on charge still pending, there is no realistic prospect of trial commencing, let alone concluding, in the near future.
395. Learned Senior Counsel also submitted that the impugned judgment proceeds on conjectures rather than evidence, particularly while relying on belated and uncorroborated statements of protected witnesses, recorded months after the alleged events, without independent support from call records, recoveries, or contemporaneous material. The High Court, it was urged, has selectively relied upon incriminatory fragments while ignoring exculpatory material, thereby falling into a clear error of law at the stage of bail.
396. He lastly submitted that the continued incarceration of the Appellant, a young woman, despite the absence of any direct allegation of violence, despite clear parity with co-accused already enlarged on bail, and despite extraordinary delay in the progress of the case, results in a manifest violation of Article 21 of the Constitution. It was therefore prayed that this Hon'ble Court may be pleased to set aside the impugned judgment and enlarge the Appellant on bail, on such terms and conditions as this Hon'ble Court may deem fit in the interests of justice.

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397. Learned ASG Sri S.V. Raju submitted that the role of Gulfisha Fatima, Accused No. 5, is clearly delineated in the charge sheets and supporting material, which establish her as a key local executor of the larger criminal conspiracy. She was not a passive protestor but was entrusted with operational responsibility of the Seelampur–Jafrabad protest site, owing to her status as a local resident with deep community access. The prosecution case is that directions issued by principal conspirators were channelled through Gulfisha Fatima for on-ground execution at this site, making her an indispensable link in the conspiracy chain.
398. It was further submitted that Gulfisha Fatima actively participated in conspiratorial meetings, including the meeting held on 23.01.2020 at Yameen House, Seelampur, attended by Umar Khalid, Natasha Narwal and Devangana Kalita, where instructions were issued for stockpiling red chilli powder, acid, bottles and sticks. Witnesses examined under Section 164 CrPC have specifically named Gulfisha Fatima as being present in this meeting. Her presence is not incidental but forms part of the preparatory stage of the conspiracy, preceding the escalation of protests into violence.
399. Learned ASG Sri S.V. Raju submitted that Gulfisha Fatima also attended the clandestine meeting held in the intervening night of 16/17.02.2020 at Chand Bagh, where the final roadmap for escalating chakka-jam into violent riots was discussed. Witnesses have deposed that representatives of North-East Delhi protest sites, including Gulfisha Fatima, were present and agreed to intensify road blockades and orchestrate violence. This meeting constitutes the immediate precursor to the events of 22.02.2020 and 23.02.2020 and directly links Gulfisha Fatima to the execution phase of the conspiracy.
400. It was further submitted that pursuant to these meetings, Gulfisha Fatima actively mobilised women protestors, used coded language to communicate instructions, and facilitated distribution of stones, chilli powder and other material at the Jafrabad protest site. Statements of witnesses recorded under Section 164 CrPC specifically attribute to her the act of instigating women protestors and providing them with materials used to attack police personnel and civilians. These

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acts are not symbolic or peripheral but constitute direct participation in chakka-jam and the subsequent violent riots on 22.02.2020 and 23.02.2020, leading to registration of FIRs for serious offences including attempt to murder and murder.

401. Learned ASG Sri S.V. Raju further submitted that Gulfisha Fatima remained in continuous contact with other co-accused persons, including Athar Khan, Natasha Narwal, Devangana Kalita and Tasleem Ahmad, and that real-time updates from the Seelampur–Jafrabad site were communicated to principal conspirators. The prosecution has also relied upon witness statements indicating that Gulfisha Fatima received funds from co-accused Tahir Hussain for utilisation in riots. At the stage of bail, these materials clearly satisfy the threshold of “prima facie true” under Section 43D(5) of the UAPA.
402. He lastly submitted that the plea of parity raised by Gulfisha Fatima is wholly misconceived, as her role as a local executor and facilitator at a critical protest site distinguishes her from other accused who have been granted bail. The gravity of her specific acts, her proximity to the execution of violence, and the statutory embargo under Section 43D(5) of the UAPA disentitle her from any discretionary relief. It was therefore prayed that the appeal filed by Gulfisha Fatima be dismissed and the order declining bail be affirmed.

12.3. FINDINGS OF THE TRIAL COURT:

403. The Trial Court vide order dated 16.03.2022 passed in IA. No. 72/2021 in SC 163/2020 dismissed the bail application filed by the Appellant. The Trial Court held that the allegations against the appellant disclosed prima facie involvement in a large-scale and deep-rooted criminal conspiracy culminating in the North-East Delhi riots of February 2020. On a holistic reading of the charge-sheet, case diary, witness statements, and electronic material, the Court found sufficient material indicating that the protests were not spontaneous but were engineered, escalated into chakka-jam, and thereafter into targeted violence, with prior meetings, coordinated roles, and preparatory acts. At the stage of bail, the Court emphasized that it was not required to conduct a meticulous appreciation of evidence, and that the prosecution material, taken at face value, revealed the appellant’s complicity in the conspiracy.

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404. A central reason for rejection was the statutory bar under Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967. Applying the law laid down in ***National Investigation Agency v. Zahoor Ahmad Shah Watali (supra)***, the Court held that once there are reasonable grounds for believing that the accusation is prima facie true, bail must be refused. The Court found that the material collected by the investigating agency satisfied this threshold, and therefore the embargo under Section 43D(5) squarely operated against the appellant, in addition to the rigour of Section 437 Cr.P.C. applicable to serious offences.
405. The Court also rejected the appellant's arguments seeking bail on parity with co-accused who had been granted bail by the High Court. It held that parity cannot be claimed mechanically, particularly in conspiracy cases where roles may differ, and when the statutory bar under UAPA applies. The Court further noted that the High Court orders relied upon by the appellant did not dilute the obligation of the trial court to independently assess whether the accusations against the present appellant were prima facie true under Section 43D(5). Consequently, parity was held to be inapplicable.
406. Lastly, the Trial Court found no merit in the defence contentions regarding alleged infirmities in witness statements, admissibility of electronic evidence, or claims of false implication. Relying on settled law, it held that questions of admissibility, credibility, and contradictions are matters for trial, not for determination at the bail stage. Considering the gravity of offences, the nature of the conspiracy, the material indicating coordinated violence, and the statutory restrictions on grant of bail, the Court concluded that the appellant was not entitled to bail, and accordingly dismissed the bail application.

12.4. FINDINGS OF THE HIGH COURT:

407. The High Court in the impugned order held that the prosecution material, when viewed cumulatively, disclosed prima facie involvement of Gulfisha Fatima in the execution of the larger criminal conspiracy culminating in the North-East Delhi riots of February 2020. She was alleged to have actively managed and guided multiple protest sites in the Seelampur–Jafrabad area, including the creation of a 24×7 sit-in at Madina Masjid, Seelampur, and the

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establishment of additional local protest points. The Court noted material indicating her participation in conspiratorial meetings, her role in mobilising women protestors, creation and administration of WhatsApp groups for coordination, use of code words to signal chakka-jaams, and alleged involvement in stockpiling materials for violence. These acts, assessed on broad probabilities, were held sufficient at the bail stage to connect her to the execution of the conspiracy rather than mere presence at protests.

408. Applying the rigour of Section 43D(5) of the UAPA, the Court held that there were reasonable grounds for believing that the accusations against Gulfisha Fatima were prima facie true, thereby creating a statutory bar to bail. The pleas of parity with co-accused granted bail, absence of recoveries, alleged lack of direct incitement, and prolonged incarceration were rejected. The Court clarified that her role, particularly in local mobilisation, coordination of protest sites, and alleged instigation of violence, was distinct from that of the co-accused released on bail, and that issues of credibility and evidentiary weight must be tested at trial. In view of the seriousness of the allegations and the statutory embargo, the bail appeal was dismissed.

12.5. DISCUSSION ON ROLE AND FINDINGS:

409. Gulfisha Fatima, stated to be a member of the organisation Pinjra Tod, is a local resident of Seelampur and, as per the charge-sheet, is alleged to have been one of the principal executors of the plan purportedly hatched by Umar Khalid and Sharjeel Imam. The protest site at the 66 Foot Road, Seelampur, is stated to have been assigned to Gulfisha Fatima along with Natasha Narwal and Devangana Kalita, both of whom are alleged members of the Delhi Protest Support Group (DPSG) and its associated WhatsApp group. Gulfisha Fatima is alleged to have been responsible for coordinating the Seelampur/Jafrabad protest site. It is further alleged that directions issued by DPSG were conveyed to Gulfisha Fatima by Natasha Narwal and Devangana Kalita for implementation at the ground level. Being a resident of the locality, Gulfisha Fatima is stated to have facilitated access to the area and to have instigated local residents to participate in the protests. The charge-sheet further alleges that on 26.12.2019, Gulfisha Fatima created a WhatsApp group titled "Warriors" for the purpose of mobilising women and inciting them to engage in violence.

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410. On 15.01.2020, Gulfisha Fatima is alleged to have been among the key individuals who initiated a women- and child-centric protest site at Seelampur near Madina Masjid, in accordance with the alleged plan of the conspirators. She, along with Devangana Kalita, is stated to have attended a conspiratorial meeting convened by Umar Khalid on 23.01.2020 at a purportedly secret office located at Yameen House, Seelampur. As noted hereinabove, in the said meeting, Umar Khalid is alleged to have issued directions for stockpiling red chilli powder, acid, bottles, and sticks. It is further alleged that pursuant to the said meeting, Gulfisha Fatima stockpiled chilli powder, wooden sticks (dandas), acid, bottles, and other materials, and that she used coded language to transmit directions of the conspirators to the protesters. Statements of protected witness “Echo” are relied upon in the charge-sheet in support of these allegations.
411. On 17.02.2020, Gulfisha Fatima is alleged to have attended a meeting held at the Chand Bagh protest site during the night hours, which is stated to have been attended by members of DPSG. According to the charge-sheet, approximately twenty persons attended the said meeting, including Gulfisha Fatima. At the said meeting, a roadmap for execution of the final phase of the alleged conspiracy namely, escalation of chakka jams into disruptive chakka jams and the organisation of violence and riots- is stated to have been outlined by co-accused Athar Khan. The charge-sheet relies upon electronic evidence to assert the presence of Gulfisha Fatima at the said meeting.
412. The charge-sheet further alleges that on 22.02.2020, Gulfisha Fatima not only instigated women to participate in the protests but also actively participated in the protest held at the Jafrabad Metro Station. In connection with the riots that occurred at the said location, FIR No. 48/2020 is stated to have been registered.
413. It is further alleged that on 23.02.2020, in furtherance of the conspiracy, approximately 300 women from the Jahangirpuri area were first transported to Shaheen Bagh and thereafter taken to the Jafrabad chakka jam site, where DPSG members, namely Natasha Narwal, Devangana Kalita, and Gulfisha Fatima, are alleged to have supplied stones and red chilli powder to them for use in attacks on police personnel and non-Muslims, thereby instigating violence. The charge-sheet further alleges that leaders of the Pinjra Tod

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group associated with the Chand Bagh protest site were actively orchestrating the riots. Statements of protected witnesses “Helium” and “Sierra” are relied upon to substantiate the alleged role of Gulfisha Fatima in the incidents of violence.

414. According to the charge-sheet, Gulfisha Fatima is alleged to have been one of the leading executors of the orchestrated violence that occurred on 23.02.2020, which is stated to have resulted in loss of innocent lives and extensive damage to public property.
415. The charge-sheet further alleges that Gulfisha Fatima was financially supported by co-accused Tahir Hussain in furtherance of the alleged conspiracy.
416. At this stage, a prima facie evaluation of the material placed on record indicates that Gulfisha Fatima’s alleged role, though not insignificant, is confined to the operational execution of directions purportedly transmitted through other actors. The prosecution narrative does not attribute to her any determinative authority in conceptualising or directing the alleged conspiracy; rather, she is projected as a ground-level facilitator at Seelampur/Jafrabad. Where the evidentiary foundation itself distinguishes between those who are alleged to have architected the larger design and those alleged to have acted upon instructions, this Court is persuaded that her role remains materially distinct from that of the principal conspirators.
417. The allegation that Gulfisha Fatima mobilised local women and coordinated protest-site logistics, though relevant to the prosecution’s case, does not presently disclose that she exercised independent command, resource control, or strategic oversight over multiple protest sites. The prosecution itself asserts that directions were conveyed to her by others higher in the asserted hierarchy. In these circumstances, this Court finds that the level of attributed agency and control does not justify continued incarceration once the investigative purpose stands substantially fulfilled.
418. The apprehension that her release may lead to interference with witnesses or revival of the alleged operational network is considerably attenuated by the absence of material suggesting that she retains any autonomous capacity to mobilise persons or resources in the current circumstances. It is undisputed that the structures relied upon by the prosecution both formal or informal no

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longer exist in their asserted form, and the appellant's present ability to exert influence is neither pleaded with specificity nor supported by contemporaneous material. The imposition of stringent conditions can sufficiently safeguard against any residual risk.

419. It bears reiteration that the gravity of the incidents in question, though serious, cannot eclipse the constitutional demand for individualized assessment of necessity in pre-trial detention. Prolonged incarceration premised solely on the seriousness of allegations, absent a proximate and continuing nexus between the appellant and present threats to the administration of justice, would amount to a punitive measure inconsistent with settled principles. In view of her alleged executory role and absence of demonstrable present capacity to influence proceedings, continued custody does not meet the threshold of necessity.
420. This Court is cognisant of the appellant's status as a woman and the settled principle that gender, while not conferring immunity from criminal law, remains a relevant consideration in determining the necessity of continued pre-trial detention. The appellant has remained in custody for a substantial period, and there is no material to indicate that her release would pose an irremediable risk that cannot be addressed by restrictive conditions. The law does not envisage incarceration as a measure of deterrence at the pre-trial stage, particularly where the individual concerned is a woman with no prior criminal antecedents and whose alleged actions stem from a ground-level facilitating role.
421. The allegations attributed to the Appellant i.e. assignment of protest sites, coordination of local mobilisation, participation in meetings of DPSG members, and logistical execution of protest activities are substantially identical to the allegations against co-accused Natasha Narwal and Devangana Kalita, who allegedly conveyed DPSG directions to the Appellant and jointly coordinated the Seelampur/Jafrabad protest sites.
422. Once bail has been granted to co-accused who stand on the same factual and legal footing in terms of alleged roles, meetings, communications, and purported execution on the ground, continued incarceration of the Appellant violates the settled principle of parity.
423. The prosecution's evidentiary foundation against the Appellant including statements of protected witnesses, alleged electronic

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presence in meetings, reliance on WhatsApp groups, and alleged mobilisation of women mirrors the nature and quality of evidence relied upon against co-accused Natasha Narwal and Devangana Kalita, who were enlarged on bail despite similar reliance on anonymous witness testimony, electronic traces of presence, and allegations of mobilisation and logistical facilitation.

424. In the absence of any distinguishing material against the Appellant, denial of bail would constitute hostile discrimination vis-à-vis similarly situated co-accused, offending Article 14 and the doctrine of parity. Accordingly, and keeping in view the differentiated footing on which the prosecution itself places Gulfisha Fatima as compared to the alleged masterminds Umar Khalid and Sharjeel Imam, this Court is of the considered view that further detention is not warranted at this stage. Subject to conditions ensuring regular attendance before the trial court, restrictions on contact with prosecution witnesses, and abstention from public commentary relating to the case and further conditions enumerated hereinbelow., the appellant is held entitled to be enlarged on bail. Nothing stated herein shall be treated as an expression on merits or an assessment of guilt.
425. The appellant's continued detention must also be weighed against the constitutional imperative to ensure that the administration of criminal justice does not operate in a manner that disproportionately burdens women, especially where the investigative agency has concluded its inquiry against her and no custodial interrogation is sought. While gender alone cannot dictate the outcome, it forms a legitimate factor in the proportionality assessment under Article 21, and in the present factual matrix where the appellant's alleged participation lacks the strategic centrality attributed to the principal conspirators this consideration reinforces the conclusion that her pre-trial liberty can be secured through appropriate conditions rather than prolonged incarceration.

13. FINAL CONCLUSION AND OPERATIVE DIRECTIONS

426. The present batch of appeals has required the Court to engage with questions that lie at the intersection of personal liberty and collective security. The guarantee of liberty enshrined under Article 21 of the Constitution is of foundational importance, and no constitutional court can be unmindful of the gravity of restraining liberty before

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guilt is adjudicated. At the same time, the Constitution does not conceive liberty in isolation. The security of the community, the integrity of the trial process, and the preservation of public order are equally legitimate constitutional concerns. When bail is sought in prosecutions governed by a special statute, the Court is required to undertake a difficult and sensitive balancing exercise, conscious that neither liberty nor security admits of absolutism.

427. While undertaking this exercise, the Court cannot proceed on any consideration except restricting the contours of inquiry confining to law. Where Parliament has prescribed a distinct statutory threshold for the grant of bail, and where the prosecution places *prima facie* material suggesting organised and deliberate activity affecting public order and security of the Nation, the Court cannot turn a Nelson's eye to such material merely because incarceration is prolonged or liberty is invoked in the abstract. Equally, where continued detention is not shown to be necessary to serve a legitimate purpose recognised by law, the Court must not hesitate to restore liberty, subject to stringent conditions that safeguard the larger public interest.
428. The position of law that emerges may be stated with clarity. The right to personal liberty enshrined under Article 21 is of seminal importance, and prolonged pre-trial incarceration is a matter of serious constitutional concern. At the same time, where Parliament has, in the context of a special statute, conditioned the grant of bail upon the satisfaction of a defined statutory threshold, a constitutional court cannot treat such restraint as avoidable. Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967, represents a legislative judgment that offences alleged to implicate the security of the State warrant a distinct bail regime. The constitutional role of the Court, therefore, is neither to mechanically enforce the statutory embargo nor to neutralise it by invocation of liberty as straight-jacket formula, but to apply it with disciplined scrutiny. Where the prosecution material, taken at face value, discloses reasonable grounds for believing the accusation to be *prima facie* true, the statutory restraint must ordinarily operate. Where it does not, liberty must prevail. Article 21 thus commands the manner of application of the statute; it does not dissolve the statutory condition itself.
429. It is in this constitutional and statutory framework that the individual appeals have been examined based on facts obtained. The Court

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has consciously avoided a collective or uniform approach. Each appellant has been assessed on the basis of the role attributed, the nature of material relied upon, and the stage of the proceedings, strictly within the limited compass of adjudication for grant of bail.

13.1. ACCUSED IN RESPECT OF WHOM BAIL IS DECLINED

430. This Court is satisfied that the prosecution material, taken at face value as required at this stage, discloses a prima facie attribution of a central and formative role by the appellants in appeals arising out of SLP (Crl.) No. 14165 of 2025 and SLP (Crl.) No. 14030 of 2025 i.e., Umar Khalid and Sharjeel Imam in the alleged conspiracy. The material suggests involvement at the level of planning, mobilisation, and strategic direction, extending beyond episodic or localised acts. The statutory threshold under Section 43D (5) of the Unlawful Activities (Prevention) Act, 1967, therefore stands attracted qua these appellants.
431. While the period of incarceration undergone by these appellants is substantial and has been duly considered, the Court is not persuaded that, on the present record, continued detention has crossed the threshold of constitutional impermissibility so as to override the statutory embargo. The complexity of the prosecution, the nature of evidence relied upon, and the stage of the proceedings do not justify their enlargement on bail at this juncture as noticed in detail in the discussion made hereinabove. Hence, the appeals arising out of SLP (Crl.) No. 14165 of 2025 and SLP (Crl.) No. 14030 of 2025 stands rejected.
432. We reiterate that courts are under a constitutional obligation to ensure that criminal proceedings, particularly those involving prolonged pre-trial incarceration, should progress with utmost expedition and the accused are not left to languish in jail. At the same time, the Court is mindful that pre-trial detention, even when justified by statute, cannot be permitted to continue without regard to the progress of the trial. The restraint on liberty contemplated by law must proceed alongside a meaningful advancement of the prosecution. In the present case, having regard to the reliance placed upon protected witnesses, this Court considers it appropriate to provide a defined point for consideration of their prayer for grant of bail. We are of the opinion that on the completion of the examination of the protected

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witnesses relied upon by the prosecution, or upon the expiry of a period of one year from the date of this order, whichever is earlier, these two appellants would be at liberty to renew their prayer for grant of bail before the jurisdictional Court. In the event of such prayer being made it shall be considered on its own merits, having regard to the stage then reached in the proceedings before the Trial Court, and without being influenced by the impugned orders or the present order. This course gives effect to the statutory discipline embodied in Section 43D(5) of UAPA while ensuring that the constitutional guarantee under Article 21 operates as a continuing check against continued incarceration without there being any substantial progress of the trial.

13.2. ACCUSED IN RESPECT OF WHOM BAIL IS GRANTED

433. The appeals arising out of SLP (Crl.) No. 13988 of 2025 (Gulfisha Fatima), SLP (Crl.) No. 14132 of 2025 (Meeran Haider), SLP (Crl.) No. 14859 of 2025 (Shifa-ur-Rehman), SLP (Crl.) No. 15335 of 2025 (Mohd. Saleem Khan), and SLP (Crl.) No. 17055 of 2025 (Shadab Ahmed) are allowed as the Court is of the view that, having regard to the role attributed, the nature of the material relied upon, and the present stage of the proceedings, continued incarceration is not shown to be indispensable to the conduct of a fair trial, provided strict safeguards are imposed. The grant of bail in their favour does not reflect any dilution of the seriousness of the allegations, nor does it amount to a finding on guilt. It represents a calibrated exercise of constitutional discretion, structured to preserve both liberty of the individual and security of the nation.

13.3. CONDITIONS GOVERNING RELEASE ON BAIL

434. The appellants granted bail shall be released subject to the following conditions, which are imposed not as matters of form, but as substantive safeguards in the interest of national security, public order, and the integrity of the trial process.
- i. Each of the appellants shall execute a personal bond in the sum of ₹2,00,000/- (Rupees Two Lakhs only) with two local sureties of the like sum to the satisfaction of the Trial Court.
 - ii. The appellants shall remain within the National Capital Territory of Delhi and shall not leave its territorial limits without prior

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permission of the Trial Court. Any request for travel shall disclose reasons and such prayer/request shall be considered by the Trial Court strictly on its merits

- iii. The appellants shall surrender their passports, if any, before the Trial Court. Where no passport exists, an affidavit to that effect shall be filed. We direct the respondent to intimate all the immigration authorities in the country not to permit their exit from the country in any manner whatsoever, without express permission from the Trial Court.
- iv. The appellants shall furnish their current residential addresses, contact numbers, and e-mail addresses to the Investigating Officer as well as to the Trial Court. The appellants shall not change their place of residence or contact particulars without giving at least seven days' prior written intimation to the Investigating Officer and the Trial Court.
- v. Each of the appellants, namely Gulfisha Fatima, Meeran Haider, Shifa-ur-Rehman, Mohd. Saleem Khan, and Shadab Ahmed, shall personally appear twice a week, that is on Monday and Thursday between 10:00 a.m. and 12:00 noon, before the Station House Officer, Police Station Crime Branch, Delhi Police, Office of the Commissioner of Police, Police Headquarters, Jai Singh Marg, New Delhi – 110001 and mark their attendance. The Station House Officer shall maintain a separate register of attendance in respect of each of these appellants and shall furnish a monthly compliance report to the Trial Court, which shall be placed on the main record of the case.
- vi. The abovenamed appellants shall not directly or indirectly contact, influence, intimidate or attempt to contact any witness or any person connected with the proceedings, nor shall they associate with or participate in the activities of any group or organization linked to the subject matter of the present FIR/ final report.
- vii. The appellants shall not make or publish or disseminate any information, statement, article or post whether in print, electronic or social media concerning the present case or its participants till conclusion of the trial.

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- viii. The appellants shall not participate in any programme or address or attend any gathering, rally or meeting, whether physically or virtually till conclusion of the trial.
 - ix. The appellants shall not circulate any post either in electronic form or physical form or circulate any hand bills, posters, banners, etc in any form whatsoever.
 - x. The appellants shall fully cooperate with the trial and shall appear on every date of hearing unless exempted for reasons to be recorded by the Trial Court to its satisfaction and they shall not exhibit any conduct that has the effect of delaying the proceedings.
 - xi. The appellants shall maintain peace and good behaviour throughout and in the event of any offence committed during the pendency of the trial, the prosecution would be at liberty to seek for revocation of the bail granted by filing such application before the Trial Court and in the event of such application being filed the Trial Court shall consider it on its own merits.
435. In case of breach of any of the afore-stated conditions imposed or in the event of appellants having misused the liberty granted, it shall be open to the Trial Court to cancel the bail which would be necessarily after affording opportunity of hearing to the appellants.

13.4. CONCLUDING OBSERVATION

436. Before we conclude, it bears reiteration that a principle lies at the heart of constitutional adjudication in matters of this nature. The Constitution guarantees personal liberty, but it does not conceive liberty as an isolated or absolute entitlement, detached from the security of the society in which it operates. The sovereignty, integrity, and security of the nation, as well as the preservation of public order, are not abstract concerns rather they are constitutional values which Parliament is entitled to protect through law. Where a special statutory framework has been enacted to address offences perceived to strike at these foundations, courts are duty-bound to give effect to that framework, subject always to constitutional discipline.
437. In the application of such law, the Court does not proceed on identity, ideology, belief, or association. It proceeds on role, material, and the statutory threshold governing the exercise of jurisdiction. Criminal law

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does not mandate identical outcomes merely because allegations arise from the same transaction. Those alleged to have conceived, directed, or steered unlawful activity or terrorist activity stand on a different legal footing from those whose alleged involvement is confined to facilitation or participation at a different level. To disregard such distinctions would itself result in arbitrariness.

438. The present decision reflects this constitutional method. It neither endorses the prosecution case nor prejudices the guilt of any accused. It applies the law as it stands, recognising that individual liberty must be protected, but that it must also withstand the legitimate demands of national security and collective safety. This balance is not a matter of preference rather it is a matter of constitutional duty.
439. Before parting, it is necessary to reiterate the limited nature of the present determination. The Court has not examined the merits of the prosecution case beyond the confines mandated at the stage of consideration of an application seeking bail, nor has it expressed any opinion on the ultimate culpability of any of the accused. All observations are confined to the material presently on record and to the statutory and constitutional standards governing pre-trial liberty under a special enactment.
440. Having regard to the nature of the prosecution and the period of incarceration already undergone, it is considered appropriate to direct that the Trial Court shall proceed with the matter with due expedition and shall endeavour to ensure that the examination of witnesses, particularly the protected witnesses relied upon by the prosecution, is taken up and carried forward without delay.
441. The prosecution shall take all necessary steps to secure the presence of its witnesses on the dates fixed and the parties shall refrain from seeking adjournments except for reasons which are unavoidable. The Trial Court shall be at liberty to regulate the proceedings in accordance with law so as to ensure that the trial is not unnecessarily prolonged, while at the same time safeguarding the rights of all parties.
442. It is clarified that these directions are issued in furtherance of the obligation to ensure a fair and timely trial and shall not be construed either as an expression on the merits of the prosecution case or as a constraint on the discretion of the Trial Court in the conduct of the proceedings.

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443. The Trial Court shall remain free to adopt such measures as are permissible in law to ensure that the trial proceeds with continuity and at a reasonable pace, consistent with the requirement of fairness and the orderly administration of criminal justice.
444. There would be something amiss in this judgment, if we do not place on record the able and arduous assistance rendered by learned Senior Counsels led by Shriyuths Kapil Sibal, Abhishek Manu Singhvi, Salman Khurshid, Siddharth Luthra, Siddhartha Dave, Siddharth Aggarwal and learned Advocate Gautam Khazanchi and their team of lawyers appearing for appellants including the painstaking efforts put in by Sri. Tushar Mehta, learned Solicitor General of India and Sri. S.V. Raju, learned Additional Solicitor General of India and their team appearing for respondent – State, the Law Clerks-cum-Research Associates for assisting this Court in rendering this judgment expeditiously in the background of voluminous records, lengthy arguments and catena of judgments relied upon.

Result of the case: Appeals arising out of SLP (Crl.) No. 14165 of 2025 (Umar Khalid) and SLP (Crl.) No. 14030 of 2025 (Sharjeel Imam) dismissed.

Appeals arising out of SLP (Crl.) No. 13988 of 2025 (Gulfisha Fatima), SLP (Crl.) No. 14132 of 2025 (Meeran Haider), SLP (Crl.) No. 14859 of 2025 (Shifa-ur-Rehman), SLP (Crl.) No. 15335 of 2025 (Mohd. Saleem Khan), and SLP (Crl.) No. 17055 of 2025 (Shadab Ahmed) allowed.

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Bureau, A.P. & Anr. Etc.**

v.

Dayam Peda Ranga Rao Etc.

(Criminal Appeal No(s). 122-134 of 2026)

08 January 2026

[M.M. Sundresh* and Satish Chandra Sharma, JJ.]

Issue for Consideration

A set of cases where, the FIRs registered, for offences punishable under the Prevention of Corruption Act, 1988 have been quashed, which left the investigation(s) being nipped in the bud in some cases, while, in the others, criminal proceedings stood terminated. The High Court has undertaken the said exercise, solely on the issue of jurisdiction of the police station which registered the FIRs.

Headnotes[†]

Prevention of Corruption Act, 1988 – Code of Criminal Procedure, 1973 – s.2(s) – Bharatiya Nagarik Suraksha Sanhita, 2023 – Andhra Pradesh Reorganisation Act, 2014 – FIRs were registered at the office of the Anti-Corruption Bureau, Central Investigation Unit, Andhra Pradesh, Vijayawada Police Station, between the years 2016 and 2020, for offences punishable under the PC Act – All these FIRs were challenged by the persons arrayed as accused, respondent(s) herein, primarily on the ground that the Anti-Corruption Bureau, Central Investigation Unit, Andhra Pradesh, Vijayawada Police Station, is not notified as a police station u/s.2(s) of the CrPC, 1973 and, therefore, lacks jurisdiction to register the FIRs – By the impugned judgment, the High Court held that, in the absence of a notification u/s.2(s) of the CrPC, 1973, the police station, to which the police officers who registered the FIRs belong to, do not have any jurisdiction to register the same – Accordingly, all the registered FIRs were quashed, without even indicating which forum would otherwise have the jurisdiction – Correctness:

Held: The approach of the High Court has caused travesty of justice – If, on a hyper-technical ground, the FIRs are quashed,

* Author

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the High Court is duty-bound to lay down the law with respect to the jurisdiction that otherwise exists – The High Court has completely misdirected itself while interpreting the law, including the principles laid down by this Court in *Swarn Rekha Cokes & Coals (P). Ltd.* – Though this decision has been overruled, paragraphs 26 to 28, contained thereunder, have been affirmed by the subsequent decision of this Court in the case of *State of Madhya Pradesh and Others* – The reasoning of the High Court, that a declaration by way of a notification has to be published in the Official Gazette for due compliance of s.2(s) of the CrPC, 1973, is unacceptable – Similarly, the finding, that the subsequent clarificatory Government Order of 2022 will not have an effect on the FIRs registered, is totally untenable and against the basic canons of law – When a Government Order is issued by way of a clarification, there is no question of any retrospective application – In fact, the said Government Order merely quotes the various provisions of the 2014 Act in order to make the position abundantly clear – This Court took the earlier judgments into consideration and, in fact, dealt with the very same 2014 Act and held that the legal fiction should be so that the existing laws, prior to bifurcation, would continue to be in force in both the States, unless altered, repealed or amended in accordance with law – Any construction to the contrary would defeat the very intent and purpose of the Government Orders, which were given the status of 'law,' *vide* Circular dated 26.05.2014 – Thus, the impugned judgment is set aside – The appellant(s) are at liberty to proceed with the investigation – However, the appellant(s) directed not take any coercive steps by way of arresting the respondents herein – The respondents herein directed to co-operate with the expeditious conclusion of the investigation – The High Court not to entertain any more challenge to the FIRs or the pending investigation. [Paras 22-24, 26, 27, 29]

Case Law Cited

Commissioner of Commercial Taxes Ranchi and Another v. Swarn Rekha Cokes & Coals (P) Ltd. and Others [2004] **2 SCR 633 : (2004) 6 SCC 689**; *State of Madhya Pradesh and Others v. Lafarge Dealers Association and Others* [2019] **18 SCR 924 : (2019) 7 SCC 584**; *State, Central Bureau of Investigation v. A. Satish Kumar and Others* [2025] **1 SCR 130 : AIR 2025 Supreme Court 913 – relied on.**

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State of Punjab and Others v. Balbir Singh and Others [1976] 2 SCR 115 : (1976) 3 SCC 242; *Ranjan Sinha and Another v. Ajay Kumar Vishwakarma and Others* [2017] 7 SCR 194 : (2017) 14 SCC 774 – referred to.

List of Acts

Prevention of Corruption Act, 1988; Code of Criminal Procedure, 1973; Bharatiya Nagarik Suraksha Sanhita, 2023; Andhra Pradesh Reorganisation Act, 2014.

List of Keywords

Hyper-technical ground; Section 2(s) of CrPC; Section 2(o) of CrPC; *Pari Materia*; Official Gazette Notification; Section 2(f) of Andhra Pradesh Reorganisation Act, 2014; Section 100 of Andhra Pradesh Reorganisation Act, 2014; Continuity of Laws; Travesty of Justice; Clarificatory Notification; Substance over Form; Disproportionate Assets; Investigation.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No(s). 122-134 of 2026

From the Judgment and Order dated 01.08.2025 of the High Court of Andhra Pradesh at Amravati in CRLP Nos. 3955, 197, 433, 1376, 2211, 2253, 2451, 3808, and 4831 of 2021, and CRLP Nos. 4469, 5958, and 5985 of 2020, and CRLP No. 2066 of 2023

Appearances for Parties

Advs. for the Appellant(s):

Sidharth Luthra, Siddharth Aggarwal, Sr. Advs., Ms. Prerna Singh, Guntur Pramod Kumar, Dhruv Yadav, Ms. Rajni Gupta, Vishwajeet Singh, Karl P Rustomkhan, Parv Arora.

Advs. for the Respondent(s):

Dr. Sofia Begum, Guru Krishnakumar, Sr. Advs., Mrs. Gouri Karuna Mohanti, Ms. Anu Gupta, Veerla Sateesh Kumar, Deepak Kumar Singh, Ms. Puspa Kishore, Sujeet Kumar Gupta, Satendra Kumar, Ms. Mansa Singh, Ms. Sangeeta Gaur, Ms. Shubra Shah, Pradeep Kumar Shah, Dharmavath Ravi, Anugu Ushi Reddy, Sriram P., S Ragasandesh, Ms. Anu Gupta, Sriram P., Bhushan Mahendra

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Oza, Ms. Nidhi Mittal, C. K. Sasi, Sulakshan Vs, Agnish Aditya, Vishesh Goel, Ms. Nidhi Mittal, Suresh Babu, Navin Suresh, C. K. Sasi, Dr. Kk Geetha, Ms. Meena K Poulouse, Suresh Babu, Navin Suresh, C. K. Sasi, Dr. Kk Geetha, Ms. Meena K Poulouse.

Judgment / Order of the Supreme Court

Judgment

M.M. Sundresh, J.

1. Leave granted.
2. Heard the learned Senior Counsel and learned Counsel appearing for the appellant(s) and respondent(s). We have perused the documents placed before us, along with the written submissions made.
3. A helping hand, extended by the High Court of Andhra Pradesh through a hyper-technical approach, in nullifying the First Information Reports (hereinafter referred to as “**FIRs**”) registered in a batch of cases, pertaining to offences committed under the provisions of the Prevention of Corruption Act, 1988 (hereinafter referred to as the “**PC Act**”), which left the investigation(s) being nipped in the bud in some cases, while, in the others, criminal proceedings stood terminated, led to the present appeals being filed before us.

DISCUSSION OF RELEVANT LEGAL PROVISIONS, GOVERNMENT ORDERS AND CIRCULARS:

THE CODE OF CRIMINAL PROCEDURE, 1973

4. The Code of Criminal Procedure, 1973 (hereinafter referred to as the “**CrPC, 1973**”) was replaced by the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as the “**BNSS, 2023**”). As the relevant provisions, in both the Statutes, are *pari materia*, we would only deal with the former enactment for the sake of brevity.

Section 2(s) of the CrPC, 1973:

“**2. Definitions.**—In this Code, unless the context otherwise requires,—

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(s) “police station” means any post or place declared generally or specially by the State Government, to be a police station, and includes any local area specified by the State Government in this behalf;”

(emphasis supplied)

Section 2(s) of the CrPC, 1973 defines a ‘police station’. It concerns itself with two distinct and separate categories, namely, ‘post’ and ‘place’. Accordingly, a ‘post,’ held by a police officer, can be defined as a police station, and so also a ‘place’. In a given case, there can be a combination of both. The definition clause, under Section 2(s) of the CrPC, 1973, is both exhaustive and inclusive. It is exhaustive to mean, any post or any place, while it includes any local area specified by the State Government. The inclusion of ‘local area’ would come within the definition of place, meaning thereby, a place would include, a specified one, a town, a city, a taluk, a village, a district or even a State itself. Therefore, a local area is a *species* of the *genus* ‘place’. The declaration, that is warranted, under the definition clause, is rather formal. It can be specific, either to a place or to a post, or general, to a group of posts or places. Suffice it is to state that, under the definition, there need not be a specific place to be declared as a police station, as even a post being held by a police officer would constitute a police station.

Section 2(o) of the CrPC, 1973:

“2. **Definitions.**—In this Code, unless the context otherwise requires,—

(o) “officer in charge of a police station” includes, when the officer in charge of the police station is absent from the station-house or unable from illness or other cause to perform his duties, the police officer present at the station-house who is next in rank to such officer and is above the rank of constable or, when the State Government so directs, any other police officer so present;”

This provision defines an “officer in charge of a police station.” This is an inclusive definition, which refers to a police officer at the station

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house, placed next in rank to the officer in charge, and is above the rank of constable, unless the State Government otherwise so directs.

G.O.Ms. No. 268 HOME (PSC) DEPARTMENT dated 12.09.2003

5. The Government of Andhra Pradesh issued a notification, by way of the aforesaid Government Order, declaring the offices of Anti-Corruption Bureau (A.C.B) as Police Stations, with their respective jurisdiction.

**GOVERNMENT OF ANDHRA PRADESH
ABSTRACT**

Anti-Corruption Bureau, Andhra Pradesh - Declaration of Offices of Anti-Corruption Bureau of Police Stations with their jurisdiction. Notification - Issued.

HOME (PSC) DEPARTMENT

G.O.Ms.No. 268.

Dated: 12-9-2003

Letter C.No. 51/RPCC/2002 dated 7-6-2002 of the
Director General, Anti-Corruption Bureau, Andhra
Pradesh, Hyderabad.

ORDER: -

The following Notification will be published in Andhra Pradesh Gazette, dated - 2003

NOTIFICATION

In exercise of the powers conferred by clause (s) of section 2 of the Code of Criminal Procedure, 1973 (Act 2 of 1974) and in supersession of all posts of all previous orders on the subject, the Governor of Andhra Pradesh hereby declares that the offices of the Anti-Corruption Bureau specified in the schedule shown below in column (2) shall be Police Stations and that they shall include within their limits, the areas specified in column (3) against each of the offices and in exercise of the powers conferred under clause (o) of section 2 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) declares that all Police Officers of the Anti-Corruption Bureau, Andhra Pradesh, of and

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above the rank of Deputy Superintendent of Police shall be officer in charge of a Police Station, and in the absence of such Police Officer from the Station House, or unable from illness, or other cause to perform his duties, the police Officer at the Station House, who is next in rank to such officer i.e., Inspector of Police shall be the Officer in charge of the Police Station.

11.	Joint Director, Central Investigating Unit, A.C.B., Hyderabad	State of Andhra Pradesh
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Upon understanding the definition clauses contained in Sections 2(s) and 2(o) of the CrPC, 1973, the aforesaid notification has been passed. This notification contains two distinct parts. In exercise of powers contained under Section 2(s) of the CrPC, 1973, the offices of the Anti-Corruption Bureau, specified in the Schedule, as mentioned in Column (2), have been declared as police stations. Therefore, what has been declared is the office concerned. After undertaking the said exercise, a further declaration has been made in exercise of powers conferred under Section 2(o) of the CrPC, 1973, declaring all police officers of the Anti-Corruption Bureau, Andhra Pradesh, of and above the rank of Deputy Superintendent of Police, as in-charge of the police station. The Government Order further facilitates the other officers to exercise the said power, on a contingency, in tune with the said provision. Further, *vide* Serial No. 11, the Office of the Joint Director, Central Investigating Unit, A.C.B., Hyderabad was declared as a police station, with jurisdiction over the entire State of Andhra Pradesh. Suffice it is to state that this Government Order, having the trappings of law, continues to govern the field.

THE ANDHRA PRADESH REORGANISATION ACT, 2014

- Pursuant to a conscious decision, the Government of India enacted the Andhra Pradesh Reorganisation Act, 2014 (hereinafter referred to as the “**2014 Act**”), carving out a new State, namely, the State of Telangana, through the bifurcation of the undivided State of Andhra Pradesh on 01.03.2014. The Act came into force with effect from the appointed date i.e., 02.06.2014. The following provisions would be apposite to refer to:

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Section 2(f) of the 2014 Act

“2. Definitions.— In this Act, unless the context otherwise requires, —

(f) “law” includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having, immediately before the appointed day, the force of law in the whole or in any part of the existing State of Andhra Pradesh;”

Section 100 of the 2014 Act

“100. Territorial extent of laws.—The provisions of Part II shall not be deemed to have affected any change in the territories to which the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Andhra Pradesh Act No. 1 of 1973) and any other law in force immediately before the appointed day extends or applies, and territorial references in any such law to the State of Andhra Pradesh shall, until otherwise provided by a competent Legislature or other competent authority be construed as meaning the territories within the existing State of Andhra Pradesh before the appointed day.”

(emphasis supplied)

Section 101 of the 2014 Act

“101. Power to adapt laws.—For the purpose of facilitating the application in relation to the State of Andhra Pradesh or the State of Telangana of any law made before the appointed day, the appropriate Government may, before the expiration of two years from that day, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent Legislature or other competent authority.

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Explanation.— In this section, the expression “appropriate Government” means as respects any law relating to a matter enumerated in the Union List, the Central Government, and as respects any other law in its application to a State, the State Government.”

(emphasis supplied)

Section 102 of the 2014 Act

“102. Power to construe laws.—Notwithstanding that no provision or insufficient provision has been made under section 102 for the adaptation of a law made before the appointed day, any court, tribunal or authority, required or empowered to enforce such law may, for the purpose of facilitating its application in relation to the State of Andhra Pradesh or the State of Telangana, construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the court, tribunal or authority.”

(emphasis supplied)

7. The definition of the term ‘law’, under Section 2(f) of the 2014 Act, is an expansive one, as it includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having the force of law, in existence. Thus, the term ‘law’ includes an order or other instrument having the force of law, and therefore, brings within its ambit a notification or a circular issued by a competent authority.
8. On a reading of Section 100 of the 2014 Act, one can see the objective behind it. This is a transitional provision, making the application of the existing law to the two States, conscious enough not to create any legal vacuum. The abovesaid objective is also evident on a reading of Sections 101 and 102 of the 2014 Act.
9. Section 101 of the 2014 Act mainly gives the option to the appropriate Government of the State either to adapt, modify, repeal or amend the existing law. Section 102 of the 2014 Act goes one step further by facilitating the Courts and Tribunals to give effect to the existing law, notwithstanding the lack of adoption of the erstwhile law.

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10. The abovesaid provisions would make it clear that there is indeed no requirement for any specific order of adoption, particularly for the State of Andhra Pradesh. In other words, the State of Andhra Pradesh continues to be the same State, as what has been done is, by merely carving out some of its territories, a new State has been created. In any case, Section 102 of the 2014 Act leaves no room for any other interpretation, especially when it contains a *non-obstante* clause, and facilitates the Tribunals and the Courts to follow the existing law, even in the absence of any adoption. Hence, when the Courts are expected to follow the existing law, it is axiomatic that the mandate applies to the executive and every other authority.

Circular Memo No. 13665/SR/2014

11. To make the aforesaid position rather clear, a Circular was issued by the Government of Andhra Pradesh, *vide* Circular Memo No.13665/SR/2014 dated 26.05.2014, by taking note of the law, as laid down by this Court, in *State of Punjab and Others vs. Balbir Singh and Others* (1976) 3 SCC 242 and *Commissioner of Commercial Taxes Ranchi and Another vs. Swarn Rekha Cokes & Coals (P) Ltd. and Others* (2004) 6 SCC 689. The correct understanding of the 2014 Act, as reflected in the aforesaid Circular, is placed hereunder for better appreciation.

GOVERNMENT OF ANDHRA PRADESH GENERAL
ADMINISTRATION (SR) DEPARTMENT

Circular Memo.No.13665/SR/2014. Dated: 26-5-2014

Sub: The Andhra Pradesh Reorganisation Act,2014 -
Formation of a new State to be known as the State of
Telangana – Application of 'law' in the States - Clarification -
Reg.

Ref: The Andhra Pradesh Reorganisation Act, 2014.

In terms of section 3 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014), a new State to be known as the State of Telangana comprising the territories specified therein shall be formed on and from the appointed day, and the appointed day has been notified as 2-6-2014.

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2. In this connection, it is stated that “law” as defined in section 2(f) of the Act is as follows:-

“(f) ‘law’ includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other Instrument having, immediately before the appointed day, the force of law in the whole or in any part of the existing State of Andhra Pradesh.”

3. In so far as the territorial extent of laws, power to adapt laws and power to construe laws are concerned the relevant provisions under the Act are as in sections 100, 101 and 102, which are as follows:-

“100. The provisions of Part II shall not be deemed to have affected any change in the territories to which the Andhra Pradesh Land Reforms (Celling on Agricultural Holdings) Act, 1973 and any other law in force immediately before the appointed day extends or applies, and territorial references in any such law to the State of Andhra Pradesh shall, until otherwise provided by a competent Legislature or other competent authority be construed as meaning the territories within the existing State of Andhra Pradesh before the appointed day.

101. For the purpose of facilitating the application in relation to the State of Andhra Pradesh or the State of Telangana of any law made before the appointed day, the appropriate Government may, before the expiration of two years from that day, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent Legislature or other competent authority.

Explanation:- In this section, the expression “appropriate Government” means as respects any law relating to matter enumerated in the Union List,

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the Central Government, and as respects any other law in its application to a State, the State Government.

102. Notwithstanding that no provision or insufficient provision has been made under section 102 for the adaptation of a law made before the appointed day, any court, tribunal or authority, required or empowered to enforce such law may, for the purpose of facilitating its application in relation to the State of Andhra Pradesh or the State of Telangana, construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the court, tribunal or authority."

4. In this connection, it is stated that in State of Punjab and others Vs Balbir Singh and others [(1976) 3 SCC 242: AIR 1977 SC 629], the Hon'ble Supreme Court of India inter alia held that when there is no change of sovereignty and it is merely an adjustment of territories by reorganization of a particular State, the administrative orders made by the Government of erstwhile State continue to be in force and effective and binding on the successor States until and unless they are modified, changed or repudiated by the Governments of the successor States. It has also been observed that no other view is possible to be taken, as that will merely bring about chaos in the administration of new States.

5. The Hon'ble Supreme Court of India in the Commissioner of Commercial Tax Ranchi and another Vs Swarn Rekha Cokes & Coals Private Limited and others, reported in (2004) 5 SCALE 596, while interpreting the true meaning and import of sections 84 and 85 of the Bihar Reorganisation Act, 2000 (which are on the identical lines of sections 100 and 101 of the A.P. Reorganisation Act, 2014), inter alia held that the language in these sections is clear and unambiguous. These sections provide that the laws which were applicable to the undivided State of Bihar would continue to apply to the new States created by the Act. The laws that operated continue to operate notwithstanding the bifurcation of the erstwhile State of

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Bihar and creation of the new State of Jharkhand. They continue in force until and unless altered, repealed or amended.

6. In view of the above, it is clarified that—

(i) all the laws, which were applicable to the undivided State of Andhra Pradesh, as on 1-6-2014, would continue to apply to the new States i.e., State of Telangana and State of Andhra Pradesh created by the Central Act, with effect from 2-6-2014 notwithstanding the bifurcation of the erstwhile State of Andhra Pradesh;

(ii) to facilitate their application in respect of the State of Telangana and the State of Andhra Pradesh, the appropriate Government may, before the expiration of two years from 2-6-2014, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient; and thereupon,

(iii) every such law as adapted or modified as above, will continue till such time it is altered, repealed or amended by a competent Legislature or other competent authority, in the respective States.

Circular Memo No.25735/GPM&AR/2015

12. The Circular referred to above, issued by way of a clarification, was followed by another one, *vide* Circular Memo No.25735/GPM&AR/2015 dated 01.12.2015, meant for administrative purposes relating to the shifting of the Secretariat, which is as follows:

GOVERNMENT OF ANDHRA PRADESH GENERAL ADMINISTRATION (GPM&AR) DEPARTMENT

Circular Memo No. 25735/GPM&AR/2015. Dated.
01.12.2015

Sub: Shifting of Secretariat, Heads of Departments to New Capital Region - Instructions – Reg.

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All the Departments of Secretariat, Heads of Departments are hereby informed that Secretariat and HODs will function from the New Capital Region from 1st June, 2016. All the Department of Secretariat and Heads of Departments are requested to plan and arrange for shifting to the New Capital Region before 1st June, 2016. They are also requested to issue instructions to all the employees and officers working in their respective department under their administrative control that the offices will function from the New Capital Region from 1st June, 2016 onwards.

Circular Memo. No. 53023/6/GPM&AR/2016-9

13. The said Circular was followed by a subsequent Circular dated 24.05.2016. The same reads as follows:

GOVERNMENT OF ANDHRA PRADESH
GENERAL ADMINISTRATION (GPM&AR)
DEPARTMENT

Circular Memo. No. 53023/6/GPM&AR/2016-9. Dated.
24/05/2016

Sub: GPM&AR — Shifting of HoDs and other Institutions to the new Capital Region — Instructions—Issued.

It has been decided by the Government to move all the Heads of Departments and other Government Institutions like Societies, Non-Statutory Authorities, Institutions other than listed in IX and X Schedules of A.P. Re-organisation Act on or before 27th June 2016 to the new Capital region and in and around Vijayawada and Guntur cities.

2. All the Heads of Departments shall first explore the possibility of locating their Offices in any of the Government building owned by the Department in the new capital region. If there is no suitable Government building available with the Department, they are requested to approach the District Collector, Krishna/ Guntur and obtain private accommodation details available with him. They may select

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the premises and fix the rent for the private building. The Dist. Collectors, Krishna and Guntur will provide necessary support and guidance in this regard.

3. The Dist. Collector, Krishna has identified a total number of 85 buildings with a plinth area of 16,98,231 sft with ample parking place of 2,34,000 SFT in and around Vijayawada which are now available for ready occupation. Similarly the Dist. Collector, Guntur also identified 4 private accommodation in and around Guntur city roughly about 1,50,000 SFT for accommodating the Govt. Offices. (The particulars of the building along with the photograph has been scanned and any of the Head of the Departments desires to have the soft copy can send a mail request to spclsgad@ap.gov.in).

4. After identification of suitable building, the Department should enter into a lease agreement for a period about 3 years. If the department is constructing any building, lease period can be of shorter duration considering with building completion date. After the building is taken on lease, Heads of Department should move along with the existing office furniture and office equipment available in Hyderabad Office and start functioning from the new premises at the new capital region. The entire shifting exercise should be completed before 27th June, 2016 and ensure that the functioning of the offices from the New Capital Region shall be commenced from 27.06.2016.

5. All the Departments of Secretariat / HoDs are requested to issue suitable instructions to the Government instrumentalities working under their control immediately.

6. This copy of the circular instructions is also available on internet and can be accessed at www.ap.gov.in.

C.No.3/A3/2014-16 dated 17.10.2016

14. After receipt of the said Circular, the Director General of the Anti-Corruption Bureau sent a communication intimating the due compliance made, *vide* letter dated 17.10.2016.

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**GOVERNMENT OF ANDHRA PRADESH
ANTI-CORRUPTION BUREAU**

From,	To,
The Director General	The Chief Secretary to Govt.
Anti-corruption Bureau,	General Admn. (SC F) Dept.
2 nd Floor, NTR Admn. Block,	A P, Secretariat, Velagapudi,
Pandit Nehru Bus Station.	Amaravathi
Vijayawada - 520012	

C.No.3/A3/2014-16, dated 17-10-2016.

Sir,

Sub:- Anti-Corruption Bureau - Shifting of Office to
Vijayawada information-Regarding

Ref:- Circular Memo in No. 53023/6/GPM&AR/2016-9,
dated 24-05-2016 of Genl. Admn. (GPM&AR) Department.

. . .

It is to inform you that as per the orders issued by the
Government vide reference cited, the Anti-Corruption
Bureau has been shifted from Hyderabad to Vijayawada.

Hence, all DO letters, Confidential letters and official
letters intended to me may be sent in my name cover to
the following address.

Address :	The Director General,
	Anti-Corruption Bureau,
	2 nd Floor, NTR Admn. Block,
	Pandit Nehru Bus Station.
	Vijayawada - 520002

15. In the meanwhile, a spate of FIRs have been registered at the office of the Anti-Corruption Bureau, Central Investigation Unit, Andhra Pradesh, Vijayawada Police Station, between the years 2016 and 2020, for offences punishable under the PC Act. All these FIRs have been challenged by the persons arrayed as accused, respondent(s) herein, primarily on the ground that the Anti-Corruption Bureau,

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Central Investigation Unit, Andhra Pradesh, Vijayawada Police Station, is not notified as a police station under Section 2(s) of the CrPC, 1973 and, therefore, lacks jurisdiction to register the FIRs.

GO.Ms. No. 137, Home (Services-III) Department dated 14.09.2022

16. During the pendency of the proceedings before the High Court of Andhra Pradesh, a clarification was issued by the Government of Andhra Pradesh, *vide* GO.Ms. No. 137, Home (Services-III) Department dated 14.09.2022, which states as follows:

GOVERNMENT OF ANDHRA PRADESH ABSTRACT

Anti-Corruption Bureau, Andhra Pradesh - Declaration of Office of Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Andhra Pradesh, Vijayawada as Police Station with jurisdiction over entire State of Andhra Pradesh - Clarification – Notification-Order-Issued

HOME (SERVICES-III) DEPARTMENT

G.O.Ms.No.137

Dated. 14-09-2022

Read the following :

1. G.O.Ms.No.268, Home (PSC) Department, dated 12.9.2003.
2. From the Director General, Anti-Corruption Bureau, A.P., Vijayawada, Letter Rc. No.43/RPC(C)/2022 dated: 07.06.2022.

-:0:-

ORDER:

In the G.O. first read above, declared and notified the Office of the Director General, Anti-Corruption Bureau, Andhra Pradesh, Hyderabad, as Police Station having jurisdiction to the combined State of Andhra Pradesh and also Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Hyderabad was notified as

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Police Station with jurisdiction over the entire State of the Andhra Pradesh. Pursuant to section 101 of the A.P. Re-organisation Act, 2014 (Act No. 6 of 2014), corresponding notification notifying the Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Vijayawada, as the Police Station having jurisdiction to the residual State of Andhra Pradesh has not been issued specifically. However, specific challenges have been taking place, to absence of such notification in relation to the Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Vijayawada as counterpart to Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Hyderabad, in relation to the State of Andhra Pradesh and the matters are pending in Court. In order to impart clarity to the subject matter, the Government hereby have clarified that the Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Andhra Pradesh, Vijayawada, shall be construed as a Police Station with jurisdiction extending to the entire State of Andhra Pradesh, corresponding to the Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Hyderabad in relation to the State of Telangana, even though Section 102 of the AP Re-Organisation Act, 2014 specifically provides for such consequences.

2. Accordingly, the following Notification will be published in the extraordinary issue of the Andhra Pradesh Gazette, dated. 14-09-2022.

NOTIFICATION

In exercise of the powers conferred by Clause (s) of section 2 of the Code of Criminal Procedure, 1973 (Act 2 of 1974) and in partial modification of the earlier orders in respect of declaration of Police Stations of the Central Investigation Unit, Anti-Corruption Bureau, Andhra Pradesh, the Governor of Andhra Pradesh hereby declares that the Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Andhra Pradesh, Vijayawada, specified in the schedule shown below in column (2) shall

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be Police Station and that it shall include within the limits, the areas specified in column (3) against the office and in exercise of the powers conferred under Clause (o) of section 2 of the Code of Criminal Procedure, 1973 (Act 2 of 1974) declares that the Office of the Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Andhra Pradesh, Vijayawada in the rank of Superintendent of Police shall be the officer in charge of the Police Station, and in the absence of such Police Officer from the Station House, or unable due to illness, or other cause to perform his duties, the Police Officer at the Station House, who is the next in rank to such officer i.e., Additional Superintendent of Police, Deputy Superintendent of Police and Inspector of Police shall be the Officer in charge of the Police station.

THE SCHEDULE

Sl. No	Name of the Office	Jurisdiction
1	2	3
1.	Joint Director, Central Investigation Unit, Anti-Corruption Bureau, Andhra Pradesh, Vijayawada.	State of Andhra Pradesh

17. Before the High Court, the respondents herein contended that, in the absence of a notification under Section 2(s) of the CrPC, 1973, the registration of the FIRs would be one without jurisdiction and, therefore, liable to be quashed. Incidentally, other contentions have also been raised. On the contrary, the appellants herein placed heavy reliance upon the various Government Orders and Circulars, referred to above. By the impugned judgment, the High Court was pleased to hold that, in the absence of a notification under Section 2(s) of the CrPC, 1973, the police station, to which the police officers who registered the FIRs belong to, do not have any jurisdiction to register the same. It was, therefore, held that there has to be a declaration under Section 2(s) of the CrPC, 1973, published by way of a notification in the Official Gazette, declaring a police station. It was further held that the Government Order, passed in GO.Ms.

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No. 137, Home (Services-III) Department dated 14.09.2022, will not have any retrospective application. Accordingly, all the registered FIRs have been quashed, without even indicating which forum would otherwise have the jurisdiction.

SUBMISSIONS MADE ON BEHALF OF THE APPELLANTS:

18. The learned Senior Counsel, Mr. Sidharth Luthra and Mr. Siddharth Aggarwal, appearing for the appellants, made the following submissions:
- In view of the mandate of the 2014 Act, with specific reference to Sections 101 and 102 the 2014 Act, the approach of the High Court cannot be sustained in the eye of the law. The Government Order, passed in G.O.Ms. No. 268, dated 12.09.2003, is a law which is binding on the parties. After the advent of the 2014 Act, it cannot be contended that the Joint Director, Central Investigating Unit, A.C.B, Hyderabad would continue to have jurisdiction. Perhaps, he will have jurisdiction *qua* the State of Telangana. In other words, one has to see the 'post', as defined in Section 2(s) of the CrPC, 1973. Even prior to the reorganisation, the jurisdiction, of the said office, extended to the entire undivided State of Andhra Pradesh. Subsequent to the reorganisation, it should be deemed that the office, which stood relocated to the new capital, continues to have jurisdiction over the entire State.
 - The High Court has not adopted a pragmatic approach, while ignoring the earlier decisions of this Court.
 - Reliance has been placed on the following decisions, including the latest one, which has already dealt with the reorganisation of the State of Andhra Pradesh, though on a different issue:
 1. State of Punjab and Others vs. Balbir Singh and Others (1976) 3 SCC 242.
 2. Commissioner of Commercial Taxes Ranchi and Another vs. Swarn Rekha Cokes & Coals (P) Ltd. and Others, (2004) 6 SCC 689.
 3. Ranjan Sinha and Another vs. Ajay Kumar Vishwakarma and Others, (2017) 14 SCC 774.

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4. State of Madhya Pradesh and Others vs. Lafarge Dealers Association and Others, (2019) 7 SCC 584.
5. State, Central Bureau of Investigation vs A. Satish Kumar And Others, AIR 2025 SUPREME COURT 913.

SUBMISSIONS ON BEHALF OF THE RESPONDENTS

19. Learned Senior Counsel, appearing on behalf of the respondents, would submit that there has to be a notification, either general or specific. The State was aware of the necessity of the notification under Section 2(s) of the CrPC, 1973. The decision rendered in *Swarn Rekha Cokes & Coals (P) Ltd. (supra)* will not have an application to the facts of the present case, particularly when the same has been subsequently overruled. The State itself has understood the *lacunae*, and that is the reason why it has come out with the subsequent Government Order in 2022, followed by a notification, during the pendency of the criminal petitions before the High Court.
20. Insofar as the Crime Investigation Department is concerned, appropriate orders have been passed by way of two Government Orders, being G.O.Ms No. 129 dated 02.08.2017 and G.O.Ms No. 8 dated 09.01.2019, specifically notifying new police stations, which indicate that the State of Andhra Pradesh was aware of the necessity of a notification under Section 2(s) of the CrPC, 1973. As the High Court has rightly interpreted the law, the appeals deserve to be dismissed.

DISCUSSION

21. The issue before us lies in a very narrow compass. We are dealing with a set of cases where, the FIRs registered, for offences punishable under the PC Act, have been quashed, which left the investigation(s) being nipped in the bud in some cases, while, in the others, criminal proceedings stood terminated. The High Court has undertaken the said exercise, solely on the issue of jurisdiction of the police station which registered the FIRs.
22. In our considered view, the approach of the High Court is nothing but a travesty of justice. If, on a hyper-technical ground, the FIRs are quashed, the High Court is duty-bound to lay down the law with respect to the jurisdiction that otherwise exists. We have already

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discussed the scope and ambit of the relevant provisions contained in the CrPC, 1973, and the 2014 Act, which was followed by a series of Government Orders and Circulars.

23. In fact, in our considered view, the High Court has completely misdirected itself while interpreting the law, including the principles laid down by this Court in *Swarn Rekha Cokes & Coals (P). Ltd. (supra)*. Though this decision has been overruled, paragraphs 26 to 28, contained thereunder, have been affirmed by the subsequent decision of this Court in the case of *State of Madhya Pradesh and Others (supra)*.
24. The reasoning of the High Court, that a declaration by way of a notification has to be published in the Official Gazette for due compliance of Section 2(s) of the CrPC, 1973, is, to say the least, unacceptable. One has to see the substance and due compliance, in spirit. Similarly, the finding, that the subsequent clarificatory Government Order of 2022 will not have an effect on the FIRs registered, is totally untenable and against the basic canons of law. In our considered view, the High Court took undue pains to ensure that the FIRs are quashed. When a Government Order is issued by way of a clarification, there is no question of any retrospective application. In fact, the said Government Order merely quotes the various provisions of the 2014 Act in order to make the position abundantly clear. As a consequence, we are dealing with a situation where years have lapsed without further progress on the registered FIRs.
25. As judgments have been relied upon, in support of the respective contentions, we would like to deal with them.

Commissioner of Commercial Taxes, Ranchi and Another vs. Swarn Rekha Cokes And Coals (P) Ltd. and Others (2004) 6 SCC 689

“26. The question then arises, as to what is the true meaning and import of Sections 84 and 85 of the Act?

27. We have earlier reproduced Sections 84 and 85 of the Act. As earlier noticed, Sections 3 to 6, which form part of Part II of the Act provide for the formation of new States to be known as the State of Jharkhand and the State of Bihar. The territories specified in Section 3 constitute the

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new State of Jharkhand and the remaining territories fall within the territory of the State of Bihar. However, Section 84 in express terms, provides that the provisions of Part II shall not be deemed to have effected any change in the territories to which any law in force immediately before the appointed day extended or applied and the territorial references in any such law to the State of Bihar shall, until otherwise provided by a competent legislature or other competent authority, be construed as meaning the territories within the existing State of Bihar before the appointed day. Section 85 provides that for the purpose of facilitating the application in relation to the State of Bihar or Jharkhand of any law made before the appointed day, the appropriate Government may, before the expiration of two years from that day, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent legislature or other competent authority. **The language in these sections is clear and unambiguous. These sections provide that the laws which were applicable to the undivided State of Bihar would continue to apply to the new States created by the Act. The laws that operated continue to operate notwithstanding the bifurcation of the erstwhile State of Bihar and creation of the new State of Jharkhand. They continue in force until and unless altered, repealed or amended.** It is not disputed before us and indeed it cannot be disputed in view of the wide definition given to “law” in Section 2(f) of the Act that the notification issued under Section 7(3)(b) of the Bihar Finance Act, 1981 is law within the meaning of Sections 84 and 85 of the Act. Thus, the notification published in the Bihar Gazette on 22-12-1995 bearing SO No. 478 continues to operate in the State of Jharkhand till such time as it is altered, repealed or amended. By virtue of Section 84, the territorial references in any such law (which includes the notification in question), to the State of Bihar shall be construed as meaning the territories within the existing

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State of Bihar before the appointed day, until otherwise provided by a competent legislature or other competent authority. A conjoint reading of both these provisions makes it abundantly clear that the territorial references in any law in force immediately before the appointed day must be construed as meaning the territories within the existing State of Bihar before the appointed day. To facilitate their application in respect of the State of Bihar or Jharkhand, the appropriate Government may, before the expiration of two years from that day, by order, make such adaptations and modifications of the law as it may consider necessary or expedient by way of repeal or amendment. Till such law is so repealed or amended in accordance with law, it shall have effect. After their amendment or alteration, they shall have effect subject to the adaptations and modifications made. We, therefore, find no difficulty in holding that the notification of the Government of Bihar issued under Section 7(3)(b) of the Bihar Finance Act, 1981 and published in the gazette on 22-12-1995 being SO No. 478, is law as defined by Section 2(f) of the Act. The said notification holds the field and applies to all the territories which comprised the undivided State of Bihar. The States of Bihar and Jharkhand have been vested with power to make such adaptations and modifications of the law as they may consider necessary or expedient. This they can do by issuance of order before the expiration of two years from the appointed day. After the adaptations and modifications of the law, the law shall have effect as so modified or adapted till such time as a competent legislature or other competent authority further alters, repeals or amends such law.

28. This is not the first time that a provision such as Section 84 of the Act has come up for interpretation by this Court. Section 88 of the Punjab Reorganisation Act, 1966 is also identically worded as Section 84 of the Act. That provision came up for consideration before this Court in at least three decisions which have been brought to our notice, namely, *State of Punjab v. Balbir Singh* (1976) 3 SCC 242, *Sher Singh v. Financial Commr. of Planning* (1987) 2 SCC

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439 and *Dhayanand v. Union of India* (1996) 7 SCC 47. In the first of these cases i.e. in *State of Punjab v. Balbir Singh* (1976) 3 SCC 242 this Court was concerned with an administrative order and not a law with which we are concerned in the instant case. Section 88 of the Punjab Reorganisation Act was noticed as also the definition of law under Section 2(g) of that Act. Section 2(g) of that Act did not define law as widely as it has been defined under Section 2(f) of the Act. This Court agreed with the High Court that the impugned administrative orders in question were not law within the meaning of Section 2(g) of that Act and hence, were not saved by Section 88. However, this Court held that when there is no change of sovereignty and it is merely an adjustment of territories by reorganisation of a particular State, the administrative orders made by the Government of the erstwhile State continue to be in force and effective and binding on the successor States until and unless they are modified, changed or repudiated by the Governments of the successor States. This Court observed that no other view is possible to be taken as that will merely bring about chaos in the administration of the new States. Their Lordships found no principle in support of the stand that administrative orders made by the Government of the erstwhile State automatically lapsed and were rendered ineffective on the coming into existence of the new successor States. Their Lordships further distinguished a case where there was no change of sovereignty and there was merely an adjustment of territories by the reorganisation of a particular State, from a case of absorption of one State in another by accession, conquest, merger or integration. The same view was taken by this Court in the other two judgments referred to earlier. We are of the view that the principles laid down in *Balbir Singh* case (1976) 3 SCC 242 fully apply to the facts of this case having regard to the identical legislative provision and, particularly so when the notification in question is by definition law and not a mere administrative order.”

(emphasis supplied)

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The law, laid down by this Court, as aforesaid, would leave no room for any doubt that, by no stretch of imagination, the impugned judgment can be sustained.

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“27. We have quoted the relevant portions of the judgment in *Swarn Rekha Cokes and Coals (P) Ltd.* (2004) 6 SCC 689 and have no difficulty in agreeing to the dictum as enunciated in paras 26, 27 and 28, but find it difficult to agree with the ratio recorded in para 29. The effect of Sections 84 and 85 of the Bihar Reorganisation Act, 2000 was to ensure continuity of laws enacted by the unified State of Bihar in the new State of Jharkhand which had been created by transfer of territories which earlier formed part of the State of Bihar. These sections incorporating a deeming fiction were to ensure that the new State of Jharkhand would continue to be governed by the pre-existing laws as, otherwise, there would be a disorderly and chaotic situation where the new State would not be governed by any law. This is the true effect of the legal fiction created by Section 84 of the Bihar Reorganisation Act, 2000 i.e. the reorganisation of the State would not affect the applicability of the existing laws in the State to all territories included within it before and even after the reorganisation. The said fiction does not postulate and cannot be extended to imagine that for the purpose of sale transactions or even for other purposes, the new State did not have any political and constitutional existence as a separate State and that till a new law was enacted, the two States were to be treated as one political State as it was before the reorganisation. The sale transactions which were hitherto intra-State sales being within the unified State of Bihar, would become inter-State transactions once the two new States had come into existence. The provisions do not stipulate that such transactions would continue to be treated as intra-State transactions notwithstanding creation of the new State.”

(emphasis supplied)

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Thus, this Court has, in fact, approved the earlier decision in *Swarn Rekha Cokes and Coals (P) Ltd. (supra)* with respect to the law as laid down in paragraphs 26 to 28.

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“15. Having gone through the reasons that made the High Court to come to such conclusions as mentioned and to quash the subject FIRs and the subsequent proceedings thereon, we will consider the contentions raised to mount attack against the same. As noted hereinbefore, the core contention of the appellant is that the High Court had failed to consider Circular Memo No. 13665/SR/2014 dated 26.05.2014 and its true import. Indeed, the said circular was issued in terms of Section 3 of the A.P. Reorganisation Act. Para 2 of the said circular reads thus:-

“2. In this connection, it is stated that “law” as defined in section 2(f) of the Act is as follows:-

(f) ‘law’ includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having, immediately before the appointed day, the force of law in the whole or in any part of the existing State of Andhra Pradesh”

16. Clauses (i) to (iii) of Paragraph 6 of the said circular are also relevant in the circumstances and they read thus:

“(i) all the laws, which were applicable to the undivided State of Andhra Pradesh, as on 1-6-2014, would continue to apply to the new States i.e., State of Telangana and State of Andhra Pradesh created Dy the Central Act, with effect from 2-6-2014 notwithstanding the bifurcation of the erstwhile Pradesh;

(ii) to facilitate their application in respect of the State of Telangana and the State of Andhra Pradesh, the appropriate Government may, before the expiration

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of two years from 2-6-2014, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon,

(iii) every such law as adapted or modified as above, will continue till such time it altered, repealed or amended by a competent Legislature or other competent authority, in the respective State.”

21....In view of the impact of para 2(f) and clauses (i) to (ii) under para 6 such notification or circulars which were in force prior to the bifurcation or modified subsequently, in the absence of repeal or amendment as relates the subject matter involved thereunder within the limits of State of Telangana should be presumed to exist within the limits of State of Telangana and therefore, the finding of the High Court all such ‘laws’ pertain only to the State of Andhra Pradesh cannot be the correct law and the legal fiction should be that such laws would be in force in the new State unless altered or repealed or amended by it, in accordance with law. If in the light of the aforesaid Govt. orders especially dated 26.05.2014, the position is not construed in the said manner it will create only lawlessness or in other words a total vacuum in the subject matter(s) in which event persons could engage in such offences with impunity to certain extent. There cannot be any doubt that virtually it is to avoid such a situation that the aforementioned Government orders were issued and, therefore, any contra-construction would defeat the very soul of the provisions under the PC Act as also the very intent and purpose of the Government orders which were given the status of ‘law’ by virtue of definition under para 2(f) of the Circular Memo dated 26.05.2014 issued under Section 3 of the AP Reorganisation Act.

22. In the light of the discussion as above and construction of the Govt. orders it can only be held that the High Court

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had erred in holding that there was no notification issued conferring the status of Special Court in terms of Section 4 of the PC Act to the CBI Court, Hyderabad. Now, the transfer of the cases concerned subsequent to the CBI Policy Division order regarding the re-defining the territorial jurisdiction of CBI, Hyderabad and Vishakhapatnam branches dated 28.03.2019 and issuance of notification by the High Court of Telangana vide ROC No. 334/E-1/2008 dated 03.09.2019 and the transfer of CC Nos. 35 of 2020 and 37 of 2020 to the Court of the Special Judge for CBI Cases, Kurnool were held as in accordance with law by the High Court. In such circumstances and in the light of the conclusion already arrived at, the terms of the provisions under circular memo dated 26.05.2014 all “laws” applicable to the undivided State of Andhra Pradesh on 01.06.2014 would continue to apply to the new States, namely, the State of Telangana and the State of Andhra Pradesh despite the bifurcation of the erstwhile State of Andhra Pradesh till such time they were altered, repealed or amended.”

(emphasis supplied)

26. This Court took the earlier judgments into consideration and, in fact, dealt with the very same 2014 Act and held that the legal fiction should be so that the existing laws, prior to bifurcation, would continue to be in force in both the States, unless altered, repealed or amended in accordance with law. Any construction to the contrary would defeat the very intent and purpose of the Government Orders, which were given the status of ‘law,’ *vide* Circular dated 26.05.2014.
27. Accordingly, we have no hesitation in setting aside the impugned judgment. Consciously, we are not going into the other issues, as, primarily, we are dealing with the impugned judgment before us. However, we make it clear that the High Court of Andhra Pradesh shall entertain no more challenge to the FIRs.
28. We have been informed that in some cases, the charge-sheets have already been filed. Hence, we give liberty to the respondents herein, to challenge the charge sheets, which have already been filed and those which are yet to be filed, on other grounds, if so

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warranted. Liberty is also given to them to raise all the contentions, other than the one being decided by us, only after the conclusion of the investigation.

29. We further make it clear that in those cases where the investigation is still pending, the appellant(s) shall not take any coercive action, while the respondents herein are expected to lend their due cooperation.

CONCLUSION:

1. In conclusion, the impugned judgment stands set aside and the appeals stand allowed.
2. The appellant(s) are at liberty to proceed with the investigation.
3. The final reports are to be filed within a period of six months from the date of receipt of a copy of this judgment.
4. The appellant(s) shall not take any coercive steps by way of arresting the respondents herein.
5. The respondents herein shall co-operate with the expeditious conclusion of the investigation.
6. The High Court shall not entertain any more challenge to the FIRs or the pending investigation.
7. Liberty is granted to the respondents herein to raise all the other issues, other than the one decided by us, only after the conclusion of the investigation.
8. The impleading application, being CRL. M.P. No. 245004 of 2025, is allowed.
9. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeals allowed.

The State of Uttar Pradesh

v.

Anurudh & Anr

(Criminal Appeal No. 163 of 2026)

09 January 2026

[Sanjay Karol* and Nongmeikapam Kotiswar Singh, JJ.]

Issue for Consideration

Whether u/s.439, CrPC the High Court could have issued directions, mandating age determination test to be conducted in all cases involving the POCSO Act. This larger question involves twin considerations, one on the aspect of jurisdiction and the other on the aspect of law *i.e.*, the postulate of the act regarding determination of age, and how the directions issued in the impugned judgement correspond to or are in contravention of the same.

Headnotes[†]

Code of Criminal Procedure, 1973 – s.439 – Penal Code, 1860 – ss.363, 366 – Protection of Children from Sexual Offences Act, 2012 – ss.7 and 8 – Juvenile Justice (Care and Protection) Act 2015 – s.94 – Allegation of the mother of victim that her 12 year old girl was abducted from her home – Respondent no.1 is the accused person – Bail rejected by the trial Court – However, the High Court directed to constitute a medical board for determination of the age of the victim and then released the accused on interim bail – The High Court also issued directions mandating age determination test to be conducted in all cases involving the POCSO Act – Correctness:

Held: The High Court in bail jurisdiction was *coram non judice* for issuing directions mandating the investigating authorities within the State of Uttar Pradesh to necessarily have a medical examination of the victim conducted, with the particular intent to determine the age of the victim as also holding, that a bail Court would be empowered to entertain challenges to the documents produced to establish the age of the victim – The Court could not have passed directions that go against clearly stated legislative

* Author

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intent u/s.94 of the JJ Act – The determination of the age of the victim is a matter for trial, and the presumption which is accorded to the documents enumerated under the Section, has to be rebutted there, for that is the appropriate forum to do so, not the bail Court – If the question of age is raised at the stage of bail, it is only open for the Court to, from the perusal of the documents, take a *prima facie* view as to the age of the victim, not one on the correctness of the documents since that would amount to a mini trial – It could also not have fused statutory jurisdiction with a constitutional one, lifting one to the other, or downgrading the higher to the lower in order to grant itself the wherewithal, in an otherwise fairly circumscribed jurisdiction, to do what could not be done – The impugned judgment and order of the High Court is set aside on grounds of transgression of the jurisdiction present and thereby lacking the appropriate directions. [Paras 18, 19]

Code of Criminal Procedure, 1973 – s.439 – Jurisdiction of the Court of Sessions or the High Court – Whether, in the instant case, the High Court erred in undertaking an exercise of issuing directions and getting the age of the victim examined in an application seeking grant of bail:

Held: A Court's jurisdiction, *i.e.*, either the Court of Sessions or the High Court u/s.439 CrPC is limited to adjudicating the question of the person concerned being released into society pending trial or whether they should continue to be incarcerated – In the instant case the error of jurisdiction by the High Court was in exercise of a statutory power and not under the Constitution – The powers arising from the Constitution and those flowing from a statute are distinct and separate – On the aspect of jurisdiction, the High Court had erred in undertaking such an exercise of issuing directions and getting the age of the victim examined in an application seeking grant of bail – As far as determining the age of the victim is concerned, it is settled that it is a matter of trial and not at the stage of bail – If the age is under question, the bail Court may examine the documents produced to establish age, but it will not enter into the question of those documents being correct or not so – The mandate of s.94 JJ Act is clear – The documents provided therein are to be utilized for determination of the age of the victim, and only in the absence thereof, will medical evidence be resorted. [Para 16]

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Juvenile Justice (Care and Protection) Act 2015 – s.94 – Consideration of documents enumerated in s.94 – Whether the High Court, in the instant case, fell in error in holding that a Court in bail jurisdiction is empowered to entertain a challenge to the documents at bail stage:

Held: The consideration of the documents enumerated in s.94, JJ Act is a matter of consideration of evidence since it may involve the examination of witnesses to prove the veracity of the documents – That can only be done by the Trial Court – Contra evidence to challenge the documents, can also be presented only before the Trial Court – In considered view of this Court, therefore, the High Court fell in error in holding that a Court in bail jurisdiction is empowered to entertain a challenge to the documents as s.94 would not apply at the bail stage. [Para 14.10]

Bail – Mini Trial – Impermissible at the stage of Bail:

Held: Its trite in law that a Court, at the stage of bail cannot conduct a mini trial – s.439 is limited to granting bail or anticipatory bail and requires the Court to consider only *prima facie* evidence, the risk of the accused absconding, tampering with evidence, or other relevant factors – Since s.439 is narrower in scope, the Court cannot undertake a mini trial at the bail stage. [Para 15.3]

Protection of Children from Sexual Offences Act, 2012 – Juvenile Justice (Care and Protection) Act 2015 – s.94 – Medically Determining the Age of the Victim:

Held: A medical determination of age of a victim cannot be resorted to as a matter of course, much less mandated – It can only be employed in a given circumstance when the other stipulations of s.94 JJ Act are not/cannot be met. [Para 17]

Constitutional Power – Statutory power – High Court – Distinction between Constitutional Power and Statutory power:

Held: Constitutional powers are sovereign, foundational, and insulated from the vicissitudes of ordinary legislation; they can neither be curtailed nor expanded by parliamentary enactment – Statutory powers, by contrast, are subordinate and mutable, existing at the pleasure of the Legislature, which may at any time amend, restrict, or repeal them through the ordinary legislative

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process – Judicial review, while applicable to both, assumes different contours in each case: in relation to constitutional powers, the Courts examine whether their exercise conforms to constitutional limitations including the protection of fundamental rights and the inviolable tenets of the basic structure whereas, in the case of statutory powers, the inquiry is confined to whether the authority has acted within the scope and purpose of the statute from which its power is drawn – The constitutional power cannot overshadow the statutory power, enlarging its scope beyond what has been envisaged by the statute – In other words, while both powers rest with the High Court, one power cannot usurp the ambit of another, unless otherwise permitted by law. [Para 11.3]

Juvenile Justice (Care and Protection) Act 2015 – Protection of Children from Sexual Offences Act, 2012 – Difference between – Discussed. [Paras 14.5.1-14.5.4]

Protection of Children from Sexual Offences Act, 2012 – Misrepresentation of age of victim – Law used by families in opposition to relationships between young people – Consenting adolescence – Discussed. [Para 19]

Professional Ethics – Bar – Responsibility of advocates – Consensual relationships between teenagers – Exercise of restraint, when grievance masks vengeance – Discussed. [Para 19]

Judicial Notice – Misuse of POCSO Act – Consideration for introduction of a *Romeo–Juliet* clause – Discussed. [Para 19]

Case Law Cited

State of U.P. v. Amarmani Tripathi [2005] Supp. 3 SCR 454 : (2005) 8 SCC 21; *Vaman Narain Ghiya v. State of Rajasthan* [2008] 17 SCR 369 : (2009) 2 SCC 281; *RBI v. Coop. Bank Deposit A/C HR. Sha* [2010] 9 SCR 1107 : (2010) 15 SCC 85; *Just Rights for Children Alliance v. S. Harish* [2024] 10 SCR 154 : 2024 SCC OnLine SC 2611; *Jarnail Singh v. State of Haryana* [2013] 8 SCR 1044 : (2013) 7 SCC 263; *Abuzar Hossain @ Gulam Hossain v. State of West Bengal* [2012] 9 SCR 244 : (2012) 10 SCC 489; *Parag Bhati (Juvenile) through Legal Guardian-Mother-Rajni Bhati v. State of U.P.* [2016] 2 SCR 1089 : (2016) 12 SCC 744; *Rishipal Singh Solanki v. State of U.P.* [2021] 12 SCR 502 : (2022) 8 SCC 602 – relied on.

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Sanjeev Kumar Gupta v. State of U.P. [2019] 9 SCR 735 : (2019) 12 SCC 370; *Mukarrab v. State of U.P.* [2016] 8 SCR 557 : (2017) 2 SCC 210; *State v. M. Murugesan* [2020] 2 SCR 553 : (2020) 15 SCC 251; *State of Punjab v. Davinder Pal Singh Bhullar* [2011] 15 SCR 540 : (2011) 14 SCC 770; *Sangitaben Shaileshbhai Datanta v. State of Gujarat* (2019) 14 SCC 522; *Union of India v. Man Singh Verma* [2025] 2 SCR 1534 : 2025 SCC OnLine SC 456; *Mahadeo v. State of Maharashtra* [2013] 17 SCR 667 : (2013) 14 SCC 637; *Union of India v. K.A. Najeed* [2021] 1 SCR 443 : (2021) 3 SCC 713; *Amlesh Kumar v. State of Bihar* [2025] 7 SCR 394 : 2025 SCC OnLine SC 1326; *P. Yuvaprakash v. State* [2023] 10 SCR 478 : 2023 SCC OnLine SC 846; *Rajni v. State of UP*, 2025 INSC 737; *Rajesh Chaddha v. State of U.P* [2025] 6 SCR 382 : 2025 SCC OnLine SC 1094 – referred to.

Pradeep Kumar Chauhan & Anr. v. State Of U.P & Ors., **Habeas Corpus Writ Petition No. 733 of 2020**; *Chandrapal Singh v. State of U.P.*, 2022 SCC OnLine All 934; *Satish alias Chand v. State of U.P.*, **Crl.Misc.Bail Appl.No.18596 of 2024**; *Aman@Vansh v. State of UP*, 2024:AHC:62260; *Monish v. State of U.P.*, 2023:AHC:32270; *Mrigraj Gautam @ Rippu v. State of U.P.*, 2023:AHC:204171; *Sahil v. the State NCT of Delhi*, 2024:DHC:6100; *Jayantibhai Babulbhai Alani v. State of Gujarat*, 2018 SCC Online Guj. 1223 – referred to.

List of Acts

Code of Criminal Procedure, 1973; Penal Code, 1860; Protection of Children from Sexual Offences Act, 2012; Juvenile Justice (Care and Protection) Act 2015; Juvenile Justice (Care and Protection of Children) Rules, 2007; Constitution of India; Dowry Prohibition Act, 1961.

List of Keywords

Section 439 of CrPC; Section 94 of Juvenile Justice (Care and Protection) Act 2015; Constitutional Power; Statutory power; Determination of age of victim; *Coram Non Judice*; Mini-Trial; Ossification Test; Section 34 of the POCSO Act; Consensual Adolescent Relationships; Bail; Jurisdiction; Age of victim; Statutory jurisdiction; Circumscribed jurisdiction; *Prima facie* evidence; Documents; Jurisdictional question; Judicial review; Professional Ethics; Bar; Responsibility of advocates; *Romeo – Juliet* clause.

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Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 163 of 2026

From the Judgment and Order dated 29.05.2024 of the High Court of Judicature at Allahabad in CRMBA No. 4880 of 2024

Appearances for Parties

Advs. for the Appellant(s):
Ms. Ruchira Goel, Sharanya, Ms. Veera Mahuli, Ms. Ritika Rao.

Advs. for the Respondent(s):
D.S. Parmar, Saurabh Singh, Vedant Tiwari, Ms. Shambhavi Shrivastava, Ms. Archana.

Judgment / Order of the Supreme Court

Judgment

For ease of reference, this judgment is divided into the following parts:

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Sanjay Karol, J.

Leave Granted.

THE APPEAL

2. The State of Uttar Pradesh, in this appeal by special leave, challenges the correctness of final judgment and order dated 29th May 2024 in CRMBA No. 4880 of 2024 passed by the High Court of Judicature at Allahabad, whereby the learned Single Judge granted bail to Respondent No.1 in connection with the First Information Report¹ No.622 of 2022, PS Kotwali, Orai, District Jalaun, dated 24th November 2022 and issued a number of directions.
3. The question presented in this appeal, however, is not one of relative ease as an appeal against grant of bail and instead hinges on the scope of Section 439 of the Code of Criminal Procedure, 1973². In the High Court's own words- *"The question of law which arises for consideration in this bail application is the nature of the legal duty cast on the police to draw up a medical report determining the age of a victim while investigating POCSO Act offences. The jurisdiction of this Court to determine this question will predicate the discussion on the merits of the bail."*

FACTS AND PREVIOUS PROCEEDINGS

4. The facts, in a nutshell, are that Respondent no. 1 is accused of having committed offences under Sections 363, 366 of the Indian Penal Code, 1860³ and Sections 7 and 8 of the Protection of Children from Sexual Offences Act, 2012⁴ in the subject FIR, lodged at the instance of the mother of the victim, where the allegation is that her 12-year old girl had been abducted from her home. The Trial Court rejected bail by order dated 29th September 2023. In the proceedings for bail before the High Court, by order dated 22nd April 2024 the Chief Medical Officer, Jalaun was directed to constitute a medical board for determination of the age of the victim. On 8th May 2024 the Court then released the accused on interim bail, observing that

1 FIR
2 CrPC
3 IPC
4 POCSO Act

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there was wide inconsistency in the age of the victim as in the school records, or as stated by her in her statement under Sections 161 and 164 CrPC regarding age/intimacy with the accused among other factors. In terms of the impugned judgment, the Court confirmed the said order, while adjudicating on the issue indicated above.

The Impugned Judgment

5. The observations of the High Court can be summarised thus:
 - 5.1 The Court began by affirming that the jurisdiction exercised under Section 439 CrPC engages constitutional protection under Article 21. The right to bail has evolved beyond a purely statutory entitlement into a constitutionally safeguarded right. On this basis, the Court reiterated that when issues affecting personal liberty arise, such as legality of investigative procedures, they must be addressed directly within bail adjudication.
 - 5.2 In assessing the age of the victim, the Court evaluated prior precedents of the High Court which collectively prescribe that medical determination of age under Section 164-A CrPC read with Section 27 POCSO Act is mandatory and is often a more reliable indicator than documentary entries. Reliance on ***Pradeep Kumar Chauhan & Anr. v. State Of U.P & Ors.***⁵ (*passed by a learned Single Judge of that High Court*) is rejected as misplaced due to its *habeas corpus* context and its non-examination of statutory medical-age provisions.
 - 5.3 The statutory scheme was analysed to conclude that Sections 164-A CrPC and 27 POCSO Act obligate police to obtain the victim's medical age report at the commencement of investigation. Section 94 of the Juvenile Justice (Care and Protection) Act 2015⁶ supplements this mechanism. Failure to secure such a report rendered the statutory framework futile and opens scope for false implication *via* manipulated age claims.
 - 5.4 On the factual matrix, the Court noted recurring systemic lapses wherein the police failed to obtain medical age reports, Trial Courts ignored scientifically assessed age, and consensual

5 Habeas Corpus Writ Petition No. 733 of 2020

6 JJ Act

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adolescent relationships were criminalised under the POCSO Act due to falsified age records. This systemic malfunction, according to the Court, necessitated corrective judicial directives.

5.5 Finally, applying law to fact, the Court accepted the medically determined age of the prosecutrix as above 18 years and consequently, allowed bail subject to conditions.

5.6 The directions issued are extracted *in toto*, as under:

“I) The police authorities/investigation officers shall ensure compliance of the directions rendered by this Court in Aman (supra) and ensure that the medical report determining the age of the victim is drawn up by the competent medical authority at the commencement of the investigations of POCSO Act offences in accordance with the provisions of the Section 164-A CrPC read with Section 27 of the POCSO Act.

II) The medical report of the victim determining her age and drawn up under Section 164-A CrPC. read with Section 27 of the POCSO Act shall be produced by the police authorities/investigation officers before the court hearing the bail application. The learned courts while hearing bail applications shall make due enquiries about the compliance of these directions and Aman (supra) during the bail proceedings.

III) The judgement of this Court rendered in Monish (supra), Aman (supra) as well as this case have to be read together and not in isolation. The directions in Aman (supra) as well as this case will be of little avail, if not examined and implemented in light of the directions made in Monish (supra).

IV) The age of the victim in bails arising out of POCSO Act offences has been determined by a composite reading of Section 94 of the Juvenile Justice (Care and Protection of Children) Act and Section 164-A of CrPC. read with Section 27 of the POCSO Act in light of the judgements rendered in Monish (supra), Aman (supra) and this case.

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V) The court hearing the bail application has to accord full weight to the medical age determination report of the victim and also carefully examine all other documents relating to the victim's age. The court has to determine the credibility of the respective age related documents while deciding the bail application in the facts of the case. In appropriate facts and circumstances as in the instant case, the age determined by the competent medical authority under Section 164-A of CrPC. read with Section 27 of the POCSO Act can prevail over other age related documents (including school records)."

QUESTION TO BE DETERMINED

6. The question that this Court is called upon to consider is whether under Section 439, CrPC the High Court could have issued directions, mandating age determination test to be conducted in all cases involving the POCSO Act. This larger question involves twin considerations, *one* on the aspect of jurisdiction and the *other* on the aspect of law i.e., the postulate of the act regarding determination of age, and how the directions issued in the impugned judgement correspond to or are in contravention of the same.

ANALYSIS AND DETERMINATION

7. We have heard the learned senior counsel and learned counsel for the parties.

Relevant Provisions

8. Before proceeding further, the provisions of law involved in this appeal must be referred to.

8.1 Section 27 of the POCSO Act

"27. Medical examination of a child. — (1) The medical examination of a child in respect of whom any offence has been committed under this Act, shall, notwithstanding that a First Information Report or complaint has not been registered for the offences under this Act, be conducted in accordance with

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section 164A of the Code of Criminal Procedure, 1973 (2 of 1973).

(2) In case the victim is a girl child, the medical examination shall be conducted by a woman doctor.

(3) The medical examination shall be conducted in the presence of the parent of the child or any other person in whom the child reposes trust or confidence.

(4) Where, in case the parent of the child or other person referred to in sub-section (3) cannot be present, for any reason, during the medical examination of the child, the medical examination shall be conducted in the presence of a woman nominated by the head of the medical institution.”

(emphasis supplied)

8.2 Section 164 of the CrPC

“[164A. Medical examination of the victim of rape.—

(1) Where, during the stage when an offence of committing rape or attempt to commit rape is under investigation, it is proposed to get the person of the woman with whom rape is alleged or attempted to have been committed or attempted, examined by a medical expert, such examination shall be conducted by a registered medical practitioner employed in a hospital run by the Government or a local authority and in the absence of such a practitioner, by any other registered medical practitioner, with the consent of such woman or of a person competent to give such consent on her behalf and such woman shall be sent to such registered medical practitioner within twenty-four hours from the time of receiving the information relating to the commission of such offence.

(2) The registered medical practitioner, to whom such woman is sent, shall, without delay, examine her person and prepare a report of his examination giving the following particulars, namely:—

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- (i) the name and address of the woman and of the person by whom she was brought;
 - (ii) the age of the woman;
 - (iii) the description of material taken from the person of the woman for DNA profiling;
 - (iv) marks of injury, if any, on the person of the woman;
 - (v) general mental condition of the woman; and
 - (vi) other material particulars in reasonable detail.
- (3) The report shall state precisely the reasons for each conclusion arrived at.
- (4) The report shall specifically record that the consent of the woman or of the person competent to give such consent on her behalf to such examination had been obtained.
- (5) The exact time of commencement and completion of the examination shall also be noted in the report.
- (6) The registered medical practitioner shall, without delay forward the report to the investigating officer who shall forward it to the Magistrate referred to in section 173 as part of the documents referred to in clause (a) of sub-section (5) of that section.
- (7) Nothing in this section shall be construed as rendering lawful any examination without the consent of the woman or of any person competent to give such consent on her behalf. Explanation.—For the purposes of this section, “examination” and “registered medical practitioner” shall have the same meanings as in section 53.]”

(emphasis supplied)

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8.3 Section 94 of the Juvenile Justice (Care & Protection) Act 2015

“94. (1) Where, it is obvious to the Committee or the Board, based on the appearance of the person brought before it under any of the provisions of this Act (other than for the purpose of giving evidence) that the said person is a child, the Committee or the Board shall record such observation stating the age of the child as nearly as may be and proceed with the inquiry under section 14 or section 36, as the case may be, without waiting for further confirmation of the age.

(2) In case, the Committee or the Board has reasonable grounds for doubt regarding whether the person brought before it is a child or not, the Committee or the Board, as the case may be, shall undertake the process of age determination, by seeking evidence by obtaining —

- (i) the date of birth certificate from the school, or the matriculation or equivalent certificate from the concerned examination Board, if available; and in the absence thereof;
- (ii) the birth certificate given by a corporation or a municipal authority or a panchayat;
- (iii) and only in the absence of (i) and (ii) above, age shall be determined by an ossification test or any other latest medical age determination test conducted on the orders of the Committee or the Board: Provided such age determination test conducted on the order of the Committee or the Board shall be completed within fifteen days from the date of such order.

(3) The age recorded by the Committee or the Board to be the age of person so brought before it shall,

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for the purpose of this Act, be deemed to be the true age of that person.

(emphasis supplied)

8.4 Section 29 of the POCSO Act

“29. Presumption as to certain offences.—Where a person is prosecuted for committing or abetting or attempting to commit any offence under sections 3, 5, 7 and section 9 of this Act, the Special Court shall presume, that such person has committed or abetted or attempted to commit the offence, as the case may be unless the contrary is proved.”

What were the bases for the High Court’s Conclusions and Directions?

9. Although we have, in earlier paragraphs of this judgement, summarised the reasoning of the High Court, let us now unpack the same with reference to the earlier judgements of the Court in ***Aman@Vansh v. State of UP***⁷ and ***Monish v. State of U.P.***⁸. Both these judgments as also the judgment impugned before us, have been passed by the very same learned Single Judge. Since ***Monish*** (supra) was earlier in point of time, we will take that up first.

- 9.1 The learned Single Judge in ***Monish*** (supra) held in substance, as follows:

The Court examined two key questions of law: **(i)** whether the age of a victim under the POCSO Act should be determined as per Section 94 of JJ Act at the stage of bail, and **(ii)** whether the presumption of culpable intent under Section 29 of the POCSO Act applies at that stage. After extensive review, the Court held that Section 94 of the JJ Act, 2015 which prescribes a conclusive method for age determination does not apply strictly to bail proceedings. Instead, the documents enumerated in Section 94 (*such as school certificates or birth certificates*) may be considered as evidence, but their correctness can

7 2024:AHC:62260

8 2023:AHC:32270

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be challenged by the accused at the bail stage. The Court emphasized that such an assessment of age during bail proceedings is tentative, meant only for evaluating the *prima facie* case and not conclusive for trial purposes.

The High Court had examined and synthesized the leading authorities of this Court, including ***Abuzar Hossain @ Gulam Hossain v. State of West Bengal***⁹; ***Parag Bhati (Juvenile) through Legal Guardian–Mother–Rajni Bhati v. State of U.P.***¹⁰; ***Sanjeev Kumar Gupta v. State of U.P.***¹¹; ***Rishipal Singh Solanki v. State of U.P.***¹²; and ***Mukarrab v. State of U.P.***¹³. The collective import of these judgments is that the presumption of correctness attached to age-related documents under Section 94 of JJ Act, is not absolute but rebuttable, and that a Court may consider other credible materials or order further inquiry, whenever contradictions or doubts arise about the recorded age. The Court further observed that accused persons have the right to question the veracity of age-related documents relied on by the prosecution. It clarified that bail courts must independently assess the credibility of such documents and may consider corroborative materials like medical reports or other records to resolve doubts regarding the victim's age. The Court frowned upon a rigid or formulaic approach to bail under the POCSO Act, stressing that decisions must be based on the specific facts and circumstances of each case.

Regarding the presumption of culpable intent under Section 29 of the POCSO Act, the Court held that such presumption does not apply at the pre-trial bail stage. The presumption becomes operative only once the trial begins and foundational facts are established through evidence. The right of the accused to contest this presumption and present a defence cannot be curtailed at the bail stage. The Court reaffirmed that constitutional and evidentiary principles must govern bail decisions, ensuring fairness and due process.

9 (2012) 10 SCC 489

10 (2016) 12 SCC 744

11 (2019) 12 SCC 370

12 (2022) 8 SCC 602

13 (2017) 2 SCC 210

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From a constitutional perspective, the Court reiterated that grant of bail is the rule and refusal the exception, aligning with settled principles under Article 21 of the Constitution of India. It noted that while the POCSO Act is a special statute aimed at protecting minors, it does not exclude the operation of standard bail principles under Section 439 CrPC. The Court, therefore, emphasized judicial discretion, proportionality, and individual case assessment as central to deciding bail. The Court held:

“78. The discussion then proceeded to probe the effect of Article 21 of the Constitution of India on the offending provisions for grant of bail. This enquiry was overlaid with a consideration of authorities “on the concept of due process in our constitutional jurisprudence whenever the court has to deal with a question affecting life and liberty of citizens”.

...

85. In view of the constitutional moorings of the right of bail, curtailment of the said right cannot be permitted in absence of an express statutory mandate or contrary to the constitutional scheme. Nor can restrictions of on right of bail be readily inferred from a statute if other interpretations are possible.”

The Court also discussed parameters of bail under the POCSO Act, holding that the nature and gravity of the offence, likelihood of conviction, chances of tampering with evidence, or absconding must be assessed in the light of constitutional protections. No additional restrictions on bail can be read into the POCSO Act beyond those under the general law. It was observed:

“88. Bails under POCSO Act offences have to be considered under Section 439 Cr.P.C. and in accordance with the settled parameters of grant of bail which include nature and gravity of the offences, and the likelihood of an accused having committed the offence. The possibility of the accused reoffending, influencing witnesses and tampering with evidence or being a flight risk are also relevant factors to be considered while deciding a bail application.

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89. In POCSO Act related offences the age of a victim is a critical factor which will influence the decision to grant bail.

90. No provisions circumscribing the right of bail can be distilled from the scheme of POCSO Act. The existing norms of bail jurisprudence are sufficient to effectively implement the POCSO Act and to serve justice. Of course, the threshold of satisfaction of the Court while granting bail may vary in the facts and circumstances of each case.”

In conclusion, the Court found inconsistencies in the age-related evidence of the victim and the existence of a *prima facie* defence by the accused that the victim was a major. The prosecution’s reliance on unverified documents could not justify continued detention, particularly when material contradictions were apparent. Bail was therefore granted on legal and constitutional grounds.

9.2 Now, let us examine **Aman** (supra).

The Court noted a recurring problem in POCSO cases: frequent contradictions in the recorded age of victims and false depiction of majority as minority, often leading to the weaponisation of the legislation against young couples in consensual relationships. Medical determinations of age, drawn per the latest scientific protocols, were deemed more reliable and essential to prevent injustice.

Referring to Sections 164-A CrPC and 27 POCSO Act, the Court held that a medical report determining the victim’s age is a mandatory component of investigation in every POCSO case. Such reports assist Courts in making accurate findings, preventing false implication, and ensuring fair application of law.

Accordingly, the Court issued directions:

“1. The police authorities/investigation officers shall ensure that in every POCSO Act offence a medical report determining the victim’s age shall be drawn up at the outset under Section 164A of the Criminal Procedure Code read with Section 27 of the Protection

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of Children from Sexual Offences Act, 2012. The report may be dispensed with if medical opinion advises against it in the interests of the victim's health.

2. The medical report determining the age of the victim shall be created as per established procedure of law and in adherence to latest scientific parameters and medical protocol.

3. The medical report determining the age of the victim shall be submitted under Section 164-A of the Code of Criminal Procedure to the Court without delay.

4. The Director General (Health), Government of Uttar Pradesh, Lucknow shall also ensure that the doctors who comprise the Medical Board are duly trained and follow the established medical protocol and scientific parameters for determining the age of the victims in such cases. Constant research shall be done in this field to keep the reports in line with the latest scientific developments. A copy of this order be communicated by the learned Government Advocate to the Director General of Police, Lucknow, Uttar Pradesh for compliance and Director General (Health), Government of Uttar Pradesh,”

- 9.3 Although it did not place reliance on **Pradeep Kumar Chauhan** (supra) a significant portion of the judgement was devoted to answering its application, as contended by the advocate for the State; hence, it is important to refer thereto. The Court undertook a detailed examination of the applicability of **Pradeep Kumar Chauhan** (supra) and ultimately distinguished its ratio. The Court observed that while **Pradeep Kumar Chauhan** (supra) had been invoked in several bail applications to argue that the age recorded in school certificates is conclusive under Section 94 JJ Act, such reliance was misplaced. The Court relied almost entirely on an earlier Full Bench decision **Chandrapal Singh v. State of U.P.**¹⁴ which had already undertaken a comprehensive analysis of the governing law on age determination under Section 94 of the JJ Act.

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Relying on the reasoning in **Chandrapal Singh** (supra) the learned single Judge reaffirmed that **Pradeep Kumar Chauhan** (supra) did not correctly reflect this settled legal position. That decision had treated documentary proof of age such as school or matriculation certificates as final and conclusive, thereby excluding the possibility of further scrutiny. It held that such a restrictive view was inconsistent with the this Court's liberal and contextual interpretation of Section 94 JJ Act. Accordingly, **Pradeep Kumar Chauhan** (supra) was distinguished and held to be inapplicable. The Court concluded that the determination of age, whether of a victim or an accused - must rest on the totality of credible evidence, and that the statutory presumptions under Section 94 JJ Act, though significant, are rebuttable and subject to judicial verification to ensure fairness and prevent miscarriage of justice.

The Jurisdictional Question

10. The High Court, while exercising bail jurisdiction issued the directions reproduced *supra*. One of the issues raised by the Appellant-State is that the same was beyond the scope of jurisdiction. The question of jurisdiction to issue these directions also confronted the learned Single Judge who answered the same stating that while exercising statutory jurisdiction, the High Court is not denuded of its constitutional status and, therefore, it is entirely open, to consider questions of law as in the present case. Observations in this regard are extracted hereunder:

“10. While sitting in bail determination, this Court is not denuded of its constitutional status. The High Court is a court of record and a constitutional court irrespective of the nomenclature of the jurisdiction it is exercising. Needless to add that the High Court always exercises its jurisdiction as per law. While deciding bail applications the High Court exercises a composite jurisdiction of statutory powers and constitutional obligations. At times legal issues which directly impinge on the fair administration of justice arise in bail jurisdiction. The High Court cannot neglect consideration of such issues on the footing that they are beyond the scope of bail jurisdiction. The High Court always possesses the necessary powers to decide such issues

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for dispensing fair justice and to realize the fundamental rights of an accused in bail jurisdiction. Refusal to decide the said issues would amount to abdication of constitutional obligations of this Court. Issues arising in the instant case (and those referred in the judgment) directly impact the right of a prisoner to seek bail. They have to be decided by this Court with clarity in lawful exercise of bail jurisdiction and in the interests of equal justice.”

11. Let us now, independently examine this issue.

11.1 Section 439 CrPC reads as under:

“439. Special powers of High Court or Court of Session regarding bail.—(1) A High Court or Court of Session may direct—

(a) that any person accused of an offence and in custody be released on bail, and if the offence is of the nature specified in sub-section (3) of Section 437, may impose any condition which it considers necessary for the purposes mentioned in that sub-section;

(b) that any condition imposed by a Magistrate when releasing any person on bail be set aside or modified:

Provided that the High Court or the Court of Session shall, before granting bail to a person who is accused of an offence which is triable exclusively by the Court of Session or which, though not so triable, is punishable with imprisonment for life, give notice of the application for bail to the Public Prosecutor unless it is, for reasons to be recorded in writing, of opinion that it is not practicable to give such notice:

¹[Provided further that the High Court or the Court of Session shall, before granting bail to a person who is accused of an offence triable under sub-section (3) of Section 376 or Section 376-AB or Section 376-DA or Section 376-DB of the Indian Penal Code (45 of 1860), give notice of the application for bail to the Public Prosecutor within a period of fifteen days from the date of receipt of the notice of such application.]

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²[(1-A) The presence of the informant or any person authorised by him shall be obligatory at the time of hearing of the application for bail to the person under sub-section (3) of Section 376 or Section 376-AB or Section 376-DA or Section 376-DB of the Indian Penal Code (45 of 1860).]

(2) A High Court or Court of Session may direct that any person who has been released on bail under this Chapter be arrested and commit him to custody.

11.1.1 In ***State of U.P. v. Amarmani Tripathi***¹⁵, it was held:

“18. It is well settled that the matters to be considered in an application for bail are (i) whether there is any prima facie or reasonable ground to believe that the accused had committed the offence; (ii) nature and gravity of the charge; (iii) severity of the punishment in the event of conviction; (iv) danger of the accused absconding or fleeing, if released on bail; (v) *character, behaviour, means, position and standing of the accused*; (vi) likelihood of the offence being repeated; (vii) *reasonable apprehension of the witnesses being tampered with*; and (viii) *danger, of course, of justice being thwarted by grant of bail* [see *Prahlad Singh Bhati v. NCT, Delhi* [(2001) 4 SCC 280 : 2001 SCC (Cri) 674] and *Gurcharan Singh v. State (Delhi Admn.)* [(1978) 1 SCC 118 : 1978 SCC (Cri) 41 : AIR 1978 SC 179]]. While a vague allegation that the accused may tamper with the evidence or witnesses may not be a ground to refuse bail, if the accused is of such character that his mere presence at large would intimidate the witnesses or if there is material to show that he will use his liberty to subvert justice or tamper with the evidence, then bail will be refused...”

The State of Uttar Pradesh v. Anurudh & Anr**11.1.2 Vaman Narain Ghiya v. State of Rajasthan¹⁶**, held thus:

“11. While considering an application for bail, detailed discussion of the evidence and elaborate documentation of the merits is to be avoided. This requirement stems from the desirability that no party should have the impression that his case has been pre-judged. Existence of a prima facie case is only to be considered. Elaborate analysis or exhaustive exploration of the merits is not required. (See *Niranjan Singh v. Prabhakar Rajaram Kharote* [(1980) 2 SCC 559 : 1980 SCC (Cri) 508 : AIR 1980 SC 785] .) Where the offence is of serious nature the question of grant of bail has to be decided keeping in view the nature and seriousness of the offence, character of the evidence and amongst others the larger interest of the public. (See *State of Maharashtra v. Anand Chintaman Dighe* [(1990) 1 SCC 397 : 1990 SCC (Cri) 142 : AIR 1990 SC 625] and *State v. Surendranath Mohanty* [(1990) 3 OCR 462] .)”

11.1.3 In *State v. M. Murugesan*¹⁷, a two Judge bench of this Court analysed various judgements wherein it was concluded that the Court had overstepped the bounds of Section 439, viz., ***State of Punjab v. Davinder Pal Singh Bhullar*¹⁸** wherein the concerned High Court had continued to pass orders with respect to offenders not connected with the instant case; ***Sangitaben Shaileshbhai Datanta v. State of Gujarat*¹⁹** wherein the Court, in a bail application had directed the accused and his family to undergo a narco-analysis test and a brain mapping test; ***RBI v. Coop. Bank Deposit A/C HR.***

16 (2009) 2 SCC 281

17 (2020) 15 SCC 251

18 (2011) 14 SCC 770

19 (2019) 14 SCC 522

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Sha²⁰ once again in a bail application, issued directions to the concerned bank to begin disbursing the amount thus far recovered from the accused in the case. Having referred to these judgements, it was held as under:

“11. We find that the learned Single Judge [*M. Murugesan v. State*, 2019 SCC OnLine Mad 12414] has collated data from the State and made it part of the order after the decision [*M. Murugesan v. State*, Criminal Original Petition No. 1618 of 2019, order dated 18-2-2019 (Mad)] of the bail application, as if the Court had the inherent jurisdiction to pass any order under the guise of improving the criminal justice system in the State. The jurisdiction of the court under Section 439 of the Code is limited to grant or not to grant bail pending trial. Even though the object of the Hon’ble Judge was laudable but the jurisdiction exercised was clearly erroneous. The effort made by the Hon’ble Judge may be academically proper to be presented at an appropriate forum but such directions could not be issued under the colour of office of the court.

(emphasis supplied)

11.1.4 In ***Union of India v. Man Singh Verma***²¹, this Court through one of us, (Sanjay Karol J.,) set aside an order, passed while exercising bail jurisdiction, granting compensation to the extent of Rs. 5,00,000/- for wrongful confinement, as being without the authority of law.

11.2 The upshot of the above discussion is that a Court’s jurisdiction, i.e., either the Court of Sessions or the High Court under Section 439 CrPC is limited to adjudicating the question of the person concerned being released into society pending trial or whether they should continue to be incarcerated.

²⁰ (2010) 15 SCC 85

²¹ 2025 SCC OnLine SC 456

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- 11.3 It is unquestionable that High Court is a constitutional Court. However, in the instant case the error of jurisdiction by the High Court was in exercise of a statutory power and not under the Constitution. The powers arising from the Constitution and those flowing from a statute are distinct and separate. A constitutional power is the one which emanates directly from the text and spirit of the Constitution of India, the supreme and fundamental charter of governance, and inheres in those institutions or functionaries whose existence and competence are defined by it. Such powers are self-sustaining; they are not contingent upon any act of the Legislature, nor can they be abridged or extinguished except through a formal amendment under Article 368. For example, the President's power to dissolve the Lok Sabha under Article 85(2)(b); the Governor's authority to reserve a bill for the consideration of the President under Article 200, or the jurisdiction of the Supreme Court under Article 32 are all in exercise of constitutional power. These powers represent the apex of the legal hierarchy, deriving their legitimacy not from the will of the people as expressed by Parliament, but from the sovereignty of the Constitution itself.

In contrast, a statutory power is derivative and conditional, drawing its vitality from a law duly enacted by the Parliament or a State Legislature. Such power exists only within the four corners of the enabling statute and is circumscribed by its language, purpose, and legislative intent. Illustratively, the powers conferred upon the Central Government under the Environmental (Protection) Act, 1986, to frame rules, issue directions, or regulate industrial operations are purely statutory in nature, as are the regulatory functions vested in the Securities and Exchange Board of India under the SEBI Act, 1992, or those entrusted to the Competition Commission of India under the Competition Act, 2002. The exercise of these powers must conform strictly to the parameters laid down by the statute; any transgression beyond its express or implied authority is rendered *ultra vires* and, therefore, void in the eyes of law.

The essential distinction between these two species of power lies not merely in their origin but also in their constitutional status and susceptibility to control. Constitutional powers are sovereign, foundational, and insulated from the vicissitudes of

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ordinary legislation; they can neither be curtailed nor expanded by parliamentary enactment. Statutory powers, by contrast, are subordinate and mutable, existing at the pleasure of the Legislature, which may at any time amend, restrict, or repeal them through the ordinary legislative process. Judicial review, while applicable to both, assumes different contours in each case: in relation to constitutional powers, the Courts examine whether their exercise conforms to constitutional limitations including the protection of fundamental rights and the inviolable tenets of the basic structure whereas, in the case of statutory powers, the inquiry is confined to whether the authority has acted within the scope and purpose of the statute from which its power is drawn.

The constitutional power cannot overshadow the statutory power, enlarging its scope beyond what has been envisaged by the statute. In other words, while both powers rest with the High Court, one power cannot usurp the ambit of another, unless otherwise permitted by law.

- 11.4 Let us understand this by way of an example. Suppose a dispute arises between the Government of State 'A' and the Government of the Union of India, concerning a statutory scheme. The State files a suit in the Supreme Court under Article 131 claiming the Union has over-stepped its power. Because Article 131 deals with original jurisdiction and involves questions of fact and law between governments, the Supreme Court may frame issues, permit evidence, summon and examine witnesses, and make findings of fact as part of its adjudication.

In the same case, imagine if a private party (*or even the State*) tries to approach the Supreme Court under Article 136, claiming injustice in a judgment of a High Court or Tribunal in the same matter. While Article 136 gives the Court the power to grant leave to appeal, the Court cannot treat its jurisdiction under Article 136 as though it were a suit under Article 131.

If the Court were to proceed under Article 136 but adopt the full evidentiary/litigation machinery of Article 131 (*leading fresh evidence, summoning witnesses, conducting trial proceedings*),

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it would step into the turf of Article 131 and thereby blur the distinction between the two powers. That would amount to an improper exercise of jurisdiction.

- 11.5 On the aspect of jurisdiction, consequent to the discussion above, we have no hesitation in holding that the High Court had erred in undertaking such an exercise of issuing directions and getting the age of the victim examined in an application seeking grant of bail .

Whether the impugned directions rest on sound legal grounds?

12. Let us now turn our attention to the provisions of law involved. The purpose of doing so is to examine whether the directions issued by the High Court to mandatorily conduct a test for age verification at the inception of the investigation is sustainable in law, if this question of law is examined as divorced from the aspect of jurisdiction.
13. At the outset of this analysis, it is important to delve into the scope and ambit of the POCSO Act. Pardiwala J, writing for the Court in ***Just Rights for Children Alliance v. S. Harish***²², examined in detail, the objects, reasons and scope of the legislation. Relevant paragraphs of the decision are extracted hereinbelow:

“43. The Statement of Objects and Reasons for the enactment of the POCSO makes it abundantly clear that since the sexual offences against children were not adequately addressed by the existing laws and a large number of such offences were neither specifically provided for nor were they adequately penalized, the POCSO has been enacted to protect the children from the offences of sexual assault, sexual harassment and pornography and to provide for establishment of Special Courts for trial of such offences and for matters connected therewith and incidental thereto.

44. It further states that the POCSO is a ‘self-contained comprehensive legislation’ for the purpose of enforcing the rights of all children to safety, security and protection from sexual abuse and exploitation countered through

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commensurate penalties as an effective deterrence for sexual offences and pornography and has been enacted keeping in mind Articles 15 and 39 of the Constitution respectively and the United Nations Convention on the Rights of the Children. ...

45. The primary legislative intent behind the enactment of the POCSO was to create a comprehensive legal framework that would not only punish offenders but also provide a child-friendly system for the recording of evidence, investigation, and trial of offenses. The POCSO was designed to cover all forms of sexual abuse against children, including sexual harassment, child pornography, and aggravated sexual assault, among others. It aimed to ensure the safety and dignity of child victims during the legal process, with specific provisions that mandate in-camera trials, the presence of a trusted adult during the proceedings, and the prohibition of aggressive questioning of child victims.

(emphasis in original)

Determination of the age of the victim - At what stage and by whom

- 13.1 Section 2(d) of the POCSO Act defines a child as any person below eighteen years. So, for the provisions of this Act to be applied, the person against whom the offence in question has been perpetrated must necessarily be below 18 years of age. This is the *sine qua non*. The natural question which then arises is how the age of victim is to be determined. ***Jarnail Singh v. State of Haryana***²³ put this question to rest as follows:

“**23.** Even though Rule 12 is strictly applicable only to determine the age of a child in conflict with law, we are of the view that the aforesaid statutory provision should be the basis for determining age, even of a child who is a victim of crime. For, in our

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view, there is hardly any difference insofar as the issue of minority is concerned, between a child in conflict with law, and a child who is a victim of crime. Therefore, in our considered opinion, it would be just and appropriate to apply Rule 12 of the 2007 Rules, to determine the age of the prosecutrix VW, PW 6. The manner of determining age conclusively has been expressed in sub-rule (3) of Rule 12 extracted above. Under the aforesaid provision, the age of a child is ascertained by adopting the first available basis out of a number of options postulated in Rule 12(3). If, in the scheme of options under Rule 12(3), an option is expressed in a preceding clause, it has overriding effect over an option expressed in a subsequent clause. The highest rated option available would conclusively determine the age of a minor. In the scheme of Rule 12(3), matriculation (or equivalent) certificate of the child concerned is the highest rated option. In case, the said certificate is available, no other evidence can be relied upon. Only in the absence of the said certificate, Rule 12(3) envisages consideration of the date of birth entered in the school first attended by the child. In case such an entry of date of birth is available, the date of birth depicted therein is liable to be treated as final and conclusive, and no other material is to be relied upon. Only in the absence of such entry, Rule 12(3) postulates reliance on a birth certificate issued by a corporation or a municipal authority or a panchayat. Yet again, if such a certificate is available, then no other material whatsoever is to be taken into consideration for determining the age of the child concerned, as the said certificate would conclusively determine the age of the child. It is only in the absence of any of the aforesaid, that Rule 12(3) postulates the determination of age of the child concerned, on the basis of medical opinion."

(emphasis supplied)

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Rule 12 of the Juvenile Justice (Care and Protection of Children) Rules, 2007²⁴ it must be noted, provides the same hierarchy of documents as has been provided by Section 94 of the JJ Act. The same is reproduced below for felicity of reference:

“12.Procedure to be followed in determination of age.—(1) In every case concerning a child or a juvenile in conflict with law, the court or the Board or as the case may be, the Committee referred to in Rule 19 of these Rules shall determine the age of such juvenile or child or a juvenile in conflict with law within a period of thirty days from the date of making of the application for that purpose.

(2) The court or the Board or as the case may be the Committee shall decide the juvenility or otherwise of the juvenile or the child or as the case may be the juvenile in conflict with law, prima facie on the basis of physical appearance or documents, if available, and send him to the observation home or in jail.

(3) In every case concerning a child or juvenile in conflict with law, the age determination inquiry shall be conducted by the court or the Board or, as the case may be, the Committee by seeking evidence by obtaining—

(a)(i) the matriculation or equivalent certificates, if available; and in the absence whereof;

(ii) the date of birth certificate from the school (other than a play school) first attended; and in the absence whereof;

(iii) the birth certificate given by a corporation or a municipal authority or a panchayat;

(b) and only in the absence of either (i), (ii) or (iii) of clause (a) above, the medical opinion will be sought from a duly constituted Medical Board, which will declare the age of the juvenile or child. In case exact assessment of the age cannot be done, the court or

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the Board or, as the case may be, the Committee, for the reasons to be recorded by them, may, if considered necessary, give benefit to the child or juvenile by considering his/her age on lower side within the margin of one year, and, while passing orders in such case shall, after taking into consideration such evidence as may be available, or the medical opinion, as the case may be, record a finding in respect of his age and either of the evidence specified in any of the clauses (a)(i), (ii), (iii) or in the absence whereof, clause (b) shall be the conclusive proof of the age as regards such child or the juvenile in conflict with law.

(4) If the age of a juvenile or child or the juvenile in conflict with law is found to be below 18 years on the date of offence, on the basis of any of the conclusive proof specified in sub-rule (3), the court or the Board or as the case may be the Committee shall in writing pass an order stating the age and declaring the status of juvenility or otherwise, for the purpose of the Act and these Rules and a copy of the order shall be given to such juvenile or the person concerned.

(5) Save and except where, further inquiry or otherwise is required, inter alia, in terms of Section 7-A, Section 64 of the Act and these Rules, no further inquiry shall be conducted by the court or the Board after examining and obtaining the certificate or any other documentary proof referred to in sub-rule (3) of this Rule.

(6) The provisions contained in this Rule shall also apply to those disposed of cases, where the status of juvenility has not been determined in accordance with the provisions contained in sub-rule (3) and the Act, requiring dispensation of the sentence under the Act for passing appropriate order in the interest of the juvenile in conflict with law.”

14. The High Court held that since the presumption of correctness attached to age-related documents under Section 94 JJ Act is rebuttable, challenge to the same would be open at the stage of

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bail and the view taken by the Court in such a challenge, would be “tentative”. Analysis of the judgments referred to by the Court would be apposite.

14.1 In **Abuzar Hossain** (supra) a bench of three judges held as under:

“**39.3.** As to what materials would prima facie satisfy the court and/or are sufficient for discharging the initial burden cannot be catalogued nor can it be laid down as to what weight should be given to a specific piece of evidence which may be sufficient to raise presumption of juvenility but the documents referred to in Rules 12(3)(a)(i) to (iii) shall definitely be sufficient for prima facie satisfaction of the court about the age of the delinquent necessitating further enquiry under Rule 12. The statement recorded under Section 313 of the Code is too tentative and may not by itself be sufficient ordinarily to justify or reject the claim of juvenility. The credibility and/or acceptability of the documents like the school leaving certificate or the voters’ list, etc. obtained after conviction would depend on the facts and circumstances of each case and no hard-and-fast rule can be prescribed that they must be prima facie accepted or rejected. In *Akbar Sheikh* [(2009) 7 SCC 415 : (2009) 3 SCC (Cri) 431] and *Pawan* [(2009) 15 SCC 259 : (2010) 2 SCC (Cri) 522] these documents were not found prima facie credible while in *Jitendra Singh* [(2010) 13 SCC 523 : (2011) 1 SCC (Cri) 857] the documents viz. school leaving certificate, marksheet and the medical report were treated sufficient for directing an inquiry and verification of the appellant’s age. If such documents prima facie inspire confidence of the court, the court may act upon such documents for the purposes of Section 7-A and order an enquiry for determination of the age of the delinquent.”

14.2 In **Parag Bhati** (supra) a co-ordinate bench held as under:

“**34.** It is no doubt true that if there is a clear and unambiguous case in favour of the juvenile accused

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that he was a minor below the age of 18 years on the date of the incident and the documentary evidence at least prima facie proves the same, he would be entitled to the special protection under the JJ Act. But when an accused commits a grave and heinous offence and thereafter attempts to take statutory shelter under the guise of being a minor, a casual or cavalier approach while recording as to whether an accused is a juvenile or not cannot be permitted as the courts are enjoined upon to perform their duties with the object of protecting the confidence of common man in the institution entrusted with the administration of justice.

35. The benefit of the principle of benevolent legislation attached to the JJ Act would thus apply to only such cases wherein the accused is held to be a juvenile on the basis of at least prima facie evidence regarding his minority as the benefit of the possibilities of two views in regard to the age of the alleged accused who is involved in grave and serious offence which he committed and gave effect to it in a well-planned manner reflecting his maturity of mind rather than innocence indicating that his plea of juvenility is more in the nature of a shield to dodge or dupe the arms of law, cannot be allowed to come to his rescue.

36. It is settled position of law that if the matriculation or equivalent certificates are available and there is no other material to prove the correctness of date of birth, the date of birth mentioned in the matriculation certificate has to be treated as a conclusive proof of the date of birth of the accused. However, if there is any doubt or a contradictory stand is being taken by the accused which raises a doubt on the correctness of the date of birth then as laid down by this Court in *Abuzar Hossain* [*Abuzar Hossain v. State of W.B.*, (2012) 10 SCC 489 : (2013) 1 SCC (Cri) 83] , an enquiry for determination of the age of the accused

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is permissible which has been done in the present case.”

(emphasis supplied)

- 14.3 In ***Sanjeev Kumar Gupta*** (*supra*) the question was whether the accused was entitled to claim the benefit of juvenility for an offence committed on 18th August 2015. The Juvenile Justice Board²⁵ at first allowed the plea but then on demand, eventually decided otherwise and rejected the said having considered evidence in that regard. The High Court reversed holding that the matriculation certificate issued by the CBSE would be given precedence over the opinion of the Medical Board. The former recorded his date of birth as 17th December 1998 whereas the latter recorded that on 9th November 2016, he was approximately 19 years of age. This Court set aside the findings of the High Court and restored the rejection of the plea of juvenility as returned by the JJB, having considered evidence on affidavit and arriving at the conclusion that his age would be determined as per the date of birth - 17th December 1995.
- 14.4 In ***Rishipal Singh Solanki*** (*supra*) this Court while dealing with an appeal filed by the father of the deceased noted the difference between the Rules 2007 and the JJ Act 2015. It was observed:

“29. The difference in the procedure under the two enactments could be discerned as under:

29.1. As per the JJ Act, 2015 in the absence of requisite documents as mentioned in clauses (i) and (ii) of Section 94(2), there is provision for determination of the age by an ossification test or any other medical age related test to be conducted on the orders of the Committee or the JJ Board as per Section 94 of the said Act; whereas, under Rule 12 of the JJ Rules, 2007, in the absence of relevant documents, a medical opinion had to be sought from a duly constituted Medical Board which would declare the age of the juvenile or child.

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29.2. With regard to the documents to be provided as evidence, what was provided under Rule 12 of the JJ Rules, 2007 has been provided under sub-section (2) of Section 94 of the JJ Act, 2015 as a substantive provision.

29.3. Under Section 49 of the JJ Act, 2000, where it appeared to a competent authority that a person brought before it was a juvenile or a child, then such authority could, after making an inquiry and taking such evidence as was necessary, record a finding as to the juvenility of such person and state the age of such person as nearly as may be. Sub-section (2) of Section 49 stated that no order of a competent authority shall be deemed to have become invalid merely by any subsequent proof that the person in respect of whom the order had been made is not a juvenile and the age recorded by the competent authority to be the age of person so brought before it, for the purpose of the Act, be deemed to be the true age of that person.

30. But, under Section 94 of the JJ Act, 2015, which also deals with presumption and determination of age, the Committee or the JJ Board has to record such observation stating the age of the child as nearly as may be and proceed with the inquiry without waiting for further confirmation of the age. It is only when the Committee or the JJ Board has reasonable grounds for doubt regarding whether the person brought before it is a child or not, it can undertake the process of age determination, by seeking evidence.

31. Sub-section (3) of Section 94 states that the age recorded by the Committee or the JJ Board to be the age of the persons so brought before it shall, for the purpose of the Act, be deemed to be the true age of that person. Thus, there is a finality attached to the determination of the age recorded and it is only in a case where reasonable grounds exist for doubt as to whether the person brought before the

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Committee or the Board is a child or not, that a process of age determination by seeking evidence has to be undertaken.”

Then further, it was held-

“33.1. A claim of juvenility may be raised at any stage of a criminal proceeding, even after a final disposal of the case. A delay in raising the claim of juvenility cannot be a ground for rejection of such claim. It can also be raised for the first time before this Court.

33.2. An application claiming juvenility could be made either before the court or the JJ Board.

33.2.1. When the issue of juvenility arises before a court, it would be under sub-sections (2) and (3) of Section 9 of the JJ Act, 2015 but when a person is brought before a committee or JJ Board, Section 94 of the JJ Act, 2015 applies.

33.2.2. If an application is filed before the court claiming juvenility, the provision of sub-section (2) of Section 94 of the JJ Act, 2015 would have to be applied or read along with sub-section (2) of Section 9 so as to seek evidence for the purpose of recording a finding stating the age of the person as nearly as may be.

33.2.3. When an application claiming juvenility is made under Section 94 of the JJ Act, 2015 before the JJ Board when the matter regarding the alleged commission of offence is pending before a court, then the procedure contemplated under Section 94 of the JJ Act, 2015 would apply. Under the said provision if the JJ Board has reasonable grounds for doubt regarding whether the person brought before it is a child or not, the Board shall undertake the process of age determination by seeking evidence and the age recorded by the JJ Board to be the age of the person so brought before it shall, for the purpose of the JJ Act, 2015, be deemed to be true age of that person. Hence the degree of proof required in such a proceeding before the JJ Board, when an application is filed seeking a claim of juvenility when the trial is before the

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criminal court concerned, is higher than when an inquiry is made by a court before which the case regarding the commission of the offence is pending (vide Section 9 of the JJ Act, 2015).

33.3. That when a claim for juvenility is raised, the burden is on the person raising the claim to satisfy the court to discharge the initial burden. However, the documents mentioned in Rules 12(3)(a)(i), (ii) and (iii) of the JJ Rules, 2007 made under the JJ Act, 2000 or sub-section (2) of Section 94 of the JJ Act, 2015, shall be sufficient for prima facie satisfaction of the court. On the basis of the aforesaid documents a presumption of juvenility may be raised.

33.4. The said presumption is however not conclusive proof of the age of juvenility and the same may be rebutted by contra evidence let in by the opposite side.

33.5. That the procedure of an inquiry by a court is not the same thing as declaring the age of the person as a juvenile sought before the JJ Board when the case is pending for trial before the criminal court concerned. In case of an inquiry, the court records a prima facie conclusion but when there is a determination of age as per sub-section (2) of Section 94 of the 2015 Act, a declaration is made on the basis of evidence. Also the age recorded by the JJ Board shall be deemed to be the true age of the person brought before it. Thus, the standard of proof in an inquiry is different from that required in a proceeding where the determination and declaration of the age of a person has to be made on the basis of evidence scrutinised and accepted only if worthy of such acceptance.

33.6. That it is neither feasible nor desirable to lay down an abstract formula to determine the age of a person. It has to be on the basis of the material on record and on appreciation of evidence adduced by the parties in each case.

33.11. Ossification test cannot be the sole criterion for age determination and a mechanical view regarding the age of a person cannot be adopted solely on the basis of medical opinion by radiological examination. Such evidence is not

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conclusive evidence but only a very useful guiding factor to be considered in the absence of documents mentioned in Section 94(2) of the JJ Act, 2015.”

(emphasis supplied)

14.5 Now we proceed to examine the merits of this argument. It is clear from the above that all of these cases discuss the determination of age from the point of view of the offender and not the victim. Although the process to be followed therefor is the same as that for an offender as held by **Jarnail Singh** (supra), the question involved in the instant *lis* concerns the forum and the stage at which the determination of age is to be made. According to the High Court, the bail Court would, if a challenge is presented by the offender, entertain such challenge and take a *prima facie* view. Here, it becomes important to appreciate the difference between the JJ Act and the POCSO Act.

14.5.1 The JJ Act is primarily focused on dealing with children in conflict with law and children in need of care and protection, rather than victims of offences who are minors. The *Preamble* and Section 1(4) of the Act expressly state that its purpose is to provide for the care, protection, treatment, development, and rehabilitation of such children and for the adjudication of matters relating to children in conflict with law. The Act establishes the JJB (under Sections 4–9) to handle cases involving juvenile offenders, and the Child Welfare Committee²⁶ (under Sections 27–30) to deal with children who require care and protection. Neither of these bodies are vested with jurisdiction over cases concerning child victims of crime. The definitions provided under the Act, of a child in conflict with law and a child in need of care and protection, also clearly underscore this. The Act draws a fundamental distinction between two principal categories of children – *children in conflict with law* and *children in need of care and protection* each

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grounded in the philosophy of welfare, rehabilitation, and reintegration. A *child in conflict with law* refers to a person who has not completed eighteen years of age and is alleged or found to have committed an offence under any existing law. To fall under this category, the requirements are, first, that the person must be below eighteen years of age at the time of the commission of the alleged offence, and second, that there is an allegation or finding of involvement in an act constituting an offence. The Act thus rejects the traditional punitive model of criminal jurisprudence and adopts a reformatory, restorative approach, recognizing that a child's deviant conduct often arises from a coming together in an unfortunate array of circumstances, of structural neglect, social disadvantage, or exposure to adversity. The focus, therefore, is on correction, guidance, and social reintegration through child-friendly processes before the JJIB, ensuring that such children are treated not as offenders but as individuals in need of direction and support.

- 14.5.2 Conversely, a *child in need of care and protection* denotes a child whose condition of neglect, abuse, abandonment, or deprivation necessitates intervention by the State to secure their safety, welfare, and development. This classification embraces children *who are orphaned or abandoned; those found begging, working, or living on the streets; those who are victims of cruelty, exploitation, or trafficking; those who are physically or mentally challenged and without adequate family support; and those at imminent risk of early marriage or neglect within the home*, (which in a given case, could also be a victim). The essence of this definition lies in the child's exposure to vulnerability and the corresponding necessity of care, protection, and rehabilitation through the mechanisms of the CWC. The Act's protective framework thus ensures that children who are deprived of a nurturing environment are restored to stability, dignity, and opportunity through institutional or family-based care.

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- 14.5.3 While these two categories emerge from different factual matrices, one involving alleged delinquency and the other deprivation, they converge upon a shared humanitarian foundation. Both are guided by the principle that every child is entitled to protection, dignity, and development, and that the justice system must operate with sensitivity and compassion. This Court has many-a-time emphasised that the administration of juvenile justice must rest on care and rehabilitation rather than punishment, highlighting the State's duty to protect all children from circumstances that impede their growth and well-being.
- 14.5.4 It is, however, imperative to recognise that neither of these statutory classifications - the child in conflict with law or the child in need of care and protection expressly includes within its ambit the category of child victims. Although both categories are designed to shield children from neglect and marginalisation, the Act does not explicitly address the position of children who are victims of offences, as those under POCSO Act. Unless such victims independently satisfy the definitional parameters of vulnerability or abandonment, they fall outside the direct purview of these classifications. This reveals a conceptual gap, as the legislative scheme, while comprehensive in its welfare orientation, does not formally integrate the rehabilitative and procedural rights of child victims within its framework. Nevertheless, the broader spirit of the Act, anchored in compassion, protection, and restorative justice demands that child victims, too, be accorded equivalent care, support, and rehabilitative attention, ensuring that every child, irrespective of circumstance, is empowered to reclaim their dignity and future.
- 14.6 Having discussed thus, the two separate fields that these two legislations govern, we now turn back to the question of age determination. If the POCSO Act is examined, it can be found that the Act does not prescribe a manner for determination of the age of the victim. As we have already noticed, it is an

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established position in law that the procedure under Section 94 of the JJ Act is to be applied.[See: *Section 34 of the Act*] When the question of determination of age of a child in conflict with the law emerges for the first time before a Court, the concerned legislation provides the procedure as housed in its Section 9 of the Act lays down the procedure to be followed when a person is brought before a Magistrate who is not empowered under the Act, and there arises a claim or reasonable doubt that such person is a child. In such cases, the Magistrate must conduct an inquiry to determine the person's age in accordance with Section 94 of the Act, which prescribes the method for age determination. If, upon inquiry, the Magistrate finds that the person was a child at the time of commission of offence, the case must be immediately forwarded to the JJB having jurisdiction, which will thereafter deal with the matter as per the provisions of the JJ Act. Conversely, if the person is found not to be a child, the Magistrate proceeds with the case as per the regular criminal procedure. The object of Section 9 is to ensure that no juvenile offender is tried as an adult merely due to an initial misclassification and to safeguard the rehabilitative and welfare-oriented spirit of the juvenile justice system by ensuring that every child in conflict with law is tried by the appropriate forum, i.e., the JJB

- 14.7 As held in ***Rishipal Singh***, extracted (supra) the determination of the age when done by a Court stands differently to that done by the JJB. There are two possibilities provided for. There is no determination of age by a JJB - like body when it comes to the victim. If there is a question about the age, it has to be dealt with by the Court, as per the procedure of Section 94, JJ Act. It is when the Court is undertaking the exercise of determination, that the defense of an accused can challenge the veracity of these documents, since the presumption under this section is rebuttable.
- 14.8 As is obvious and as we have observed, the victim being a child is *sine qua non* for the application of the POCSO Act. If a charge-sheet is filed and it contains charges against a person under the POCSO Act, it is but obvious that such an accused would challenge the same at the first available instance in the Court concerned, or in other words, at the

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inception of trial, so as to ensure that the foundation of the trial is correctly in place before it proceeds further. The Court would then undertake the exercise as provided for, and in accordance with the result obtained therefrom, proceed further, either under the POCSO Act or under the provisions of the IPC, as the case may be. Should the accused be dissatisfied with the manner in which the result has been drawn by the Trial Court, an appeal from such determination would have to be filed and only when the question of age is set at rest can the trial proceed forward on firm footing.

- 14.9 Unlike an offender who can claim benefit of juvenility at any point in time, even after completion of proceedings given the beneficial nature of the JJ Act, a victim of a crime cannot claim to be a juvenile at any point in time, for the charges against which an offender is tried, are intrinsically tied to the age of the victim. If a victim of a sexual offence was allowed to claim juvenility at any stage of the proceedings, in the same manner that an offender can under Section 9 of the JJ Act, it would have serious procedural and substantive consequences. For instance, an accused may have been charged under Section 376 IPC which applies when the victim is an adult. However, if the victim is later determined to be below eighteen, the offence would fall under the POCSO Act, where consent is irrelevant and the punishments are more stringent. This would mean that the earlier trial, framing of charges, and recording of evidence were all conducted under an incorrect legal framework. The proceedings would therefore be vitiated, and the trial could be rendered a nullity, necessitating the reframing of charges and a fresh trial under the correct statute.
- 14.10 As can be seen from *Mahadeo v. State of Maharashtra*²⁷, and *Sanjeev Kumar Gupta* (supra) the consideration of the documents enumerated in Section 94, JJ Act is a matter of consideration of evidence since it may involve the examination of witnesses to prove the veracity of the documents. That can only be done by the Trial Court. Contra evidence to challenge the documents, can also be presented only before the Trial

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Court. In our considered view, therefore, the High Court fell in error in holding that a Court in bail jurisdiction is empowered to entertain a challenge to the documents as Section 94 would not apply at the bail stage.

Mini Trial- Impermissible at the stage of Bail

15. There is an additional aspect which, if the proposition as posited by the impugned judgment is upheld, would fall foul of. Such aspect would be that a Court, at the stage of bail cannot conduct a mini trial. This position is trite in law. Reference to the judgments as under would reiterate the same-
 - 15.1 In ***Union of India v. K.A. Najeer***²⁸, it was held by a bench of three judges that the High Court could not at the stage of bail conduct a mini trial and adjudicate, for instance, the admissibility of certain evidence.
 - 15.2 In ***Amlesh Kumar v. State of Bihar***²⁹, this Court observed that when a Court is exercising powers under Section 439 CrPC, such power does not permit the ordering of roving enquiries, or in the context of that case, the use of involuntary investigative techniques.
 - 15.3 Let us also understand this by juxtaposition. Section 482 CrPC empowers the High Court to prevent abuse of the process of law and secure the ends of justice, including quashing criminal proceedings or staying investigations. Even under these broad powers, courts are not permitted to re-examine witnesses or conclusively decide disputed factual issues. Section 439, by contrast, is limited to granting bail or anticipatory bail and requires the Court to consider only *prima facie* evidence, the risk of the accused absconding, tampering with evidence, or other relevant factors. Since Section 439 is narrower in scope, the Court cannot undertake a mini trial at the bail stage.

Medically Determining the Age of the Victim

16. Apropos the above discussion, it is clearly held that determination of age of the victim is a matter of trial and not at the stage of bail. If the

28 (2021) 3 SCC 713

29 2025 SCC OnLine SC 1326

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age is under question, the bail Court may examine the documents produced to establish age, but it will not enter into the question of those documents being correct or not so. The mandate of Section 94 JJ Act is clear. The documents provided therein are to be utilized for determination of the age of the victim, and only in the absence thereof, will medical evidence be resorted to. The decisions in ***P. Yuvaprakash v. State***³⁰ and ***Rajni v. State of UP***³¹ make this as evident as can be.

16.1 ***Yuvaprakash*** (supra) was a case involving the alleged kidnapping of one ‘M’, by the appellant, alleged forced marriage by tying a ‘*thali*’ around her neck, and thereafter, repeated sexual intercourse over a period of time, before abandoning her when the accused persons came to know that M’s loved ones had filed a complaint regarding her being kidnapped. On appeal from a judgment of conviction returned by the Madurai Bench of the High Court of Judicature at Madras, this Court examined the proper method for determining a victim’s age under Section 94(2) of the JJ Act. The statute established a clear hierarchy of documents: ***first***, a matriculation or equivalent school certificate showing the date of birth; ***second***, a birth certificate issued by a municipal corporation or panchayat; and ***third*** only if these were unavailable could a medical or ossification test be relied upon. In the present case, the only document produced was a school Transfer Certificate indicating the date of birth as 11th July 1997. However, this Certificate was not one of the documents prescribed by the Section. Moreover, the Transfer Certificate was produced by a court summoned witness rather than the prosecution, and the Revenue official confirmed that official birth records for 1997 were missing. Consequently, the Transfer Certificate could not establish that the victim was under 18 years of age at the relevant time.

16.1.1 The Court cited precedents, including ***Rishipal Singh Solanki*** (supra) and ***Sanjeev Kumar Gupta*** (supra), to reaffirm the statutory hierarchy i.e., only in the absence

30 2023 SCC OnLine SC 846

31 2025 INSC 737

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of matriculation/school certificates or municipal birth records could medical agedetermination be used. In the facts, it was observed, the headmaster (DW2) admitted that the date of birth in the school record was based on a horoscope rather than an independent verification, and no official birth register existed to support it.

- 16.1.2 Since the documents presented did not fall within the first two categories under Section 94(2), the Court held that the prosecution should rely on the medical ossification test. The doctor (PW9) conducted such a test, concluding that the victim's age was "*more than 18 years and less than 20 years,*" with crossexamination confirming the possibility of age being 19 years. The Court below had discounted this medical evidence, holding that the school record alone could determine age, but that reasoning was rejected, emphasizing that the Transfer Certificate did not meet the statutory standard.
- 16.1.3 Ultimately, the Court concluded that the only acceptable evidence on age was the medical ossification report, which indicated that the victim was above 18 years. As a result, the prosecution failed to prove that the victim was a "*child*" under the POCSO Act, meaning the statutory age requirement for the offence was not satisfied. He was, therefore, acquitted.
- 16.2 In ***Rajni***, the juvenility of her son, Respondent No.2, was the central question and arose in the context of his being made an accused in connection with Crime No. 80/2021 registered before the Medical College Police Station, Meerut under Sections 302/201/34 of the IPC as well as Crime Case No. 97/ 2021 registered before the same police station under Sections 3/25/27 of the Arms Act, 1959. Rajni's application to have her son dealt with as a minor was rejected by the JJB, and the case eventually made its way up the judicial hierarchy, to this Court.
- 16.2.1 The respondent produced a School Certificate from DPS Higher Secondary School, Parvesh Vihar, Meerut, showing his date of birth as 8th September 2003.

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This Certificate, along with the admission date of 4th April 2016 and the High School passing year 2018, suggested that the respondent was about 17 years and 3 months old at the time of the incident. Notably, an earlier proceeding (Miscellaneous Case No.9/2000) had already accepted the same date of birth.

- 16.2.2 However, the JJB was skeptic about these documents, noting that records from Class 4 to Class 8 had been destroyed in a fire, and the respondent's mother could not recall the school's name. The school principal confirmed that original records for those classes were missing. In addition, the JJB rejected the municipal birth certificate from the concerned municipal corporation, which also indicated 8th September 2003, on the grounds that it had been issued on 8th June 2020 that is, after the incident. As a result, a medical examination of the respondent was ordered to determine his age.
- 16.2.3 The Court held this approach to be incorrect in view of the clear stipulation under Section 94(2) of the JJ Act. Here, both the municipal birth certificate and the school certificate were available, and both corroborated the earlier JJB decision. By disregarding these documents and relying on a medical test, the JJB had erred. The Additional District & Sessions Judge rightly reversed the JJB's decision, giving precedence to the school certificate and declaring the respondent a juvenile.
- 16.2.4 The Court also emphasized that the JJB could not challenge its earlier acceptance of the date of birth simply because the mother or informant was not a party in the prior proceeding. The JJB does not have the power to review its earlier decision under the JJ Act, and the earlier acceptance of 8th September 2003 should be binding. Consequently, the High Court upheld the Additional District & Sessions Judge's ruling and affirmed the date of birth reflected in the school certificate.
- 16.2.5 The Court referred to precedents such as ***Rishipal Singh Solanki*** (supra) which clarified that juvenility

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can be claimed at any stage, and that initial burden lies on the claimant. Documents like school certificates or municipal birth certificates are *prima facie* sufficient to establish juvenility, while medical tests cannot serve as the sole criterion. When evidence is borderline, Courts are to lean in favor of juvenility, although misuse must be guarded against.

16.2.6 The discussion continued by distinguishing prior cases where medical tests were relied upon when documentary evidence was unreliable. In contrast, the present case involved consistent documentary evidence - the school certificate, municipal certificate, and earlier JJB decision - all supporting the date of birth as 8th September 2003. The JJB's reasoning that the informant was not a party in the earlier proceeding was found to be unsound. The Additional District & Sessions Judge had correctly reversed the JJB's approach, and the High Court had rightly affirmed that the respondent should be treated as a juvenile at the time of the incident.

17. The necessary sequitur from the above exposition is that a medical determination of age of a victim cannot be resorted to as a matter of course, much less mandated. It can only be employed in a given circumstance when the other stipulations of Section 94 JJ Act are not/cannot be met. This direction, therefore, has to be set aside.

SUMMATION

18. In *fine*, our conclusions are that the High Court in bail jurisdiction was *coram non judice* for issuing directions mandating the investigating authorities within the State of Uttar Pradesh to necessarily have a medical examination of the victim conducted, with the particular intent to determine the age of the victim as also holding, that a bail Court would be empowered to entertain challenges to the documents produced to establish the age of the victim. The importance of medical examination in the harrowing crimes of sexual assault cannot be overstated, *it is not merely a record of injury or a catalogue of biological traces; it is the voice of the body, speaking when words falter and memory trembles*. In cases where the victim's courage

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may be tested by stigma, shame, or the weight of societal scrutiny, medical evidence provides an impartial testament, grounding the pursuit of justice in the certainty of observable fact. It is, in essence, the bridge that links the personal suffering of the victim with the impartial adjudication of the law. But at the same time, its purpose, which is to gather essential evidence in a scientifically sound manner, with due regard to the principles of human dignity on one hand and evidence on the other, cannot be reduced to a common, matter of course step - especially when a procedure with a legislative imprimatur has been laid down. The Court could not have passed directions that go against clearly stated legislative intent under Section 94 of the JJ Act. The determination of the age of the victim is a matter for trial, and the presumption which is accorded to the documents enumerated under the Section, has to be rebutted there, for that is the appropriate forum to do so, not the bail Court. If the question of age is raised at the stage of bail, it is only open for the Court to, from the perusal of the documents, take a *prima facie* view as to the age of the victim, not one on the correctness of the documents since that would amount to a mini trial. It could also not have fused statutory jurisdiction with a constitutional one, lifting one to the other, or downgrading the higher to the lower in order to grant itself the wherewithal, in an otherwise fairly circumscribed jurisdiction, to do what could not be done.

A NECESSITATED POST-SCRIPT

19. As the conclusions drawn above indicate the impugned judgment and order of the High Court has to be set aside on grounds of transgression of the jurisdiction present and thereby lacking the appropriate directions. It is to be set aside also because it goes against the statutory prescription under the JJ Act. Be that as it may, this Court has not lost sight of the well-intentioned purport of this order. The POCSO Act is one of the most solemn articulations of justice aimed at protecting the children of today and the leaders of tomorrow. Yet, when an instrument of such noble and one may even say basic good intent is misused, misapplied and used as a tool for exacting revenge, the notion of justice itself teeters on the edge of inversion. Courts have in many cases sounded alarm regarding this situation. Misuse of the POCSO Act highlights a grim societal chasm - on the one end children are silenced by fear and

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their families are constrained by poverty or stigma, meaning thereby that justice remains distant and uncertain, and on the other hand, those equipped with privilege, literacy, social and monetary capital are able to manipulate the law to their advantage. The impugned judgment is one amongst many where Courts have spoken out. Not only are instances rife where the age of the victim is misrepresented to make the incident fall under the stringent provisions of this law but also there are numerous instances where this law is used by families in opposition to relationships between young people. In *Satish alias Chand v. State of U.P.*³², the High Court, noted that on few occasions concern had been expressed by the Court with respect to application of the Act on consenting adolescence when it comes to consensual relationships between teenagers, four factors have been highlighted which, is crucial for the Courts to consider:

“A. Assess the Context: Each case should be evaluated on its individual facts and circumstances. The nature of the relationship and the intentions of both parties should be carefully examined.

B. Consider Victim’s Statement: The statement of the alleged victim should be given due consideration. If the relationship is consensual and based on mutual affection, this should be factored into decisions regarding bail and prosecution.

C. Avoid Perversity of Justice: Ignoring the consensual nature of a relationship can lead to unjust outcomes, such as wrongful imprisonment. The judicial system should aim to balance the protection of minors with the recognition of their autonomy in certain contexts. Here the age comes out to be an important factor.

D. Judicial Discretion: Courts should use their discretion wisely, ensuring that the application of POCSO does not inadvertently harm the very individuals it is meant to protect.”

[See also: *Mrigraj Gautam @ Rippu v. State of U.P.*]³³

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The Delhi High Court in ***Sahil v. the State NCT of Delhi***³⁴ the Court noted in para 11 of the order that POCSO cases filed at the behest of a girl's family objecting to romantic involvement with a young boy have become common place and consequent thereto these young boys languish in jails. Therein, reference is also made to an order of the Gujarat High Court³⁵, where the Court noted that considering the closeness in age of the prosecutrix and the accused as also the fact that she had left home of her own accord observed that the application deserved consideration.

This chasm between access and abuse is also mirrored in the misuse of Section 498-A IPC and the Dowry Prohibition Act, 1961. Amongst numerous examples, we may only refer to ***Rajesh Chaddha v. State of U.P.***³⁶, where this Court lamented the use of these Sections without specific instances or relevant details, among other cases. It is also to be stated though that no amount of judicial vigilance against misuse can alone bridge this ever-widening gap. The first line of defence lies with the Bar i.e., the body that translates grievance into action and is the gatekeeper of justice at the point of entry. When it comes to matters such as these, the responsibility of the advocate is profound – to examine the allegations with detachment and necessary discretion and to counsel restraint when grievance masks vengeance and to refuse participation in litigation when it can be seen that an ulterior motive is sought to be agitated under the guise of seeking protection of the law. It is only when the Bar takes a principled, proactive role, that the legislation intended as a shield can be stopped from being twisted into a weapon. A lawyer who tempers aggression with calm, reason and rationality, protects not only the opposing party from unwarranted harm but also the client from the long-term consequences of frivolous or malicious litigation, including adverse orders, and judicial censure. By taking a principled stand, the Bar acts as a crucial filter, preventing the legal system from being overwhelmed by abuse masquerading as enforcement. Such self-regulation strengthens public faith in the profession, ensures that judicial time is reserved for genuine disputes, and reinforces the foundational idea that law is a means of justice, not a weapon

34 2024:DHC:6100

35 Jayantibhai Babulbhai Alani v. State of Gujarat 2018 SCC Online Guj. 1223

36 2025 SCC OnLine SC 1094

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of convenience. In this sense, the ethical vigilance of lawyers is not ancillary to justice, it is indispensable to it. When they do not do so, the chasm alluded to above widens. Society also must match institutional reform with moral awakening. The intent and object of these legislations must be at the forefront when a person wishes to lodge a complaint thereunder. The misuse of these laws is a mirror to the opportunistic and self-centered view that pervades the application of law. It is only through discipline, integrity and courage that these problems can be remedied and rooted out. Any legislative amendment or judicial direction will remain lack-luster without this deeper change.

We have referred to certain instances of the High Courts noting the misuse/misapplication of the POCSO Act, somewhat in line with the indices appended to the impugned judgment as also its progenitors.

Considering the fact that repeated judicial notice has been taken of the misuse of these laws, let a copy of this judgment be circulated to the Secretary, Law, Government of India, to consider initiation of steps as may be possible to curb this menace *inter alia*, the introduction of a *Romeo – Juliet* clause exempting genuine adolescent relationships from the stronghold of this law; enacting a mechanism enabling the prosecution of those persons who, by the use of these laws seeks to settle scores etc.

20. In that view of the matter, we pass the following order:

- (a) The appeal is allowed. The directions issued in the impugned judgment are set aside.
- (b) In view of 'III' as extracted in para 5.6 as also in view of their intrinsic connection, such effect will extend to **Aman** (supra) and **Manish** (supra)
- (c) The bail granted in terms of these judgments and orders, is left undisturbed in view of the other factors considered by the learned Single Judge subject to judicial review, if any.
- (d) Insofar as the cases listed in the appendices to these judgments are concerned, this Court refrains from making any comment. The effect of this judgment will be prospective and shall not therefore, impact negatively, any of those cases wherein, following the procedure laid down in the impugned judgment or its progenitors, bail has been secured.

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- (e) The Registrar (Judicial) is directed to dispatch forthwith a copy of this judgment to the learned Registrar General, High Court of Judicature at Allahabad, for necessary follow-up action, as also information to the Trial Courts.

Pending applications, if any, stand disposed of.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Ankit Gyan

State of Himachal Pradesh

v.

Chaman Lal

(Criminal Appeal No. 430 of 2018)

15 January 2026

[B.V. Nagarathna and R. Mahadevan,* JJ.]

Issue for Consideration

Matter pertains to the credibility of the dying declaration of the wife, and the correctness of the order passed by the High Court acquitting the respondent-husband by extending to him the benefit of doubt.

Headnotes[†]

Evidence Act, 1872 – s.32 – Dying declaration – Evidentiary value – Prosecution case that owing to marital discord between the parties, the respondent-husband allegedly poured kerosene on his wife at their residence and set her on fire – Some villagers rushed to her rescue and the respondent also attempted to extinguish the fire – Wife was rushed to the hospital where she succumbed to her burn injuries, after a month – Tehsildar had recorded the dying declaration of the wife – Trial court convicted the respondent for the offence punishable u/s. 302 IPC and sentenced him to imprisonment for life – High Court acquitted the respondent by extending to him the benefit of doubt – Correctness:

Held: Dying declaration inspires full confidence – Declaration clearly and unequivocally attributes the act of pouring kerosene oil and igniting the fire to the respondent – It bears the thumb impression of the deceased and was recorded in the presence of senior officers – No material on record suggestive of tutoring, coercion or manipulation – In any event, the law does not prescribe any rigid form for recording a dying declaration – So long as the Court is satisfied that the declaration is voluntary, truthful and reliable, hyper-technical objections cannot form the basis for its rejection – Dying declaration itself refers to persistent matrimonial discord and ill-treatment thereby furnishing a plausible background

* Author

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for the commission of the offence – Upon an overall appraisal of the evidence, the dying declaration of the deceased, voluntary, truthful and reliable – It was recorded by a competent authority at a time when the deceased was conscious, oriented and capable of making a statement – Minor discrepancies highlighted by the High Court do not create any dent in the credibility of the dying declaration – Plea of self-immolation on behalf of the respondent does not inspire the confidence – Thus, the prosecution proved beyond reasonable doubt that the respondent committed the offence punishable u/s.302 IPC – Trial court correctly relied upon the dying declaration and the surrounding circumstances to record the conviction of the respondent – High Court erred in discarding this crucial piece of evidence on speculative and hyper-technical grounds and in placing undue reliance on the testimonies of hostile and defence witnesses – It cannot be said that a dying declaration must invariably be discarded in the absence of corroboration – Each case must necessarily turn on its own facts – High Court erred in reversing the well-reasoned judgment of conviction recorded by the trial court by re-appreciating the evidence in a manner contrary to the settled principles governing appellate interference – Impugned judgment of acquittal passed by the High Court set aside – Judgment of conviction and order of sentence passed by the trial court restored. [Paras 17-27]

Case Law Cited

State of Haryana v. Ram Singh [2002] 1 SCR 208 : (2002) 2 SCC 426; *Sanjiv Kumar v. State of Punjab* (2009) 16 SCC 487; *Sadhu Saran Singh v. State of Uttar Pradesh and Others* [2016] 1 SCR 913 : AIR 2016 SC 1160 : (2016) 4 SCC 357; *Rajesh Prasad v. State of Bihar and Another Etc.* [2022] 3 SCR 1046 : (2022) 3 SCC 471; *State of Madhya Pradesh v. Phoolchand Rathore* [2023] 5 SCR 601 : 2023 SCC OnLine SC 537; *State of Uttar Pradesh v. Ajmal Beg Etc.*, 2025 SCC OnLine SC 2801; *Khushal Rao v. State of Bombay* [1958] 1 SCR 552 : AIR 1958 SC 22; *Smt. Paniben v. State of Gujarat* [1992] 2 SCR 197 : 1992 SCC OnLine SC 355 : AIR 1992 SC 1817; *Laxman v. State of Maharashtra* [2002] Supp. 1 SCR 697 : (2002) 6 SCC 710; *State of U.P. v. Veerpal* [2022] 1 SCR 1163 : (2022) 4 SCC 741; *Bhajju v. State of Madhya Pradesh* [2012] 5 SCR 37 : (2012) 4 SCC 327; *Gurdeep Singh v. State of Punjab* [2025] 8 SCR 690 : 2025 SCC OnLine SC 1669; *State of Andhra Pradesh v. Bogam Chandraiah and Another* (1986) 3 SCC 637; *Dasin Bai @ Shanti Bai v. State of Chhattisgarh* [2015]

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1 SCR 1060 : 2015 SCC OnLine SC 107; *Purshottam Chopra v. State (NCT of Delhi)* [2020] 1 SCR 341 : 2020 SCC OnLine SC 6 – referred to.

List of Acts

Evidence Act, 1872; Penal Code, 1860; Code of Criminal Procedure, 1973.

List of Keywords

Credibility of the dying declaration; Benefit of doubt; Dying declaration; Marital discord; Husband poured kerosene on his wife; Attempt to extinguish the fire; Imprisonment for life; Acquittal.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 430 of 2018

From the Judgment and Order dated 26.08.2014 of the High Court of Himachal Pradesh at Shimla in CRLA No. 295 of 2010

Appearances for Parties

Adv. for the Appellant(s):
Abhishek Gautam.

Advs. for the Respondent(s):
Krishna Pal Singh/*Amicus Curiae*, Ms. Anvita Aprajita, Mohan Singh Bais, Seemab Qayyum.

Judgment / Order of the Supreme Court**Judgment**

R. Mahadevan, J.

1. The instant Criminal Appeal has been preferred by the State of Himachal Pradesh assailing the Final Judgment and Order dated 26.08.2014 passed by the High Court of Himachal Pradesh at Shimla¹ in Criminal Appeal No. 295 of 2010, whereby the High Court

¹ Hereinafter referred to as “the High Court”

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allowed the appeal preferred by the respondent and set aside the judgment of conviction dated 16.07.2010 and the consequential order of sentence dated 03.08.2010 passed by the Sessions Judge, Chamba Division, Chamba, Himachal Pradesh² in Sessions Trial No. 19 of 2010, thereby acquitting the respondent of the charge under Section 302 of the Indian Penal Code, 1860³.

2. The case of the prosecution is that on 07.12.2009, the respondent-husband Chaman Lal allegedly poured kerosene on his wife Saro Devi (deceased) at their residence situated in Village Rampur, Pargana Dhundi, Tehsil and District Chamba, Himachal Pradesh and set her on fire by lighting a matchstick. On seeing her engulfed in flames, some villagers rushed to her rescue and the respondent also attempted to extinguish the fire. Despite these efforts, the deceased sustained severe burn injuries. The information was conveyed to her brother, Ramesh Kumar, who arrived at the spot and made arrangements to take her to the District Hospital, Chamba where she was provided with medical treatment. After receiving initial treatment at Chamba, her condition did not improve and she was referred to Tanda Medical College and Hospital on 15.12.2009 where she was provided with further treatment. When the doctor opined that there was no chance of improvement, the brother of the deceased took her back to his home on 22.12.2009, after which he continued to look after her. On 15.01.2010, she succumbed to her injuries.
3. Based on the information given by the brother of the deceased, FIR No. 292 of 2009 was registered under Section 302 IPC against the respondent at Police Station Sadar, Chamba on 08.12.2009. During the investigation, it was revealed that the respondent had contracted a love marriage with the deceased and three children were born out of the said wedlock. However, their relationship had become strained and on the fateful day, i.e. on 07.12.2009, the accused poured kerosene upon the deceased and set her on fire, thereby causing her death. Upon information given by the brother of the deceased, ASI Mukesh Kumar came to the hospital. On his intimation, the Tehsildar of the Chamba region reached the hospital and recorded the statement of the deceased, which was treated as Dying Declaration.

2 Hereinafter referred to as "the trial Court"

3 For short, "IPC"

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4. After completion of the investigation, a challan under Section 302 IPC was prepared and filed before the Chief Judicial Magistrate, Chamba. The Magistrate upon examining the record and complying with the provisions of Section 207 of the Code of Criminal Procedure, 1973⁴, found that the case was exclusively triable by the Court of Sessions and accordingly, committed it to the Sessions Court.
5. The trial Court, after hearing the respondent and the prosecution and on the basis of the materials available on record, framed a charge under Section 302 IPC. The respondent pleaded not guilty and claimed to be tried.
6. The prosecution led its evidence. Thereafter, the statement of the respondent was recorded under Section 313 Cr.P.C. He was given an opportunity to lead evidence in defence. After trial and upon perusal of the materials brought on record by the parties, the trial Court found the respondent guilty of the offence under Section 302 IPC and accordingly convicted and sentenced him to imprisonment for life and to pay a fine of Rs. 50,000/- and in default thereof, to undergo simple imprisonment for a further period of three years. The period of detention undergone during investigation and trial was directed to be set off against the sentence imposed.
7. Aggrieved by the judgment of conviction and the order of sentence imposed by the trial Court, the respondent preferred Criminal Appeal No. 295 of 2010 before the High Court. By its judgment dated 26.08.2014, the High Court set aside the judgment of conviction and the order of sentence dated 16.07.2010 and 03.08.2010 respectively and acquitted the respondent of the charge under Section 302 IPC by extending to him the benefit of doubt.
8. Challenging the aforesaid judgment of acquittal, the State of Himachal Pradesh has preferred the present Criminal Appeal before this Court.
9. Mr. Vivek Kumar, learned counsel appearing on behalf of the appellant – State submitted that the deceased Saro Devi was married to the respondent in the year 2002. The couple resided in Village Rampur, Tehsil and District Chamba, Himachal Pradesh. It was alleged that there were disputes and frequent quarrels between the husband and wife owing to the respondent's suspicion regarding

4 For short, "Cr.P.C"

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the character of the deceased. On the evening of 7th December 2009, it was alleged that the respondent poured kerosene oil upon his wife and set her on fire with a matchstick at their residence. The deceased sustained severe burn injuries to the extent of 70% and the respondent also sustained about 3% burn injuries on his hand. Despite treatment, the deceased succumbed to her injuries on 15.01.2010.

- 9.1. It was further submitted that on 08.12.2009, the Tehsildar-cum-Executive Magistrate, Amar Singh (PW-1) recorded the dying declaration (Ext. PW-1/B) of the deceased at the hospital, after medical certification of her fitness and in the presence of the Deputy Superintendent of Police, K.D. Sharma (PW-10) and the Investigating Officer, ASI Mukesh Kumar (PW-12). In her statement, the deceased categorically stated that her husband had set her on fire after insulting her by calling her a “*Kanjri*” (woman of bad character). It was contended that the trial Court rightly relied upon the dying declaration and convicted the respondent. However, the High Court erroneously acquitted the respondent by discarding the dying declaration on the sole ground of alleged discrepancies relating to the time of arrival of the Tehsildar at the hospital.
- 9.2. The learned counsel submitted that the High Court committed a serious error in holding that the time of arrival of the Tehsildar was doubtful relying selectively on one statement of the brother of the deceased (PW-2). The High Court failed to appreciate that PW-2 upon being specifically questioned, corroborated the version of PW-1, PW-10 and PW-12, all of whom consistently stated that the Tehsildar reached the hospital around 11.00-11.15 a.m. The High Court thus erred in isolating one portion of PW-2’s testimony and ignoring consistent corroborative evidence.
- 9.3. It was submitted that the High Court further erred in discarding the testimony of PW-10, who was an independent witness to the recording of the dying declaration. He deposed that the statement of the deceased was dictated by the Tehsildar word by word. The defence did not put any question or suggestion to PW-1 during cross-examination and that the statement was improperly recorded. In the absence of any challenge, the High Court could not have drawn an adverse inference on this aspect.

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- 9.4. The learned counsel submitted that the High Court wrongly relied upon the testimonies of the ward member Om Prakash (PW-4) and Ravindra (PW-5). PW-4, who for the first time before the Court introduced a version that the deceased had poured kerosene upon herself, which he admittedly did not make in his statement before the police thereby rendering his testimony a material improvement and inherently unreliable. Similarly, PW-5 though declared hostile, was nevertheless relied upon by the High Court despite her close relationship with the respondent-she being his paternal aunt (bua). Her testimony being naturally biased, ought to have been discarded and could not have formed the basis of any finding in favour of the respondent.
- 9.5. It was further submitted that the High Court gravely erred in accepting the testimony of DW-2, the minor son of the respondent who sought to set up a plea of alibi by stating that his father was working in the kitchen garden at the relevant time. The testimony of DW-2 stands in direct contradiction to that of PW-12, the Investigating Officer, who categorically stated in his cross- examination that during the course of inquiry, the children of the deceased had informed him that they were playing outside at the time of the incident. The High Court therefore committed a manifest error in placing reliance on defence evidence which was inconsistent and stood expressly contradicted by the prosecution witnesses.
- 9.6. The learned counsel submitted that the High Court failed to properly appreciate the credible and independent testimony of the Tehsildar (PW-1) who categorically deposed that the deceased had stated before him that her husband poured kerosene upon her after calling her a "*Kanjri*". The said statement coming from an independent and disinterested public servant, not only establishes the overt act attributable to the respondent but also furnishes a clear and proximate motive for the commission of the offence. Significantly, nothing adverse was elicited in the cross-examination of PW-1 so as to cast any doubt on his credibility or veracity. The High Court therefore fell into manifest error in holding that no motive stood established against the respondent. The further observation that the absence of any pending court proceedings between the

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spouses indicated lack of animosity is wholly misconceived and legally unsustainable. It is well settled that matrimonial discord and animosity between spouses do not necessarily manifest in the form of litigation. The surrounding circumstances, when read conjointly with the testimonies of PW-1 and PW-2 clearly demonstrate strained marital relations and provide sufficient motive for the commission of the offence.

- 9.7. It was submitted that the High Court has erred in discarding the dying declaration which was duly recorded by the Tehsildar-cum-Executive Magistrate in the presence of responsible officers and stood fully corroborated by both medical and ocular evidence.
- 9.8. The learned counsel further drew our attention to the suspicious post-incident conduct of the respondent. PW-2 deposed that the respondent did not contact him directly to inform him about the condition of his sister. Instead, as testified by Yashpal (PW-3) the respondent contacted PW-3, who in turn conveyed the information to PW-2. Such conduct is wholly unnatural for a husband and strongly indicative of a guilty mind.
- 9.9. The learned counsel ultimately submitted that the findings recorded by the High Court are based on a clear misappreciation of evidence and consideration of wholly irrelevant factors while completely ignoring the cogent, reliable and trustworthy testimonies of independent witnesses including PW-1, PW-10 and PW-12. Conversely, undue reliance was placed on hostile witnesses and contradictory defence evidence, leading to a manifest miscarriage of justice.
- 9.10. It was therefore urged that the judgment and order of acquittal passed by the High Court be set aside and that the conviction and sentence recorded by the trial Court be restored thereby allowing the present criminal appeal.
10. On the other hand, Mr. Krishna Pal Singh, learned counsel appointed as *amicus curiae* for the respondent refuted the submissions advanced on behalf of the appellant – State. At the outset, he drew our attention to the deposition of Ramesh Kumar (PW-2) who stated that he was informed by Yashpal (PW-3) that his sister Saro Devi had sustained burn injuries. Thereafter, PW-2 went to the house of the respondent and found the deceased in a serious condition with

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extensive burn injuries. PW-3 corroborated this version and deposed that the respondent had telephonically informed him on 07.12.2009 that Saro Devi had been burnt and that efforts should be made to save her. The statement of Ramesh Kumar (PW-2) recorded *vide* Ext. PW-12/A was treated as the FIR in the present case. The High Court found that in the said Rukka (FIR), PW-2 specifically stated that when he asked his sister as to who had set her on fire she did not disclose the name of any person. This, according to the defence, was the earliest version of the incident recorded on 07.12.2009 wherein the deceased merely stated that she had been set on fire. Though the trial Court placed primary reliance on the dying declaration (Ext. PW-1/B) recorded by PW-1 Tehsildar, the High Court found the same to be suspicious and not worthy of reliance.

- 10.1. The learned counsel further submitted that it is an admitted fact that villagers including the respondent himself, made efforts to extinguish the fire and rescue the deceased. PW-2 stated that he spoke to his sister on the mobile phone of the respondent during which she only said, "I got burnt, save me". Even in his statement Ext. PW-12/A treated as the FIR, she made no allegation that the respondent had poured kerosene on her or set her on fire with a matchstick. PW-2 admitted that despite repeatedly asking her as to who had set her on fire, she did not name anyone, though he personally suspected the respondent.
- 10.2. The learned counsel placed reliance on the testimonies of PW-4 Om Prakash, the Ward Member, PW-5 Ravindra (declared hostile), DW-2 Kamal Kishor, the eight-year-old son of the deceased and DW-1 Kamla, a friend of the deceased from the same village to contend that the respondent did not commit the alleged offence and that the deceased caught fire on her own. It was argued that the cumulative effect of the evidence on record creates serious doubt about the prosecution allegation that the respondent poured kerosene on the deceased and set her on fire. To support the plea of self-immolation, emphasis was laid on the fact that the respondent himself sustained burn injuries while attempting to rescue the deceased.
- 10.3. In this regard, PW-11 Dr. Vishal Thakur examined the respondent on 10.12.2009 and found burn injuries on his

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left hand to the extent of 3% along with a bruise on the right elbow and issued the MLC (Ext. PW-11/C). It was submitted that the conduct of the respondent in immediately informing the relatives of the deceased further strengthens the defence version that the deceased herself poured kerosene and set herself on fire.

- 10.4. It was further submitted that although the prosecution relied heavily on the dying declaration allegedly recorded by PW-1 Tehsildar on 08.12.2009, the High Court rightly found the same to be suspicious and untrustworthy. PW-1 stated that he reached the hospital at around 11.00-11.15 a.m. on 08.12.2009 to record the dying declaration and claimed to have informed the police about the same. However, when confronted with his statement under Section 161 Cr.P.C. no such fact was found recorded therein. PW-2 in his examination-in-chief stated that the Tehsildar came to the hospital in the evening of 08.12.2009, though later stated that the dying declaration was recorded at about 11.30 a.m. PW-1 further stated that the Deputy Superintendent of Police was present at the time of recording of the dying declaration and had appended his signature thereto.
- 10.5. The learned counsel contended that the very presence of police officers at the time of recording the dying declaration casts a serious doubt on its authenticity as ideally no police official ought to be present at that stage. This circumstance, according to the defence, gives rise to a strong suspicion that the statement was manipulated in connivance with the police and that PW-1 merely signed a statement that had already been prepared. This submission was sought to be supported by the testimony of PW-10, the Deputy Superintendent of Police, who stated that the statement was recorded by the Tehsildar and signed by him. However, in cross examination, PW-10 admitted that he could not recall whether the statement had been recorded by ASI Santosh Kumar and stated that it was dictated by the Tehsildar word by word after questioning the deceased. It was argued that this indicates that the statement was, in fact, written by a police official signed by the Deputy Superintendent of Police and subsequently shown as having

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been recorded by PW-1. The defence further argued that ASI Santosh Kumar though cited as a prosecution witness, was deliberately withheld to conceal the true manner in which the dying declaration came to be recorded. Consequently, the dying declaration (Ext. PW-1/B), according to the defence, is of doubtful credibility and was rightly discarded by the High Court.

- 10.6. On the issue of motive, the learned counsel submitted that no motive whatsoever was established for the respondent to set the deceased on fire. The allegation that the respondent called the deceased a “*Kanjri*” even if accepted, could have caused humiliation to the deceased and may have prompted her to take the extreme step of self-immolation. This possibility, it was contended, is consistent with the evidence on record.
- 10.7. It was lastly submitted that the prosecution failed to prove beyond reasonable doubt that the respondent set the deceased on fire by pouring kerosene upon her. On the contrary, the evidence supports the defence theory of self-immolation arising out of a sense of humiliation. The dying declaration relied upon by the prosecution being suspicious in nature could not, in the absence of reliable corroboration, form the sole basis for conviction. It was argued that the trial Court discarded the defence evidence without cogent reasons, whereas defence evidence is entitled to the same degree of scrutiny as prosecution evidence and cannot be rejected outright.
- 10.8. Placing reliance on the judgments of this Court in ***State of Haryana v. Ram Singh***⁵ and ***Sanjiv Kumar v. State of Punjab***⁶, the learned counsel submitted that defence witnesses must be subjected to careful and critical evaluation and ought not to be discarded merely on the ground that they were produced by the defence.
- 10.9. Thus, according to the learned counsel, the impugned judgment of acquittal does not call for any interference by this Court and the present criminal appeal deserves to be dismissed.
11. We have carefully considered the submissions made on both sides and perused the materials available on record.

5 (2002) 2 SCC 426

6 (2009) 16 SCC 487

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12. In the present case, the appellant – State has challenged the judgment of the High Court acquitting the respondent of the offence punishable under Section 302 IPC. The trial Court earlier found the respondent guilty of committing the offence under Section 302 IPC, holding that he had caused the death of his wife by setting her on fire. Accordingly, the trial Court convicted the respondent and sentenced him to undergo imprisonment for life and to pay a fine of Rs. 50,000/- and in default thereof, to undergo simple imprisonment for a further period of three years.
13. Before advertng to the facts of the present case, it would be apposite to refer to certain decisions delineating the contours of appellate interference with an order of acquittal. In ***Sadhu Saran Singh v. State of Uttar Pradesh and others***⁷, this Court, while considering appeals against a judgment of acquittal rendered by the High Court, categorically observed that there is no absolute restriction in law on the appellate court to review and reappraise the entire evidence upon which the order of acquittal is founded. It was further reiterated that where, upon scrutiny, the appellate court finds that the decision of the court below is based on an erroneous appreciation of evidence or is contrary to settled principles of law, interference with such an order becomes not only permissible but also imperative.
- 13.1. In ***Rajesh Prasad v. State of Bihar and another etc.***⁸ (one of us, B.V. Nagarathna, J., was a member of the Bench) this Court, after undertaking a detailed survey of the case law, summarised the circumstances under which in an appeal against an order of acquittal an order of conviction may be passed. The following paragraphs are relevant:

“31. The circumstances under which an appeal would be entertained by this Court from an order of acquittal passed by a High Court may be summarized as follows:

31.1. Ordinarily, this Court is cautious in interfering with an order of acquittal, especially when the order of acquittal has been confirmed upto the High Court. It is only in rarest of rare cases, where the High Court,

7 (2016) 4 SCC 357 : AIR 2016 SC 1160

8 (2022) 3 SCC 471 – 3 Judge Bench

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on an absolutely wrong process of reasoning and a legally erroneous and perverse approach to the facts of the case, ignoring some of the most vital facts, has acquitted the accused, that the same may be reversed by this Court, exercising jurisdiction under Article 136 of the Constitution. [State of U.P. v. Sahai, AIR 1981 SC 1442] Such fetters on the right to entertain an appeal are prompted by the reluctance to expose a person, who has been acquitted by a competent court of a criminal charge, to the anxiety and tension of a further examination of the case, even though it is held by a superior court. [Arunachalam v. P.S.R. Sadhanantham, AIR 1979 (SC) 1284] An appeal cannot be entertained against an order of acquittal which, after recording valid and weighty reasons, has arrived at an unassailable, logical conclusion which justifies acquittal. [State of Haryana v. Lakhbir Singh, (1990) CrLJ 2274 (SC)]

31.2. However, this Court has on certain occasions, set aside the order of acquittal passed by a High Court. The circumstances under which this Court may entertain an appeal against an order of acquittal and pass an order of conviction, may be summarised as follows:

31.2.1. Where the approach or reasoning of the High Court is perverse:

a) Where incontrovertible evidence has been rejected by the High Court based on suspicion and surmises, which are rather unrealistic. [State of Rajasthan v. Sukhpal Singh, AIR 1984 SC 207] For example, where direct, unanimous accounts of the eyewitnesses, were discounted without cogent reasoning; [State of UP v. Shanker, AIR 1981 SC 879]

b) Where the intrinsic merits of the testimony of relatives, living in the same house as the victim, were discounted on the ground that they were 'interested' witnesses; [State of UP v. Hakim Singh, AIR 1980 SC 184]

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c) Where testimony of witnesses had been disbelieved by the High Court, on an unrealistic conjecture of personal motive on the part of witnesses to implicate the accused, when in fact, the witnesses had no axe to grind in the said matter. [State of Rajasthan v. Sukhpal Singh, AIR 1984 SC 207]

d) Where dying declaration of the deceased victim was rejected by the High Court on an irrelevant ground that they did not explain the injury found on one of the persons present at the site of occurrence of the crime. [Arunachalam v. P.S.R. Sadhanantham, AIR 1979 SC 1284]

e) Where the High Court applied an unrealistic standard of 'implicit proof' rather than that of 'proof beyond reasonable doubt' and therefore evaluated the evidence in a flawed manner. [State of UP v. Ranjha Ram, AIR 1986 SC 1959]

f) Where the High Court rejected circumstantial evidence, based on an exaggerated and capricious theory, which were beyond the plea of the accused; [State of Maharashtra v. Champalal Punjaji Shah, AIR 1981 SC 1675] or where acquittal rests merely in exaggerated devotion to the rule of benefit of doubt in favour of the accused. [Gurbachan v. Satpal Singh, AIR 1990 SC 209].

g) Where the High Court acquitted the accused on the ground that he had no adequate motive to commit the offence, although, in the said case, there was strong direct evidence establishing the guilt of the accused, thereby making it unnecessary on the part of the prosecution to establish 'motive.' [State of AP v. Bogam Chandraiah, AIR 1986 SC 1899]

31.2.2. Where acquittal would result in gross miscarriage of justice:

a) Where the findings of the High Court, disconnecting the accused persons with the crime, were based on a perfunctory consideration of evidence, [State of

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UP v. Pheru Singh, AIR 1989 SC 1205] or based on extenuating circumstances which were purely based in imagination and fantasy. [State of Uttar Pradesh v. Pussu 1983 AIR 867 (SC)]

b) Where the accused had been acquitted on ground of delay in conducting trial, which delay was attributable not to the tardiness or indifference of the prosecuting agencies, but to the conduct of the accused himself; or where accused had been acquitted on ground of delay in conducting trial relating to an offence which is not of a trivial nature. [State of Maharashtra v. Champalal Punjaji Shah, AIR 1981 SC 1675]

[Source: Durga Das Basu – “The Criminal Procedure Code, 1973” Sixth Edition Vol.II Chapter XXIX]”

- 13.2. In ***State of Madhya Pradesh v. Phoolchand Rathore***⁹, this Court reiterated that it is ordinarily slow to interfere with orders of acquittal. However, it was clarified that where the High Court has adopted a wholly erroneous process of reasoning, misread material evidence, or ignored vital circumstances resulting in a grave miscarriage of justice, interference is clearly permissible. The following paragraphs are instructive:

“20. Having considered the submissions and perused the record, before we proceed further, it would be useful for us to notice the law as to when it would be appropriate for this Court, exercising its power under Article 136 of the Constitution of India, to reverse an acquittal into a conviction. Normally, the Court is reluctant to interfere with an order of acquittal. But when it appears that the High Court has on an absolutely wrong process of reasoning and a legally erroneous and perverse approach to the facts of the case and ignoring some of the most vital facts, acquitted the respondent and the order of acquittal passed by the High Court has resulted in a grave

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and substantial miscarriage of justice, extraordinary jurisdiction under Article 136 of the Constitution of India may rightfully be exercised (See: State of U.P. v. Sahai & Others, (1982) 1 SCC 352).

21. *In State of M.P. & Others v. Paltan Mallah & Others (2005) 3 SCC 169, reiterating the same view it was observed:*

“8. ... This being an appeal against acquittal, this Court would be slow in interfering with the findings of the High Court, unless there is perverse appreciation of the evidence which resulted in serious miscarriage of justice and if the High Court has taken a plausible view this Court would not be justified in interfering with the acquittal passed in favour of the accused and if two views are possible and the High Court had chosen one view which is just and reasonable, then also this Court would be reluctant to interfere with the judgment of the High Court.”

22. *In a recent decision rendered by this Court in Basheera Begam v. Mohd. Ibrahim & Others, (2020) 11 SCC 174, it was observed:*

“190. ... Reversal of a judgment and order of conviction and acquittal of the accused should not ordinarily be interfered with unless such reversal/acquittal is vitiated by perversity. In other words, the court might reverse an order of acquittal if the court finds that no person properly instructed in law could have upon analysis of the evidence on record found the accused to be “not guilty”. ...”

13.3. In ***State of Uttar Pradesh v. Ajmal Beg Etc.***¹⁰, this Court while considering appeals against an order of acquittal passed

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by the High Court, undertook a comprehensive examination of the scope and ambit of its power in criminal matters. The following paragraphs are opposite in this context:

“15.1. In Surajdeo Mahto v. State of Bihar, (2022) 11 SCC 800, it was held:

“25. It may be highlighted at the outset that although the powers vested in this Court under Article 136 of the Constitution are wide, this Court in a criminal appeal by special leave will ordinarily loath to enter into a fresh reappraisal of evidence and question the credibility of witnesses when there is a concurrent finding of fact, save for certain exceptional circumstances. While it is difficult to lay down a rule of universal application, it has been affirmed time and again that except where the assessment of the High Court is vitiated by an error of law or procedure, or is based on misreading of evidence, or is inconsistent with the evidence and thus has led to a perverse finding, this Court will refrain from interfering with the findings of the courts below.”

15.2. On a reading of various judgments, viz., Ramaniklal Gokaldas v. State of Gujarat, (1976) 1 SCC 6, Nadodi Jayaraman v. State of T.N., 1992 Supp (3) SCC 161, Banwari Ram v. State of U.P. (1998) 9 SCC 3, the generally accepted standard – which it ought to be stated, is not a rule – is that when the Courts below concurred, this Court does not enter into the reappraisal of the evidence, in a criminal case. In the present case, the Courts below have, in fact, arrived at opposite findings and as such, to set the matter to rest either by conviction or acquittal, this Court must analyse the evidence on record.”

- 13.4. Thus, it is vivid that where a judgment of acquittal is found to be manifestly erroneous, perverse, or founded on a misreading of evidence or incorrect application of law, this Court would

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be justified to set aside the acquittal and record a conviction, albeit exercising such power with circumspection and in exceptional circumstances.

14. Guided by the above principles, we now proceed to examine the facts of the present case. In order to substantiate its case, the prosecution examined twelve witnesses (PW-1 to PW-12) and marked the relevant documents and material objects. The defence, in turn, examined two witnesses (DW-1 and DW-2). A brief and structured appreciation of the oral evidence is as under:

- PW-1 Amar Singh, the Tehsildar-cum-Executive Magistrate, deposed that pursuant to a written direction (Ext. PW-1/A), he proceeded to the Civil Hospital, Chamba on 08.12.2009 at about 11.00-11.15 a.m. for the purpose of recording the statement of Saro Devi. Before recording the statement, he ascertained from the attending doctor that the patient was in a fit condition to make a statement. Thereafter, he recorded her statement, which is on record as Ext. PW-1/B. According to PW1, the deceased stated in clear and unequivocal terms that her husband had sprinkled kerosene oil upon her and set her on fire with a matchstick. She further stated that the respondent used to abuse her by calling her “*Kanjri*” and had asked her to leave the house. PW-1 deposed that the deceased remained conscious throughout, affixed her thumb impression on the statement and that he appended the requisite certificate regarding her fitness and consciousness. He further stated that PW-10, K.D. Sharma, Deputy Superintendent of Police, was present at that time and signed the statement as a witness. In his cross examination, PW-1 categorically denied the suggestion that the statement was recorded at the instance of the police or that the deceased had not made such a statement.
- PW-2, Ramesh Kumar, the brother of the deceased, deposed that on 07.12.2009 he was informed by PW-3 Yashpal that his sister had suffered burn injuries. He stated that he contacted his sister telephonically on someone else’s phone and she told him that she had been put on fire and sought help. PW-2 further stated that he immediately went to the house of the respondent and found his sister lying on the bed in a seriously burnt condition without clothes on her body. She was alive at

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that time and was taken by him to the hospital at Chamba. He reported the matter to the police and his statement Ext. PW-12/A was recorded, on the basis of which the FIR came to be registered. PW-2 further stated that on the next day, i.e. 08.12.2009, the Tehsildar came to the hospital and recorded the statement of his sister in his presence. Although he initially stated that the Tehsildar came in the evening, on a question put by the Court he clarified that the statement was recorded at about 11.30 a.m. He also stated that at the time of recording of the statement, the deceased recognised him, his parents and her mother-in-law. In his cross-examination, he denied the suggestion that the deceased was unconscious or incapable of making a statement.

- PW-3, Yashpal corroborated the version of PW-2. He stated that on 07.12.2009 he received a telephonic call from the respondent informing him that Saro Devi had sustained burn injuries and seeking help to save her. He deposed that he immediately conveyed this information to PW-2, Ramesh Kumar.
- PW-4, Om Prakash, a ward member, stated that upon reaching the house of the respondent, he found the deceased crying and shouting “bachao, bachao”. He further stated that upon enquiry, the deceased told him that she had herself poured kerosene oil on her. He also deposed that the police seized a kerosene can and a matchbox from the spot and took photographs. He proved the seizure memos Ext. PW-4/A and Ext. PW-4/B and identified the seized articles including the kerosene can, matchbox and burnt clothes, namely, salwar, shirt, bra, dupatta and scalp hair.
- PW-5, Ravindra, the aunt of the respondent stated that the deceased did not say that the respondent had set her on fire but stated that she had herself caught fire.
- PW-6, Pawan Kumar, Head Constable deposed that on 18.12.2009 ASI Mukesh Kumar deposited three sealed parcels with him in the Malkhana, one containing burnt mat, another containing burnt clothes of the deceased and the third containing a matchstick and a plastic can with kerosene oil. He made the requisite entries in the Malkhana register. He further stated that on 19.12.2009 the said parcels were sent to the RFSL through

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Constable Rakesh Kumar. He also proved the deposit and dispatch of the viscera of the deceased. His testimony remained unchallenged as no cross examination was conducted.

- PW-7, Nazir Hussain, Patwari, stated that he was associated with the investigation and issued the Jamabandi and Tatima at the request of the police, which were proved as Ext. PW-17/A and Ext. PW-17/B respectively. His testimony was not subjected to cross-examination.
- PW-8, Gian Chand deposed that on 07.12.2009 at about 09.10 p.m., he received telephonic information that a woman in a burnt condition had been brought to the hospital and that necessary action be taken. He proved the recording and transmission of this information. There was no cross- examination of this witness.
- PW-9, Kuldeep Singh, ASI deposed that on 08.12.2009 at about 12.05 a.m. he received a rukka through Home Guard Balbir, on the basis of which FIR Ext. PW-9/A was registered. He proved his endorsement Ext. PW-9/B and stated that thereafter the file was handed over to ASI Mukesh Kumar for investigation.
- PW-10, Shri K.D. Sharma, Deputy Superintendent of Police, supported the testimony of PW-1 and stated that the dying declaration of the deceased was recorded by the Tehsildar and that he signed the same as a witness. In his cross-examination, he denied the suggestion that the dying declaration was fabricated or that it was not recorded by the Tehsildar.
- PW-11, Dr. Vishal Thakur, Medical Officer, was declared hostile. He initially stated that he did not remember whether any opinion regarding the fitness of the deceased to make a statement was sought or given. However, in the cross-examination by the prosecution, he admitted having issued a written opinion Ext. PW-11/B on 07.12.2009 declaring the patient unfit to make a statement. Though he vacillated in his deposition thereafter, significantly, no question was put to him regarding the subsequent medical opinion recorded on Ext. PW-12/C dated 08.12.2009 declaring the patient fit to make a statement.
- PW-12, Mukesh Kumar, ASI and Investigating Officer deposed that on 07.12.2009 he moved an application Ext. PW-11/B seeking medical opinion and the doctor declared the patient

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unfit to make a statement. Based on the statement of PW-2, Ramesh Kumar (Ext. PW-12/A), the FIR (Ext. PW-9/A) was registered. He further stated that on 08.12.2009 he again sought medical opinion *vide* Ext. PW-12/C and the doctor declared the deceased fit, pursuant to which the Tehsildar recorded her statement. He proved the site plan Ext. PW-12/D, the seizure memos, arrest of the accused, the post-mortem report Ext. PW-12/F and the FSL reports Ext. PX and PY.

- DW-1, Kamla deposed that the deceased while in the hospital and later at Tanda, told her that she had herself sprinkled kerosene oil and set herself on fire.
- DW-2, Kamal Kumar, the minor son of the deceased, stated that his grandmother had gone to attend a marriage; that the respondent was working in the kitchen garden; that on learning that his mother had caught fire, the respondent attempted to extinguish the fire with his hands and suffered burn injuries; and that thereafter his maternal uncle came and took the deceased to the hospital.

14.1. The evidence on record establishes that on 08.12.2009, PW-1 recorded the statement of the deceased in the hospital, after obtaining medical opinion regarding her fitness, which was treated as her dying declaration. PW-2 supported the prosecution version and affirmed that the deceased was conscious and capable of making a statement. PW-10 corroborated the recording of the dying declaration while PW-12 supported the prosecution case through the investigative narrative. PW-4 and PW-5 turned hostile, whereas PW-3, PW-6, PW-7, PW-8 and PW-9 are largely formal witnesses whose testimonies do not directly bear upon the core issue of culpability.

15. Having noticed the evidence of the witnesses and the rival submissions, it is now necessary to evaluate whether the prosecution has succeeded in establishing the guilt of the respondent beyond reasonable doubt.

15.1. As noticed earlier, the prosecution case is that on 07.12.2009, the respondent poured kerosene oil upon his wife, Saro Devi, at their residence and set her ablaze by lighting a matchstick.

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On hearing her cries, neighbours rushed to the spot and attempted to rescue her; the respondent also participated in extinguishing the fire and sustained minor burn injuries. The deceased suffered extensive burn injuries and was admitted to the hospital at Chamba. On 08.12.2009, her statement was recorded in the hospital by PW-1, the Tehsildar-cum-Executive Magistrate, after obtaining medical opinion regarding her fitness, in the presence of PW-10, the Deputy Superintendent of Police. The deceased ultimately succumbed to her injuries on 15.01.2010 due to septic shock. The prosecution relies upon the said statement as a dying declaration under Section 32(1) of the Indian Evidence Act, 1872.

16. Before examining the evidentiary value of the dying declaration, it is apposite to note the settled legal principles governing dying declarations. Section 32(1) of the Indian Evidence Act renders admissible statements made by a deceased person as to the cause of death or the circumstances of the transaction resulting in death. It is well settled that a dying declaration need not be made in expectation of immediate death; that a conviction under Section 302 IPC can rest solely on a dying declaration if it is found to be voluntary, truthful and reliable; and that corroboration is not a rule of law but one of prudence.

- 16.1. In ***Khushal Rao v. State of Bombay***¹¹, this Court laid down the foundational principles governing appreciation of dying declarations. In that case, the deceased had made three successive dying declarations within a span of two hours, which were to some extent contradictory. However, one aspect remained consistent in all three declarations namely that he had been attacked by two persons, Kushal Rao and Tukaram with swords and spears. Relying upon this common thread running through the declarations, which was further corroborated by medical evidence disclosing punctured and incised wounds on various parts of the body, this Court held that the declarations could be safely relied upon to convict the accused who had been named therein. While so holding, this Court expounded the principles governing the circumstances under which a

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dying declaration may be accepted without corroboration. In this regard, Paragraph 16 of the judgment is apposite:

“16. On a review of the relevant provisions of the Evidence Act and of the decided cases in the different High Courts in India and in this Court, we have come to the conclusion,

1. that it cannot be laid down as an absolute rule of law that a dying declaration cannot form the sole basis of conviction unless it is corroborated;

2. that each case must be determined on its own facts keeping in view the circumstances in which the dying declaration was made;

3. that it cannot be laid down as a general proposition that a dying declaration is a weaker kind of evidence than other pieces of evidence;

4. that a dying declaration stands on the same footing as another piece of evidence and has to be judged in the light of surrounding circumstances and with reference to the principles governing the weighing of evidence;

5. that a dying declaration which has been recorded by a competent Magistrate in the proper manner, that is to say, in the form of questions and answers, and, as far as practicable, in the words of the maker of the declaration, stands on a much higher footing than a dying declaration which depends upon oral testimony which may suffer from all the infirmities of human memory and human character, and

6. that in order to test the reliability of a dying declaration, the Court has to keep in view, the circumstances like the opportunity of the dying man for observation, for example, whether there was sufficient light if the crime was committed at night; whether the capacity of the man to remember the facts stated, had not been impaired at the time he was making the statement, by circumstances beyond his control; that the statement has been consistent

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throughout if he had several opportunities of making a dying declaration apart from the official record of it; and that the statement had been made at the earliest opportunity and was not the result of tutoring by interested parties.”

- 16.2. The above principles were subsequently summarised by this Court in **Smt. Paniben v. State of Gujarat**¹², as follows:

“(i) There is neither rule of law nor of prudence that dying declaration cannot be acted upon without corroboration. (Munnu Raja v. State of M.P. [(1976) 3 SCC 104])

(ii) If the Court is satisfied that the dying declaration is true and voluntary it can base conviction on it, without corroboration. (State of U.P. v. Ram Sagar Yadav [(1985) 1 SCC 552])

(iii) This Court has to scrutinise the dying declaration carefully and must ensure that the declaration is not the result of tutoring, prompting or imagination. The deceased had opportunity to observe and identify the assailants and was in a fit state to make the declaration. (K. Ramachandra Reddy v. Public Prosecutor [(1976) 3 SCC 618])

(iv) Where dying declaration is suspicious it should not be acted upon without corroborative evidence. (Rasheed Beg v. State of M.P. [(1974) 4 SCC 264])

(v) Where the deceased was unconscious and could never make any dying declaration the evidence with regard to it is to be rejected. (Kake Singh v. State of M.P. [1981 Supp SCC 25])

(vi) A dying declaration which suffers from infirmity cannot form the basis of conviction. (Ram Manorath v. State of U.P. [(1981) 2 SCC 654])

(vii) Merely because a dying declaration does not contain the details as to the occurrence, it is not to

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be rejected. (State of Maharashtra v. Krishnamurti Laxmipati Naidu [1980 Supp SCC 455])

(viii) Equally, merely because it is a brief statement, it is not to be discarded. On the contrary, the shortness of the statement itself guarantees truth. (Surajdeo Oza v. State of Bihar [1980 Supp SCC 769])

(ix) Normally the court in order to satisfy itself whether the deceased was in a fit mental condition to make the dying declaration look up to the medical opinion. But where the eyewitness has said that the deceased was in a fit and conscious state to make this dying declaration, the medical opinion cannot prevail. (Nanhau Ram v. State of M.P. [1988 Supp SCC 152])

(x) Where the prosecution version differs from the version as given in the dying declaration, the said declaration cannot be acted upon. (State of U.P. v. Madan Mohan [(1989) 3 SCC 390])"

- 16.3. In **Laxman v. State of Maharashtra**¹³, a Constitution Bench held that medical certification of fitness is not an absolute requirement and that the testimony of the Magistrate recording the dying declaration would suffice if the Court is otherwise satisfied about the mental fitness of the declarant.
- 16.4. In **State of U.P. v. Veerpal**¹⁴, it was reiterated that a conviction can be sustained solely on the basis of a dying declaration even in the absence of corroboration, provided it inspires confidence. In the said case, the deceased in her dying declaration named the person who had set her on fire. Even in the statement recorded under section 161 Cr.P.C., the deceased stated that her father-in-law had attacked her with a stick with the intention to kill her and that as a result, she locked herself in the room and set herself ablaze. Considering the dying declaration of the deceased, which was found to be voluntary, truthful and reliable, this Court set aside the judgment of acquittal passed

13 (2002) 6 SCC 710

14 (2022) 4 SCC 741

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by the High Court and restored the conviction of the accused for the offences punishable under Section 302 read with Section 34 IPC recorded by the trial Court.

17. In light of the aforesaid principles, the dying declaration in the present case inspires full confidence. It was recorded on 08.12.2009 by PW-1, the Tehsildar, a neutral and independent public officer. Prior to recording the statement, medical opinion regarding the fitness of the deceased was duly obtained. PW-1 categorically stated that the deceased was conscious, oriented and capable of making a statement. This version stands corroborated by PW-10, the Deputy Superintendent of Police and PW-2, the brother of the deceased, both of whom deposed that the deceased recognised them and responded appropriately to questions. Although PW-11, the Medical Officer vacillated on certain aspects, the dying declaration cannot be discarded on that ground alone. The declaration clearly and unequivocally attributes the act of pouring kerosene oil and igniting the fire to the respondent. It bears the thumb impression of the deceased and was recorded in the presence of senior officers. There is no material on record suggestive of tutoring, coercion or manipulation.
18. The High Court disbelieved the dying declaration primarily on two grounds: (i) an alleged inconsistency with respect to the time at which the statement was recorded; and (ii) a doubt as to whether PW-1 himself recorded the statement or merely dictated it. In our considered opinion, neither ground is sustainable.
 - 18.1. As regards the first aspect, PW-2 initially made a vague reference to the evening; however, upon a clarification sought by the Court, he categorically stated that the statement was recorded at around 11.30 a.m. This clarification aligns with the testimonies of PW-1 and PW-10. Such a minor discrepancy, which stood satisfactorily explained, does not go to the root of the prosecution case, especially when the factum of recording of the dying declaration on 08.12.2009 stands firmly established.
 - 18.2. With regard to the manner of recording, PW-1 clearly deposed that he recorded the statement of the deceased after putting questions to her. PW-10 clarified that the statement was recorded under the supervision and authority of PW-1, who ensured that the answers given by the deceased were correctly

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reduced into writing. Recording a dying declaration under the supervision of a Magistrate does not render it invalid. No suggestion was put to PW-1 in cross-examination that he did not record the statement or that he abdicated his responsibility. The High Court thus discarded the dying declaration on conjectures not borne out by the evidence.

- 18.3. In any event, the law does not prescribe any rigid form for recording a dying declaration. So long as the Court is satisfied that the declaration is voluntary, truthful and reliable, hyper-technical objections cannot form the basis for its rejection.
19. In the present case, it is true that the Rukka (FIR) records that the deceased did not initially name the assailant. However, it is settled law that an FIR is not expected to be an encyclopaedia of the entire prosecution case. At that stage, the immediate concern of the family members was the survival of the victim who had sustained nearly 70% burn injuries. Such an omission in the earliest version, in these circumstances, cannot *ipso facto* discredit the subsequent dying declaration recorded in accordance with law.
20. PW-4 and PW-5 were declared hostile and attempted to attribute oral statements to the deceased suggesting self-immolation. The trial Court rightly rejected their testimony. Their version is essentially hearsay and was never disclosed at the earliest available opportunity. In ***Bhajju v. State of Madhya Pradesh***¹⁵, this Court held that the testimony of a hostile witness can be relied upon only to the extent it is corroborated by other reliable evidence. Recently, in ***Gurdeep Singh v. State of Punjab***¹⁶, this principle was reiterated. In the present case, no such corroboration exists in respect of the testimony of PW-4 and PW-5, whose statements are unsupported by any independent or reliable evidence on record.
21. The defence witnesses, DW-1 and DW-2, stand on no better footing. DW-1 admitted in cross-examination that she had reached the spot only after the deceased had already caught fire and was not present at the time of the incident. Her testimony is thus not based on direct knowledge and lacks corroboration. DW-2, the minor son of

15 (2012) 4 SCC 327

16 2025 SCC OnLine SC 1669

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the deceased, does not claim to have witnessed the act of pouring kerosene or igniting the fire. At best, his testimony indicates that the respondent attempted to extinguish the fire, a circumstance which does not negate or dilute the evidentiary value of the dying declaration. The High Court without a proper appreciation of the probative value of these testimonies, erred in placing reliance upon them to overturn the conviction recorded by the trial Court.

22. The plea of self-immolation on behalf of the respondent does not inspire the confidence of this Court. The alleged conduct of the respondent in attempting to extinguish the fire and sustaining minor burn injuries does not, by itself, exonerate him from culpability. Such conduct can equally be consistent with an attempt to create an appearance of innocence after the commission of the offence. The defence witnesses are either interested or partisan and fail to rebut the consistent and cogent prosecution evidence.
23. Motive assumes significance, primarily in cases based on circumstantial evidence. Where there is direct evidence in the form of a credible and trustworthy dying declaration, the absence of strong proof of motive is not fatal to the prosecution case. This position has been consistently affirmed by this Court in ***State of Andhra Pradesh v. Bogam Chandraiah and another***¹⁷, ***Dasin Bai @ Shanti Bai v. State of Chhattisgarh***¹⁸, and ***Purshottam Chopra v. State (NCT of Delhi)***¹⁹. In the present case, the evidence on record discloses that the respondent subjected the deceased to frequent quarrels, humiliation and verbal abuse, including branding her a “*Kanjri*” and repeatedly asking her to leave the matrimonial home. The dying declaration itself refers to persistent matrimonial discord and ill-treatment thereby furnishing a plausible background for the commission of the offence. In any event, the prosecution is not required to establish motive with mathematical precision and failure to conclusively prove motive does not weaken an otherwise reliable and cogent case.
24. Upon an overall appraisal of the evidence, we are satisfied that the dying declaration of the deceased, Saro Devi, is voluntary, truthful

¹⁷ (1986) 3 SCC 637

¹⁸ 2015 SCC OnLine SC 107

¹⁹ 2020 SCC OnLine SC 6

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and reliable. It was recorded by a competent authority at a time when the deceased was conscious, oriented and capable of making a statement. The minor discrepancies highlighted by the High Court do not create any dent in the credibility of the dying declaration. Therefore, the prosecution has proved beyond reasonable doubt that the respondent committed the offence punishable under Section 302 IPC.

25. The trial Court correctly relied upon the dying declaration and the surrounding circumstances to record the conviction of the respondent. The High Court erred in discarding this crucial piece of evidence on speculative and hyper-technical grounds and in placing undue reliance on the testimonies of hostile and defence witnesses. The judgments relied upon by the respondent do not lay down any absolute proposition that a dying declaration must invariably be discarded in the absence of corroboration. Each case must necessarily turn on its own facts.
26. We are, therefore, of the considered view that the High Court fell into manifest error in reversing the well-reasoned judgment of conviction recorded by the trial Court by re-appreciating the evidence in a manner contrary to the settled principles governing appellate interference.
27. Accordingly, the criminal appeal filed by the appellant – State is allowed. The impugned judgement of acquittal passed by the High Court is set aside. Consequently, the judgement of conviction and order of sentence passed by the trial Court are restored. The respondent shall surrender forthwith to undergo the remaining sentence, failing which the trial Court shall take appropriate steps in accordance with law.
28. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeal allowed.

**Elegna Co-op. Housing and Commercial Society Ltd.
v.
Edelweiss Asset Reconstruction Company Limited & Anr.**

(Civil Appeal No. 10261 of 2025)

15 January 2026

[J.B. Pardiwala and R. Mahadevan,* JJ.]

Issue for Consideration

Issue arose whether the NCLAT was correct in admitting Corporate Debtor into the Corporate Insolvency Resolution Process; and whether the NCLAT was correct in rejecting the Intervention application filed by the Society.

Headnotes[†]

Insolvency and Bankruptcy Code, 2016 – ss.5(8)(f), 7, 7(5)(a) – Corporate Insolvency Resolution Process (CIRP) – Admission of the Corporate Debtor into CIRP – *Locus standi* to intervene in proceedings u/s.7 – Appellant-Corporate debtor availed financial assistance of Rs.70 crores from ECL-Original Lender for the development of the residential-cum-commercial project – Appellant failed to pay loan installments, and thereafter the accounts were declared NPA – Original Lender transferred all its rights, title, and interest in the said loan to EARCL-Financial Creditor – Appellant failed in making the payment despite entering into One Time Settlement Agreement – Financial Creditor initiated CIRP u/s.7, in order to recover the loan amount – NCLT dismissed the petition holding that the facts did not warrant initiation of the CIRP as IBC was being invoked as a recovery mechanism rather than as a tool for insolvency resolution; and that the project was viable and substantially complete and CIRP process would adversely affect the interests of the homebuyers – NCLAT set aside the order of NCLT and directed admission of the application u/s.7 – ECHCS (Society)-association of homebuyers moved intervention application before the NCLAT, which was dismissed for want of *locus* – Correctness:

* Author

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Held: Once the Adjudicating Authority is satisfied that a financial debt exists and a default has occurred, it must admit the application unless it is incomplete – Inquiry u/s.7(5)(a) is confined strictly to the determination of debt and default, leaving no scope for equitable or discretionary considerations – Corporate Debtor admittedly possesses no adjudicated or realisable claim exceeding the amount in default – Its reliance on business viability, unsold inventory, project status, or anticipated receivables does not constitute “good reasons” in law to defer or deny admission of CIRP – Existence of a financial debt owed to EARCL is undisputed – Persistent defaults stand admitted and are conclusively established on record, including breach of the restructuring agreement and failure to pay instalments within the stipulated cure period – Restructuring arrangement failed due to non-payment by the Corporate Debtor, thereby triggering an express event of default under its terms – NCLAT correctly held that considerations such as ongoing operations, partial project completion, or anticipated receivables are extraneous to the statutory mandate u/s.7 – It cannot be said that EARCL misused the Code as a recovery tool – Allegations of *mala fide* invocation neither pleaded or established – Circumstances, taken cumulatively, substantiated EARCL’s request for initiation of CIRP – Thus, impugned judgment admitting the Corporate Debtor into the CIRP does not suffer from any legal infirmity – As regards the rejection of the intervention application filed by the society, the appellant Society neither a financial nor an operational creditor – It is a maintenance society not constituted for insolvency representation – No documentary proof of registration, collective authorisation, or general body resolution produced – Membership is automatic and mandatory, negating consensual representation – Intervention application filed only at the appellate stage and not before the NCLT – Society not a party to the financial transaction forming the substratum of the s.7 application, hence, no statutory right of appeal inheres in the appellant – Right to initiate or participate in insolvency proceedings is statutory, not equitable – Society or Resident Welfare Association, not being a creditor in its own right and not recognised as an authorised representative of allottees under the IBC, has no *locus standi* to intervene in proceedings arising out of a s.7 petition – NCLAT justified in rejecting the Society’s intervention application – No prejudice caused to homebuyers,

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whose interests are adequately safeguarded under the Code – Upon commencement of CIRP, any aggrieved stakeholder may avail remedies strictly in accordance with the Code. [Paras 12.3, 12.8-12.12, 12.18, 12.21, 12.22, 13.7, 13.8, 13.17, 13.22, 15]

Insolvency and Bankruptcy Code, 2016 – Cases of insolvency against the project developers – Safeguarding the interests of homebuyers – Issuance of directions to the Committee of Creditors:

Held: While the commercial wisdom of the Committee of Creditors-CoC is paramount and is not ordinarily amenable to judicial review, the width of powers vested in the CoC carries with it a corresponding duty of responsibility – Any extraordinary or non-routine decision taken by the CoC must, thus, be supported by cogent reasons duly recorded in writing – With a view to advancing transparency, ensuring accountability, and safeguarding the interests of homebuyers, issuance of directions – Information Memorandum to mandatorily disclose comprehensive and complete details of all allottees – Where the CoC, upon due consideration, finds it not viable to approve handover of possession in terms of the CIRP Regulations, it shall mandatorily record cogent and specific reasons in writing for such decision – Any recommendation for liquidation by the Committee of Creditors to be accompanied by a reasoned justification recorded in writing evidencing proper application of mind and due consideration of all viable alternatives, in consonance with the objective of the Code – These directions to operate prospectively and to be complied with forthwith. [Para 15.1]

Case Law Cited

Innoventive Industries Ltd v. ICICI Bank [2017] 8 SCR 33 : (2018) 1 SCC 407; *ES. Krishnamurthy v. Bharath Hi- Tech Builders Pvt. Ltd* [2021] 12 SCR 28 : (2022) 3 SCC 161; *Swiss Ribbons (P) Ltd. v. Union of India* [2019] 3 SCR 535 : (2019) 4 SCC 17; *Indus Biotech Private Ltd. v. Kotak India Venture (Offshore) Fund and Others* [2021] 7 SCR 112 : (2021) 6 SCC 436; *GLAS Trust Co. LLC v. BYJU Raveendran*, 2024 INSC 811 : [2024] 10 SCR 1802 : (2025) 3 SCC 625 – relied on.

Vidarbha Industries Power Ltd v. Axis Bank Ltd [2022] 12 SCR 139 : (2022) 8 SCC 352 – distinguished.

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Pioneer Urban Land and Infrastructure Ltd v. Union of India [2019] **10 SCR 381 : (2019) 8 SCC 416**; *Chitra Sharma v. Union of India* [2018] **12 SCR 1044 : (2018) 18 SCC 575**; *Mobilox Innovations Pvt. Ltd. v. Kirusa Software Pvt. Ltd* [2017] **10 SCR 1006 : (2018) 1 SCC 353**; *State Bank of India v. Hubtown Bus Terminal (Vadodara) Pvt. Ltd., R/LPA No. 1 of 2022 in R/Special Civil Application No. 10985 of 2021 etc. cases dated 18.10.2022*; *M. Suresh Kumar Reddy v. Canara Bank and Others* [2023] **5 SCR 387 : 2023 SCC OnLine SC 608**; *Kotak Mahindra Bank Ltd. v. A. Balakrishnan and Another* [2022] **5 SCR 1072 : (2022) 9 SCC 186**; *Tottempudi Salalith v. SBI* [2023] **14 SCR 492 : (2024) 1 SCC 24**; *Haldiram Incorporation (P) Ltd. v. Amrit Hatcheries (P) Ltd, 2023 SCC OnLine SC 1706*; *Karad Urban Cooperative Bank Limited v. Swwapnil Bhingardevay and Others* [2020] **13 SCR 465 : (2020) 9 SCC 729**; *Independent Sugar Corpn. Ltd. v. Girish Sriram Juneja & Ors., 2025 INSC 124 : [2025] 1 SCR 1782 : (2025) 5 SCC 209*; *Phoenix ARC Pvt. Ltd v. Spade Financial Services Ltd* [2021] **15 SCR 1079 : (2021) 3 SCC 475**; *Bishambhar Prasad v. Arfat Petrochemicals Pvt. Ltd. and Others* [2023] **7 SCR 230 : 2023 SCC OnLine SC 458**; *Mansi Brar Fernandes v. Shubha Sharma and Another, 2025 INSC 1110 : [2025] 10 SCR 169 – referred to.*

List of Acts

SARFAESI Act, 2002; Real Estate (Regulation and Development) Act, 2016; Companies Act, 2013; Consumer Protection Act, 2019; Insolvency and Bankruptcy Code, 2016; Code of Civil Procedure, 1908; Security Interest (Enforcement) Rules, 2002; IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016; NCLAT Rules, 2016; Constitution of India.

List of Keywords

Corporate Insolvency Resolution Process (CIRP); Admission of the Corporate Debtor into CIRP; Initiation of CIRP; *Locus standi* of society; One time settlement agreement; Recovery mechanism; Residential project; Home buyers' society; Interests of homebuyers; Financial debt exists; Default; Determination of debt; No discretion survives once default is established; Concept of revival; Financial distress; Safeguarding the interests of homebuyers; Issuance of directions to the Committee of Creditors.

Supreme Court Reports**Case Arising From**

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 10261 of 2025

From the Judgment and Order dated 01.07.2025 of the National Company Law Appellate Tribunal in CAAT No. 2261 of 2024

With

Civil Appeal No. 10012 of 2025

Appearances for Parties

Advs. for the Appellant(s):

Ms. Madhavi Diwan, Nikhil Goel, Sr. Advs., Ms. Purti Gupta, Arjun Sheth, Rishabh Shah, Ms. Pooja Aggarwal, Ms. Henna George, Ms. Sunidhi Sah.

Advs. for the Respondent(s):

P Nagesh, Nikhil Goel, Sr. Advs., Abhishek Agarwal, Atul Sharma, Ms. Renuka Iyer, Aditya Vashith, Anmol Bansal, Ms. Henna George, Ms. Sunidhi Sah.

Judgment / Order of the Supreme Court**Judgment**

R. Mahadevan, J.

1. The present appeals are directed against the final judgment and order dated 01.07.2025 passed by the National Company Law Appellate Tribunal¹, Principal Bench, New Delhi, in Company Appeal (AT) (Insolvency) No. 2261 of 2024.
2. By the impugned judgment, the NCLAT set aside the order dated 06.11.2024 passed by the Adjudicating Authority, National Company Law Tribunal², Ahmedabad Bench, in CP (IB) No. 140 (AHM) / 2024, and directed admission of the application filed under Section 7 of the Insolvency and Bankruptcy Code, 2016³, thereby initiating the

¹ For short, "NCLAT"

² For short, "NCLT"

³ For short, "IBC"

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Corporate Insolvency Resolution Process⁴ against the appellant in C.A. No. 10012 of 2025 – Takshashila Heights India Private Limited. The NCLAT further rejected the intervention application filed by the appellant in C.A. No. 10261 of 2025 – Elegna Co-operative Housing and Commercial Society Ltd.⁵ on the ground that it lacked *locus standi* to intervene in the aforesaid company appeal.

3. For the sake of convenience, the parties to the present appeals are arrayed as under:

Name of the Party	Before NCLT [CP (IB) No. 104(AHM)/2024]	Before NCLAT [CA (AT) (Ins.) No. 2261 of 2024]	Before this Court [CA No. 10261 of 2025 / CA No. 10012 of 2025]
Elegna Co-operative Housing and Commercial Society Ltd.	Not a party	Intervenor	Appellant / -
Takshashila Heights India Private Ltd. (Corporate Debtor)	Respondent	Respondent	Respondent No. 2 / Appellant
Edelweiss Asset Reconstruction Company Ltd. (Financial Creditor)	Applicant	Appellant	Respondent No. 1 / Respondent

Brief facts

4. The necessary facts leading to the filing of the present appeals are as follows:
- 4.1. The appellant in C.A. No. 10012 of 2025 (Corporate Debtor) availed financial assistance of Rs. 70 crores from ECL Finance Ltd. (Original Lender), on 19.07.2018 under two term loan

⁴ For short, "CIRP"

⁵ For short, "Society"

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facilities, for the purpose of developing a residential -cum- commercial project titled “Takshashila Elegna”. To secure the said facilities, the Corporate Debtor and its promoters executed loan agreements, promissory notes, and other security documents on 25.07.2018 (for Term Loan – I of Rs. 40 crores) and 26.09.2018 (for Term Loan – II of Rs.30 crores). An Indenture of Mortgage was subsequently executed on 04.09.2020 in favour of the Original Lender to secure repayment of the said loans. There was delay in repayment of the loan instalments and the Corporate Debtor made its last payment on 30.09.2021, after which the loan accounts were classified as Non-Performing Assets (NPA) on 30.12.2021.

- 4.2. On 09.05.2022, the Original Lender executed an Assignment Agreement transferring all its rights, title, and interest in the said loan to Edelweiss Asset Reconstruction Company Ltd.⁶ (Financial Creditor). Following the same, the Financial Creditor issued a recall and invocation of guarantee notice dated 31.05.2022, demanding a sum of Rs. 53,03,18,487/- from the Corporate Debtor and its personal guarantors against Term Loans I and II. They also initiated recovery proceedings by filing of O.A. No. 367 of 2022 before the Debts Recovery Tribunal, Ahmedabad, and issued a demand notice dated 21.07.2022 under Section 13(2) of the SARFAESI Act, 2002 for Rs. 57,24,96,064/- as on 30.06.2022.
- 4.3. Pursuant to commercial discussions, the Corporate Debtor and the Financial Debtor entered into a Restructuring – cum – One Time Settlement Agreement on 23.05.2023, under which the Corporate Debtor agreed to discharge its outstanding liability of Rs. 55 crores in a phased manner. The Corporate Debtor made payment of Rs. 5.5 crores towards the first instalment on 30.06.2023. The Corporate Debtor *vide* communication dated 25.09.2023, requested the Financial Creditor to issue a provisional No Objection Certificate to facilitate the sale of unsold secured units in the project. However, the Financial Creditor declined to issue NOC and subsequently revoked the restructuring arrangement on 29.12.2023 citing default in payment of instalments.

6 For short, “EARCL”

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- 4.4. Thereafter, the EARCL – Financial Creditor filed a petition under Section 7 of the IBC before the NCLT, seeking initiation of the CIRP against the Corporate Debtor. During pendency of the said proceedings, the Financial Creditor issued a sale notice dated 10.04.2024 under Rule 8(6) read with Rule 9(1) of the Security Interest (Enforcement) Rules, 2002⁷ and the notice was published in newspapers on 18.05.2024.
- 4.5. By a detailed and reasoned order dated 06.11.2024, the NCLT dismissed the Section 7 petition, holding that the facts of the case did not warrant initiation of the CIRP as the IBC was being invoked as a recovery mechanism rather than as a tool for insolvency resolution. The NCLT further noted that the project was viable and substantially complete, and that insolvency proceedings would adversely affect the interests of homebuyers and other stakeholders.
- 4.6. Challenging the order of the NCLT, the Financial Creditor preferred Company Appeal (AT)(Ins.) No. 2261 of 2024 before the NCLAT. The Society filed an intervention application under Rule 11 of the NCLAT Rules, 2016, on the ground that the outcome of the appeal would directly affect the proprietary and contractual rights of its members.
- 4.7. The NCLAT, by its judgment dated 01.07.2025, allowed the appeal filed by the Financial Creditor, set aside the order of the NCLT, and directed admission of the Section 7 petition, thereby initiating CIRP against the Corporate Debtor. The NCLAT, however, rejected the intervention application, holding that the Society lacked *locus standi* as it was not a party to the financial transaction forming the subject matter of the appeal.
- 4.8. Aggrieved thereby, the Society as well as the Corporate Debtor have preferred the present Civil Appeals independently.

Contentions of the Parties

5. The learned senior counsel for the appellant in C.A. No. 10261 of 2025 – Society at the outset, submitted that the impugned judgment

7 For short, "Securitisation Rules"

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suffers from procedural impropriety and has been passed in undue haste, without affording a fair and reasonable opportunity of hearing to the appellant.

- 5.1. It was submitted by the learned senior counsel that the appellant Society is a registered co-operative body representing more than 189 confirmed unit holders of the real estate project “Takshashila Elegna”, developed by the Corporate Debtor. The rights and interests of its members are directly and substantially affected by the outcome of the appeal arising under Section 7 of the IBC. The Society’s intervention application was based on its status as a collective body of homebuyers, who are recognised as “financial creditors” under Explanation (i) to Section 5(8)(f) of the IBC, as affirmed by this Court in ***Pioneer Urban Land and Infrastructure Ltd v. Union of India***⁸ which held that allottees in a real estate project are to be treated as financial creditors and are entitled to participate in the CIRP.
- 5.2. The learned senior counsel further submitted that the appellant is neither a stranger nor an intermeddler, but a directly interested stakeholder whose members’ proprietary and contractual rights stand imperilled by the initiation of the CIRP of the corporate debtor. However, the NCLAT erred in holding that the appellant had no *locus standi* to intervene on the ground that it was not a party to the underlying financial transaction.
- 5.3. It was further contended by the learned senior counsel that the NCLAT misdirected itself in treating the appellant as an “unrelated third party” merely because its members belong to a completed tower of the same project. The creation of such an artificial distinction between unit holders of completed and uncompleted towers within a single real estate development is arbitrary, lacks *intelligible differentia*, and bears no rational nexus to the object sought to be achieved. Such sub-classification within a homogeneous class of allottees offends Article 14 of the Constitution of India.

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- 5.4. The learned senior counsel pointed out that upon commencement of CIRP, the contractual right of allottees to seek specific performance of their agreements to sell stands extinguished by virtue of Regulation 4E of IBBI (Insolvency Resolution Process for Corporate Persons) Regulations, 2016⁹, which mandates that any registration or possession of units shall be subject to the approval of the Committee of Creditors (CoC). The NCLAT failed to take this statutory consequence into account.
- 5.5. It was emphasised by the learned senior counsel that initiation of CIRP suspends the operation of the Real Estate (Regulation and Development) Act, 2016 (RERA), thereby depriving homebuyers of their statutory remedies under RERA. Simultaneously, their participation before the CoC remains uncertain and disproportionately weak owing to their limited voting share as unsecured financial creditors.
- 5.6. Reliance was placed on ***Chitra Sharma v. Union of India***¹⁰, wherein this Court underscored the need to afford special protection to the interests of homebuyers in real estate insolvencies. Denying the appellant a hearing in such circumstances constitutes a violation of the principle of *audi alteram partem* and results in a grave miscarriage of justice.
- 5.7. It was further urged by the learned senior counsel that the NCLAT failed to exercise its inherent powers under Rule 11 of the NCLAT Rules, 2016, which empower it to pass such orders as may be necessary to meet the ends of justice. The rejection of the intervention application was mechanical and devoid of due consideration of the equities involved, thereby defeating the participatory and transparent process envisaged under the IBC.
- 5.8. The learned senior counsel also pointed out that the intervention application was neither properly registered nor reflected in the cause title of the impugned judgment, evidencing procedural irregularity and lack of due process.

9 For short, "CIRP Regulations"

10 (2018) 18 SCC 575

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The omission to adjudicate upon the same in a reasoned manner renders the impugned judgment unsustainable in law.

- 5.9. It was next submitted that the initiation of CIRP in real estate cases often extends far beyond statutory timelines, leaving homebuyers in prolonged uncertainty. During this period, allottees continue to pay EMIs on their home loans without possession of their units, causing serious financial hardship.
- 5.10. The learned senior counsel contended that exclusion of the appellant from the appellate proceedings causes procedural unfairness and violates Article 14 by denying similarly placed financial creditors the opportunity to be heard. The question of intervention is not merely procedural but concerns the substantive rights of the allottees, who risk losing their proprietary interest and right to possession in the event of liquidation under Section 53 of the IBC.
- 5.11. It was further submitted by the learned senior counsel that the participation of the appellant would not have prejudiced the appellate proceedings. On the contrary, it would have advanced the cause of justice by ensuring that all affected stakeholders are heard before any order impacting their rights is passed. The rejection of the appellant's intervention application, therefore, results in manifest injustice and warrants interference by this Court under Section 62 of the IBC.
- 5.12. The learned senior counsel submitted that the conduct of the financial creditor in simultaneously pursuing CIRP, while also attempting to sell units and recover amounts under the Securitisation Rules, is clearly *mala fide* and squarely attracts Section 65 of the IBC. In this regard, reliance was placed on the judgment of this Court in ***Innoventive Industries Ltd v. ICICI Bank***¹¹, wherein it was held that once an order of admission is passed, the CIRP commences and the moratorium comes into effect, thereby imposing a freeze on, *inter alia*, the sale or alienation of assets.
- 5.13. It was further submitted by the learned senior counsel that in ***Swiss Ribbons (P) Ltd. v. Union of India***¹², this Court

11 (2018) 1 SCC 407

12 (2019) 4 SCC 17

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underlined the defining qualities of a financial creditor, who is required to have the long-term interests of the Corporate Debtor at heart and not be merely interested in quick recovery regardless of the future of the Corporate Debtor. Whereas, in the present case, the Respondent – Financial Creditor, being in the business of acquiring debts and instituting Section 7 proceedings on the strength of such debts, is purely in the business of recovery, at the cost of the real estate project as a whole. They have shown no regard for the interest of the other financial creditors, who are deeply invested in the project, having sunk their hard-earned savings into the purchase of flats in the real estate project. According to the learned senior counsel, the project is 90% complete. However, the Financial Creditor is intent upon taking the Corporate Debtor into CIRP, thereby creating a situation of instability and uncertainty, apart from bringing the project to a standstill and depleting the value of the units, both sold and unsold. Such conduct, far from protecting the interests of the corporate debtor imperils them.

- 5.14. In light of the foregoing, it was submitted by the learned senior counsel that the impugned judgment rejecting the appellant's intervention application is arbitrary, procedurally irregular, and violative of Articles 14 and 21 of the Constitution, as well as the principles of natural justice and the same therefore, deserves to be set aside, and the appellant ought to be permitted to intervene in the proceedings initiated against the Corporate Debtor to safeguard the legitimate interests of homebuyers, who are the end users of the project "Takshashila Elegna".
6. Continuing further, the learned senior counsel for the appellant in C.A. No. 10012 of 2025 – Takshashila Heights India Private Limited submitted that the NCLAT has mechanically applied Section 7(5)(a) of the IBC without considering the *bona fide* commercial viability of the project, the recovery-oriented conduct of the respondent – Financial Creditor, and the grave prejudice caused to hundreds of homebuyers whose interests the IBC is designed to safeguard.
- 6.1. According to the learned senior counsel, the appellant is a real estate developer engaged in the construction of a residential – cum – commercial project titled "Takshashila Elegna" situated at Ahmedabad, Gujarat, comprising four towers and 279 units (259

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residential + 20 commercial). The project is duly registered under Gujarat RERA and has achieved substantial completion, with Building Use Certificates issued by the Ahmedabad Municipal Corporation for all towers. Out of 279 units, 189 have been sold, 80 allottees have taken possession, and an amount of Rs. 103 crores has been realised from homebuyers. The remaining unsold inventory constitutes a ready and monetizable asset pool sufficient to discharge all outstanding liabilities. To finance the project, the corporate debtor availed two term loans aggregating to Rs. 70 crores from ECL Finance Limited on 19.07.2018, secured by mortgage of project assets and personal guarantees. Due to Covid-19 disruptions and delays in statutory approvals, repayment timelines were adversely affected, and the accounts were classified as NPA on 30.12.2021. Subsequently, on 31.12.2021 (as amended on 09.05.2022), ECL Finance assigned the debt to EARCL, acting as Trustee of EARC Trust SC 444. EARCL issued a recall notice dated 31.05.2022 demanding Rs. 53.03 crores, followed by a SARFAESI notice dated 21.07.2022 for Rs. 57.24 crores and filed OA No. 367 of 2022 before the DRT, Ahmedabad – clearly reflecting a recovery driven approach.

- 6.2. The learned senior counsel further submitted that after negotiations, the parties entered into a Restructuring – cum – One Time Settlement (OTS) on 23.05.2023, fixing the liability at Rs. 55 crores (Rs. 39 crores by the corporate debtor and Rs. 16 crores by Raghav Conpro LLP), payable in eight instalments. The OTS obligated EARCL to issue provisional NOCs for sale of secured units to enable repayment. The corporate debtor paid Rs. 5.5 crores towards the first instalment and Rs. 0.86 crores towards the second. However, EARCL refused to issue NOCs, thereby obstructing monetisation of unsold units and directly preventing further payments. Despite being in breach of its own obligation, EARCL unilaterally revoked the OTS on 29.12.2023 alleging default. This default, being the result of EARCL's own non-performance, is a manufactured and self-induced default. Thereafter, EARCL filed a Section 7 petition on 23.02.2024 claiming Rs. 93.54 crores (as on 31.01.2024) – an inflated figure nearly Rs. 40 crores higher than the OTS amount, primarily due to arbitrary penal interest. Simultaneously, EARCL pursued the proceedings under the SARFAESI Act

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through a sale notice dated 10.04.2024 and a public notice dated 18.05.2024, amounting to forum shopping and parallel recovery in contravention of the IBC framework.

- 6.3. The learned senior counsel submitted that the NCLT after detailed consideration, dismissed the Section 7 petition holding that (a)the project was substantially complete; (b)initiation of CIRP would gravely prejudice homebuyers; and (c)EARCL's actions amounted to abuse of the IBC for recovery. The NCLAT, however, reversed the order solely on the ground that "proof of debt and default" was sufficient for admission and that **Vidarbha Industries Power Ltd v. Axis Bank Ltd**¹³ was inapplicable. Such a conclusion ignores the discretionary nature of Section 7(5)(a) and is contrary to settled law.
- 6.4. The learned senior counsel submitted that the sequence of actions – recall notice, SARFAESI proceedings, DRT filing, OTS, revocation, and Section 7 filing – demonstrates that EARCL has invoked every recovery mechanism, treating the IBC as an additional coercive tool. In **Swiss Ribbons**, this Court held that the IBC is a beneficial legislation aimed at revival of the corporate debtor and not a mere debt recovery instrument. In **Mobilox Innovations Pvt. Ltd. v. Kirusa Software Pvt. Ltd.**¹⁴ adopting the UNCITRAL Legislative Guide, it was recognised that insolvency proceedings may be denied where their purpose is improper or coercive. Recently, in **GLAS Trust Co. LLC v. BYJU Raveendran**¹⁵, this Court reaffirmed that IBC must not be misused by individual creditors as a tool for coercion or recovery, especially where the corporate debtor is viable and operation. EARCL, being an Asset Reconstruction Company, inherently seeks debt recovery. While such a pursuit is permissible under SARFAESI Act, it cannot justify recourse to IBC when the project is commercially viable, substantially complete, and capable of generating sufficient cash flow.
- 6.5. It was also submitted by the learned senior counsel that EARCL's own records disclose inconsistent and inflated demand

13 (2022) 8 SCC 352

14 (2018) 1 SCC 353

15 2024 INSC 811 : (2025) 3 SCC 625

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figures. The demand escalation of nearly Rs. 40 crores within 18 months, driven by penal interest and arbitrary charges, is commercially unreasonable and evidences *mala fide* intent to create a façade of default.

- 6.6. It was also pointed out that this Court in ***Vidarbha Industries*** held that the Adjudicating Authority “may” admit a petition under Section 7, thereby conferring discretion to assess the expedience and necessity of CIRP based on the corporate debtor’s financial position and overall circumstances. The NCLT rightly exercised such discretion, noting that the project was substantially complete, receivables were assured, and CIRP would harm homebuyers. The NCLAT erred in reducing the process to a mechanical admission test, disregarding ***Vidarbha Industries***, which remains binding and unaltered in law. Discretion under Section 7(5)(a) serves as a vital safeguard against abuse of process, ensuring that viable enterprises are not forced into insolvency due to tactical defaults or recovery motives.
- 6.7. It was submitted by the learned senior counsel that the appellant’s project is substantially complete with 189 units sold and 80 possessions delivered. Admission of CIRP would freeze conveyances and registrations, suspend ongoing possession and maintenance, deprive homebuyers of their contractual and statutory rights under RERA, and destroy the viability of a function project. Such outcomes defeat the IBC’s twin objectives of value maximisation and continuation of viable enterprises. As recognised in ***Chitra Sharma***, the rights of homebuyers warrant special protection in real estate insolvencies. The Gujarat High Court in ***State Bank of India v. Hubtown Bus Terminal (Vadodara) Pvt. Ltd.***¹⁶ similarly recognized that settlement through sale of inventory and escrow appropriation is a legitimate alternative to CIRP, aligning with the IBC’s revival- oriented scheme.
- 6.8. It was submitted by the learned senior counsel that the corporate debtor has already proposed a renewed repayment plan and sought a meeting with EARCL *vide* email dated 13.08.2025, indicating continued willingness to repay. If EARCL issues the

16 R/LPA No. 1 of 2022 in R/Special Civil Application No. 10985 of 2021 etc cases dated 18.10.2022

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required NOC and facilities sales of unsold units, the entire outstanding liability can be liquidated without recourse to CIRP.

- 6.9. Therefore, it was submitted by the learned senior counsel that the Section 7 petition filed by EARCL constitutes a misuse of the IBC for coercive recovery. The alleged default is manufactured, the project is viable and substantially complete, and there exists sufficient receivable to discharge all dues. The NCLT correctly exercised discretion under Section 7(5)(a) in dismissing the petition. The NCLAT, in reversing it without considering expedience, viability, or stakeholder impact, committed an error apparent on the face of record. Therefore, the learned senior counsel prayed that this court may be pleased to allow the appeal, set aside the impugned judgment of the NCLAT dated 01.07.2025, and restore the reasoned order of the NCLT dated 06.11.2024 dismissing the Section 7 petition.
7. The learned senior counsel appearing on behalf of Respondent No.1, EARCL – Financial Creditor made the following submissions:

Lack of *locus standi* of the appellant Society

- (i) The appellant is merely a maintenance society constituted for upkeep and administration of the project premises and not a representative body formed by allottees for protection of their collective interests. Consequently, it cannot be regarded either as a “financial creditor” under Section 5(7) or as an “operational creditor” under Section 5(20) of the IBC. It therefore lacks *locus standi* to intervene in or object to proceedings under Section 7 of the Code.
- (ii) The appellant is not a party to any loan agreements, debenture subscription agreements, or restructuring arrangements executed between Respondent No. 1 and the Corporate Debtor. Any grievance on behalf of homebuyers could only have been raised through a duly recognized association or by a sufficient number of allottees jointly, and before the Adjudicating Authority (NCLT) not belatedly before the NCLAT in appeal.
- (iii) The appeal itself suffers from procedural infirmities: the Appellant failed to annex its registration certificate; the supporting affidavit is sworn by one Mr. Vishal Parmar, who is neither an allottee

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nor a unit holder; and no resolution or collective authorization from the allottees empowering him to act on their behalf has been produced.

Necessity and urgency of admitting the Corporate Debtor into CIRP

- (i) The Corporate Debtor's liability is not confined to Respondent No. 1 alone. Multiple creditors, including IDBI Trusteeship Services Ltd., have independently initiated proceedings under Section 7 (Company Petition (IB) No, 190/AHM / 2025), establishing persistent defaults across creditors. This demonstrates systemic financial stress and underscores the necessity of admitting CIRP to preserve value, prevent asset dissipation, and ensure equitable treatment of all stakeholders.
- (ii) In ***E.S. Krishnamurthy v. Bharath Hi- Tech Builders Pvt. Ltd***¹⁷, this Court reiterated that the enquiry under Section 7 of the IBC is confined to the existence of a financial debt and the occurrence of default. Once these twin conditions are established, admission of the petition is mandatory.
- (iii) Reliance on ***Vidarbha Industries*** is wholly misplaced. In ***M. Suresh Kumar Reddy v. Canara Bank and others***¹⁸, this Court clarified that ***Vidarbha Industries*** turned on its peculiar facts and does not dilute or override the binding principles laid down in ***Innoventive Industries and E.S. Krishnamurthy***. Any interpretation of ***Vidarbha Industries*** as conferring broad discretion upon the Adjudicating Authority to refuse admission despite an undisputed debt and default would defeat the scheme and objective of the IBC.
- (iv) The IBC framework incorporates comprehensive safeguards to protect homebuyers' interests. Homebuyers are statutorily recognized as financial creditors and are represented in the Committee of Creditors (CoC) through an Authorised Representative under Section 21(6A) read with Regulation 16A of the CIRP Regulations.
- (v) Regulation 4E of the CIRP Regulations pertains to post-admission procedures and cannot be invoked to resist initiation

¹⁷ (2022) 3 SCC 161

¹⁸ 2023 SCC OnLine SC 608

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of CIRP. It casts mandatory obligations on the Resolution Professional, upon CoC approval, to deliver possession and facilitate registration of units. This provision strengthens, rather than restricts, the protection available to homebuyers.

- (vi) Even in liquidation, allottees in possession remain protected, as such units are expressly excluded from the liquidation estate under Regulation 46A of the IBBI (Liquidation Process) Regulations, 2016. Further, *Pioneer Urban Land* affirms the harmonious coexistence of homebuyers' rights under RERA with the IBC framework.
- (vii) Admission of CIRP does not extinguish the contractual or proprietary rights of allottees. On the contrary, it facilitates project completion, enables infusion of new capital, and maximises value for all stakeholders. Several real estate insolvency cases demonstrate that CIRP has expedited delivery of possession and improved project viability as compared to fragmented individual enforcement or recovery proceedings.
- (viii) The corporate debtor defaulted on the very second instalment, paying only Rs.86 lakhs against the agreed Rs. 3 crores. Despite repeated reminders and a contractual cure period, it failed to rectify the default. Extensive email correspondence evidences repeated indulgence by the financial creditor and sustained non-compliance by the corporate debtor. Consequently, the Respondent lawfully revoked the restructuring arrangement and recalled the outstanding liability on 29.12.2023.
- (ix) Initiation or continuation of recovery proceedings prior to admission of CIRP is legally permissible and does not bar initiation of insolvency proceedings under section 7. The NCLAT has consistently held that pendency of recovery proceedings before the DRT or enforcement under the SARFAESI Act does not preclude a financial creditor from invoking the IBC.

With these submissions, the learned senior counsel prayed for dismissal of the appeals by affirming the judgment of the NCLAT.

Analysis

8. We have considered the submissions made by the learned counsel appearing for the parties and perusal of the materials available on record carefully and meticulously.

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9. By order dated 06.08.2025, this Court stayed the operation of the impugned judgment and order passed by the NCLAT till the pronouncement of the judgment, and further directed all parties to maintain *status quo* with regard to the nature, character and possession of the property.
10. This Court has, time and again, been called upon to protect the rights of homebuyers navigating the turbulent waters of India's real estate sector. Conscious of its constitutional and statutory duty, this Court has made sustained efforts, within the four corners of the law, to safeguard the legitimate interests of homebuyers.
 - 10.1. In theory, the Insolvency and Bankruptcy Code, 2016 presents an effective solution to their woes: a distressed project is rescued through the corporate insolvency resolution process, construction is completed, and the allotted units are ultimately delivered. On paper, the framework appears straightforward. In practice, however, homebuyers are often gripped with anxiety when a project enters CIRP. Caught between the developer on one hand and institutional lenders on the other, their interests are particularly vulnerable.
 - 10.2. While homebuyers seek completion of the project they have invested in, lenders, who ordinarily command a dominant position in the Committee of Creditors, may prefer to accept a haircut and press for liquidation, rather than undertake the complexities and commercial risks involved in reviving a struggling real estate project. It is at such junctures that this Court must reiterate, and indeed remind, that the fundamental object of the IBC is resolution and revival, and not mere recovery.
 - 10.3. If creditors elect to invoke the provisions of the Code, they must do so with a genuine willingness to pursue revival of the corporate debtor. Should revival not be their objective, the Code cannot be converted into a tool for expedient recovery; alternative statutory remedies, including under SARFAESI or other applicable laws, remain available in accordance with law.
 - 10.4. The interests of homebuyers are undoubtedly of paramount importance. However, such interests must be protected strictly

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within the legal framework. The resolution mechanism under the IBC contains adequate safeguards for homebuyers, which have been repeatedly strengthened by judicial interpretation. The appropriate course lies in constructive engagement with the Committee of Creditors, with a view to completing the project and advancing the collective good, rather than fragmenting the process through individual self-interest.

- 10.5. In light of the above, we proceed to examine the issues involved in the present case, mindful of the delicate task of balancing genuine yet competing interests.
11. In these appeals arising out of a common judgment, the two questions that arise for consideration, are as follows:
- 1) Whether the NCLAT was correct in admitting Corporate Debtor into the Corporate Insolvency Resolution Process?
 - 2) Whether the NCLAT was correct in rejecting the Intervention application filed by the Society.
12. **Question No. 1 – Admission of the Corporate Debtor into CIRP**
- 12.1. The Corporate Debtor contends that the initiation of CIRP by the respondent – EARCL lacked *bona fides* and was intended to operate as a recovery mechanism rather than a resolution process. It is urged that the Corporate Debtor was a going concern; that the real estate project was substantially completed; and that adequate receivables from unsold inventory were available to service the debt. The default, according to the Corporate Debtor, was not wilful but occurred due to EARCL's refusal to issue provisional No Objection Certificate, which allegedly frustrated further sale of remaining units. Such conduct, it is contended, disentitles EARCL from invoking Section 7 of the Code.
- 12.2. *Per contra*, EARCL submits that admission under Section 7 is governed exclusively by the existence of a financial debt and the occurrence of default. Once these twin conditions are satisfied, admission is mandatory. Considerations such as project viability, stage of completion, alleged conduct of the creditor, or perceived prejudice to homebuyers are wholly irrelevant at the admission stage.

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- 12.3. The legal position is now well settled. In ***Innovative Industries***, this Court held that once the Adjudicating Authority is satisfied that a financial debt exists and a default has occurred, it must admit the application unless it is incomplete. The inquiry under Section 7(5)(a) is confined strictly to the determination of debt and default, leaving no scope for equitable or discretionary considerations.
- 12.4. This principle was reiterated in ***E.S. Krishnamurthy***, wherein this Court clarified that no discretion survives once default is established. Similarly, in ***Swiss Ribbons***, this Court reaffirmed that the trigger for CIRP is default, and the object of the Code is to ensure timely resolution to preserve enterprise value.
- 12.5. The reliance placed by the Corporate Debtor on ***Vidarbha Industries*** is wholly misconceived. That decision has consistently been recognised as a narrow exception confined to its peculiar facts, namely the existence of an adjudicated and realisable claim in favour of the corporate debtor exceeding the debt owed.
- 12.6. This position now stands authoritatively clarified in ***M. Suresh Kumar Reddy***, wherein this Court held that ***Vidarbha Industries*** does not dilute the binding ratio of ***Innovative Industries*** and ***E.S. Krishnamurthy***. Admission under Section 7 thus remains mandatory once debt and default are established, with ***Vidarbha Industries*** operating only in exceptional circumstances.
- 12.7. In any event, the scope of the Adjudicating Authority's powers stands elaborately discussed by a three-Judge Bench of this Court in ***Indus Biotech Private Ltd. v. Kotak India Venture (Offshore) Fund and others***¹⁹. While recognising that the NCLT is not expected to act mechanically and is empowered to examine the material on record to satisfy itself that a default has in fact occurred, this Court unequivocally held that once the ingredients of Section 7, most importantly, default, are satisfied, admission must follow. The relevant passages from ***Indus Biotech*** are extracted below for ready reference:

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*“14. In order to arrive at a conclusion on the correctness or otherwise of the impugned order [Indus Biotech (P) Ltd. v. Kotak India Venture Fund (1), 2020 SCC OnLine NCLT 1430], at the outset it is necessary for us to take note of the scope of the proceedings under Section 7 of the IB Code to which detailed reference is made with reference to the definitions in Sections 3(6), 3(8), 3(11), 3(12) and 5(7) of the Code. It provides for the “financial creditor” to file an application for initiating corporate insolvency resolution process against a “corporate debtor” before the adjudicating authority when “default” has occurred. **The provision, therefore, contemplates that in order to trigger an application there should be in existence four factors: (i) there should be a “debt” (ii) “default” should have occurred (iii) debt should be due to “financial creditor” and (iv) such default which has occurred should be by a “corporate debtor”. On such application being filed with the compliance required under sub-sections (1) to (3) of Section 7 of IB Code, a duty is cast on the adjudicating authority to ascertain the existence of a default if shown from the records or on the basis of other evidence furnished by the financial creditor, as contemplated under sub-section (4) to Section 7 of IB Code.***

15. This Court had the occasion to consider exhaustively the scheme and working of the IB Code in Innoventive Industries Ltd. v. ICICI Bank [Innoventive Industries Ltd. v. ICICI Bank, (2018) 1 SCC 407 : (2018) 1 SCC (Civ) 356]. The proceeding under Section 7 of the IB Code and the scope thereof is articulated in paras 27 to 30 which read hereunder: (SCC pp. 437-39)

“27. The scheme of the Code is to ensure that when a default takes place, in the sense that a debt becomes due and is not paid, the insolvency resolution process begins. Default is defined in Section 3(12)

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in very wide terms as meaning non-payment of a debt once it becomes due and payable, which includes non-payment of even part thereof or an instalment amount. For the meaning of “debt”, we have to go to Section 3(11), which in turn tells us that a debt means a liability of obligation in respect of a “claim” and for the meaning of “claim”, we have to go back to Section 3(6) which defines “claim” to mean a right to payment even if it is disputed. The Code gets triggered the moment default is of rupees one lakh or more (Section 4). The corporate insolvency resolution process may be triggered by the corporate debtor itself or a financial creditor or operational creditor. A distinction is made by the Code between debts owed to financial creditors and operational creditors. A financial creditor has been defined under Section 5(7) as a person to whom a financial debt is owed and a financial debt is defined in Section 5(8) to mean a debt which is disbursed against consideration for the time value of money. As opposed to this, an operational creditor means a person to whom an operational debt is owed and an operational debt under Section 5(21) means a claim in respect of provision of goods or services.

28. When it comes to a financial creditor triggering the process, Section 7 becomes relevant. Under the Explanation to Section 7(1), a default is in respect of a financial debt owed to any financial creditor of the corporate debtor—**it need not be a debt owed to the applicant financial creditor.** Under Section 7(2), an application is to be made under sub-section (1) in such

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*form and manner as is prescribed, which takes us to the Insolvency and Bankruptcy (Application to adjudicating authority) Rules, 2016. Under Rule 4, the application is made by a financial creditor in Form 1 accompanied by documents and records required therein. Form 1 is a detailed form in 5 parts, which requires particulars of the applicant in Part I, particulars of the corporate debtor in Part II, particulars of the proposed interim resolution professional in Part III, particulars of the financial debt in Part IV and documents, records and evidence of default in Part V. Under Rule 4(3), the applicant is to dispatch a copy of the application filed with the adjudicating authority by registered post or speed post to the registered office of the corporate debtor. The speed, within which the adjudicating authority is to ascertain the existence of a default from the records of the information utility or on the basis of evidence furnished by the financial creditor, is important. This it must do within 14 days of the receipt of the application. It is at the stage of Section 7(5), where the adjudicating authority is to be satisfied that a default has occurred, that the corporate debtor is entitled to point out that a default has not occurred in the sense that the “debt”, which may also include a disputed claim, is not due. A debt may not be due if it is not payable in law or in fact. The moment the adjudicating authority is satisfied that a default has occurred, **the application must be admitted** unless it is incomplete, in which case it may give notice to the applicant to rectify the defect within 7 days of receipt of a notice from the adjudicating authority. Under sub-section*

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(7), the adjudicating authority shall then communicate the order passed to the financial creditor and corporate debtor within 7 days of admission or rejection of such application, as the case may be.

29. The scheme of Section 7 stands in contrast with the scheme under Section 8 where an operational creditor is, on the occurrence of a default, to first deliver a demand notice of the unpaid debt to the operational debtor in the manner provided in Section 8(1) of the Code. Under Section 8(2), the corporate debtor can, within a period of 10 days of receipt of the demand notice or copy of the invoice mentioned in sub-section (1), bring to the notice of the operational creditor the existence of a dispute or the record of the pendency of a suit or arbitration proceedings, which is pre-existing i.e. before such notice or invoice was received by the corporate debtor. **The moment there is existence of such a dispute, the operational creditor gets out of the clutches of the Code.**

30. On the other hand, as we have seen, in the case of a corporate debtor who commits a default of a financial debt, the adjudicating authority has merely to see the records of the information utility or other evidence produced by the financial creditor to satisfy itself that a default has occurred. It is of no matter that the debt is disputed so long as the debt is “due” i.e. payable unless interdicted by some law or has not yet become due in the sense that it is payable at some future date. It is only when this is proved to the satisfaction of the adjudicating authority that the

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***adjudicating authority may reject an
application and not otherwise.”***

(emphasis supplied)

16. *Dr Singhvi, learned Senior Counsel while seeking to repel the contention put forth on behalf of Indus Biotech Pvt. Ltd. seeks to emphasise that a proceeding under Section 7 of IB Code is to be considered in a stringent manner. Referring to the Preamble to the IB Code, it is contended that the same has evolved after all the earlier processes like civil suit, winding-up petition, Sarfaesi proceeding and SICA have failed to secure the desired result. The provision under the IB Code is with the intention of making a debtor to seek the creditor. In that regard, Dr Singhvi has referred to the decisions in Swiss Ribbons (P) Ltd. v. Union of India [Swiss Ribbons (P) Ltd. v. Union of India, (2019) 4 SCC 17] and Booz Allen & Hamilton Inc. v. SBI Home Finance Ltd. [Booz Allen & Hamilton Inc. v. SBI Home Finance Ltd., (2011) 5 SCC 532 : (2011) 2 SCC (Civ) 781] to contend that the proceeding under Section 7 of IB Code is an action in rem. As such insolvency and winding-up matters are non-arbitrable. In that background, the nature of transaction under the SS and SA was referred. It is in that regard contended that the agreement provides for the manner of redemption as also the redemption value. The date of redemption is fixed as 31-12-2018. The OCRPS when redeemed is payable within 15 days from the date of redemption. In such situation, there is no other issue which requires resolution by arbitration. Further, it is contended that Clauses 5.1 and 5.2 in Schedule J to the agreement provided that the redemption value shall constitute a debt outstanding by the Company to the holder. Hence the amount being debt on the redemption date, if not paid within 15 days of redemption constituted default. In that background, when the petition under Section 7 of IB Code was filed the adjudicating authority*

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ought to have looked into that aspect alone and the consideration of an application filed under Section 8 of the 1996 Act is without jurisdiction is the contention.

17. The procedure contemplated will indicate that before the adjudicating authority is satisfied as to whether the default has occurred or not, in addition to the material placed by the financial creditor, **the corporate debtor is entitled to point out that the default has not occurred and that the debt is not due, consequently to satisfy the adjudicating authority that there is no default.** In such exercise undertaken by the adjudicating authority if it is found that there is default, the process as contemplated under sub-section (5) of Section 7 of IB Code is to be followed as provided under sub-section (5)(a); or if there is no default the adjudicating authority shall reject the application as provided under sub-section (5)(b) to Section 7 of IB Code. In that circumstance if the finding of default is recorded and the adjudicating authority proceeds to admit the application the corporate insolvency resolution process commences as provided under sub-section (6) and is required to be processed further. In such event, it becomes a proceeding in rem on the date of admission and from that point onwards the matter would not be arbitrable. The only course to be followed thereafter is the resolution process under IB Code. **Therefore, the trigger point is not the filing of the application under Section 7 of IB Code but admission of the same on determining default.**

18. In that circumstance, though Dr Singhvi has referred to the evolution of IB Code after all earlier legal process had failed to give the rightful place to the creditor; which is sought to be achieved by the IB Code, **it cannot be said that by the procedure prescribed under the IB Code it means that the claim of the creditor if made before NCLT, more particularly under Section 7 of IB Code is**

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sacrosanct and the corporate debtor is denuded of putting forth its version or the contention to show to the adjudicating authority that the default has not occurred and explain the circumstance for contending so. In fact, in the very decision relied on by both the parties in *Innoventive Industries Ltd. v. ICICI Bank*, (2018) 1 SCC 407 : (2018) 1 SCC (Civ) 356] , this Court while considering the scope of the various provisions under the Act and while referring to the procedure contemplated in a petition under Section 7 of the IB Code, which is also extracted supra reads thus : (SCC p. 438, para 28)

“28. ... It is at the stage of Section 7(5), where the adjudicating authority is to be satisfied that a default has occurred, that the corporate debtor is entitled to point out that a default has not occurred in the sense that the “debt”, which may also include a disputed claim, is not due. A debt may not be due if it is not payable in law or in fact.”

19...

20. Therefore, in a fact situation of the present nature when the process of conversion had commenced and certain steps were taken in that direction, even if the redemption date is kept in view and the clause in Schedule J indicating that redemption value shall constitute a debt outstanding is taken note of; when certain transactions were discussed between the parties and had not concluded since the point as to whether it was 30% of the equity shares in the company or 10% by applying proper formula had not reached a conclusion and thereafter agreed or disagreed, it would not have been appropriate to hold that there is default and admit the petition merely because a claim was made by Kotak Venture as per the originally agreed date and a petition was filed.

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In the process of consideration to be made by the adjudicating authority the facts in the particular case are to be taken into consideration before arriving at a conclusion as to whether a default has occurred even if there is a debt in strict sense of the term, which exercise in the present case has been done by the adjudicating authority.

21. In such circumstance if the adjudicating authority finds from the material available on record that the **situation is not yet ripe to call it a default, that too if it is satisfied that it is profit making company and certain other factors which need consideration, appropriate orders in that regard would be made; the consequence of which could be the dismissal of the petition under Section 7 of IB Code on taking note of the stance of the corporate debtor.** As otherwise if in every case where there is debt, if default is also assumed and the process becomes automatic, a company which is ably running its administration and discharging its debts in planned manner may also be pushed to the corporate insolvency resolution process and get entangled in a proceeding with no point of return. Therefore, the adjudicating authority certainly would make an objective assessment of the whole situation before coming to a conclusion as to whether the petition under Section 7 of IB Code is to be admitted in the factual background. Dr Singhvi, however contended, that when it is shown the debt is due and the same has not been paid the adjudicating authority should record default and admit the petition. He contends that even in such situation the interest of the corporate debtor is not jeopardised inasmuch as the admission orders made by the adjudicating authority are appealable to NCLAT and thereafter to the Supreme Court where the correctness of the order in any case would be tested. We note, it cannot be in dispute that so would be the case even if the adjudicating authority takes a view that the petition

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is not ripe to be entertained or does not constitute all the ingredients, more particularly default, to admit the petition, since even such order would remain appealable to NCLAT and the Supreme Court where the correctness in that regard also will be examined.”

- 12.8. Applying the aforesaid principles to the present case, the Corporate Debtor admittedly possesses no adjudicated or realisable claim exceeding the amount in default. Its reliance on business viability, unsold inventory, project status, or anticipated receivables does not constitute “good reasons” in law to defer or deny admission of CIRP.
- 12.9. The existence of a financial debt owed to EARCL is undisputed. Persistent defaults stand admitted and are conclusively established on record, including breach of the restructuring agreement and failure to pay instalments within the stipulated cure period. The restructuring arrangement failed due to non-payment by the Corporate Debtor, thereby triggering an express event of default under its terms.
- 12.10. Any alleged non-cooperation by EARCL occurred subsequent to the default and cannot absolve the Corporate Debtor of its admitted failure to comply with its payment obligations. The NCLAT correctly held that considerations such as ongoing operations, partial project completion, or anticipated receivables are extraneous to the statutory mandate under Section 7.
- 12.11. The contention that EARCL misused the Code as a recovery tool is equally untenable. The Code does not prohibit a financial creditor from invoking CIRP merely because recovery proceedings under the SARFAESI Act or before the DRT are pending or have been initiated. Section 238 accords overriding effect to the Code, and upon admission, the moratorium under Section 14 stays all such proceedings.
- 12.12. Allegations of *mala fide* invocation can be examined only within the framework of Section 65 of the Code, which requires specific pleadings and proof of abuse of process by the Corporate Debtor. No such case has been pleaded or established on the facts of the present case.

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12.13. In **Kotak Mahindra Bank Ltd. v. A. Balakrishnan and another**²⁰, this Court held that the trigger point for CIRP is default, and that even a recovery certificate constitutes a fresh cause of action for initiation of insolvency proceedings. The mere pendency of parallel recovery proceedings does not establish *mala fides* unless abuse under Section 65 is demonstrated. The following paragraphs are apposite in this context:

*“40. From the scheme of the IBC, it could be seen that where any corporate debtor commits a default, a financial creditor, an operational creditor or the corporate debtor itself is entitled to initiate CIRP in respect of such corporate debtor in the manner as provided under the said Chapter. The default has been defined to mean non-payment of debt. The debt has been defined to mean a liability or obligation in respect of a claim which is due from any person and includes a financial debt and operational debt. A claim means a right to payment, whether or not such right is reduced to judgment, fixed, disputed, etc. **It is more than settled that the trigger point to initiate CIRP is when a default takes place. A default would take place when a debt in respect of a claim is due and not paid. A claim would include a right to payment whether or not such a right is reduced to judgment.**”*

“54. In any case, we have already discussed hereinabove that the trigger point for initiation of CIRP is default of claim. “Default” is non-payment of debt by the debtor or the corporate debtor, which has become due and payable, as the case may be, a “debt” is a liability or obligation in respect of a claim which is due from any person, and a “claim” means a right to payment, whether such a right is reduced to judgment or not. It could thus be seen that unless there is a “claim”, which may or may not be

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*reduced to any judgment, there would be no “debt” and consequently no “default” on non-payment of such a “debt”. When the “claim” itself means a right to payment, whether such a right is reduced to a judgment or not, we find that if the contention of the respondents, that merely on a “claim” being fructified in a decree, the same would be outside the ambit of clause (8) of Section 5 IBC, is accepted, then it would be inconsistent with the plain language used in the IBC. As already discussed hereinabove, the definition is inclusive and not exhaustive. **Taking into consideration the object and purpose of the IBC, the legislature could never have intended to keep a debt, which is crystallised in the form of a decree, outside the ambit of clause (8) of Section 5 IBC.***

55. *Having held that a liability in respect of a claim arising out of a recovery certificate would be a “financial debt” within the ambit of its definition under clause (8) of Section 5 IBC, as a natural corollary thereof, the holder of such recovery certificate would be a financial creditor within the meaning of clause (7) of Section 5 IBC. As such, such a “person” would be a “person” as provided under Section 6 IBC who would be entitled to initiate the CIRP.*

56. *Insofar as the contention of the respondents with regard to clause (a) of sub-section (1) of Section 14 IBC is concerned, we do not find that the words used in clause (a) of sub-section (1) of Section 14 IBC could be read to mean that the decree-holder is not entitled to invoke the provisions of the IBC for initiation of CIRP. A plain reading of the said Section would clearly provide that once CIRP is initiated, there shall be prohibition for institution of suits or continuation of pending suits or proceedings against the corporate debtor including execution of any judgment, decree or order in any court of law, tribunal, arbitration panel or other authority. **The prohibition to institution of suit or continuation of pending suits or proceedings***

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including execution of decree would not mean that a decree-holder is also prohibited from initiating CIRP, if he is otherwise entitled to in law. The effect would be that the applicant, who is a decree-holder, would himself be prohibited from executing the decree in his favour.

- 12.14. The above position was reiterated in **Tottempudi Salalith v. SBI**²¹. Relying upon **Kotak Mahindra**, this Court held as follows:

“20. On behalf of the appellant, submissions have been made that the banks having approached the DRT, were barred under the doctrine of election from approaching NCLT for recovery of same set of debts. This is a doctrine embodied in the law of evidence, which bars prosecution of the same right in two different fora based on the same cause of action. But so far as the present appeal is concerned, the recovery proceedings before the DRT had commenced in the year 2014. At that point of time, IBC had not come into existence. Moreover, it has been held by this Court in Kotak Mahindra-1 [Kotak Mahindra Bank Ltd. v. A. Balakrishnan, (2022) 9 SCC 186 : (2022) 4 SCC (Civ) 548] that the recovery certificate itself would give rise to a fresh cause of action entitling a financial creditor to initiate Corporate Insolvency Resolution Process (CIRP). By this judgment, the right of the financial creditor to invoke the mechanism under IBC after issue of recovery certificate stood acknowledged as a valid legal course. This Court, in that case also dealt with the question of instituting a CIRP on the strength of recovery certificate. Needless to add, such recovery certificate arose out of a proceeding from the DRT. The enforcement mechanism for a recovery certificate is an independent course, which a financial creditor may opt for realisation of its dues

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crystalised under the 1993 Act, instead of chasing the mechanism under the 1993 Act.

21. IBC itself is not really a debt recovery mechanism but a mechanism for revival of a company fallen in debt, but the procedure envisaged in IBC substantially relates to ensuring recovery of debts in the process of applying such mechanism. The question of election between the fora for enforcement of debt under the 1993 Act and initiation of CIRP under IBC arises only after a recovery certificate is issued. The reliefs under the two statutes are different and once CIRP results in declaration of moratorium, the enforcement mechanism under the 1993 Act or the SARFAESI Act gets suspended. In such circumstances, after issue of recovery certificate, the financial creditor ought to have option for enforcing recovery through a new forum instead of sticking on to the mechanism through which recovery certificate was issued. In Transcore v. Union of India [Transcore v. Union of India, (2008) 1 SCC 125 : (2008) 1 SCC (Civ) 116], application of SARFAESI mechanism was held permissible even though the subject-proceeding was instituted under the 1993 Act.

22. Thus, the doctrine of election cannot be applied to prevent the financial creditors from approaching NCLT for initiation of CIRP.”

- 12.15. Further, in **Haldiram Incorporation (P) Ltd. v. Amrit Hatcheries (P) Ltd.**²², this Court upheld proceedings under the SARFAESI Act even where sale concluded shortly before the moratorium. While we express our strong disapproval of lenders pursuing parallel proceedings after having approached the NCLT, such conduct, though deprecated, is not illegal *per se*. What is prohibited is malicious recovery within the meaning of Section 65, and not recovery in the traditional sense.

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12.16. The concept of revival under the IBC does not exclude recovery altogether; it excludes abuse of insolvency as a pressure tactic. The Adjudicating Authority retains a crucial gatekeeping role at later stages, particularly at the time of approval of the resolution plan, to ensure compliance with the Code while respecting the primacy of the commercial wisdom of the Committee of Creditors.

12.17. In ***Karad Urban Cooperative Bank Limited v. Swwapnil Bhingardey and others***²³, this Court reiterated that questions relating to feasibility and viability fall squarely within the domain of the CoC, and cannot be examined at the threshold stage. The following paragraphs are relevant in this regard:

“12. We have carefully considered the rival submissions. On the first question regarding the viability and feasibility of a resolution plan, the law is now wellsettled. In K. Sashidhar v. Indian Overseas Bank, (2019) 12 SCC 150, it was held as follows:

“52...There is an intrinsic assumption that financial creditors are fully informed about the viability of the corporate debtor and feasibility of the proposed resolution plan...The opinion on the subject matter expressed by them after due deliberations in the CoC meetings through voting, as per voting shares, is a collective business decision. The legislature, consciously, has not provided any ground to challenge the “commercial wisdom” of the individual financial creditors or their collective decision before the adjudicating authority. That is made non-justiciable.

...

57...The provisions investing jurisdiction and authority in NCLT or NCLAT as noticed

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earlier, have not made the commercial decision exercised by CoC of not approving the resolution plan or rejecting the same, justiciable. This position is reinforced from the limited grounds specified for instituting an appeal that too against an order “approving a resolution plan” under Section 31.

58...Further, the jurisdiction bestowed upon the appellate authority (NCLAT) is also expressly circumscribed. It can examine the challenge only in relation to the grounds specified in Section 61(3) of the I&B Code, which is limited to matters “other than” enquiry into the autonomy or commercial wisdom of the dissenting financial creditors.

...

64...At best, the adjudicating authority (NCLT) may cause an enquiry into the “approved” resolution plan on limited grounds referred to in Section 30(2) read with Section 31(1) of the I&B Code. It cannot make any other inquiry nor is competent to issue any direction in relation to the exercise of commercial wisdom of the financial creditors — be it for approving, rejecting or abstaining, as the case may be. Even the inquiry before the appellate authority (NCLAT) is limited to the grounds under Section 61(3) of the I&B Code. It does not postulate jurisdiction to undertake scrutiny of the justness of the opinion expressed by financial creditors at the time of voting.”

13. *Thereafter, in Essar Steel (India) Ltd. Committee of Creditors v. Satish Kumar Gupta, (2020) 8 SCC 531, this Court held:*

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“67...Thus, it is clear that the limited judicial review available, which can in no circumstance trespass upon a business decision of the majority of the Committee of Creditors, has to be within the four corners of Section 30(2) of the Code, insofar as the Adjudicating Authority is concerned, and Section 32 read with Section 61(3) of the Code, insofar as the Appellate Tribunal is concerned.

...

73...Thus, while the Adjudicating Authority cannot interfere on merits with the commercial decision taken by the Committee of Creditors, the limited judicial review available is to see that the Committee of Creditors has taken into account the fact that the corporate debtor needs to keep going as a going concern during the insolvency resolution process; that it needs to maximise the value of its assets; and that the interests of all stakeholders including operational creditors has been taken care of.”

14. *The principles laid down in the aforesaid decisions, make one thing very clear. If all the factors that need to be taken into account for determining whether or not the corporate debtor can be kept running as a going concern have been placed before the Committee of Creditors and the CoC has taken a conscious decision to approve the resolution plan, then the adjudicating authority will have to switch over to the hands off mode. It is not the case of the corporate debtor or its promoter/Director or anyone else that some of the factors which are crucial for taking a decision regarding the viability and feasibility, were not placed before the CoC or the Resolution Professional. The only basis for the corporate debtor*

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to raise the issue of viability and feasibility is that the ownership and possession of the ethanol plant and machinery is the subject matter of another dispute and that the resolution plan does not take care of the contingency where the said plant and machinery may not eventually be available to the Successful Resolution Applicant.”

Thus, if the CoC approves a resolution plan in derogation of the objectives, scheme, and ethos of the Code, the NCLT is not rendered powerless at the stage of approval. The contention of the Corporate Debtor that the respondent – Financial Creditor is merely seeking recovery is, therefore, wholly untenable in law.

12.18. The NCLAT, upon a detailed examination of the material on record, found that the Corporate Debtor had persistently acknowledged defaults under both the sanction letters and the restructuring agreement. It further noted that the Corporate Debtor was facing acute financial distress, had failed to comply with regulatory requirements, was unable to obtain mandatory compliance certificates, and could not sell units at prevailing market rates despite multiple attempts. Even according to another creditor, SBI, which had advanced money under the SWAMIH Fund, a public fund sponsored by taxpayers for the completion of stalled projects, the Corporate Debtor had refused to cooperate in relation to completion of the project as well as adherence to the repayment schedule. These circumstances, taken cumulatively, substantiated EARCL's request for initiation of CIRP.

12.19. The NCLAT further held that EARCL's revocation of the restructuring arrangement was contractually justified owing to the Corporate Debtor's failure to pay instalments. The breach of the restructuring terms triggered express events of default under the relevant clauses, thereby entitling EARCL to recall the entire outstanding liability. Despite repeated reminders, the Corporate Debtor failed to cure the defaults within the stipulated cure period, and EARCL was under no legal or contractual obligation to reopen or renegotiate the restructuring.

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- 12.20. The NCLAT rejected the plea of *mala fide* invocation, observing that acceptance of such argument would render lenders effectively remediless. It also rejected the contention that the Corporate Debtor's alleged viability could excuse non-payment of admitted dues, noting that financial distress was manifest from the continuing and acknowledged defaults.
- 12.21. The debt and default having been conclusively established, and the narrow exception carved out in ***Vidarbha Industries*** being clearly inapplicable, the NCLAT was fully justified in admitting the Corporate Debtor into the CIRP. The NCLT's refusal was contrary to the settled law and the statutory mandate of Section 7.
- 12.22. Accordingly, the impugned judgment admitting the Corporate Debtor into the CIRP does not suffer from any legal infirmity.
13. **Question No. 2 – Rejection of the Intervention Application filed by the Society**
- 13.1. While it is undisputed that individual homebuyers are financial creditors within the meaning of the IBC, the core question that arises for determination is whether a society or association of homebuyers possesses *locus standi* to intervene in proceedings under Section 7 of the Code, either at the admission stage or at the appellate stage.
- 13.2. The appellant Society contends that it represents the collective interest of the allottees, membership being mandatory under its bye-laws. It is urged that the summary rejection of its intervention application by the NCLAT violates the principles of natural justice and leaves homebuyers, particularly minority financial creditors, remediless in the CIRP. It is further argued that the distinction drawn by the NCLAT between completed and uncompleted towers is artificial, arbitrary, and unsustainable.
- 13.3. *Per contra*, EARCL submits that the Society lacks *locus standi*, it being neither a financial creditor under Section 5(7) nor an operational creditor under Section 5(20) of the Code. The Society is not a party to any transaction documents, has no privity of contract with EARCL, and does not qualify as a recognised stakeholder under the statutory framework of the IBC.

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- 13.4. It is further submitted that the Society is a promoter-controlled maintenance entity constituted for the upkeep of a completed tower, and not a representative body of all homebuyers in the project. No registration certificate, general body resolution, minutes, or document evidencing collective authorisation has been produced to substantiate any representative capacity.
- 13.5. The issue of *locus* at the Section 7 stage is no longer *res integra*. In **GLAS Trust Company**, this Court held that while there is no rigid requirement restricting the right to appeal only to the applicant creditor and the corporate debtor, such latitude applies when proceedings are *in rem* post-admission of CIRP. At the pre-admission stage, proceedings under Section 7 remain *in personam*, and neither the Adjudicating Authority nor the Appellate Authority is required to hear other creditors, much less unrelated third parties. When proceedings are *in personam*, no right of audience inheres in persons who are strangers to the debt and default forming the basis of the application. The relevant paragraphs are reproduced below:

“(b) Insights from the evolution of the legal framework

63. *In essence, after a series of deliberations by the legislature, the executive and nudges by this Court, the framework created by Rule 8 of the NCLT Rules and Section 12-A IBC read with Rule 30-A of the CIRP Regulations lays down an exhaustive procedure for the withdrawal of an application filed by creditors under Sections 7, 9, or 10 IBC. Withdrawal may be sought at four stages, all of which have a procedure prescribed under the existing framework. These may be summarised as follows:*

63.1. Before the application under Sections 7, 9 or 10 is admitted by NCLT: *Such cases are squarely covered by Rule 8 of the NCLT Rules, which requires that the applicant approach NCLT directly. NCLT may then pass an order permitting the withdrawal of the application. At this stage, as CIRP process has not been initiated, the proceedings are still in personam, as between the applicant creditor and*

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*the corporate debtor. Therefore, while approving the withdrawal at this stage, **NCLT may restrict its enquiry to only hear the applicant creditor and corporate debtor, and other potential creditors are not stakeholders at this stage.***

63.2.....

*75. The provision stipulates that “any person” who is aggrieved by the order of NCLAT may file an appeal before the Supreme Court within the prescribed limitation period. Similar language is used in Section 61 IBC, which provides for appeals to NCLAT from orders of NCLT.²⁴ The use of the phrase “any person aggrieved” indicates that there is no rigid locus requirement to institute an appeal challenging an order of NCLT, before NCLAT or an order of NCLAT, before this Court. Any person who is aggrieved by the order may institute an appeal, and nothing in the provision restricts the phrase to only the applicant creditor and the corporate debtor. As noted above, once CIRP is initiated, the proceedings are no longer restricted to the individual applicant creditor and the corporate debtor but rather become collective proceedings (in rem), where all creditors, such as the appellant, are necessary stakeholders. **The appellant is not an unrelated party to CIRP, but is in fact, an entity whose claims had been verified by the IRP vide letter dated 19-8-2024. The appellant who claims to be a financial creditor, has expressed reasonable apprehensions about the prejudice it would face if there were roundtripping of the funds, and the prioritisation of the debts of the second respondent, an operational creditor.***

- 13.6. This position was reiterated in ***Independent Sugar Corpn. Ltd. v. Hindustan National Gas & Industries Ltd. (Resolution***

²⁴ “61. Appeals and appellate authority.—(1) Notwithstanding anything to the contrary contained under the Companies Act, 2013 (18 of 2013), any person aggrieved by the order of the adjudicating authority under this part may prefer an appeal to the National Company Law Appellate Tribunal.” (emphasis supplied)

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Professional)²⁵. Though the said case concerned the *locus* of a failed resolution applicant, the Court reaffirmed that participatory rights depend upon the stage of the proceedings and that, even otherwise, a party must demonstrate legally cognizable prejudice and cannot be a complete stranger to the insolvency process. The relevant paragraph is extracted for reference:

“24. Once the CIRP is initiated, the nature of proceedings are no longer in personam but rather become in rem. In light of the same, the expression “any person aggrieved” in the context of IBC has been held to be indicative of there being no rigid locus requirements to institute an appeal challenging an order of NCLT before NCLAT or an order of NCLAT before this Court. [GLAS Trust Co. LLC v. Byju Raveendran, (2025) 3 SCC 625 : (2024) 247 Comp Cas 687] Similarly, in the context of the Competition Act, even those persons that bring to CCI information of practices that are contrary to the provisions of the Competition Act, could be said to be “aggrieved”. [Samir Agrawal v. CCI (Cab Aggregators Case), (2021) 3 SCC 136] Therefore, the term “any person aggrieved” appearing in Section 62 IBC and Section 53-T of the Competition Act must be understood widely and not in a restricted fashion.

25. In the present case, the appellant as an unsuccessful resolution applicant whose resolution plan could have otherwise been approved by CoC, satisfies the requirement of being aggrieved. This preliminary locus standi objection vis-à-vis the appellant, therefore, does not merit acceptance.”

- 13.7. The IBC is a self-contained code which confers participatory rights only on persons falling within statutorily defined categories. A financial creditor under Section 5(7) must be a person to whom a financial debt is owed. While the Explanation to Section 5(8)(f) deems individual allottees

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to be financial creditors, it does not extend such status to societies or associations unless the entity is itself a creditor in its own right, or is statutorily recognised as an authorised representative under the Code.

- 13.8. A society is a distinct juristic entity separate from its members. Unless it has itself advanced funds, executed allotment agreements, or received allotments, it cannot claim financial creditor status. The right to initiate or participate in CIRP flows from the debt transaction and the statute, not from associative or representational interest.
- 13.9. Homebuyers' societies or welfare associations are ordinarily constituted for maintenance and management of common facilities. Their office-bearers cannot litigate on behalf of allottees or claim representative status before adjudicatory fora absent explicit statutory recognition or legally valid authorisation.
- 13.10. Any contrary interpretation would impermissibly enlarge the statutory definition of "financial creditor", encroach upon individual rights of allottees, and create an extra-statutory layer of representation. It would also enable errant corporate debtors to obstruct and delay insolvency proceedings under the guise of purported collective interests – an abuse expressly cautioned against in ***Pioneer Urban Land***.
- 13.11. Proceedings under Section 7 are essentially bipartite at the admission stage, involving only the financial creditor and the corporate debtor. Unrelated third parties including other creditors, have no independent right of audience at this stage, a principle consistently affirmed by this Court.
- 13.12. Collective representation of homebuyers is statutorily regulated and arises only after admission of CIRP through the authorised representative mechanism under Section 21(6A) read with Regulation 16A of the CIRP Regulations. The Code does not contemplate *ad hoc* or self-appointed representation at the pre-admission or appellate stage. In the context of real estate allottees, Section 7 itself mandates that an application must be filed jointly by the prescribed number of allottees and not through any authorised representative, much less through a non-party housing society formed for maintenance purposes.

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- 13.13. In ***Phoenix ARC Pvt. Ltd v. Spade Financial Services Ltd.***²⁶, this Court reiterated that financial creditor status must be determined strictly with reference to the nature of the transaction and cannot be conferred by implication or association.
- 13.14. Though in ***Chitra Sharma***, homebuyer associations were permitted to participate, such intervention was exceptional, grounded in Article 142 of the Constitution, and cannot be treated as a precedent conferring general *locus* on societies in statutory insolvency proceedings.
- 13.15. Rule 11 of the NCLAT Rules preserves inherent powers to meet the ends of justice. However, such powers are residual and cannot override the statutory structure of the Code or create substantive participatory rights where the statute deliberately excludes them. In this context, reference was made to the decision in ***GLAS Trust Company***, wherein, it was held as follows:

“(iii) Scope of “inherent powers” under Rule 11

67. Section 151 of the Code of Civil Procedure (“CPC”) reads as follows:

“151. Saving of inherent powers of Court.—Nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court.”

68. Rule 11 of the NCLT Rules, 2016 and Rule 11 of the NCLAT Rules, 2016, which preserve the inherent powers of NCLT and NCLAT, respectively, mirror Section 151CPC and read as follows:

“11. Inherent powers.—Nothing in these Rules shall be deemed to limit or otherwise affect the inherent powers of the Appellate Tribunal to make such orders or give such

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directions as may be necessary for meeting the ends of justice or to prevent abuse of the process of the Appellate Tribunal.”

69. *In a consistent line of precedent, this Court has held that “inherent powers” may be exercised in cases where there is no express provision under the legal framework. However, such powers cannot be exercised in contravention of, conflict with or in ignorance of express provisions of law. We may helpfully refer to the observations of a two-Judge Bench of this Court in one such case. In Ram Chand & Sons Sugar Mills (P) Ltd. v. Kanhayalal Bhargava [Ram Chand & Sons Sugar Mills (P) Ltd. v. Kanhayalal Bhargava, (1967) 37 Comp Cas 42 : 1966 SCC OnLine SC 215] a two-Judge Bench of this Court, speaking through K. Subba Rao, J. (as the learned Chief Justice then was), opined : (SCC OnLine SC para 5)*

“5. ... Having regard to the said decisions, the scope of the inherent power of a court under Section 151 of the Code may be defined thus: The inherent power of a court is in addition to and complementary to the powers expressly conferred under the Code. But that power will not be exercised if its exercise is inconsistent with, or comes into conflict with, any of the powers expressly or by necessary implication conferred by the other provisions of the Code. If there are express provisions exhaustively covering a particular topic, they give rise to a necessary implication that no power shall be exercised in respect of the said topic otherwise than in the manner prescribed by the said provisions. Whatever limitations are imposed by construction on the provisions of Section 151 of the Code, they do not control the undoubted power of the Court conferred

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*under Section 151 of the Code to **make a suitable order to prevent the abuse of the process of the Court.***

(emphasis supplied)

70. When a procedure has been prescribed for a particular purpose exhaustively, no power shall be exercised otherwise than in the manner prescribed by the said provisions. In such cases, the court must be circumspect in invoking its “inherent powers” to deviate from the prescribed procedure. If such deviation is made, the court must justify why this was necessary to “prevent the abuse of the process of the Court”.

71. The need to be circumspect while invoking “inherent powers”, when there is an exhaustive legal framework is amplified in the context of a legislation like the IBC. In *Ebix Singapore (P) Ltd. v. Educomp Solutions Ltd. (CoC)* [*Ebix Singapore (P) Ltd. v. Educomp Solutions Ltd. (CoC)*, (2022) 2 SCC 401 : (2022) 1 SCC (Civ) 586 : (2022) 231 Comp Cas 110], a two-Judge Bench of this Court, speaking through one of us (D.Y. Chandrachud, J.), affirmed this position and observed as follows: (SCC p. 481, para 101)

“101. Any claim seeking an exercise of the adjudicating authority’s residuary powers under Section 60(5)(c) IBC, NCLT’s inherent powers under Rule 11 of the NCLT Rules, 2016 or even the powers of this Court under Article 142 of the Constitution must be closely scrutinised for broader compliance with the insolvency framework and its underlying objective. The adjudicating mechanisms which have been specifically created by the statute, have a narrowly defined role in the process and must be circumspect in granting reliefs that may run counter

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to the timeliness and predictability that is central to IBC. Any judicial creation of a procedural or substantive remedy that is not envisaged by the statute would not only violate the principle of separation of powers, but also run the risk of altering the delicate coordination that is designed by IBC framework and have grave implications on the outcome of CIRP, the economy of the country and the lives of the workers and other allied parties who are statutorily bound by the impact of a resolution or liquidation of a corporate debtor."

- 13.16. As clarified in **GLAS Trust Company**, invocation of Rule 11 to oppose admission of a Section 7 petition is impermissible once debt and default are established. The inherent power preserved under Rule 11 does not confer a substantive right of participation where the statute has consciously and deliberately excluded it.
- 13.17. In the present case, the appellant Society is neither a financial nor an operational creditor. It is a maintenance society not constituted for insolvency representation. No documentary proof of registration, collective authorisation, or general body resolution has been produced. Membership is automatic and mandatory, negating consensual representation. Reliance on compulsory membership to claim representational authority on behalf of allottees is nothing but a *brutum fulmen*. Notably, the intervention application was filed only at the appellate stage and not before the NCLT. The Society is not a party to the financial transaction forming the substratum of the Section 7 application. Hence, no statutory right of appeal inheres in the appellant.
- 13.18. While the NCLAT's distinction between completed and uncompleted towers may be overbroad and untenable, the ultimate conclusion on absence of *locus standi* rests on sound legal footing. Permitting such intervention would undermine the expeditious and structured insolvency framework envisaged under the Code.

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13.19. The plea of violation of principles of natural justice is equally untenable. It is settled that such violation cannot be alleged in the absence of demonstrable prejudice, particularly where no foundational right of participation exists. Reference may be made to ***Bishambhar Prasad v. Arfat Petrochemicals Pvt. Ltd. and others***²⁷, the relevant paragraphs of which are usefully extracted below:

*“77. The importance of Principles of Natural Justice, among which we are concerned with **audi alterem partem** in this case, have been deliberated upon by this Court numerous times in the past. As far back as in *Union of India v. P.K. Roy* (1968) 2 SCR 186, the Court held:*

“12...But the extent and application of the doctrine of natural justice cannot be imprisoned within the strait-jacket of a rigid formula. The application of the doctrine depends upon the nature of the jurisdiction conferred on the administrative authority, upon the character of the rights of the persons affected, the scheme and policy of the statute and other relevant circumstances disclosed in the particular case...”

*78. Further, in *A.K. Kraipak v. Union of India* (1969) 2 SCC 262, the nature of an administrative power and the obligations reposed upon the State to function in a just and fair manner was explained:*

“13. The dividing line between an administrative power and a quasi-judicial power is quite thin and is being gradually obliterated. For determining whether a power is an administrative power or a quasi-judicial power one has to look to the nature of the power conferred, the

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*person or persons on whom it is conferred, the framework of the law conferring that power, the consequences ensuing from the exercise of that power **and the manner in which that power is expected to be exercised.** Under our Constitution the rule of law pervades over the entire field of administration. Every organ of the State under our Constitution is regulated and controlled by the rule of law. **In a welfare State like ours it is inevitable that the jurisdiction of the administrative bodies is increasing at a rapid rate. The concept of rule of law would lose its vitality if the instrumentalities of the State are not charged with the duty of discharging their functions in a fair and just manner. The requirement of acting judicially in essence is nothing but a requirement to act justly and fairly and not arbitrarily or capriciously. The procedures which are considered inherent in the exercise of a judicial power are merely to facilitate if not ensure a just and fair decision. In recent years the concept of quasi-judicial power has been undergoing a radical change. What was considered as an administrative power some years back is now being considered as a quasi-judicial power...***

79. *In this context, it may be true that the Principles of Natural Justice entailed giving Respondent No. 1 an opportunity to defend its rights. **However, the most decisive and crucial factor is whether any legally vested 'right' ever accrued in favour of Respondent No. 1, which the State Government could not have despoiled behind its back.** It has already been held by us categorically that RIICO had no authority whatsoever to accord permission*

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*for conversion and sub-division of the industrial land allotted to Respondent No. 1. We have further opined that the State Government has always retained its authority as lessor and was the only competent authority to grant such permissions to Respondent No. 1 within the framework of the 1959 Rules. **The irresistible conclusion would be that the self-styled power exercised by RIICO, was without any sanction in law;** it lacked inherent competence and RIICO acted beyond its jurisdiction in respect of LIA, Kota. The permissions accorded by RIICO in favour of Respondent No. 1 did not confer any rights whatsoever, much less any enforceable right in the eyes of law. RIICO usurped the powers vested in the State Government and passed palpably illegal orders in favour of Respondent No. 1. The agreements between RIICO and Respondent No. 1 are nothing but **brutum fulmen.**"*

13.20. Accordingly, in the instant case, in the absence of any foundational right to participate in the proceedings before NCLT or NCLAT, the appellant society cannot claim a vested right to be heard at the appellate stage, for such right flows from the statute and is not a matter of right.

13.21. Even otherwise, no prejudice is demonstrated:

- Homebuyers already in possession stand outside the insolvency estate.
- Pending allottees are recognised financial creditors who are entitled to file claims and participate in the CoC through authorised representatives.
- Regulation 4E protects possession subject to 66% CoC approval.
- Any approved resolution plan binds all stakeholders and ensures equitable treatment.
- RERA rights stand harmonized with the IBC, as held by this Court in **Pioneer Urban Land and Mansi Brar Fernandez**.

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13.22. Accordingly, we hold that

- The right to initiate or participate in insolvency proceedings is statutory, not equitable.
- A society or Resident Welfare Association, not being a creditor in its own right and not recognised as an authorised representative of allottees under the IBC, has no *locus standi* to intervene in proceedings arising out a Section 7 petition.
- The NCLAT was justified in rejecting the Society's intervention application.
- No prejudice has been caused to homebuyers, whose interests are adequately safeguarded under the Code.

14. At this juncture, we may aptly refer to the decision in ***Mansi Brar Fernandes v. Shubha Sharma and another***²⁸, wherein while dealing with the growing misuse of the insolvency framework by speculative investors in real estate projects, this Bench revisited, reiterated, and consolidated the settled principles governing the interplay between RERA, the Consumer Protection Act, and the IBC. In the said decision, the Court not only underscored the primacy of sector-specific remedies in real estate disputes but also issued a series of consequential directions, recognising the right to shelter as an integral facet of the right to life under Article 21 of the Constitution. The following paragraphs are apposite and merit extraction:

“15.2. In this necessary in this backdrop to reiterate certain settled principles:

- *RERA remains the primary forum for redressal of homebuyers' grievances;*
- *The IBC is a forum of last resort, intended to secure revival and completion of viable projects, not to serve as a debt recovery mechanism; and*
- *Consumer forums should confine themselves to adjudicating individual service deficiencies, thereby avoiding conflicting or overlapping orders across multiple fora.*

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15.4. Strict adherence to IBC timelines and settled precedent is imperative to realise two complementary objectives:

(i)ensuring revival and completion of stalled projects for the benefit of genuine homebuyers; and

(ii)curbing speculative activity which has functioned as a “slow poison” for the residential real estate sector and, by extension, the Indian middle class.

18.3.1. The Court further noted that remedies under RERA and the Consumer Protection Act are additional, not exclusive. Both statutes operate alongside the IBC, but with distinct purposes: RERA protects individual investors by enforcing compliance with project obligations, while the IBC operates in rem to revive the corporate debtor and maximise value for all stakeholders.

18.3.2. Importantly, Pioneer Urban held that once a prima facie default is established under Section 7 of the Code, the burden shifts onto the developer to demonstrate that the applicant is a defaulter, or that the process has been invoked fraudulently, with malicious intent, or by a speculative investor. These safeguards were intended to prevent “trigger-happy” investors from destabilising projects or prematurely driving developers into insolvency.

*21.2. In exercise of this Court’s jurisdiction, and to advance the constitutional and statutory objectives, the following **directions** are issued to the concerned authorities, in the larger interests of bona fide homebuyers and the stability of the real estate sector, which demand coordinated action by all stakeholders:*

...

(6) Resolution of real estate insolvency should, as a rule, proceed on a project specific basis rather than the entire corporate debtor, unless circumstances justify otherwise. This would protect solvent projects and genuine homebuyers from collateral prejudice. IBBI shall also devise a mechanism to enable handover of possession

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to willing allottees where substantial units in a project are complete.

(8) Regulations shall ensure meaningful representation of allottees in the CoC through authorized representatives, with safeguards against conflicts of interest.”

Conclusion

15. For the foregoing reasons,

- The appeal challenging admission of the Corporate Debtor into CIRP is dismissed.
- The appeal challenging rejection of the intervention application is also dismissed, subject to the clarification on the limited scope of *locus standi* and inherent powers.

It is clarified that upon commencement of CIRP, any aggrieved stakeholder may avail remedies strictly in accordance with the Code.

15.1. While the commercial wisdom of the Committee of Creditors is paramount and is not ordinarily amenable to judicial review, the width of powers vested in the CoC carries with it a corresponding duty of responsibility. Any extraordinary or non-routine decision taken by the CoC must, therefore, be supported by cogent reasons duly recorded in writing. Accordingly, with a view to advancing transparency, ensuring accountability, and safeguarding the interests of homebuyers, we issue the following directions:

- i) The Information Memorandum shall mandatorily disclose comprehensive and complete details of all allottees; and
- ii) Where the Committee of Creditors, upon due consideration, finds it not viable to approve handover of possession in terms of Regulation 4E of the CIRP Regulations, it shall mandatorily record cogent and specific reasons in writing for such decision.
- iii) Any recommendation for liquidation by the Committee of Creditors shall be accompanied by a reasoned justification recorded in writing, evidencing proper application of mind and due consideration of all viable alternatives, in consonance with the objective of the Code.

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These directions shall operate prospectively and shall be complied with forthwith.

16. There is no order as to costs. Pending application(s), if any, shall stand disposed of in the above terms.

Result of the case: Appeals dismissed.

[†]Headnotes prepared by: Nidhi Jain

HT Media Limited
v.
Principal Commissioner Delhi South Goods and
Service Tax

(Civil Appeal No(s). 23525-23526 of 2017)

16 January 2026

[J.B. Pardiwala* and K.V. Viswanathan, JJ.]

Issue for Consideration

Whether the fee paid by the appellant to the personalities/speakers, through their booking agents, is liable to Service Tax under the reverse charge mechanism, more particularly under the taxable category of “Event Management Service” u/ss.65(40) and 65(41) r/w. s.65(105)(zu) respectively of Chapter V of the Finance Act.

Headnotes[†]

Finance Act, 1994 – s.65(105)(zu) r/w. ss.65(40) and 65(41) – The appellant assessee conducted annual Hindustan Times Leadership Summit (the Summit) – Speakers were invited from outside India to address the Summit – The appellant entered into contracts with booking agents such as the Washington Speakers Bureau and Harry Walker Agency to book speakers – Show cause notices were issued under the Finance Act *inter alia* proposing to impose Service Tax on fees paid to the speakers through the booking agents under the category of “Event Management Service” – The Commissioner *vide* the Order-in-Original dated 13.02.2014, the demand of Service Tax invoking the extended period of limitation u/s.73 of the Finance Act with interest and penalty, was confirmed – While the Tribunal set aside the invocation of the extended period of limitation, the demand under the normal period of limitation came to be affirmed by the Tribunal under the category of “Event Management Service” – Correctness:

Held: The agreements of the assessee with the agents are part of the record of the present appeals – A bare perusal of these agreements would indicate that they are in the nature of booking a particular speaker for the Summit – The tenor of the contracts

* Author

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and the declaration given by the agents clearly indicate that the services rendered by such agents to the assessee were in the nature of booking the speakers for the event to be organized by the assessee – The contracts were entered into with the agents *qua* each speaker laying down the modalities of his/her visit and consideration for the same – Such services cannot be equated with “event management service” which has been statutorily defined to mean “any service provided in relation to planning, promotion, organizing or presentation of any arts, entertainment, business, sports, marriage or any other event and includes any consultation provided in this regard” – The contract of the assessee with the booking agents was not for “management of an event” but for booking of the speaker – The presence of the speaker is essential for the event cannot be disputed – The speaker does not plan, promote, organize or present the event – Thus, the speaker, is neither an “event manager” nor does he provide an “event management service” – Similarly, the booking agent who merely books the speaker also acts in the capacity of an agent or representative for agreeing to the terms of the speakers’ presence at the event – Participation in the event cannot be considered as management of the event – This precisely is the fundamental error committed by the revenue as well as by the Tribunal while imposing Service Tax on the service in question under the category of “event management service” – Even if this test of interpretation of sales tax statutes is applied for interpreting the clause for imposing Service Tax, the contract in question cannot be considered to be commonly understood as that of event management – Thus, the impugned judgment and order passed by the Tribunal is hereby set aside. [Paras 37, 39, 41, 48, 49]

Case Law Cited

***Shiv Steels v. State of Assam*, 2025 SCC Online SC 2006 – relied on.**

***International Merchandising Company, LLC (Earlier known as International Merchandising Corporation) v. Commissioner, Service Tax, New Delhi* [2022] 8 SCR 872 : (2023) 3 SCC 641 – distinguished.**

***Bharti Cellular Limited v. Assistant Commissioner of Income Tax* [2024] 2 SCR 1001 : (2024) 8 SCC 608; *UOI v. Future Gaming Solutions Private Limited* [2025] 2 SCR 756 : (2025) 5 SCC**

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601; *Commissioner of Sales Tax v. Jaswant Singh Charan Singh* [1967] 2 SCR 720 : 1967 SCC Online SC 154; *Indo International Industries v. Commissioner of Sales Tax* [1981] 3 SCR 294 : (1981) 2 SCC 528 – referred to.

List of Acts

Finance Act, 1994.

List of Keywords

Service Tax; Event Management; Event Management Service; Event Manager; Speakers; Summit; Booking agents; Revenue implication; Reverse Charge Mechanism; Taxable services; Strict Interpretation; Common Parlance Test; Four Corners of the Statute.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 23525-23526 of 2017

From the Judgment and Order dated 31.08.2017 of the Custom Excise Service Tax Appellate Tribunal in FO Nos. 56358 and 56359 of 2017

Appearances for Parties

Advs. for the Appellant(s):

Ashok Dhingra, Karan Bharihoke, Ms. Sonia Gupta.

Advs. for the Respondent(s):

V.C. Bharathi, Gurmeet Singh Makker, S.K.singhania, P.V. Yogeshwaran, Annirudh Sharma II.

Judgment / Order of the Supreme Court

Judgment

J.B. Pardiwala, J.

1. Since the issues involved in both the captioned appeals are the same, the challenge is also to the self-same judgment passed by the Tribunal and the parties are also the same, those were taken up for hearing analogously and are being disposed of by this common judgment and order.

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2. These appeals arise from the common judgment and order passed by the Customs, Excise and Service Tax Appellate Tribunal, New Delhi (for short, the “**CESTAT**”) dated 31.08.2017 in Service Tax Appeal Nos. 52881 & 52888 of 2014 respectively, by which the appeals filed by the appellant herein came to be disposed by the Tribunal holding that the appellants herein are liable to pay Service Tax under the category of “event management service” for the period covered within the normal limitation. At the same time, the Tribunal also held that the demand of Service Tax in respect of management consultancy service and business support service, and interest liability for entries with reference to associated enterprise were not sustainable in law.

FACTUAL MATRIX:-

3. The appellant assessee conducted annual Hindustan Times Leadership Summit (hereinafter referred to as, “**the Summit**”). Speakers were invited from outside India to address the Summit. The appellant entered into contracts with booking agents such as the Washington Speakers Bureau and Harry Walker Agency to book speakers such as Mr. Tony Blair, Mr. Jerry Linenger and Mr. Al Gore.
4. Show cause notices were issued under the Finance Act, 1994 (hereinafter referred to as “**the Finance Act**”) *inter alia* proposing to impose Service Tax on fees paid to the speakers through the booking agents under the category of “Event Management Service” under Section 65(105)(zu) read with Sections 65(40) and 65(41) respectively of Chapter V of the Finance Act by invoking the extended period of limitation.
5. The show cause notices were adjudicated by the Commissioner and ultimately *vide* the Order-in-Original dated 13.02.2014, the demand of Service Tax invoking the extended period of limitation under Section 73 of the Finance Act with interest and penalty, was confirmed.
6. The appellant assessee being dissatisfied with the Order-in-Original passed by the Commissioner referred to above, went in appeal before the Tribunal. While the Tribunal set aside the invocation of the extended period of limitation, the demand under the normal period of limitation came to be affirmed by the Tribunal under the category of “Event Management Service”.
7. In such circumstances referred to above, the appellant is here before this Court with the present appeals.

Supreme Court Reports**SUBMISSIONS ON BEHALF OF THE APPELLANT:-**

8. Mr. Ashok Dhingra, the learned Counsel appearing for the appellant vehemently submitted that the Tribunal committed a serious error in passing the impugned order affirming the demand under the normal period of limitation. It was argued vehemently that no service could be said to have been provided by the agents to the appellant.
9. The learned Counsel argued that there was no arrangement between the appellant and the agents for providing of any service for the Summit to the appellant. The agents, being lecture booking agents of the speakers, dealt with the appellant on behalf of the speakers.
10. It was further argued that the speakers, being senior politicians and former heads of States could be booked only through their respective agents, who negotiate & execute contracts, and collect an appearance fee on behalf of the speakers. The agents were paid by the speakers for the services rendered to the speakers, which fact has been confirmed by both the Washington Speakers Bureau and Harry Walker Agency respectively.
11. It was argued that for Section 65(40) and Section 65(105)(zu) of the Finance Act respectively to apply, an activity must have the following essential ingredients cumulatively to be taxable as service under taxable category of Event Management thereof:
 - (a) The person providing the Service must be an Event Manager, as defined in Section 65(41) read with the TRU Circular dated 08.08.2002.
 - (b) Such Event Manager should be engaged in providing service to any person, and
 - (c) Such service should be in relation to event management, i.e., planning, promotion, organizing, or presentation of any arts, entertainment, business, sports, marriage or any other event and includes any consultation provided in this regard.
12. The learned Counsel submitted that the TRU Circular dated 08.08.2002 clarified that Event Manager is a person who is engaged in managing the venue for an event, including decoration of sets, mandap, chair, table, barricades, sound, light video, electricals, security, communication, invitations to the event/sale of tickets and

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publicity of the event; & also has to manage stage show, artist, musician, choreographers & other miscellaneous items of work for holding of an event.

13. It was also argued that in the instant case the agents:
- (a) were neither event managers, nor were engaged in providing any service to the appellant. The agreements were signed by them as lecture booking agents of the speakers, on their behalf;
 - (b) were not engaged in managing venue, decoration of sets, barricades, sound, light, security, communication, sale of tickets or publicity;
 - (c) had nothing to do with planning, promotion, organization, or presentation of the Summit, and
 - (d) did not provide any consultation to the appellant qua the Summit.
14. In the last, it was argued that in the decision rendered in ***International Merchandising Company, LLC (Earlier known as International Merchandising Corporation) v. Commissioner, Service Tax, New Delhi*** reported in **2023 (3) SCC 641**, this Court has held, in an identical fact situation, that the service falls under the category of Manpower Recruitment or Supply Agency Service, classifiable under Section 65(105)(k). Consequently, the very same service cannot be classified by the Revenue under Section 65(105)(zu) as Event Management Services.
15. The learned Counsel in support of his aforesaid submissions placed strong reliance on the following decisions:
- (a) *Bharti Cellular Limited v. Assistant Commissioner of Income Tax*** reported in **(2024) 8 SCC 608**.
 - (b) *UOI v. Future Gaming Solutions Private Limited*** reported in **(2025) 5 SCC 601**.
16. In such circumstances referred to above, the learned Counsel prayed that there being merit in his appeals, those may be allowed and the impugned order passed by the Tribunal be set aside.

SUBMISSIONS ON BEHALF OF THE REVENUE:

17. On the other hand, Mr. V. Chandrashekara Bharathi, the learned Counsel appearing for the Revenue would submit that the primary

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contention of the appellant that the booking agents are the agents of the speakers and there is no service contract between the booking agents and the appellant, deserves to be rejected for the following reasons:

- (a) For a Principal Agent relationship to arise, it is a condition precedent that the booking agents represent themselves as the speaker's agent to the appellant. To the contrary, in the contract between the appellant and Harry Walker agency, it is explicitly mentioned that the booking agent is an independent contractor and will not be responsible for the actions of the speaker. There was no representation whatsoever that the booking agent was representing the speaker in concluding the contract with the appellant.
- (b) To the contrary, the booking agent would ensure that the speaker appears in the Summit organized by the appellant and is concluding the contracts in their individual capacity for the purpose of ensuring the speakers' presence in the Summit.
- (c) Merely because the agencies abroad represented themselves as 'booking agents', they would not automatically become agents of the speakers. For such an agency to arise, the contract must be in such a way that the booking agents conclude the contracts by way of an express authorization granted by the speakers to the booking agents. Such an authorization is conspicuous by its absence in the present case.
- (d) If the booking agents are indeed agents of the speakers as submitted by the appellant, there was no requirement for the booking agents to distance themselves from the speakers action, since their role will be limited to merely concluding the contract and will have no liability at all, since it is actually the speaker himself concluding the contract in the eyes of the law.
- (e) Lastly, the consideration that was paid by the appellant to the booking agent was not a payment made to the speaker directly. It was a payment made to the booking agent for procuring the speaker. Consequently, the gross amount charged by the booking agent would be the taxable value, on which the rate of Service Tax would apply.

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- (f) As a result, on account of the lack of representation by the booking agents to the appellant that they were indeed representing the speakers while concluding the contract and the lack of express authorization issued by the speakers to the booking agents to conclude contracts on their behalf, the booking agents cannot be treated as mere agents of the speakers.
18. The Revenue further contended that the submission of the appellant that the contours of Section 65(105)(zu) are not satisfied deserves to be rejected for the following reasons:
- (a) Any service provided or to be provided to any person by an event manager in relation to event management is a taxable supply under Section 65(105)(zu).
 - (b) An 'event manager' means any person who is engaged in providing any service in relation to event management in any manner, under Section 65(41).
 - (c) 'Event Management' means any service provided in relation to planning, promotion, organizing or presentation of any arts, entertainment, business, sports, marriage or any other event and includes any consultation provided in this regard, under Section 65(40).
 - (d) In short, the appellant must satisfy the definition of the event manager and must provide a service in relation to the event management, for the charge to be successful.
 - (e) The speakers cannot be identified separately from the Summit. It is the speakers that constitute the Summit. There would be no Summit if not for the speakers' presence. In other words, the speakers by themselves become the event. The role of the booking agents must be examined in this context.
 - (f) By ensuring the speakers' presence for a consideration, the booking agents undoubtedly rendered a service in relation to the planning, promotion, organizing or presentation of the Summit. It was integral for the appellant to procure the speakers since without them the event would be without any significance, and it was the booking agents that ensured speakers' presence. Consequently, the booking agents would become event managers and by procuring the speakers' presence and ensuring

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that they deliver the lecture at the Summit, they have provided an event management service, liable to tax under Section 65(105)(zu).

19. In the last, it was argued that the decision of this Court in ***International Merchandising Company LLC (supra)*** has no application to the present case.
20. In such circumstances referred to above, the learned counsel prayed that there being no merit in the appeals those may be dismissed

ANALYSIS:-

21. Having heard the learned Counsel appearing for the parties and having gone through the material on record, the only question that falls for our consideration is whether the fee paid by the appellant to the personalities/speakers, through their booking agents, is liable to Service Tax under the reverse charge mechanism, more particularly under the taxable category of “Event Management Service” under Sections 65(40) and 65(41) read with Section 65(105)(zu) respectively of Chapter V of the Finance Act?
22. The aforesaid issue falls for our consideration for the period of demand between October, 2009 and March, 2012. The revenue implication is to the tune of Rs. 60,56,180/- (Rupees sixty lakh fifty-six thousand one hundred eighty).
23. Before advertng to the rival submissions canvassed on either side, we must look into few relevant provisions of the Finance Act.
24. During the period of dispute and up to 30.06.2012, Service Tax was levied on various categories of taxable services defined in the Finance Act i.e., under the positive definition of taxable services [w.e.f. 01.07.2012 the negative list of services regime was introduced under the Finance Act, where all services were taxable except services in the negative list or those exempted by notification issued by the Central Government], the relevant provisions of which are:
 - (a) Section 66 – provided for levy of Service Tax on value of taxable services.
 - (b) Section 66A – provided for levy of Service Tax on taxable services provided from outside India and received by a person in India under the reverse charge mechanism.

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- (c) Various sub-Sections of Section 65 – provided definition of individual taxable services, which were amended from time to time by an amending Act, and liability to Service Tax.
- (d) Section 65A – provided for the classification of taxable services, as follows:

“65A. Classification of taxable services –

(1) For the purposes of this chapter, classification of taxable services shall be determined according to the terms of the sub- clauses (105) of section 65;

(2) When for any reason, a taxable service is prima facie, classifiable under two or more sub-clauses of clause (105) of section 65, classification shall be effected as follows :-

(a) the sub-clause which provides the most specific description shall be preferred to sub-clauses providing a more general description;

(b) composite services consisting of a combination of different services which cannot be classified in the manner specified in clause (a), shall be classified as if they consisted of a service which gives them their essential character, in so far as this criterion is applicable;

(c) when a service cannot be classified in the manner specified in clause (a) or clause (b), it shall be classified under the sub-clause which occurs first among the sub-clauses which equally merits consideration;]

4(3) The provisions of this section shall not apply with effect from such date as the Central Government may, by notification, appoint.”

- (e) Section 73 – provided for recovery of Service Tax not levied or paid or short levied or short paid or erroneously refunded.
25. Section 65(41) of the Finance Act defined ‘event manager’ as follows:

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“‘event manager’ means any person who is engaged in providing any service in relation to event management in any manner”

26. Section 65(40) of the Finance Act defined ‘event management’ as follows:

“‘event management’ means any service provided in relation to planning, promotion, organizing or presentation of any arts, entertainment, business, sports, marriage or any other event and includes any consultation provided in this regard”

27. Section 65(105)(zu) of the Finance Act, defined taxable service as follows:

“65. ... (105) “taxable service” means any service provided or to be provided, -

xxx xxx xxx

(zu) to any person, by an event manager in relation to event management”

28. The Tax Research Unit of the Board *vide* Circular issued under F. No. B11/1/2002-TRU dated August 8, 2002 (hereinafter, the **“Circular dated 08.08.2002”**) clarified *inter alia* in relation to Event Management Service as thus:

“2. As per clause (34), “event management” means any service provided in relation to planning, promotion, organizing or presentation of any arts, entertainment, business, sports or any other event and includes any consultation provided in this regard. Vide clause (90)(zu), taxable service means any service provided to a client, by an event manager in relation to event management. Event manager has been defined in clause (35) as any person who is engaged in providing any service in relation to event management in any manner.

3. An event manager is hired to execute an event such as product launch of any corporate, promotional activities, concerts/ rock show, official meets, award functions, beauty pageants, entertainment events, exhibitions, private

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functions, and sports events etc. Event manager uses his expertise and ideas to manage an event. Event manager is supposed to manage a venue, sets including decoration of sets, mandap, chair, table, barricades, sound, light video, electricals, security, communication, invitations to the event/ sale of tickets and publicity of the event. He has also to manage the stage show, artist, musician, choreographers and other miscellaneous items for holding of event. All services provided by the event manager are liable to service tax. This also covers any consultation provided for organizing an event....”

29. Section 65(68) of the Finance Act defined ‘Manpower Recruitment or Supply Agency Service’ as follows:

“Manpower recruitment or supply agency” means any person engaged in providing any service, directly or indirectly, in any manner for recruitment or supply of manpower, temporarily or otherwise, to any other person”.

30. Section 65(105)(k) of the Finance Act defined ‘taxable service’ as follows:

“65. ... (105) “taxable service” means any service provided or to be provided,-

(k) to any person, by a manpower recruitment or supply agency in relation to the recruitment or supply of manpower, temporarily or otherwise, in any manner;

Explanation — For the removal of doubts, it is hereby declared that for the purposes of this sub-clause, recruitment or supply of manpower includes services in relation to pre-recruitment screening, verification of the credentials and antecedents of the candidate and authenticity of documents submitted by the candidate;”

31. Thus, the essential ingredients for levy of Service Tax during the Period of Dispute on any activity were:

- (a) Such activity should be service provided in India;
- (b) Provided by one person to another;
- (c) For a consideration;

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- (d) Such service must fall under any of the defined taxable category of service i.e., under the positive definition of taxable services under the Finance Act and made liable to Service Tax as taxable service under various clauses of Section 65(105). Thus, for levy of Service Tax, taxable category of services of the Finance Act under which such service is liable to Service Tax has to be determined and proposed in the show cause notice issued by the Department; and
- (e) In case of taxable service provided from outside India to a person in India, the recipient of such service is liable to Service Tax under the reverse charge mechanism.

SCHEME OF TAXABILITY

- 32. For the purpose of deciding the pivotal issue, it is first necessary to discuss the scheme of taxability under the Finance Act during the relevant period. The period of dispute is from October 2009 to March 2012.
- 33. It is not in dispute that during such period prior to 1.7.2012, the Service Tax was leviable only on the positive list of services as enumerated in Section 65(105) of Chapter V of the Finance Act. If the services strictly fall within such list, then they are taxable and if not, then no tax can be imposed on such services.
- 34. The only clause of the taxable list of services which is being invoked by the revenue in the present case for imposing tax is Section 65(105) (zu) of the Finance Act.
- 35. The expressions “event management” and “event manager” respectively occurring in Section 65(105)(zu) are defined under Section 65(40) and Section 65(41) of the Finance Act respectively.
- 36. The impugned levy of Service Tax can be sustained only if the service in question falls within the four corners of “event management” by an “event manager”.

WHETHER THE PROVISION COVERS THE SERVICE IN QUESTION?

- 37. The agreements of the assessee with the agents are part of the record of the present appeals. A bare perusal of these agreements would indicate that they are in the nature of booking a particular speaker for the

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Summit. It provides for conditions relating to travel and accommodation of the speaker as well as the schedule of the speaker during his/her visit for the Summit. The contract also provides for the commitments made by the speakers. For instance, in the contract of the assessee with the Washington Speakers Bureau for Mr. Tony Blair, the contract refers to the likely duration of Mr. Blair's speech and Question & Answer session. It also provides for the locations where and the duration for which media interaction with Mr. Blair can take place. The contract further briefly touches upon the topics of interaction.

38. Moreover, the appellant assessee has also placed on record declarations from the agents that they rendered services to the assessee as booking agents and that the payment for appearance of speakers was collected by the agents under instructions and on behalf of the speakers in terms of the contracts with the speakers.
39. The tenor of the contracts and the declaration given by the agents clearly indicate that the services rendered by such agents to the assessee were in the nature of booking the speakers for the event to be organized by the assessee. The contracts were entered into with the agents *qua* each speaker laying down the modalities of his/her visit and consideration for the same. Such services cannot be equated with "event management service" which has been statutorily defined to mean "*any service provided in relation to planning, promotion, organizing or presentation of any arts, entertainment, business, sports, marriage or any other event and includes any consultation provided in this regard*". The contract of the assessee with the booking agents was not for "management of an event" but for booking of the speaker.
40. The entire submission of the revenue focuses on the aspect as to whether a "principal-agent" relationship is established between the speaker and the booking agent. However, we are of the view that this is wholly irrelevant for the present controversy. The issue is not whether the relationship between the speaker and the booking agent is that of "principal-agent" or not. The issue is whether the contract constitutes "event management service". As discussed hereinbefore, the contract is for booking of speaker and not for event management and therefore, the levy of tax on such contract under the category of "Event Management Service" should fail.
41. The further argument of the revenue that, without the speaker the event would be devoid of any significance and therefore, the service

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in question is an “Event Management Service”, also deserves to be rejected. That the presence of the speaker is essential for the event cannot be disputed. However, whether the service of the speaker or the agent on behalf of the speaker can be considered to be “event management service” is altogether a different issue. The speaker does not plan, promote, organize or present the event. Thus, the speaker, is neither an “event manager” nor does he provide an “event management service”. Similarly, the booking agent who merely books the speaker also acts in the capacity of an agent or representative for agreeing to the terms of the speakers’ presence at the event. Participation in the event cannot be considered as management of the event. This precisely is the fundamental error committed by the revenue as well as by the Tribunal while imposing Service Tax on the service in question under the category of “event management service”.

PRINCIPLE OF STRICT INTERPRETATION OF TAXING STATUTE WELL ESTABLISHED

42. The principle of strict interpretation of a taxing statute, particularly in the context of charging provisions, is well established. We may refer to the recent decision in the case of ***Shiv Steels v. State of Assam*** reported in **2025 SCC Online SC 2006** wherein this Court observed as under:

“14. In construing fiscal statutes and in determining the liability of a subject to tax one must have regard to the strict letter of law. If the revenue satisfies the court that the case falls strictly within the provisions of the law, the subject can be taxed. If, on the other hand, the case is not covered within the four corners of the provisions of the taxing statute, no tax can be imposed by inference or by analogy or by trying to probe into the intentions of the legislature and by considering what was the substance of the matter.”

(Emphasis supplied)

CIRCULAR OF CBIC ALSO SUPPORTS THE ASSESSEE

43. The reliance placed by the assessee on Circular dated 8.8.2002 is also well founded. At the cost of repetition, we reproduce the relevant extract of the circular as under:

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“3. An event manager is hired to execute an event such as product launch of any corporate, promotional activities, concerts/rock show, official meets, award functions, beauty pageants, entertainment events, exhibitions, private functions and sports events, etc. Event manager uses his expertise and ideas to manage an event. Event manager is supposed to manage a venue, sets including decoration of sets, mandap, chair, table, barricades, sound, light, video, electricals, security, communication, invitation to the event/sale of tickets and publicity of the event. He has also to manage the stage show, artist, musician, choreographers and other miscellaneous items for holding of event. All services provided by the event manager are liable to service tax. This also covers any consultation provided for organizing and event...”

44. Thus, what is sought to be covered is the service of management or organizing of the event, and the revenue cannot be allowed to stretch the application of such a clause beyond its contours.
45. Having said so, we are also of the view that the classification dispute raised by the appellant, pursuant to the decision of this Court in ***International Merchandising Company LLC (supra)***, deserves to be rejected for the following reasons:
- (a) The appellant is correct insofar as the following is concerned:
- (i) Prior to 01.07.2012, the Service Tax regime had specific entries for each service. In other words, without a particular classification, the Revenue cannot tax any service.
 - (ii) Consequently, a particular service cannot have two classifications and has to be traced under a specific sub-clause of Section 65(105).
 - (iii) Since the disputed period is prior to 01.07.2012, the service provided by the booking agents to the appellant needs to be classified under a specific sub-clause. As a result, if the appellant succeeds on the ground that the service provided by the booking agents is a manpower supply service, as held in the aforesaid judgment of this Court, the Revenue cannot classify the same service as event management simultaneously.

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- (b) Though at first glance, the facts in ***International Merchandising Company LLC (supra)*** seem to overlap with the present case, a subtle yet significant difference distinguishes the present case from the facts of *International Merchandising*.
- (c) In ***International Merchandising Company LLC (supra)***, the appearance and presence of Mr. Vijay Amritraj was ensured by the service provided in relation to the Chennai Open, which was the event. He was to make appearances and participate in the charity opening match. What is crucial to note is that Mr. Amritraj had no relevance whatsoever to the main event i.e., Chennai Open. With or without Mr. Amritraj, the main event i.e., Chennai Open, would have continued without any hiccups. This would show that the presence of Mr. Amritraj was merely ancillary to the main event.
- (d) To the contrary, in the present case, the booking agents that ensured the speakers' presence directly played an integral role in the event itself. Without their involvement, the Summit conducted by the appellant would not have taken place since the event and the speakers cannot be separated from each other. The speakers and their lecture constitute the event, and the booking agents ensure the event takes place. As a result, the speakers' presence is not ancillary to the main event.
- (e) Consequently, the judgment in ***International Merchandising Company LLC (supra)*** is distinguishable from the facts of the present case.

LEVY FAILS EVEN ON APPLICATION OF COMMON PARLANCE TEST

46. What is stated in the circular is also the common parlance understanding of "event management". The common parlance test has been applied by this Court for determining classification under sales tax statutes on various occasions. While deciding whether "charcoal" would be included in "coal" it was observed by this Court in the case of ***Commissioner of Sales Tax v. Jaswant Singh Charan Singh*** reported in **1967 SCC Online SC 154** as under:

"The result emerging from these decisions is that while construing the word "coal" in entry 1 of Part III of Schedule

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II, the test that would be applied is what would be the meaning which persons dealing with coal and consumers purchasing it as fuel would give to that word. A sales tax statute, being one levying a tax on goods, must, in the absence of a technical term or a term of science or art, be presumed to have used an ordinary term as coal according to the meaning ascribed to it in common parlance. Viewed from that angle both a merchant dealing in coal and a consumer wanting to purchase it would regard coal not in its geological sense but in the sense as ordinarily understood and would include "charcoal" in the term "coal".

(Emphasis supplied)

47. Similarly, while deciding whether clinical syringes could be considered as "glassware" or not, this Court observed in the case of **Indo International Industries v. Commissioner of Sales Tax** reported in **(1981) 2 SCC 528** as under:

"It is true that the dictionary meaning of the expression "glassware" is "articles made of glass" (see Webster's New World Dictionary). However, in commercial sense glassware would never comprise articles like clinical syringes, thermometers, lactometers and the like which have specialized significance and utility. In popular or commercial parlance a general merchant dealing in "glassware" does not ordinarily deal in articles like clinical syringes, thermometers, lactometers, etc., which articles though made of glass, are normally available in medical stores or with the manufacturers thereof like the assessee. It is equally unlikely that a consumer would ask for such articles from a glassware shop. In popular sense when one talks of glassware such specialized articles like clinical syringes, thermometers, lactometers and the like do not come up to one's mind. Applying the aforesaid test, therefore, we are clearly of the view that the clinical syringes which the assessee manufactures and sells cannot be considered as "glassware" falling within entry 39 of the First Schedule to the Act."

(Emphasis supplied)

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48. Even if this test of interpretation of sales tax statutes is applied for interpreting the clause for imposing Service Tax, the contract in question cannot be considered to be commonly understood as that of event management. The expressions 'event management' and 'event managers' is commonly understood in the sense of appointing someone to manage or organize the event. Individual contract for booking of persons required for participation in the event are not commonly understood as "event management" contracts.
49. In the result, these appeals succeed and are hereby allowed. The impugned judgment and order passed by the Tribunal is hereby set aside.

Result of the case: Appeals allowed.

[†]Headnotes prepared by: Ankit Gyan

